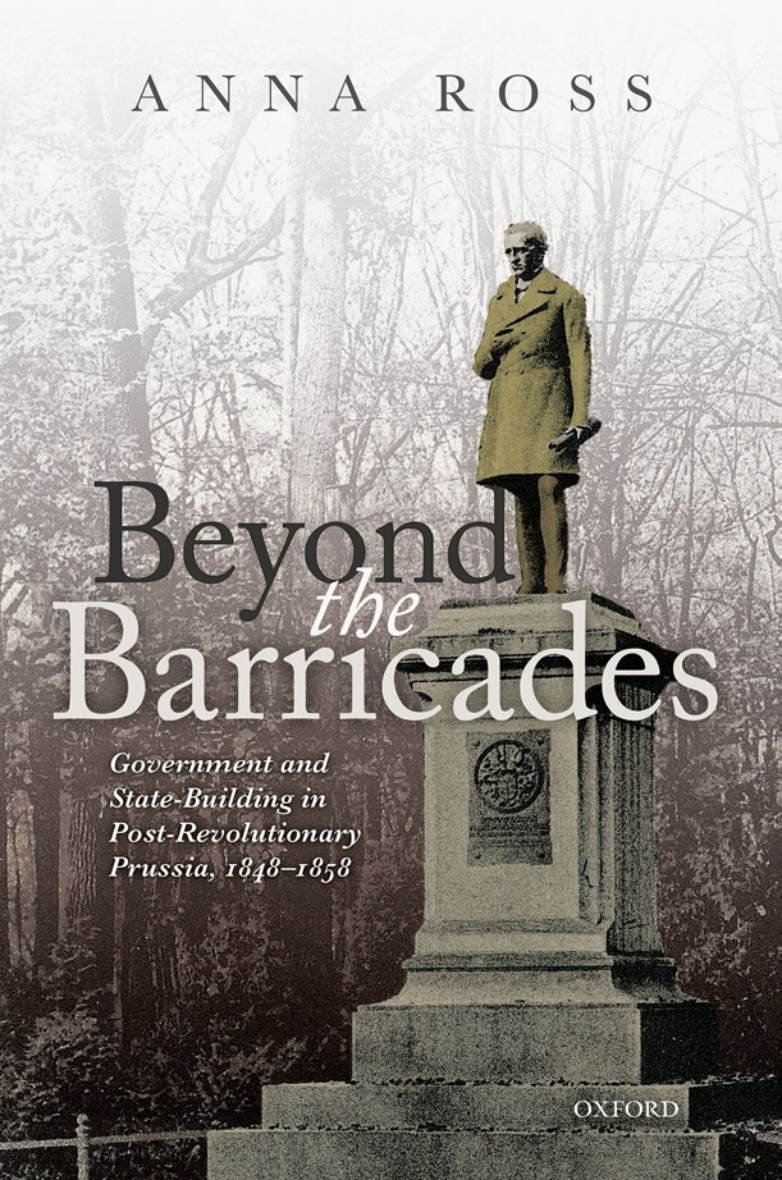
ANNA ROSS

Beyond *the* Barricades

Government and State-Building in Post-Revolutionary Prussia, 1848–1858



OXFORD

BEYOND THE BARRICADES

Beyond the Barricades

Government and State-Building in Post-Revolutionary Prussia, 1848–1858

ANNA ROSS

OXFORD
UNIVERSITY PRESS

OXFORD
UNIVERSITY PRESS

Great Clarendon Street, Oxford, OX2 6DP,
United Kingdom

Oxford University Press is a department of the University of Oxford.
It furthers the University's objective of excellence in research, scholarship,
and education by publishing worldwide. Oxford is a registered trade mark of
Oxford University Press in the UK and in certain other countries

© Anna Ross 2019

The moral rights of the author have been asserted

First Edition published in 2019
Impression: 1

All rights reserved. No part of this publication may be reproduced, stored in
a retrieval system, or transmitted, in any form or by any means, without the
prior permission in writing of Oxford University Press, or as expressly permitted
by law, by licence or under terms agreed with the appropriate reprographics
rights organization. Enquiries concerning reproduction outside the scope of the
above should be sent to the Rights Department, Oxford University Press, at the
address above

You must not circulate this work in any other form
and you must impose this same condition on any acquirer

Published in the United States of America by Oxford University Press
198 Madison Avenue, New York, NY 10016, United States of America

British Library Cataloguing in Publication Data
Data available

Library of Congress Control Number: 2018955540

ISBN 978–0–19–883382–6

Printed and bound by
CPI Group (UK) Ltd, Croydon, CR0 4YY

Links to third party websites are provided by Oxford in good faith and
for information only. Oxford disclaims any responsibility for the materials
contained in any third party website referenced in this work.

Acknowledgements

Several years and many an archival visit ago I began this monograph. It started life as a doctoral dissertation at the University of Cambridge, was developed during a Junior Research Fellowship at the University of Oxford, and reached maturity as I was appointed to an Assistant Professorship at the University of Warwick. To all these institutions and the people that make them such wonderful places to work, I am deeply grateful. Along the way, research was made possible by the generous support of a series of scholarships. The Cambridge Commonwealth Trust shouldered the brunt of my expenses with a Cambridge Australia Poynton Scholarship in combination with an Overseas Research Scholarship. Archival work would not have been possible without the financial support of a Sir John Plumb Grant from Gonville and Caius College, as well as research funding from the Geheimes Staatsarchiv Preußischer Kulturbesitz (GStA PK) and the German Academic Exchange Service (DAAD). I likewise owe a special thank you to the staff at the GStA PK, Landesarchiv Berlin, Brandenburgisches Landeshauptarchiv, Staatsbibliothek zu Berlin, Forbes Mellon Library, Cambridge University Library, Nuffield College Library, and Bodleian Libraries. Parts of Chapter 1 appeared previously in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018) and I thank the publishers for granting me permission to use the material in this book.

Intellectually, I am indebted to Christopher Clark for his unfailing faith in me. During my time in Cambridge, Richard Evans offered generous assistance and sharp insights on my work, and I was fortunate to join Gareth Stedman Jones and the network of scholars working on '1848 as a Turning Point in the History of Political Thought'. I benefited greatly from being a Prize Research Student at the Centre for History and Economics (University of Cambridge), Visiting Academic at the Humboldt-Universität zu Berlin, and Visiting Student Research Collaborator at Princeton University. In Berlin, Bärbel Holtz provided instrumental support, as did Jürgen Herres. Günther Grünthal graciously listened to my ideas as they were in progress and sent me valuable publications. In Oxford, Jean-Michel Johnston, Abigail Green, and members of the Long Nineteenth Century Seminar gave me important feedback, and, although they did not have a hand in this work, Paul Betts, Sebastian Gehrig, and Nicholas Stargardt sharpened my thinking about modern German history more generally. In Warwick, Mark Philp supported me in the final stages of manuscript preparation, and, further afield, Frank Lorenz Müller and James Brophy kindly offered their help.

On a more personal note, my fellow early career historians made my first foray into this profession a wonderful adventure. Erin Meyer Wilson, Evan Wilson, and Kiersten Burge-Hendrix—three historians especially dear to me—were all there at the start. My heartfelt thanks go to: Evrim Altintaş, Simon Byrne, Neli Demireva, Sarah Garding, Mathias Haeussler, Richard Merrill, Amy Nivette, Olha Onuch,

Kelly Richards, Lindsay Richards, Mila Roode, Cathryn Setz, Jesse Tomalty, Rebecca Voorhees, Vera Warmuth, Richard Wallbank, and Joseph Workman. Simone Cooper-Searle was also a particularly dear source of support throughout. Finally, to my parents, my brother, Annie, and the girls, who supported me in all manner of ways—thank you.

Contents

List of Figures and Map ix

Introduction 1

1. Cabinets, Constitutions, and Parliamentary Representation 20
2. Bureaucratic Geographies of the State 55
3. Crime and Punishment 73
4. Agriculture, Industry, and Communications 107
5. Cities and Urban Life 132
6. Public Opinion and Press Management 167

Conclusion 194

Bibliography 205
Index 225

List of Figures and Map

Figures

0.1. Berlin in 1848 with markings indicating the barricades of 18 and 19 March 2

1.1. Count Friedrich Wilhelm von Brandenburg (1792–1850), 1848 24

1.2. Baron Otto Theodor von Manteuffel (1805–82), *c.*1860 26

1.3. Baron Otto Theodor von Manteuffel (1805–82), *c.*1870 27

3.1. Moabit prison, *Illustrirte Zeitung*, 2 October 1847 101

3.2. Plan of Moabit prison, *Illustrirte Zeitung*, 2 October 1847 102

5.1. Carl Ludwig Friedrich von Hinckeldey (1805–56) 142

5.2. The houses in Berlin with flooded cellar apartments in the months of February and March 1850, according to official inquiries 147

5.3. Berlin's new advertising columns, *c.*1855 154

5.4. Map of Berlin and Charlottenburg showing existing and planned advertising columns, 1889 155

5.5. Map of Berlin indicating the state of railway construction in 1856 159

6.1. 'The Reaction at the Liberty Tree', *Kladderadatsch*, 19 January 1850 183

Map

2.1. Prussia, 1849 57

We, although reactionaries, are not retrograde.

(Ernst Ludwig von Gerlach, October 1851)

Introduction

On 10 November 1848, 13,000 Prussian troops entered Berlin through the Brandenburg Gate, marched down the Unter den Linden, and assembled in the Lustgarten between the city palace and museum.[1] Such a striking display of power convinced at least one bystander that she was witnessing the beginnings of a political 'reaction'.[2] Subsequent manoeuvres would only confirm such fears. After safeguarding the palace, General Friedrich von Wrangel and his troops proceeded to secure the Gendarmenmarkt and the adjacent Mohrenstraße. The Gendarmenmarkt was of particular interest to the Prussian authorities, as it contained the Schauspielhaus, in which the National Assembly (Nationalversammlung) met. It was also of important symbolic worth as one of the principal squares on which revolutionary crowds were predisposed to gather. Troops soon took control of other buildings to the west of the Berlin Palace, including the bank on the Jägerstraße, the prison known as the Hausvogtei on the Hausvogteiplatz, and the mint. To protect the palace from the north, soldiers also seized the Altes Museum. With this stronghold in place, Wrangel and his troops then moved outwards across Berlin, securing other state institutions and strategic private properties, as well as the city gates and train stations (Figure 0.1).[3]

In the months that followed, counter-revolutionary victories spread across Prussia. In the spring of 1849, troops marched through the provinces, overthrowing popular uprisings in the east in Silesia, and in the west in the Rhine Province and Westphalia. In both regions, soldiers clashed in the streets with civil guards, destroyed barricades, and retook armouries in their attempts to restore order. At times, bloody confrontation was avoided, as in Elberfeld, but other towns, such as Iserlohn, were less fortunate, witnessing hundreds of fatalities.[4]

As the revolutions came under control at home, a final phase of counter-revolutionary activity took place across state borders in the name of the German Confederation (*Deutscher Bund*). In May 1849, Prussian troops moved into the Kingdom of Saxony, where Friedrich August II had fled revolutionary scenes. In Dresden, the army helped to crush uprising with particular brutality: 250 insurgents

[1] Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901), i. 27; Veit Valentin, *Geschichte der deutschen Revolution von 1848–49*, 2 vols (Berlin: Ullstein, 1930–1), ii. 269.

[2] Robert Springer, *Berlin's Strassen, Kneipen und Clubs im Jahre 1848* (Berlin: Friedrich Gerhard, 1850), 245.

[3] Ibid. 245–8.

[4] Mark Traugott, *The Insurgent Barricade* (Berkeley: University of California Press, 2010), 275–7.

Figure 0.1. Berlin in 1848 with markings indicating the barricades of 18 and 19 March. *(Staatsbibliothek zu Berlin—Preußischer Kulturbesitz, Kart. X 17754)*

were killed, 400 wounded, 869 arrested, and over 6,000 persons prosecuted for offences during the revolutionary years.[5] Prussian troops then marched south into Baden and the Bavarian Palatinate. In Baden, the Grand Duke Leopold had been forced to flee in May 1849, and ensuing demonstrations in support of a German constitution spurred on Prussian troops in their quest for 'victory over an armed revolution'.[6] Here, casualties were high. Resistance was short lived. And, by the end of July, the last remaining insurgents had tendered their surrender. Revolutionaries fled to Switzerland or further abroad to England or the United States, leaving the way clear for a return of princes and their chosen administrations across German-speaking Europe.[7]

Such counter-revolutionary activity brought the 1848 revolutions to dramatic and often violent ends, but the monarchs and ministers overseeing it were in no way as unfettered as they first seemed. In the years that followed, they were faced

[5] Richard J. Evans, *The Pursuit of Power: Europe, 1815–1914* (London: Allen Lane, 2016), 211.

[6] Friedrich Wilhelm IV, quoted in Mark Hewitson, *The People's War: Histories of Violence in the German Lands, 1820–1888* (Oxford: Oxford University Press, 2017), 179. Hewitson helpfully highlights the important contemporary distinction between countering revolutionary activity and war in ibid. 171–80.

[7] Heléna Tóth, *An Exiled Generation: German and Hungarian Refugees of Revolution, 1848–1871* (Cambridge: Cambridge University Press, 2014).

with an array of conflicting opinions on what was the best course of action for strengthening the state. But more than this, government ministers had to consider what political options were actually possible. Scenes of military strength did not disguise the fact that the revolutions had profoundly altered domestic affairs. In various cities, for instance, it was necessary to inflect martial law with a certain degree of moderation. A complete ban on the freedoms enjoyed during the revolutions was neither possible nor prudent. Institutions had changed too. The parliament (*Landtag*) was in session, confirmed as Prussia's pre-eminent political arena in place of the old provincial estates. Its members engaged in tense debates about constitutional procedures, and, as the decade progressed, worked through a range of domestic issues. Furthermore, parliamentary life unfolded before an attentive and rapidly expanding press, the likes of which could be found across the German states.

Alongside domestic affairs, the revolutions reconfigured foreign affairs too. National aspirations were not wholly dismissed in 1849, meaning that, throughout 1850, delegates travelled to Erfurt at Prussia's behest in the hopes of creating an effective northern union. This forced many of the medium German states into difficult positions and almost caused the outbreak of war. Austria eventually put an end to the Erfurt Parliament in November 1850, and in 1851 negotiated with Prussia to revive the German Confederation. But this was only an end of sorts, as would be seen in the years that followed. During the Crimean War (1853–6), the Confederation would encounter difficulties with the rebirth of dualism between the two German great powers, and by the war's end in 1856, neither power would be willing to continue to collaborate against revolutionary forces without first considering the implications for their standing in the international sphere.[8]

In short, government could not return to the pre-revolutionary status quo, and the aim of this book is to explore what resulted. It focuses on Prussia, where the Minister-Presidents Count Friedrich Wilhelm von Brandenburg (1792–1850) and Baron Otto Theodor Baron von Manteuffel (1805–82) were acutely aware of the challenges to the political landscape wrought by the revolutions. Brandenburg was an established member of the Prussian court and army, and in March 1848 he was ordered to counter democratic revolts in Silesia. By mid-October, however, he had returned to Berlin at the invitation of Friedrich Wilhelm IV (1795−1861), and, on 2 November 1848, took up the post of Minister-President (*Ministerpräsident*). Brandenburg's task as Minister-President was to bring the revolution in Prussia to an end, but it soon became clear that he was much less aligned with the ultra-conservative visions of counter-revolution held by Friedrich Wilhelm IV and his confidants than was assumed. The same held true for Manteuffel, Brandenburg's successor. Manteuffel—a devoted bureaucrat known for his intelligence, administrative abilities, and cunning—was first appointed Interior Minister (*Innenminister*) on 8 November 1848, and, after Brandenburg's death in 1850, he assumed the role of Minister-President until 6 November 1858. Even more so than Brandenburg,

[8] Thomas Nipperdey, *Germany from Napoleon to Bismarck, 1800–1866*, trans. Daniel Nolan (Dublin: Gill and Macmillan, 1996), 608–11.

Manteuffel deviated from the doctrinaire approaches of ultraconservatives to counter-revolution and, in later years, reaction.

These Minister-Presidents, certain members of their Ministry of State (*Staatsministerium*), and officials of the Prussian bureaucracy embraced a pragmatic approach to politics in the 1850s, believing that long-term stability required a fundamental expansion and reform of state activities. This included a transformation of Prussia's criminal justice system, embodied in the creation of scores of state courts, juries, and the redesign of penal institutions. In the countryside, the state took control of peasant emancipation and the establishment of loan banks to finance this process. Officials also oversaw an increase in direct and indirect interventions in industrial sectors such as mining, as well as a more ambitious building of infrastructure including railways, roads, and canals. In urban areas, populations too felt state activity on a new scale. The powers afforded to the Prussian police in the 1850s saw them regulate the construction of houses, streets, and urban extensions with an unprecedented vigour. Similarly, in the public sphere, Manteuffel coordinated the establishment of a press office, the production of newspapers and articles, and the development of daily reports on public opinion.

The Prussian government's response to the 1848–9 revolutions is fascinating, and in this book it will take us into a myriad spaces penetrated by state-building projects.[9] That is, we will explore a series of initiatives to strengthen contact between state bureaucrats and the Prussian population in the wake of upheaval. This phenomenon is interesting in its own right, as historians and social scientists preoccupied with state-building have long demonstrated.[10] But this book seeks to go further. It makes a case for taking notice of state-building at this particular juncture because in the 1850s, as we will see, the new activities endorsed by conservative statesmen sought to remove the feudal intermediaries that had lingered so long, albeit in significantly weakened forms, into the nineteenth century. And, in their place, they attempted to consolidate a wide domain of state institutions, officials, uniform legal regimes, and practices. In other words, the 1850s were a 'watershed between an old world and a new', significant not only to the making of the modern Prussian state, but also to that of modern Germany.[11]

[9] For an excellent discussion of state-building, see John Deak, *Forging a Multinational State: State Making in Imperial Austria from the Enlightenment to the First World War* (Stanford, CA: Stanford University Press, 2015), 2 ff.

[10] For a recent example of this line of work by historians, see Iryna Vushko, *The Politics of Cultural Retreat: Imperial Bureaucracy in Austrian Galicia, 1772–1867* (New Haven: Yale University Press, 2015); For important publications from the social sciences, see: Francis Fukuyama, *State-Building: Governance and World Order in the Twenty-First Century* (London: Profile Books, 2004); Bob Jessop, 'Bringing the State Back in (Yet Again)', *International Review of Sociology*, 11 (2001), 149–73; Peter B. Evans, Dietrich Rueschemeyer, and Theda Skocpol (eds), *Bringing the State Back In* (Cambridge: Cambridge University Press, 1985); Charles Tilly, *Coercion, Capital, and European States,* AD *990–1990* (Cambridge, MA: Blackwell, 1990); Charles Tilly, 'Reflections on the History of European State-Making', in Charles Tilly and Gabriel Ardant (eds), *The Formation of National States in Western Europe* (Princeton: Princeton University Press, 1975), 3–83.

[11] Christopher Clark, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006), 501.

FROM REACTION TO REVOLUTIONS IN GOVERNMENT

The willingness of Prussia's Minister-Presidents to move the state to a more centrist position and enlarge its reach in the 1850s intersects with recent studies interested in the flexibility of conservative governments after 1848. This phenomenon is particularly noticeable in the largest of the German states, where the revolutions of 1830 had made few inroads and reform appeared to be particularly slow. Faced with discontent over government and bureaucratic inactivity, Brandenburg and Manteuffel helped to ensure that conservatives remained a viable political force in the 1850s through the creation of a constitution, a new representative system, and the development of more sophisticated state-building measures. State-building measures in the 1850s also brought bureaucrats closer to the Prussian populace, suggesting that conservatives were in fact able to administer legal, economic, social, and cultural affairs in broadly acceptable ways.[12]

And yet, the Prussian government's response to the 1848–9 revolutions has not always been understood in these terms. In fact, the earliest interpretations of the political landscape in the 1850s emphasized its reactionary nature.[13] Many contemporaries stressed the role played by German governments in ending the 'age of revolution' through harsh retributions and measures associated with the revival of anti-constitutionalism, the feudal system, and the plethora of socio-economic realities that entailed.[14] Ex-revolutionaries elaborated on this image of reaction in the 1860s, 1870s, and 1880s, imbuing government actions with a powerful sense of cohesion. For example, Bernhard Becker—a participant in the Baden revolution and later co-founder of the General German Workers' Association (*Allgemeiner Deutscher Arbeiterverein*)—argued that conservative elites were agreed in their course of action both at home and across Europe. This stood, he claimed, in stark contrast to the fundamental disunity of the revolutionary movement.[15] Likewise, Aaron Bernstein presented the 1850s as an epoch of undisturbed reaction in

[12] For an overview of conservatism in Prussia in the nineteenth century, see Philip G. Dwyer, 'Introduction: Modern Prussia—Continuity and Change', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 1–20, at 4–8. For a now older but still useful discussion of the historiography on German conservatism, see Larry Eugene Jones and James Retallack, 'German Conservatism Reconsidered: Old Problems and New Directions', in Larry Eugene Jones and James Retallack (eds), *Between Reform, Reaction and Resistance: Studies in the History of German Conservatism from 1789 to 1945* (Oxford: Berg, 1993), 1–30.

[13] On the term 'Reaktion', see Wolfram Siemann, *Gesellschaft im Aufbruch: Deutschland 1849–1871* (Frankfurt am Main: Suhrkamp, 1990), 37–40.

[14] Accounts often made parallels between government policies in this period and other periods of reaction. For example, an anonymous author writing in the *Preußische Jahrbücher* in 1858 compared the post-revolutionary years in Prussia to the persecutions and draconian curtailment of public expression following the introduction of the Carlsbad Decrees in 1819. See Anon., 'Der preußische Landtag während der Jahre 1851 bis 1857', *Preußische Jahrbücher*, 1 (1858), 186–213, at 187.

[15] Bernhard Becker, *Die Reaktion in Deutschland gegen die Revolution von 1848, beleuchtet in sozialer, nationaler und staatlicher Beziehung* (Vienna: U. Pichlers Witwe & Sohn, 1869), 489–90. It is worth noting that Becker continued to suffer in his literary career from aggressive policing on the part of the Prussian authorities well into the 1860s. *Die Reaktion in Deutschland* had to be published in Austria rather than in Prussia for this very reason. See ibid. iii–vi.

Prussia, based on a systematic use of intimidation and corruption.[16] Bernstein—a revolutionary and founder of the democratic *Urwählerzeitung* in 1849—argued that the Prussian government undermined both movements towards equality and unification, the second a particularly damning charge in the context of the recently unified Germany.[17] Similarly, memoirs from leading German liberals and democrats at the end of the century played an important role in establishing the 1850s as a decade in which governments single-mindedly pursued a reactionary agenda, as did the influential works of Veit Valentin in the twentieth century.[18]

The notion of reaction was not, however, wholly able to capture the complexity of government activity in this period. Thomas Nipperdey was among the first to make such observations. In his *Deutsche Geschichte, 1800–1866* (1983), Nipperdey argued that there were strong impulses towards uniform repression, especially with the revival of the German Confederation. Nevertheless, he argued that the course and intensity of government actions were different in each of the German states after 1848—an observation heavily indebted to the voluminous and authoritative work carried out by Ernst Huber on the constitutional changes made in the 1850s.[19] As Nipperdey showed, the Manteuffel Ministry of State significantly revised the Prussian constitution over the years 1851 to 1854, but thereafter reactionary measures tended to die out. This stood in contrast to the more severe government actions witnessed in states like the Electorate of Hesse.[20] In addition to the heterogeneity of government reactions, it appeared that any reactionary measures had important limitations. Nipperdey again provided this insight by arguing that the old elites might have been restored to power but they were now subject to a new political landscape in which they had to increase their social base. This included making a compromise with the civil–constitutional movement, the finalizing of peasants' liberation, and better protection of craftsmen. In sum, Nipperdey argued that conservatives were forced to pursue a sort of 'compensation policy', 'the aim of which was to reconcile different classes with the state's new course'.[21]

The consequences of government policies could be significant. For instance, historians such as Hans-Ulrich Wehler and Wolfram Siemann highlighted the extent to which new measures actually had 'involuntary' modernization effects.[22]

[16] Aaron Bernstein, *Die Jahre der Reaktion: Historische Skizze* (Berlin: Max Bading, 1881), 18–20. See also Aaron Bernstein, *Aus dem Jahre 1848: Historische Erinnerungen* (Berlin: Franz Duncker, 1873); Aaron Bernstein, *1849: Verfassungskämpfe und Kabinets-Intriguen* (Berlin: Franz Duncker, 1874) .

[17] Bernstein, *Aus dem Jahre 1848*, 148.

[18] See, e.g., Karl Biedermann, *1840–1870: Dreißig Jahre deutsche Geschichte*, 2 vols (Breslau: Schottlaender, 1886); Jodokus D. Temme, *Erinnerungen* (Leipzig: Keil, 1883); Georg Beseler, *Erlebtes und Erstrebtes, 1809–1859* (Berlin: Wilhelm Hertz, 1884); Hans Viktor von Unruh, *Erinnerungen aus dem Leben von Hans Viktor von Unruh*, ed. Heinrich von Poschinger (Stuttgart: Deutsche Verlags-Anstalt, 1895); Valentin, *Geschichte der deutschen Revolution*.

[19] Ernst Rudolf Huber, *Deutsche Verfassungsgeschichte seit 1789*, 8 vols (Stuttgart: Kohlhammer, 1957–91); Ernst Rudolf Huber (ed.), *Dokumente zur deutschen Verfassungsgeschichte*, 5 vols, 3rd edn (Stuttgart: Kohlhammer, 1978–97).

[20] Nipperdey, *Germany from Napoleon to Bismarck*, 599–608.

[21] Ibid. 607.

[22] Hans-Ulrich Wehler, *Deutsche Gesellschaftsgeschichte*, 5 vols (Munich: CH Beck, 1987–2008), iii. *Von der 'Deutschen Doppelrevolution' bis zum Beginn des Ersten Weltkrieges, 1849–1914* (1995), 197–205; Siemann, *Gesellschaft im Aufbruch*.

Wehler argued that the years of restoration did not prevent the march of the Industrial Revolution but rather facilitated the development of agrarian reform, the support of tradesmen, and important reforms for the welfare of workers.[23] Wolfram Siemann displayed a similar line of thinking in his research on the 1850s. Siemann exposed much of the complexity and innovation of this period, especially with respect to policing. Siemann showed that, from 1851 on, police in the German states participated in a secret Police Association (*Polizeiverein*) to facilitate the exchange of regular reports and conferences across borders. Police presidents such as Prussia's Carl Ludwig Friedrich von Hinckeldey (1805–56) increasingly relied upon such cross-state networks to police the circulation of dangerous people and ideas more effectively than had been possible during the *Vormärz*.[24]

But the idea that government policies had only unintended modernizing effects overlooked the active role played by German governments after 1848–9 to reform the state and thereby win a new allegiance with society. One of the first historians to draw attention to this fact was James Sheehan. Sheehan argued that governmental conservatives recognized the need to learn lessons from the revolution and adjust state structures accordingly in the 1850s. The result was, he argued, that 'almost everywhere in German Europe the administrative apparatus became larger, more effective, and more ambitious' in its responses to economic activity and the distribution of social resources.[25] Other historians followed in Sheehan's footsteps by seeking to highlight the more modern aspects of conservative politics after the revolution that seemed to undermine any conceptualization of state policy as one of compensation or inadvertent modernization. Writing on Prussia, David Barclay showed that Friedrich Wilhelm IV was more able to adapt to the demands of modern state-building than has previously been suggested and Günther Grünthal provided detailed insights into the Prussian *Landtag*.[26]

The more one looked, the more it appeared to hold true that German governments demonstrated unmistakable flexibility in the 1850s. In Vienna, the Austrian government was surprisingly dynamic, 'assimilating much of its [liberalism's] progressive rational, and basically anticlerical ideology within the state apparatus'.[27] Similar remarks could be made about the states of the Third Germany. Richard

[23] Wehler, *Deutsche Gesellschaftsgeschichte*, iii. 205.

[24] Siemann, *Gesellschaft im Aufbruch*, 44–52; Wolfram Siemann (ed.), *Der 'Polizeiverein' deutscher Staaten: Eine Dokumentation zur Überwachung der Öffentlichkeit nach der Revolution von 1848/49* (Tübingen: M. Niemeyer, 1983); Wolfram Siemann, *'Deutschlands Ruhe, Sicherheit und Ordnung': Die Anfänge der politischen Polizei, 1806–1866* (Tübingen: Niemeyer, 1985).

[25] James J. Sheehan, *German History, 1770–1866* (Oxford: Clarendon Press, 1989), 725.

[26] David E. Barclay, *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995); David E. Barclay, 'The Court Camarilla and the Politics of Monarchical Restoration in Prussia, 1848–1858', in Jones and Retallack (eds), *Between Reform, Reaction and Resistance*, 123–56; Günther Grünthal, *Parlamentarismus in Preussen 1848/49–1857/58: Preussischer Konstitutionalismus- Parlament und Regierung in der Reaktionsära* (Düsseldorf: Droste, 1982).

[27] R. J. W. Evans, 'From Confederation to Compromise: The Austrian Experiment, 1849–1867', *Proceedings of the British Academy*, 87 (1994), 135–67, at 137, 147. For more recent work on Austria, see: Deak, *Forging a Multinational State*; Georg Seiderer, *Oesterreichs Neugestaltung: Verfassungspolitik und Verwaltungsreform im österreichischen Neoabsolutismus unter Alexander Bach 1849–1859* (Vienna: VÖAW, 2015); Harm-Hinrich Brandt (ed.), *Der österreichische Neoabsolutismus als Verfassungs- und Verwaltungsproblem: Diskussionen über einen strittigen Epochenbegriff* (Vienna: Böhlau, 2014);

Bazillion turned his attention to the administration in the Kingdom of Saxony, arguing that the state acted as a powerful agent of economic and technological change over the period 1850 to 1890. Educated members of the middle class came to respect, he argued, its moderate reformism as a positive influence in public affairs and embraced the opportunities open to them for entering government and/or utilizing economic expansion.[28] Andreas Neeman provided insight into politics in the Saxon parliament and Abigail Green supported Bazillion's and Neemann's emphasis on the more flexible, modern nature of conservative politics to emerge after the revolutions.[29] In her groundbreaking work, Green explored the processes of state-building in the Kingdoms of Saxony, Hanover, and Württemberg, showing that the development of particularist identities, often associated with conservative agendas, entailed innovative responses to domestic and nationalist pressures for change.[30] Furthermore, as Christopher Clark has recently claimed, combined reforming activity constituted nothing less than a revolution in government across Europe in the 1850s.[31]

This book seeks to further our knowledge of German governments in the 1850s by examining the Brandenburg–Manteuffel and Manteuffel Ministries of State in Prussia for what they can tell us about the transition away from lingering feudal structures and towards a new world of direct state engagement. Although central to the pattern of reformism outlined above, these ministries have been largely overlooked by historians.[32] We have only a handful of biographies dedicated to the post-revolutionary Minister-Presidents, and none for any of the lesser members of their cabinets who were responsible for implementing the programmes of the

Waltraud Heindl, *Josephinische Mandarine: Bürokratie und Beamte in Österreich*, ii. *1848–1914* (Vienna: Böhlau, 2013).

[28] Richard J. Bazillion, *Modernizing Germany: Karl Biedermann's Career in the Kingdom of Saxony, 1835–1901* (New York: Peter Lang, 1990), 21.

[29] Andreas Neeman, *Landtag und Politik in der Reaktionszeit. Sachsen 1849/50–1866* (Düsseldorf: Droste, 2000); Abigail Green, *Fatherlands: State-Building and Nationhood in Nineteenth-Century Germany* (Cambridge: Cambridge University Press, 2001).

[30] Green, *Fatherlands*, 14. On Württemberg, see also Bodie A. Ashton, *The Kingdom of Württemberg and the Making of Germany, 1815–1871* (London: Bloomsbury, 2017).

[31] Christopher Clark, 'After 1848: The European Revolution in Government', *Transactions of the Royal Historical Society*, 22 (2012), 171–97.

[32] For works that address the Prussian Ministry of State after 1848, see: Anna Ross, 'Post-Revolutionary Politics: The Case of the Prussian Ministry of State', in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018), 276–92; Helma Brunck, *Bismarck und das Preußische Staatsministerium, 1862–1890* (Berlin: Duncker & Humblot, 2004). What we do have are broader institutional histories of the Ministry of State. See: Bärbel Holtz, 'Das preussische Staatsministerium auf seinem Weg vom königlichen Ratskollegium zum Parlamentarischen Regierungsorgan', *Forschung zur Brandenburgischen und Preussischen Geschichte*, 16 (2006), 67–102; Otto Hintze, 'Das preußische Staatsministerium im 19. Jahrhundert', in Gerhard Oestrich (ed.), *Gesammelte Abhandlungen zur Staats-, Rechts- und Sozialgeschichte Preussens*, 3 vols (Göttingen: Vandenhoeck & Ruprecht, 1962–8), iii. *Regierung und Verwaltung* (1967), 530–619; Ernst Klein, 'Funktion und Bedeutung des preussischen Staatsministeriums', *JGMOD* 9–10 (1961), 195–260; Gerhard A. Ritter (ed.), *Regierung, Bürokratie und Parlament in Preußen und Deutschland von 1848 bis zur Gegenwart* (Düsseldorf: Droste, 1983).

so-called 'Reaction'.[33] Likewise, studies of policy formation and its realization are also lacking, especially ones that illuminate the role of the Ministry of State in the process. Yet, the Prussian Minister-Presidents and their agendas should not be overlooked. As one of the two German great powers, Prussia is well placed to illuminate the pressure on governments to enact ambitious reforms after 1848. Monarchs in this category of state had resisted constitutionalism with marked determination in the years after the Napoleonic Wars. In 1830, there was no move to release constitutional documents, as some German states did in response to revolutionary upheaval, and in the 1840s, Friedrich Wilhelm IV attempted to distance himself from expectations that things would change. This constitutional deficit in the years after 1815 makes the Prussian response to 1848–9 particularly striking, with change encouraging ministers and officials in the 1850s to engage with a German and often European-wide circulation of materials to inform state-building.

Beyond the constitutional, however, reform in other areas of state activity had taken place in the largest of the German states at the turn of the nineteenth century. This was especially noticeable in economic affairs. Much of what took place in Prussia after 1848 was concerned with exacting these previous state-building projects from the Napoleonic Era. In other words, a study of this state has a second advantage. It forces the historian to turn back over a much larger stretch of time, illuminating threads of continuity that are too often overlooked in histories of the nineteenth century. Likewise, the projects undertaken in the 1850s would be taken up in the decades thereafter as part of measures to create a unified German state, stretching this story well beyond the 1850s in the other direction as well.

GOVERNMENT AND ITS INTERLOCUTORS IN PRUSSIA IN THE 1850S

The Brandenburg–Manteuffel and Manteuffel Ministries of State were part of a much larger panorama of government activity seen in the 1850s, but, primarily, they were situated within a complex domestic political scene. Here, the historian can find telling new insights, beginning with the Minister-President Manteuffel.

[33] On Brandenburg, see: Heinrich von Sybel, 'Graf Brandenburg in Warschau (1850)', *Historische Zeitschrift*, 58 (1887), 245–78; Fritz Heinemann, 'Die Politik des Grafen Brandenburg' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1909). On Manteuffel, see, above all, Günther Grünthal, 'Im Schatten Bismarcks—Der preußische Ministerpräsident Otto Freiherr von Manteuffel (1805–1882)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 111–33. Other works include: George Hesekiel, *Otto Theodor Freiherr von Manteuffel: Ein Preußisches Lebensbild* (Berlin: A. W. Hayn, 1851); Karl Enax, 'Otto von Manteuffel und die Reaktion in Preußen' (Ph.D. dissertation, Universität Leipzig, 1907); Hans Walter, *Die innere Politik des Ministers von Manteuffel und der Ursprung der Reaktion in Preussen* (Berlin: Ebering, 1910); Gunther von Richtofen, *Die Politik Bismarcks und Manteuffels in den Jahren 1851–1858* (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1915); Magda L. Hacker, *Der Ministerpräsident Freiherr Otto von Manteuffel und die Affäre von Olmütz* (Rostock: Robert Rambert, 1924); Paul Geißen, *Die preußische Handwerkerpolitik unter Otto von Manteuffel* (Ph.D. dissertation, Universität Köln, 1936).

Manteuffel was an unquestionably interesting politician, despite appearing to lack the 'sovereign self' of his successor Otto von Bismarck (1815–98), whose politics inside and outside the *Landtag* provide dramatic material for the historian of the 1860s and 1870s.[34] Like many of his contemporaries, Manteuffel was determined to restore monarchy after 1848. But, unlike many others, he was far more imaginative in recasting the bureaucratic structures he believed were necessary to sustain it. In this book, we will explore the post-revolutionary political scene with the help of this talented and at times unscrupulous politician. Indeed, he is, as David Barclay put it, 'one of the most interesting and least appreciated figures in modern German history'.[35]

Manteuffel's political style and practices were indicative of a new realism that would come to characterize political debate across Germany. The politics and state-building activities he espoused in the 1850s stood in sharp contrast to Prussia's ultraconservatives, who sought to oppose revolutionary tensions with a sense of ideological consistency and purity.[36] The brothers Leopold von Gerlach (1790–1861) and Ernst Ludwig von Gerlach (1795–1877) best exemplified this ultraconservative faith in principles of organic development, as did Friedrich Wilhelm IV's personal secretary Marcus Niebuhr (1817–60). The same held true, to varying degrees, for other conservatives who frequented court, such as the historian Heinrich Leo (1799–1878), the chief editor of the *Kreuzzeitung* Hermann Wagener (1815–89), and conservatives posted further afield, such as the Provincial Governor (*Oberpräsident*) of the Rhine Province, Hans Hugo von Kleist-Retzow (1814–92), and Prussia's representative to the German Confederation in Frankfurt am Main, Otto von Bismarck. Moreover, it was not just that ultraconservatives leaned on more doctrinal approaches to solve the crises of the mid-nineteenth century. They also consistently sought to influence politics through channels that predated the arrival of constitutionalism, including advising the king at court on the appointment and dismissal of ministries.[37]

This is not to suggest, however, that ultraconservatives remained unchanged by the events of 1848 or were unwilling to work with the Ministry of State. Despite their commitment to continuity and extra-parliamentary channels of influence, many saw a need to reform political life in Prussia in response to the liberal

[34] The term is from Jonathan Steinberg, *Bismarck: A Life* (Oxford: Oxford University Press, 2011).

[35] David E. Barclay, 'Prussian Conservatives and the Problem of Bonapartism', in Peter Baehr and Melvin Richter (eds), *Dictatorship in History and Theory: Bonapartism, Caesarism, and Totalitarianism* (Cambridge: Cambridge University Press, 2004), 67–82, at 77.

[36] In contrast to the paucity of works on the ministry, we possess a concentration of research on the ultraconservatives in the post-revolutionary years. Bismarck attracts the most attention, and references to the many biographies on him need not be retraced here. Exemplary research on other ultraconservatives include: Kraus (ed.), *Konservative Politiker in Deutschland*; Hans-Christof Kraus, *Ernst Ludwig von Gerlach: Politisches Denken und Handeln eines preußischen Altkonservativen*, 2 vols (Göttingen: Vandenhoeck & Ruprecht, 1994); Jones and Retallack (eds), *Between Reform, Reaction and Resistance*. For a broader discussion of conservative political thought after 1848, see Lawrence Goldman, 'Conservative Political Thought from the Revolutions of 1848 until the Fin de Siècle', in Gareth Stedman Jones and Gregory Claeys (eds), *The Cambridge History of Nineteenth-Century Political Thought* (Cambridge: Cambridge University Press, 2011), 691–719.

[37] On extra-ministerial advisors, see Kraus, *Ernst Ludwig von Gerlach*, i. 466.

challenge. This included the Gerlachs, who could be persuaded of the advantages of adopting new institutions. For example, Ludwig von Gerlach and the jurist and political theorist Friedrich Julius Stahl (1802–61) became active parliamentary figures in the First Chamber (*Erste Kammer*) of the *Landtag*, arguing that representative assemblies and popular participation had become a necessary part of modern German politics. And, after 1852, Gerlach assumed an active role in the Second Chamber (*Zweite Kammer*) alongside the Count Friedrich Magnus von Schlieffen. In a slightly different vein, a number of teachers in the nascent field of social science (*Staatswissenschaft*), such as Lorenz von Stein (1815–90), Wilhelm Heinrich Riehl (1823–97), and Robert von Mohl (1799–1875), as well as the economists Karl Marlo (1810–65) and Johann Karl Rodbertus (1805–75), and the publicist Viktor Aimé Huber (1800–69), all advocated social reform as an urgent necessity after 1848.[38] Certainly Bismarck did not fail to see the rewards of a more pragmatic brand of politics as the decade progressed.

There were some conservatives, however, who believed that the reforming agenda of Brandenburg and Manteuffel was not progressive enough, especially in terms of adjusting to constitutional realities. The leading proponent of this stance was the professor of law Moritz August Bethmann-Hollweg (1795–1877). Bethmann-Hollweg was joined in this sentiment by a loose group of persons known as the *Wochenblatt partei* in the Prussian parliament and associated with the production of the *Preussisches Wochenblatt*. This included the Prince and Princess of Prussia and their court at Koblenz, as well as Ludwig Emil Mathis (1797–1874), the jurist Clemens Theodor Perthes (1809–67), and the diplomats Christian Karl Josias Bunsen (1791–1860), Count Robert von der Goltz (1817–69), Justus von Gruner (1807–1885), Count Albert von Pourtalés (1812–61), and Baron Guido von Usedom (1805–84).[39] Wider breaks with the state's course also came from Catholics. Catholic delegates to the Prussian parliament were at best uncomfortable partners with the Manteuffel Ministry of State in the early 1850s, and often looked to vote along confessional lines before seeking to bolster government majorities. Any such divisions only increased in 1852 as the *Kultusminister* Karl Otto von Raumer (1805–59) issued a series of administrative decrees designed to restrict Catholic missionary activity in Prussia. The Raumer Decrees revived the spectre of state interference in Catholic affairs so common in the pre-1848 years, and, as a result, the potentially beneficial relationship between the Catholic Church and state underwent serious strain.[40]

On the other side of the political spectrum, the ministers of the Manteuffel–Brandenburg and Manteuffel Ministries of State also stood apart from the politics

[38] Andrew Lees, *Revolution and Reflection: Intellectual Challenge in Germany during the 1850s* (The Hague: Martinus Nijhoff, 1974), 29; Diana Siclovan, '1848 and German Socialism', in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018), 254–75.

[39] Kraus, *Ernst Ludwig von Gerlach*, ii. 558.

[40] Simon Hyde, 'Roman Catholicism and the Prussian State in the Early 1850s', *Central European History*, 24 (1991), 95–121; Jonathan Sperber, 'Competing Counterrevolutions: Prussian State and Catholic Church in Westphalia during the 1850s', *Central European History*, 19 (1986), 45–62.

practised by doctrinaire liberals and democrats throughout the 1850s. Most notably, the Baron Georg von Vincke (1811–75) provided a rallying point for liberals committed to a principled opposition in the Second Chamber in the years after 1850.[41] Vincke, a rousing orator from Westphalia, sought to defend the constitution won in 1848 and the legal framework it supported. He expected the Prussian Ministry of State to govern in agreement with the *Landtag*, including on questions of German unification and Prussia's potential entry into the Crimean War. Vincke's cutting rhetoric would influence many debates, as well as elicit more than one duel, including with Bismarck. More importantly, however, Vincke would encourage liberals to sit on commissions to maximize their influence in the parliament. As Max Duncker wrote in 1851: 'We could not win in the voting, we had to seek victory in the debate. It was a matter of refusing all participation and complicity in decisions that appeared damaging to us and ruinous for the country.'[42] This style of intervention was matched, as Günther Grünthal has shown, by the ability of the Prussian Second Chamber as a whole to exercise financial coercion. It could refuse to pass budgets and, through this means, it could pressure the government into negotiations on other issues.[43]

In the early days of the Prussian parliament, Hans Viktor von Unruh (1806–86) and left-leaning liberals assumed an even more antagonistic position based on stricter ideological agendas than Vincke, as did those democrats who participated in the first session of the *Landtag* in 1849. This latter group included Benedict Waldeck (1802–70), Julius von Kirchmann (1802–84), Georg Jung (1814–86), and the physician Carl d'Ester (1813–59). In particular, d'Ester readily abused all other groupings in the chambers, including the March Ministries, claiming that even they were too 'reactionary' for his convictions.[44] Outside the Second Chamber, democrats also sought to remain oppositional. As Christian Jansen has shown, of the 170 (out of 261) left and extreme-left deputies to the Frankfurt National Assembly who did not emigrate after 1848–9, many sought to remain politically active throughout the 1850s. To be sure, many of these figures were more moderate than their increasingly radicalized counterparts abroad, but, as Jansen shows, they only demonstrated the same pragmatism that both conservatives and liberals adopted after 1848 to safeguard their place in the political landscape.[45]

Yet, the revolution changed those who identified as part of the left as it did those who identified on the right of the political spectrum. The former Minister-Presidents Ludolf Camphausen (1803–90) and Rudolf von Auerswald (1795–1866) saw the

[41] On Vincke, see Hans-Joachim Behr, *'Recht muß doch Recht bleiben': Das Leben des Freiherrn Georg von Vincke (1811–1875)* (Paderborn: Bonifatius, 2009); Herbert Kaltheuner, 'Der Freiherr Georg von Vincke und die Liberalen in der preußischen zweiten Kammer 1849–1855' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1928).

[42] Kaltheuner, *Der Freiherr Georg von Vincke*, 54.

[43] Günther Grünthal, 'Crown and Parliament in Prussia 1848–1866', *Parliaments, Estates and Representation*, 5 (1985), 165–74.

[44] Carl d'Ester, *Der Kampf der Demokratie und des Absolutismus in der Preußischen constituierenden Versammlung 1848* (Mannheim: Grohe, 1849), 6.

[45] Christian Jansen, *Einheit, Macht und Freiheit: Die Paulskirchenlinke und die deutsche Politik in der nachrevolutionären Epoche, 1849–1867* (Düsseldorf: Droste, 2000); Christian Jansen, *Nach der Revolution 1848–49: Verfolgung, Realpolitik, Nationsbildung. Politische Briefe deutscher Liberaler und Demokraten, 1849–1861* (Düsseldorf: Droste, 2004).

advantages of working with the Brandenburg–Manteuffel Ministry of State, as did Vincke, especially if it meant retaining revolutionary gains. They were willing to accept Friedrich Wilhelm IV's constitutional promulgation as a legitimate act and to allow him a veto on all legislative matters. They also encouraged their liberal-constitutional colleagues to support the position of the ministry in the first parliamentary session.[46] The course of German unification put pressure on the goodwill of many liberals, and a substantial block shifted to bolster more extreme left-leaning sentiment in debates in the second session of 1849. Nevertheless, some continued to vote with the ministry for conservative-constitutional measures.[47] This changed permanently in November 1850, when many moderate liberals, including Vincke, broke with the Manteuffel Ministry of State over the failure of a northern union project, but there were others who continued to maintain a more central ground. These included Camphausen and Auerswald, as well as the prominent banker Hermann von Beckerath (1801–70).

Across the political divide, then, the Prussian Ministry of State was able to negotiate support from moderate, reform-minded members of the Prussian parliament. These alliances were delicate and mostly characterized the Brandenberg–Manteuffel Ministry's first two years in government, but they were not impossible for the Ministry of State to secure thereafter. Additionally, as said alliances broke down after the so-called humiliation of Olmütz in 1850, backing for ministerial policies was reinforced by the creation of a bureaucratic faction in the Prussian parliament. This party first came about as the Interior Ministry pressured provincial officials to secure government-friendly victories at elections. By 1852, the election of bureaucrats themselves played an increasingly important role in freeing government support from its dependence on the old conservatives and from any need to woo old liberal support.[48] This tactic was not without serious problems and, in provinces such as the Rhine Province, the state achieved only qualified successes, but it was enough to give Manteuffel a substantial powerbase until 1858.[49]

The result was that Manteuffel was able to curb the influence of ideologically charged politics on state-building after 1848, adding an important layer to our story. This inflection to the work takes us into a series of debates about the new activities assumed by officials in the 1850s but also about political change in the second half of the nineteenth century. As we will see, the cleavage Manteuffel forged between state interests and those of the ideologically minded, particularly the landed elite, meant that extra-governmental conservatives more than ever needed to organize themselves into parliamentary groupings after 1848, develop party programmes, and design strategies to influence in the press. Cleavages of this ilk raise important questions about the potential for conservative party formation in German-speaking Europe well before the establishment of the German

[46] Behr, *'Recht muß doch Recht bleiben'*, 179.

[47] Kaltheuner, *Der Freiherr Georg von Vincke*, 32.

[48] John R. Gillis, *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971), 162–3.

[49] Simon Hyde, 'Hans Hugo von Kleist Retzow and the Administration of the Rhine Province during the "Reaction" in Prussia, 1851–1858' (D.Phil., University of Oxford, 1993), 250–315.

Conservative Party (*Deutschkonservative Partei*) in 1876 or the genuinely modern mass conservative party, the German National People's Party (*Deutschnationale Volkspartei*), after the First World War. These observations are important, it will be shown, especially as political scientists have recently suggested that the successful emergence of 'conservative political parties that originated representing old regime elites' was *the* essential shaper in democratization in the nineteenth century.[50]

Beyond the parliament, the Ministry of State was reliant on upper-middle-class professionals (*Bürgertum)* to facilitate the restructurings in state-building undertaken during this period. This included the directors of the Central Offices of the Interior Ministry (*Zentralbehörden*) and many members of the *Bildungsbürgertum* who worked in or with these institutions.[51] In particular, lawyers became extremely valuable in discussions of political reform as a result of their expertise. So too were university professors on a broad range of questions related to reform. Likewise, engineers and architects played an important role in influencing the nature of change, as did journalists. In other words, it was across a blurred boundary between state and civil society that expressions of encouragement on the part of professionals functioned to further the extent of change realized by the Ministry of State.[52]

Of course, we should not take this argument too far. Although the upper middle classes ceased to consider themselves the representatives of a nebulous, classless society in opposition to the state after 1848 and instead became increasingly concerned with defending their own narrow economic interests, they did not stop being political altogether, especially when dealing with officials.[53] For non-government professionals there was no such thing as a retreat into a depoliticized professional or business sphere.[54] Rather, in commerce, the *gewerblich-städtisches Bürgertum* and *Wirtschaftsbürgertum* were able to use their growing economic power to secure important political concessions in the 1850s. In particular, the

[50] Daniel Ziblatt, *Conservative Parties and the Birth of Democracy in Europe* (Cambridge: Cambridge University Press, 2017), 21.

[51] On defining the term 'Bürgertum', see Jürgen Kocka, 'The European Pattern and the German Case', in Jürgen Kocka and Allan Mitchell (eds), *Bourgeois Society in Nineteenth-Century Europe* (Oxford: Berg, 1993), 3–39; David Blackbourn and Richard J. Evans (eds), *The German Bourgeoisie: Essays on the Social History of the German Middle Class from the Late Eighteenth to the Early Twentieth Century* (London: Routledge, 1991). Also very helpful is the review article by Jonathan Sperber, '*Bürger, Bürgertum, Bürgerlichkeit, Bürgerliche Gesellschaft*: Studies of the German (Upper) Middle Class and its Sociocultural World', *Journal of Modern History*, 69 (1997), 271–97.

[52] Dieter Langewiesche, 'Liberalism and the Middle Classes in Europe', in Jürgen Kocka and Allan Mitchell (eds), *Bourgeois Society in Nineteenth-Century Europe* (Berg: Oxford, 1993), 40–69, especially at 55.

[53] Sheehan cautioned taking the new support for materialism and, in particular, the concept of a free market too far. 'A faith in economic freedom', he writes, 'was shared by many others as well—intellectuals, bureaucrats, even some craftsmen and small manufacturers'. See James J. Sheehan, *German Liberalism in the Nineteenth Century* (Chicago: University of Chicago Press: 1978), 85. Most famously, David Blackbourn made the argument that this was not a simple case of 'a middle-class willingness to take the money and run' (David Blackbourn, *The Long Nineteenth Century: A History of Germany, 1780–1918* (New York: Oxford University Press, 1998), 232). See also David Blackbourn and Geoff Eley, *The Peculiarities of German History: Bourgeois Society and Politics in Nineteenth-Century Germany* (Oxford: Oxford University Press, 1984).

[54] Dieter Langewiesche, *Liberalism in Germany*, trans. Christiane Banerji (Basingstoke: Macmillan, 2000), 74.

Prussian business class adopted an aggressive stance on a range of issues, including the development of banking, to pressure the state into exacting more ambitious ends in its reforming agenda. Likewise, medical professionals in urban centres demanded infrastructural improvements and regulation beyond the horizons of state agendas. In this sphere, Paul Weindling has made important observations about the expertise of doctors in general and the pathologist Rudolf Virchow in particular. 'Virchow's activities in municipal public health reform and in the left-liberal Progressive Party from 1856 onwards', he writes, 'indicated the ability of scientific qualifications to provide political status and authority. Virchow was an active force in the Berlin municipal assembly, campaigning for municipal hospitals, disinfection facilities, and improved sewers and water supply.'[55] In the press, too, members of the upper middle class made a powerful impact on the Ministry of State, highlighting its inability to manage news cycles and papers with a critical stance towards the government. Indeed, it is impossible to overlook the fact that newspaper editors became more willing to test their constitutional rights in court with the expectation that it would curb future police interference in the publishing industry.

Recent studies have shown, furthermore, that some members of the middle classes continued to develop their political agendas in associational life, affecting the outcomes of government reforms. Political associations were banned after 1848 and all other forms of organization were subject to policing, but even under these conditions Janine Murphey has shown that some members of the upper middle class sought to practise democratic habits through their involvement in gymnastics societies.[56] Similar observations have also been made in the Kingdom of Hanover, where the 'retreat into sociability', as Michael John explains, 'should not be equated with any meaningful level of depoliticization'. For example, in the town of Celle in 1857, he writes, the police chief reported that liberals continued to influence opinion through the local artisans' credit association—even though the association advertised itself as being apolitical—leading to opposition successes in the local elections.[57] Police reports published by Wolfram Siemann also show that oppositional voices were perceived to be on the rise in Prussia. By 1855, democratic rhetoric in cultural associations was re-emerging and could be found all too easily in the printed materials flowing into the state.[58]

The aim of this politicized engagement was often, as Dieter Langewiesche argued, to defend important revolutionary gains.[59] But there were also opportunities to influence political debate in new directions and increasingly so after 1855. This was aided by the critical interest in state undertakings displayed at elections as

[55] Paul Weindling, 'Bourgeois Values, Doctors and the State: The Professionalization of Medicine in Germany, 1848–1933', in Blackbourn and Evans (eds), *The German Bourgeoisie*, 198–223, at 203.

[56] Janine T. Murphey, 'Contesting Surveillance: The German Gymnastics Movement and the Prussian State, 1850–1864', *German History*, 36 (2018), 21–37.

[57] Michael John, 'Associational Life and the Development of Liberalism in Hannover, 1848–1866', in Konrad H. Jarausch and Larry Eugene Jones (eds), *In Search of a Liberal Germany: Studies in the History of German Liberalism from 1789 to the Present* (New York: Berg, 1990), 161–86, at 167–8.

[58] See, e.g., the Prussian police report, 1855, in Siemann (ed.), *Der 'Polizeiverein' deutscher Staaten*, 128–38.

[59] Langewiesche, *Liberalism in Germany*, 74.

the decade progressed. As Dieter Langewiesche argues, 'the political lethargy of the middle-class public had by 1855 passed its peak'. Turnout in the second class that year rose to about 27.2 per cent (401,098 voters) in comparison to 39.5 per cent (145,081) in the first class, and election campaigns gained momentum in larger towns, especially in Berlin, where the liberal opposition won seven of nine seats, and in Breslau, where they won two of three.[60] In the Rhine Province, election turnout remained low—at 11.4 per cent in 1852 and even lower in 1855—but, as Simon Hyde has shown, such statistics are deceptive, as a rich political debate surrounded government campaigns.[61] On the weight of such evidence, this book will argue that those members of the upper middle classes who wished to stay open to debate on state-building were able to, and, in doing so, they had an important influence on the development and implementation of policy.[62]

The lower middle classes also asserted themselves in many areas of routine government, just as they had done before the revolution, and as such they too played a role, albeit a minor one, in the development of post-revolutionary reforms. The demands of artisans were crucial to the reformulation of economic policy after 1848, and residents in urban areas forced significant change through their living habits. Likewise, shifts in the regulation of newspapers were made because of the persistent and politicized tastes of the lower middle classes. As James Brophy has argued, common Rhinelanders encountered and acquired political ideas well before 1848 and especially before the formation of formal workers' associations.[63] Following Brophy's lead, Chase Richards has demonstrated a flowering of popular politics in the press in the 1850s. He argues that a new type of popular literature—the family papers—aimed to take politics into the private sphere. As he writes: 'The family papers were the most potent successors to the early democratic experiments in the world of German print, reimagining the nascent activism of the *Vormärz* and the bold agitation of the revolutionary years.'[64] Otherwise put, Germans asserted themselves in all manner of ways after 1848 to impel post-revolutionary policies towards more representative ends, and they often did so with a surprising degree of success. This point should not be overlooked, as it shows that there was a degree of political buoyancy among upper-middle-class professionals and the lower middle classes that continued between the 1830s and the political developments of the New Era. Certainly, Mark Hewitson has shown that such observations are essential to making sense of the dramatic reflowering of political life in the 1860s, when the authorities lifted formal restrictions around public discussion.[65]

[60] Ibid. 66–7. [61] Hyde, 'Hans Hugo von Kleist Retzow', 316.

[62] For an excellent discussion of the possible definitions of the political during and after 1848, see Jan Palmowski, *Urban Liberalism in Imperial Germany: Frankfurt Am Main, 1866–1914* (Oxford: Oxford University Press, 1999), 38–41, 49.

[63] James M. Brophy, *Popular Culture and the Public Sphere in the Rhineland, 1800–1850* (Cambridge: Cambridge University Press, 2007).

[64] Chase Richards, 'Pages of Progress: German Liberalism and the Popular Press after 1848' (Ph.D. dissertation, University of Pennsylvania, 2013), 16–17; Chase Richards, 'Why Consider the Popular Press in Post-1848 Germany', *Bulletin of the GHI*, 56 (2015), 47–68.

[65] Mark Hewitson, *Nationalism in Germany, 1848–1866: Revolutionary Nation* (Basingstoke: Palgrave Macmillan, 2010), 9.

ANTECEDENTS AND LEGACIES

It was within this political scene that dynamic statesmen came to the fore in Berlin, relying on a new confidence in realism rather than ideology to effect state-building reforms. But this was not the first time such reforms were implemented in Prussia. Many of the state-building projects to which Brandenburg and Manteuffel turned their attention in the 1850s were, as we will see, first initiated in the age of Baron Karl vom und zum Stein (1757–1831) and Karl August von Hardenberg (1750–1822). Nor would the 1850s be the last time Prussia experienced a heightened period of state-building activity. Otto von Bismarck would integrate and extend much of this work in the creation of the new German state. As a result, this book considers not only the contemporary landscape in which governmental conservatives acted but a longer historical trajectory too, drawing us into a final series of debates about the bureaucracies that carried out these reforms, their temporal horizons, and the effectiveness of their work over the course of the nineteenth century.

In response to Napoleon's victory over Prussia at Jena and Auerstedt in 1806, Stein and Hardenberg introduced widespread centralizing reforms in the army, administration, agriculture, and urban life. Much of this work sought to replace corporatist (*ständisch*) structures with more open social institutions. In the countryside, this meant, among other things, breaking down noble prerogatives, and, in cities, dissolving guild authority. The reformers also sought to create a growth-oriented capitalist economy in Prussia. In other words, the bureaucracy promoted a moderate course of reform between revolution and total restoration. It was the experience of sudden change combined with future expectations of progress, so argued Reinhart Koselleck, that put them on this course.[66]

Yet many of the initiatives begun at the turn of the nineteenth century were only partially completed. After 1815, reforms went unrealized or were changed as the landowning aristocracy reasserted its interests in political affairs. Progressive impulses continued to find form in state offices, with officials mediating between state and society as a kind of constitutional substitute, but by the 1830s and 1840s there was growing unrest in Prussia.[67] This was due in great part to the pauperism caused by economic transition, which remained too unwieldy a problem for officials

[66] Reinhart Koselleck, 'Staat und Gesellschaft in Preußen, 1815–1848', in Werner Conze (ed.), *Staat und Gesellschaft im Deutschen Vormärz, 1815–1848 Sieben Beiträge* (Stuttgart: Ernst Klett Verlag, 1962), 79–112; Niklas Olsen, *History in the Plural: An Introduction to the Work of Reinhart Koselleck* (New York: Berghahn, 2012), 126–7.

[67] Reinhart Koselleck, *Preußen zwischen Reform und Revolution: Allgemeines Landrecht, Verwaltung und soziale Bewegung von 1791 bis 1848* (Stuttgart: Ernst Klett, 1967). On the power and authority of the Prussian bureaucracy before 1848, see the now classic works: Eckart Kehr, 'Zur Genesis der preussischen Bürokratie und des Rechtsstaates', in Hans-Ulrich Wehler (ed.), *Der Primat der Innenpolitik: Gesammelte Aufsätze zur preussisch-deutschen Sozialgeschichte im 19. Und 20. Jahrhundert* (Berlin: Walter de Gruyter & Co., 1965), 31–52; Hans Rosenberg, *Bureaucracy, Aristocracy, and Autocracy: The Prussian Experience, 1660–1815* (Cambridge, MA: Harvard University Press, 1966); Fritz Hartung, *Staatsbildende Kräfte der Neuzeit* (Berlin: Duncker & Humblot, 1961). Very helpful are the critiques of these works made by Herman Beck in 'The Social Policies of Prussian Officials: The Bureaucracy in a New Light', *Journal of Modern History*, 64 (1992), 263–98.

to tame. Prussia descended into revolution, but that would not be the last word in officials reforming the state.

In this book, I seek to establish the ways in which Brandenburg, Manteufffel, and the officials with whom they interacted exacted much of the work began during the Reform Era. As Mack Walker once asked of Koselleck: what were the larger continuities between the Reform Era and the reform work undertaken in the decades after 1848? Walker suspected that 'much of what Koselleck describes in pre-March terms did not develop fully until later, just as much that he attributes to the reform period could be found in the eighteenth century'.[68] This book agrees. It argues that the same sense of a middle course between two extreme alternatives comes to the fore in Prussia in the 1850s as the bureaucracy finally undertook a largely successful penetration into areas of society formally under the prevue of weakened feudal structures. And it did so under newly forming constitutional arrangements. As such, it will argue that the post-revolutionary moment should be recognized as a second Reform Era, essential to the formation of the modern Prussian state.

Moreover, the attempts of Brandenburg and Manteuffel to stabilize and centralize the state in the 1850s were not, as is often assumed, parochial but inherently open ended, and open to national solutions if they looked like benefiting Prussian power. Of course, the international situation never favoured Prussian advantage until after the Crimean War, meaning that there was little appetite for the codification of reforming activity on a German scale. But, by the 1860s, the situation had changed—a fact that Bismarck both recognized and maximized. He pursued an extension of state power on a whole new register, raising important questions about how such activity should be understood in the light of the work undertaken in the 1850s. In other words, this book will recontextualize Bismarck's politics and the ensuing codifications that shaped Imperial Germany within a longer trajectory of reforms developed in response to the upheavals of 1848–9.

CHAPTER OUTLINES

In weaving the above layers together, I have divided the work into six chapters. In Chapter 1, I trace the formation of the Brandenburg-Manteuffel and Manteuffel Ministries of State, drawing attention to the pragmatism of their Minister-Presidents. In it I argue that a commitment to realism made these ministers stand apart from their political counterparts on both the left and the right. A commitment to realism also fostered a concern to expedite long-developed restructurings in the 1850s to make the state capable of managing social conflict. In other words, governmental conservatives recognized an opportunity to usurp progressive political parties in the 1850s by being the bearers of social stability themselves. In Chapter 2, I zoom out to look at the state that these ministries proposed to transform. This includes

[68] See the review by Mack Walker, '*Preußen zwischen Reform und Revolution: Allgemeines Landrecht, Verwaltung und soziale Bewegung von 1791 bis 1848* by Reinhart Koselleck', *Journal of Social History*, 3 (1969–70), 183–7.

details on the social, legal, and political challenges officials faced, and the institutions that would be vital to any reform activity.

In Chapters 3–6, I then explore the manifold and most important spaces into which state action penetrated in the 1850s, including an exploration of judicial and penal institutions in Chapter 3; agriculture, industry, and communications in Chapter 4; cities and urban life in Chapter 5; and the world of news and newspapers in Chapter 6. In each of these chapters, I show how the Prussian Ministry of State moved the state to a more centrist position and expanded its reach. This often involved shielding the work of the Ministry of State from ultraconservative revisions; and it was at times extended, owing to the assertive behaviour of upper-middle-class professionals. To be sure, confrontations between the authorities and individuals in areas of work, daily life, and culture were at times instrumental to shaping a new post-1848 world.

But it was not simply intra-Prussian pressures that informed government action. The exchange of government material with states beyond Prussia's borders also features in this story, owing to the fact that a revolution in government was taking place well beyond the Hohenzollern lands. Each of the chapters, therefore, seeks to demonstrate an awareness of the many ways in which Prussian reform fits into and became embedded in a panorama of activity undertaken in other German states, and across Europe more broadly.[69] This means that the book often draws on parallel examples from across the German states and Europe. There were many junctures at which these parallels were merely that—parallels—but, as we will see, at other times the politics of the Manteuffel Ministry of State was being informed by a German-wide and even European exchange of government information to help solve problems of governance. This took place at the highest levels of government but, more importantly, at intermediate levels of bureaucratic activities. Dedicated statistical offices facilitated the movement of materials, and the period also saw the beginnings of several important international organizations, conferences, and annual congresses, which supplemented official statistics. Accordingly, government offices were filled with documents from across Europe related to important areas of state-building, including plans of penitentiaries, economic statistics, urban codes, municipal statistics, news reports, and papers. The sources in Prussia suggest, furthermore, some individual moments of exchange with states beyond Europe, notably with North America.

In other words, it was not simply the incidence of reform that increased after 1848; the need for new models took on a heightened importance during this decade. Drawing attention to the phenomenon is particularly important for a history of Prussia in that it helps to break down any sense of exceptionalism that might complicate this book's conclusions on the importance of political change in the 1850s for the decades that followed. Instead, this story of state-building found resonances across a wider German and European landscape, which suggests that the changes seen in Prussia were indicative of a broader collection of responses to mid-century upheaval seen across Europe.

[69] As Wolfgang Neugebauer has argued, Prussian history must take account of the ways in which it was entangled, including on a global scale. See Wolfgang Neugebauer, *Wozu preußische Geschichte im 21. Jahrhundert?* (Berlin: Duncker & Humblot, 2012).

1

Cabinets, Constitutions, and Parliamentary Representation

On 2 November 1848, Friedrich Wilhelm IV appointed Count Friedrich Wilhelm von Brandenburg to the post of Minister-President and tasked him with the creation of a Ministry of State. This Brandenburg did before he and his new colleagues crossed the Gendarmenmarkt and entered a secure Schauspielhaus, lined with police and around thirty marksmen of the light infantry battalions.[1] In this tense environment, the Minister-President adjourned the National Assembly and informed those present of its relocation to the city of Brandenburg. The news was not well received. As the cabinet left the building, one assembly member lunged at the new Interior Minister Otto von Manteuffel, yelling that 'one must seize traitors, where one can!'[2] Manteuffel freed himself and made his way unhurt to the offices of the War Ministry in the Leipziger Straße, but back in the Schauspielhaus several members of the National Assembly remained overnight to resist the ministry's actions. On the morning of 10 November, Wrangel arrived in the city and, by 11 November, he had cleared out the building. The National Assembly tried to meet on two further occasions in Berlin, yet, with the introduction of martial law in the capital and a state of siege across the provinces, it had little choice but to accept its temporary relocation. The political initiative was now squarely in the offices of the Brandenburg–Manteuffel Ministry of State.

In the years of counter-revolution that followed, the Ministry of State sought to redirect three forms of revolutionary challenges to state authority. This included addressing calls for Prussia to enter the constitutional age by debating basic rights, the merits of a constitution, and representative system. Debate led to the promulgation of a draft constitution on 5 December 1848 and its confirmation on 6 February 1850, but how exactly this ministry would navigate the new arrangement remained an open question. Beyond engagement with constitutionalism, the work of the Ministry of State included tasking officials with the implementation of widespread changes to administrative affairs, in part to blunt the social radicalism that came to the fore in the second wave of revolutionary unrest in 1849. This aspect of their work would continue throughout the 1850s, but in the immediate months following the November coup, the ministry also had to address discontent

[1] See Bismarck's description in Jonathan Steinberg, *Bismarck: A Life* (Oxford: Oxford University Press, 2011), 98.

[2] Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901), i. 25.

caused by national aspirations. In this sphere of debate, government ministers would endorse a new involvement in German politics, unseen in the decades before 1848.

This chapter traces the formation of the Brandenburg–Manteuffel and Manteuffel Ministries of State and explores their efforts to bring revolutionary unrest to an end. It primarily focuses on the ministry's engagement with constitutionalism, but it also investigates its approach to the national question during the counter-revolution. The resulting 'System Manteuffel', as contemporaries termed it, was a surprise to many, especially as Manteuffel often elided the interests of those on the political extremes, making their agendas appear dangerously retrograde. Such political manoeuvring continued, especially after 1855, when, as Manteuffel put it, the 'revolutionary phantom' was no longer to be conjured up in Prussia, as it had been in 1848 and 1849.[3] Rather, across a range of metrics, it seemed that confidence in the state had been restored to acceptable levels.

The System Manteuffel was far from unique, and, as a result, our analysis of the politics of the Prussian Ministry of State will be couched within a larger framework of government activity across German-speaking Europe. In Austria, as R. J. W. Evans has long claimed, the Habsburgs successfully reinstated monarchic absolutism on 31 December 1851 and by 1852 a system of neo-absolutism, but this was no restoration, as the authorities were only too aware of the need to introduce major reform initiatives.[4] Others, of course, have taken this line of argument to even greater heights.[5] In the lesser German states, a number of governments responded to domestic pressures for change as they looked to restore order, and it was among these states that some of the most progressive policies were adopted in cultural affairs. Indeed, as Christopher Clark has recently written, conservative politics underwent profound alterations across Europe in the 1850s and 1860s, as governments sought to revive confidence in their ability to manage affairs of state.[6]

THE BRANDENBURG–MANTEUFFEL MINISTRY OF STATE

Prussia's Ministry of State, which stands at the centre of this monograph, traced its origins back to the Reform Era. In 1806, Friedrich Wilhelm III attempted to strengthen the connection between crown and bureaucracy by formalizing a cabinet of five ministers who would report to him on a regular basis. The Baron Karl vom und zum Stein and Karl August von Hardenberg had different ideas about how to realize such a restructuring, but, by 1814, weekly meetings were

[3] Karl Enax, 'Otto von Manteuffel und die Reaktion in Preußen' (Ph.D. dissertation, Universität Leipzig, 1907), 25.

[4] R. J. W. Evans, '1848–1849 in the Habsburg Monarchy', in R. J. W. Evans and Hartmut Pogge von Strandmann (eds), *The Revolutions in Europe 1848–1849: From Reform to Reaction* (Oxford: Oxford University Press, 2000), 181–206, at 204–5.

[5] John Deak, *Forging a Multinational State: State Making in Imperial Austria from the Enlightenment to the First World War* (Stanford, CA: Stanford University Press, 2015).

[6] Christopher Clark, 'After 1848: The European Revolution in Government', *Transactions of the Royal Historical Society*, 22 (2012), 171–97.

taking place on a somewhat informal basis and, by 1817, formally as per a *Kabinettsordre* of 3 November.[7] The ministers appointed to the Prussian Ministry of State were heads of named departments, including, at various points, a Foreign Minister (*Außenminister*); Interior Minister (*Innenminister*); Justice Minister (*Justizminister*); Finance Minister (*Finanzminister*); Trade Minister (*Handelsminister*); Minister for Religious, Educational, and Medical Affairs (*Kultusminister*); and War Minister (*Kriegsminister*). In the *Vormärz*, they also included officials without specific departmental responsibilities, heads of the central administration such as the Postmaster General Karl Ferdinand Friedrich von Nagler or the President of the *Seehandlung* Christian von Rother, as well as former departmental ministers no longer in position. This meant that at any one time some thirteen members sat in the Ministry of State to discuss issues related to administration and the formation of new laws.[8]

This growing relationship between crown and cabinet was put under enormous pressure in 1848, owing to the need for both to develop clear lines of communication with Prussia's new representative arena, the Prussian National Assembly. And pressure precipitated two important developments. The first was the emergence of a seminal political figure: the Prussian Minister-President. During the revolution, the Minister-President developed into a sort of *primus inter pares* of the ministry, especially when dealing with the National Assembly. But he lacked any clear definition of rights or duties, and certainly no constitutional basis for them. Only the later Minister-President Manteuffel would do all he could to formalize the powers of this office. Secondly, the ministry's wider relationship to the Prussian National Assembly came under scrutiny as the latter was charged with overseeing the completion of a constitution.

Fundamental to the development of a constitution was determining to whom exactly the Ministry of State would be responsible. Friedrich Wilhelm IV, conservatives, and most Prussian liberals embraced the crown's control of the executive in any constitutional arrangement. Yet Friedrich Wilhelm IV's March promises left open the possibility that ministers would be legally responsible to the Prussian National Assembly. This implied that the assembly would have the power to impeach ministers whose actions came into question in the chambers.[9] Such ambiguity meant that the working relationship between Friedrich Wilhelm IV and his Ministry of State unfolded with difficulty in 1848. Both the Camphausen (29 March 1848–20 June 1848) and Auerswald (25 June 1848–21 September 1848) Ministries of State conceded a steady erosion of monarchical authority to the Prussian National Assembly, so that, by September, the clamour of the King and ultraconservatives against these ministries had become deafening. Even the more conciliatory cabinet under the Minister-President Ernst von Pfuel (21 September 1848–1 November 1848) failed

[7] Bärbel Holtz, 'Das preussische Staatsministerium auf seinem Weg vom königlichen Ratskollegium zum Parlamentarischen Regierungsorgan', *Forschung zur Brandenburgischen und Preussischen Geschichte*, 16 (2006), 67–112, at 74–7.

[8] Ibid. 86–8.

[9] Erich Hahn, 'Ministerial Responsibility and Impeachment in Prussia, 1848–63', *Central European History*, 10 (1977), 3–27, 3–8.

to balance Friedrich Wilhelm IV's demands with those of the National Assembly. All that Friedrich Wilhelm IV could conclude was, as he wrote to his sister Charlotte (Tsarina of Russia) on 25 October: 'It is no longer the King who rules the land, but rather so called responsible ministers.'[10]

Throughout the summer and autumn of 1848, Friedrich Wilhelm IV did not give up hope of installing a cabinet both willing and able to reassert the position of the monarchy over the demands of the parliament, nor did his circle of ultraconservatives at court (*camarilla*). On 29 September, Ludwig von Gerlach voiced the idea that the time had come to put a stop to the revolution through a ministry stacked with ultraconservatives. The Count Friedrich Wilhelm von Brandenburg, Otto von Bismarck, Hans Hugo von Kleist-Retzow, and Marcus Niebuhr should take office, he argued, under the command of the Prince of Prussia.[11] Like his brother, Leopold von Gerlach suggested that the way to bring the revolution to an end was to institute a temporary but decisive ministry under an army general such as Brandenburg—Friedrich Wilhelm IV's uncle.[12] Friedrich Wilhelm IV was aware, however, that any move to replace the Pfuel Ministry of State with such conservative ministers had the potential to spark serious, regime-threatening opposition. As he put it, men like Otto von Bismarck could be appointed only 'when the bayonet governs unrestricted'. The Pfuel cabinet, he argued, should be replaced with a more conservative substitute but not with an alternative that would require outright military dictatorship.[13]

The result was a compromise: Friedrich Wilhelm IV would shelve the more extreme suggestions of the *camarilla* but he agreed to Brandenburg becoming his new Minister-President. With Friedrich Wilhelm IV's authorization, Leopold von Gerlach travelled to Breslau to discuss the new position with the general. After talking with Gerlach, Brandenburg agreed to take on the post, showing himself to be: 'calm, clear…and in the best sense of the word, ambitious [*ehrgeizig*]. Essentially,' as Gerlach put it, '[he is] prepared to undertake everything asked of him'.[14] Following this meeting, Brandenburg arrived in Berlin on 17 October to make arrangements for his new role, and, on 2 November 1848, he took up the post of Minister-President with temporary responsibility for the Foreign Ministry.

[10] Bärbel Holtz, 'Der vormärzliche Regierungsstil von Friedrich Wilhelm IV', *Forschungen zur Brandenburgischen und Preussischen Geschichte*, NS 12 (2002), 75–112, at 110. For the ministers in the March Ministries, see Bärbel Holtz (ed.), *Acta Borussica: Die Protokolle des Preußischen Staatsministeriums 1817–1934/38*, iv. *30. März 1848 bis 27 Oktober 1858*, ed. Berlin-Brandenburg Academy of Sciences under the direction of Jürgen Kocka, Wolfgang Neugebauer, and Reinhold Zilch (Hildesheim: Olms-Weidmann, 2000), 698–702. For a more detailed account of the struggle between Friedrich Wilhelm IV and the March Ministries, see Christopher Clark, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006), 475–81.

[11] Ludwig von Gerlach to Leopold von Gerlach, 29 September 1848, in David E. Barclay, *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995), 178.

[12] Ludwig von Gerlach, diary entry of 9 September 1848, in Ernst Ludwig von Gerlach, *Von der Revolution zum Norddeutschen Bund. Politik u. Ideengut der preußischen Hochkonservativen, 1848–1866. Aus dem Nachlaß von Ernst Ludwig von Gerlach*, ed. Hellmut Diwald, 2 vols (Göttingen: Vandenhoeck u. Ruprecht, 1970), i. *Tagebuch, 1848–1866*, 111–12.

[13] Steinberg, *Bismarck*, 96.

[14] Hans-Christof Kraus (ed.), *Ernst Ludwig von Gerlach: Politisches Denken und Handeln eines preußischen Altkonservativen*, 2 vols (Göttingen: Vandenhoeck & Ruprecht, 1994), i. 447.

Figure 1.1. Count Friedrich Wilhelm von Brandenburg (1792–1850), 1848.

Aged 56 when he entered office, Brandenburg belonged to the generation that had seen active service in the Napoleonic Wars (Figure 1.1). He was part of the *Gardes du Corps* under General Hans David Ludwig Count Yorck von Wartenburg (1759–1830), and, following the actions of Yorck in turning Prussian loyalties from France to Russia, Brandenburg then served in the Wars of Liberation. During this time, Brandenburg distinguished himself as a 'courageous fighter and capable officer',[15] and he lived up to this reputation again in 1848 as he put down democratic uprisings in Silesia with resolute force. When on leave from his military posts Brandenburg could be found in Potsdam, where he was a member of Friedrich Wilhelm IV's circle (*Kronprinzenkreis*).[16] There he demonstrated an unwavering loyalty to the future monarch that did not go unnoticed. Of particular interest to contemporaries was the fact that Brandenburg's loyalty was coupled with a unique ability to speak more directly with the King than other members at court were able to. As Ludwig von Gerlach wrote, Brandenburg could be expected to tie down 'the deviations of the King's thoughts, ideas, and instructions

[15] Fritz Heinemann, 'Die Politik des Grafen Brandenburg' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1909), 12.

[16] On Brandenburg's character at court, see Caroline von Rochow, *Vom Leben am preußischen Hofe, 1815–1852* (Berlin: Ernst Siegfried Mittler und Sohn, 1908), 79–80.

with a strong hand', and this was precisely what the *camarilla* wanted from a new Minister-President.[17]

For the *camarilla*, Brandenburg's mixture of loyalty and firmness made him an excellent ministerial candidate. He was determined to see the crown restored to a position of strength, and it seemed that, in doing so, he would put a stop to the constitutional debate. Certainly, this was the expectation of most liberals and democrats in the National Assembly, who signed a vote of no confidence in Brandenburg on 2 November. But Brandenburg was not, as so many had thought, willing to act on the *camarilla*'s behalf. Upon accepting the position of Minister-President, Brandenburg told Friedrich Wilhelm IV that he expected nothing less than a free hand to direct the ministry.[18] This meant among other things the liberty to form his cabinet. To the surprise of the *camarilla*, Brandenburg's first act was to approach the ministers of the outgoing Pfuel Ministry of State and to try to persuade them to stay on and continue their task of mediating between Friedrich Wilhelm IV and the National Assembly. The members of the Pfuel cabinet refused to remain in office, meaning that a standoff was avoided, but Brandenburg had sounded a clear warning: he was no henchman of the *camarilla* and he would not stack the cabinet with the *camarilla's* military-minded candidates.

Brandenburg's dealings with the Pfuel cabinet indicated that he conceived of his work in terms that were fundamentally different from those preferred by the ultraconservatives. In his opinion, Prussia could no longer avoid joining the constitutional era and, rather than be dragged into it by the National Assembly, it was better to do so by one's own volition. As he wrote: he intended 'to save the country—already revolutionized from above—from anarchy, to do what was possible rather than what was best, and to continue to build on this first necessary basis—with God's help—with moderation, strength, and consequence'.[19] Moreover, Brandenburg thought it his responsibility to find a solution to the national question being debated by the Frankfurt National Assembly. Over the course of 1849, he would align himself with the unification policies pursued by Joseph Maria von Radowitz (1797–1853), who was a close advisor of the King but was deeply distrusted by the ultraconservatives.

It soon became clear that Brandenburg was a far more complex figure than the *camarilla* had anticipated, and the administration of the counter-revolution would not be as straightforward as they had hoped. Leopold von Gerlach definitely thought as much. He registered his concerns about Brandenburg with his brother as early as 19 November 1848. 'I find it odd,' he wrote, 'although considering the peculiar way in which he came into the ministry, I cannot blame him that he wants to show his colleagues, officials, and the country that he is no creature or tool of the Potsdam *camarilla*'.[20]

[17] Ludwig von Gerlach to Brandenburg, 19 September 1848, in Günther Grünthal, 'Zwischen König, Kabinett und Kamarilla: Der Verfassungsoktroi in Preußen vom 5.12.1848', *Jahrbuch für die Geschichte Mittel- und Ostdeutschlands*, 32 (1983), 119–74, at 125.

[18] Barclay, *Frederick William IV*, 178.

[19] Grünthal, 'Zwischen König, Kabinett und Kamarilla', 127.

[20] Gerlach, *Von der Revolution zum Norddeutschen Bund*, ii. 599.

Figure 1.2. Baron Otto Theodor von Manteuffel (1805–82), *c.*1860. *(bpk, 70001389)*

With Brandenburg in place, Friedrich Wilhelm IV's next step to securing a strong, counter-revolutionary ministry was to appoint a new Interior Minister and Minister for Agriculture (*Landwirtschaftsminister*), Baron Otto Theodor von Manteuffel (Figures 1.2 and 1.3). Born in the provincial town of Lübben in Lower Lusatia (*Niederlausitz*) on 3 February 1805, Manteuffel was heir to a long and distinguished heritage.[21] Yet his immediate branch of the family had fallen onto harder times. Most of Manteuffel's direct relations had entrenched themselves in the bureaucracies of the Kingdoms of Saxony or Prussia, including: Manteuffel's father, Baron Otto Gottlob von Manteuffel (1777–1812), who was an official and later senior official (*Regierungspräsident*) in the Saxon government in Lübben; Manteuffel's uncle, Hans Karl Erdmann von Manteuffel, who was employed in the Prussian bureaucracy as President of the Regional Court of Appeal in Frankfurt an der Oder (*Präsident des Oberlandesgerichts*) and later Chief-President of the

[21] On the Manteuffel genealogy, see GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 4, Nr. 2. For a narrative of the family's earliest origins, see 'Ursprung der Familie von Manteuffel: Ein Vortrag des Lieutenants im 2ten Garde Regiment zu Füß, Heinrich Freiherr von Keyserling, gehalten im Vereine für Geschichte der Mark Brandenburg', in ibid., Bl. 1–14.

Figure 1.3. Baron Otto Theodor von Manteuffel (1805–82), *c.*1870. *(bpk/Ad. Braun Cie, 10017831)*

appellate court in Merseburg (*Chefpräsident des Oberlandesgerichts*); and Manteuffel's uncle on his mother's side, who served as the Saxon Minister of Finance.[22]

Manteuffel's family origins meant that he possessed access to a good education. Manteuffel's father oversaw his son's schooling until his death in 1812, after which Hans Karl von Manteuffel assumed this responsibility. When the new family moved to Frankfurt an der Oder in 1816, a house tutor educated Manteuffel before he left for the prestigious *Landesschule Pforta* in 1819.[23] The *Landesschule Pforta* became one of the most famous *Gymnasien* in Germany after changing from Saxon to Prussian hands as part of the annexations at the end of the Napoleonic Wars. Under the influence of William von Humboldt (1767–1835) and the *Kultusminister* Baron Karl von Stein zum Altenstein (1770–1840), the school underwent a series of reforms to strengthen its focus on humanist learning.[24] Manteuffel

[22] George Hesekiel, *Otto Theodor Freiherr von Manteuffel: Ein Preußisches Lebensbild* (Berlin: A.W. Hayn, 1851), 6, 16, 17, 21; Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 2.

[23] Karl Wippermann, 'Manteuffel, Otto Theodor von M.', *Allgemeine deutsche Biographie*, 20 (1884), 260–72, at 260.

[24] On the school during the nineteenth century, see Gerhard Arnhardt, *Schulpforte—eine Schule im Zeichen der Humanistischen Bildungstradition* (Berlin: Volk und Wissen, 1988), 92–163.

thrived in this environment and graduated *Primus Portensis*, an achievement, as the future editor of the *Kreuzzeitung*, Johann George Hesekiel (1819–74), claimed in 1851, that 'those educated in the Pforta school will admit really means something'.[25] Certainly one is inclined to agree with Hesekiel's judgement when one remembers that Pforta boasted such alumni as Johann Elias and Johann Adolph Schlegel (1719–49 and 1721–93, respectively), Johann Gottlieb Fichte (1762–1814), Leopold von Ranke (1795–1886), Richard Lepsius (1810–84), and Friedrich Nietzsche (1844–1900).[26]

After leaving Pforta with his *Abitur* in Michaelmas 1824, Manteuffel took up a place at Halle to study law (*Rechtswissenschaft*) and cameralism (*Kameralwissenschaft*). There Manteuffel's talent and focus were once again acknowledged. According to his transcript for the year 1824–5, the law faculty described him as having worked 'with the greatest diligence', 'with unbroken diligence', and with 'praiseworthy diligence'. In 1826, Manteuffel's transcript attested to his 'praiseworthy diligence', and, in 1827, to his 'laudable diligence'.[27] Not just in his studies but in all respects, Manteuffel appeared to be extremely conscientious. And this included activities outside classes. Manteuffel frequently visited the house of Georg Hartmann von Witzleben (1766–1841), who was at the time the Registrar (*Kurator*) of the University of Halle-Wittenberg, to debate the legal principles he studied so thoroughly. At the salon gatherings in Witzleben's house, Manteuffel joined in on discussions about state administration with active state servants, testing and trying out his learning.[28] In sum, as his Rector concluded at the end of Manteuffel's transcript: at no time and under no circumstance, not even in economic matters, had Manteuffel given cause for negative comment.[29]

After leaving Halle, Manteuffel continued to impress those around him with his talent, devotion to his work, and deep respect for and emotional attachment to the abiding structures of the state. In November 1827, at the age of 22, he took up the position of *Auscultator* in the Berlin city court.[30] Manteuffel worked at the city court for two years before he successfully passed his First State Exam of Law. On 28 April 1829, the Directorate formally conveyed to Manteuffel the results of his work over the last two years. Manteuffel, it stated, had passed his first round of examinations as a result of diligent study, a robust knowledge of the law, and a well-developed faculty of judgement. His application deserved 'the best praise'.[31] Manteuffel followed up his First State Exam of Law with equal success in the Second in the autumn of 1829 and an ensuing promotion to a trainee position (*Referendar*) at the Royal Court Chambers (*Königliches Kammergericht*) in Berlin.[32] At this point, however, Manteuffel made the decision to switch from the judiciary to the Prussian

[25] Hesekiel, *Otto Theodor Freiherr von Manteuffel*, 17–18.
[26] <https://www.landesschule-pforta.de/de/geschichte/schueler.php> (accessed 26 April 2018).
[27] 'Abgangszeugniß von der Universität Halle', in GStA PK, I. HA Rep. 77 Ministerium des Innern, Nr. 1722, Bl. 11–12, at Bl. 11.
[28] Hesekiel, *Otto Theodor Freiherr von Manteuffel*, 20.
[29] GStA PK, I. HA Rep. 77 Ministerium des Innern, Nr. 1722, Bl. 12.
[30] Ibid., Bl. 18. [31] 'Zeugniß der Reife zum zweiten Prüfung', in ibid., Bl. 21.
[32] Declaration of the Ministry of Justice, 6 October 1829, in ibid., Bl. 28.

administration when he applied to take up a *Referendariat* at the government in Frankfurt an der Oder.[33] The move was approved, and so Manteuffel began a decade of work away from the capital.[34]

During his time in the provinces, Manteuffel acquired important administrative skills, as well as witnessing the aftermath of the July Revolution first-hand. In the autumn of 1830, he took a holiday to Paris with his uncle, the Finance Minister of the Kingdom of Saxony, where he saw the effects of ultraconservative policies and acts of anticlericalism.[35] On their return, revolutionary activity had spread to several German states, excluding Prussia but including Saxony. As a result, Manteuffel's uncle was forced out of his position in the Saxon government and into a new role as a representative to the German Confederation in Frankfurt am Main.[36] This personal experience of revolutionary violence and the difficulties his beloved uncle suffered as a result of the Dresden uprisings help to explain Manteuffel's commitment to conservatism in the *Vormärz.* But his lack of exposure to more established ultra-conservative circles in which to process such events suggests one explanation for his later questioning of the limits of conservative policies after the 1848–9 revolutions.

To be sure, Manteuffel was not acquainted with the powerful East Elbian nobles who dominated Prussian politics during the 1830s and 1840s. In particular, he did not benefit from the patronage of Ludwig or Leopold von Gerlach. The Gerlach brothers—key powerbrokers around the Crown Prince before 1840 and the King thereafter—were instrumental in making the careers of young conservatives in the years leading up to 1848.[37] For example, Hermann Wagener, the chief editor of the *Kreuzzeitung*, received his juridical training at the Magdeburg law courts under the eye of the then Court President (*Gerichtspräsident*) Ludwig von Gerlach. The young protégé used to meet Gerlach once a week, and, on the basis of this close personal relationship, he rapidly ascended in Berlin's political scene.[38] Likewise Hans Hugo von Kleist-Retzow, co-founder of the *Kreuzzeitung* and later *Oberpräsident* in the Rhine Province, and Hermann Schede (1812–93) owed their rise to prominence in part to being *Referendar* under Ludwig von Gerlach. Of course, the most famous protégé to rise out of this circle was Otto von Bismarck, whose ascent was deeply dependent on Leopold von Gerlach's patronage.[39]

[33] *Regierungspräsident* in Frankfurt an der Oder to the *Königlicher Kammergerichts-Präsident*, 10 April 1830, in ibid., Bl. 62.

[34] For more details on his work in the provinces, see Wippermann, 'Manteuffel, Otto Theodor von', 261.

[35] On the revolutions of 1830, see Jonathan Sperber, *Revolutionary Europe, 1780–1850* (Harlow: Longman, 2000), 348–62.

[36] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 2; Hesekiel, *Otto Theodor Freiherr von Manteuffel*, 21–2.

[37] Hans-Christof Kraus, 'Ein altkonservativer Frondeur als Parlamentarier und Publizist—Ernst Ludwig von Gerlach (1795–1877)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 13–36, at 22.

[38] Hermann Beck, *The Origins of the Authoritarian Welfare State in Prussia: Conservatives, Bureaucracy, and the Social Question, 1815–1870* (Ann Arbor: University of Michigan Press, 1995), 79.

[39] Steinberg, *Bismarck*, 93.

But Manteuffel had to rely on his skill, determination, and more modest networks to make up for what he lacked in patronage. Luckily for him, his hard work paid off, and, after just ten years in low-level government, he was appointed County Commissioner (*Landrat*) to the Luckau *Kreis*.[40] In Luckau, Manteuffel's administrative talents received wide attention and from here he was able to move into the upper echelons of the Prussian administration. In 1843, Manteuffel was appointed Vice President of the District Government in Stettin (*Vizepräsident der Königlichen Regierung zu Stettin*) and in 1844 he became a counsellor to the Prince of Prussia.[41] Two years later he took up the position of Director in the Interior Ministry.[42] While Director, Manteuffel and his younger brother Karl made a concerted effort to break into leading conservative networks. At the First United Diet of 1847, George Hesekiel recorded that the Manteuffel brothers made sure that no issue was raised for discussion without one of the two pacing through the rows of delegates to give their endorsement or doubts about the discussion at hand. Manteuffel also attempted to capture the attention of Friedrich Wilhelm IV in the Diet by speaking out on more than one occasion in support of monarchical authority.[43]

Over the course of 1848, Manteuffel's obvious talents and professional dedication, as well as his enthusiasm, made him an attractive candidate for a ministerial post, and the ultraconservatives warmed to him as someone who would join the ministry to oversee an end to the revolution. By 17 October 1848, Leopold von Gerlach had become supportive of the idea of appointing Manteuffel alongside Brandenburg,[44] and throughout the rest of October and early November he welcomed Manteuffel into the highest conservative circles.[45] Certainly Brandenburg was convinced. As he began to look for cabinet members to replace the Pfuel ministers, he told Bismarck that he needed a talented and experienced go-to man in the ministry like Manteuffel. 'I have taken the matter [the Premiership] in hand,' said Brandenburg,

> but have scarcely looked into the newspapers; I am unacquainted with political matters, and can do no more than to carry my head to market. I want a mahout, a man in whom I trust and who tells me what I can do. I go into the matter like a child into the dark, and except Otto Manteuffel, know nobody who possesses previous training as well as my personal confidence.[46]

On 8 November, therefore, Manteuffel assumed the role of Interior Minister in the new cabinet, inspiring contemporary references to the ministry as the 'Brandenburg–Manteuffel' Ministry of State. Manteuffel's potential influence soon drew comment,

[40] Interior Minister Rochow to the *Regierungspräsident* in Königsberg, 20 July 1841, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Nr. 1722, Bl. 81.

[41] Interior Minister Arnim-Boitzenburg to the *Königlicher Oberpräsident Herr von Bonin* in Stettin, 3 June 1843, in ibid., Bl. 97.

[42] Barclay, *Frederick William IV*, 259.

[43] Hesekiel, quoted in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 3; speech by Manteuffel, 31 May 1847, in ibid. i. 4.

[44] Gerlach, *Von der Revolution zum Norddeutschen Bund*, i. 127.

[45] Ludwig von Gerlach, diary entry of 19 October 1848, in ibid. i. 129.

[46] Steinberg, *Bismarck*, 96.

as the Münster *Auscultator* and part-time author Friedrich Arnold Steinmann (1801–75) wrote in 1849 in his *Die Geschichte der Revolution in Preußen*: 'the Minister of the Interior, Manteuffel, is, according to general belief, the real core and soul of the ministry. He is, without doubt, the most important person among the figures on this panel.'[47]

But the ultraconservatives were soon to be disappointed in Manteuffel, just as they were with Brandenburg. Manteuffel increasingly showed himself to be sensitive to practical constraints. As he argued in his election speech for the Prussian parliament in early 1849:

> the old times are gone and cannot return!...It was popular in those days to speak of reaction. He is short-sighted who would think of an establishment of the old times. To return to the decaying conditions of the past is like scooping water with a sieve.[48]

Manteuffel's general readiness to follow Brandenburg's pragmatic solutions soon offended ultraconservative sensibilities, as did his disregard for doctrinal positions. As an anonymous author wrote in the *Grenzboten* in 1850, Manteuffel was 'no doctrinaire...he hates the doctrinaires'.[49] The *Grenzboten* argued that Manteuffel sat wedged between the 'black–white doctrinaires', such as the ultraconservative Gerlach brothers, Kleist-Retzow, and others on the right, and the 'red doctrinaires' on the left.[50]

Manteuffel's lack of attachment to ultraconservative positions became clear in debates on constitutional reform and national unification. It also became apparent during discussions of domestic issues, in which Manteuffel sought to expedite reforming activity developed in the pre-March era or to continue many of the new legislative initiatives developed during 1848. In doing so, Manteuffel reviewed sessions of the Prussian parliament and surveyed newspapers and letters from diplomats driven, as Hermann Wagener observed, by a desire to be in control of the information that flowed through government.[51] This too would soon provoke frustration on the part of those ultraconservatives who looked to influence Friedrich Wilhelm IV through extra-ministerial channels in the 1850s.

If the old conservatives felt their distance from Manteuffel, the new Minister for Religious, Educational, and Medical Affairs, Adalbert von Ladenberg (1798–1855), was yet another appointment less committed to the ideology of reaction than they might have wished. Born in Ansbach in 1798 to a family of civil servants, Ladenberg had taken the typical training for a bureaucratic career by studying law and cameralism in Berlin, Heidelberg, and Göttingen. As he entered the bureaucracy, crowding and competition over posts were fierce. 'From all sides and in all branches of state service', wrote the contemporary Clemens Theodor Perthes, 'the pressure on office is so great that it is not rare for ten or twenty men to apply

[47] Friedrich Steinmann, *Geschichte der Revolution in Preußen* (Berlin: Friedrich Gerhard, 1849), 683.
[48] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 133–4.
[49] Anon., 'Herr von Manteuffel ein verkappter Demokrat', *Die Grenzboten: Zeitschrift für Politik und Literatur*, 9 (1850), 241–8, at 242.
[50] Ibid. 244.
[51] Hermann Wagener, quoted in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 37.

for the same position'.[52] Ladenberg, however, managed to secure the position of *Auscultator* in the Prussian bureaucracy in 1818, and from there he moved relatively swiftly up the bureaucratic ladder, testifying to his administrative competencies, as well as his family's financial security.[53] By 31 May 1839, Ladenberg had attracted the attention of the *Kultusminister* Altenstein and was appointed Director of the *Kultusministerium*.[54] This was no small feat, considering that Altenstein was a tireless advocate for the reform of schooling, teacher training, and the transformation of Prussia's *Gymnasien*. Following this, Adalbert von Ladenberg took up the position of *Kultusminister* on a temporary basis on 3 July 1848 before becoming permanent on 8 November.[55]

Like Brandenburg and Manteuffel, Ladenberg showed himself to be no reactionary, despite liberal newspapers declaring him a willing 'tool' of the ultraconservatives.[56] He believed that the only way to save Prussia's monarchy was to ensure that Friedrich Wilhelm IV honoured his March promise to constitutionalize the Prussian state. As he later reflected in 1854, the constitution—which would be promulgated on 5 December 1848—had been 'an urgent necessity' and 'the only tool' by which 'anarchy', 'terrorism', and the 'Jacobinism' of the French Revolution was overcome.[57] His personal papers indicate that Ladenberg was more progressive in his constitutionalism than Brandenburg and Manteuffel, but not so radical as to want to forgo restoring monarchy. In addition, Ladenberg's commitment to the crown was deeply personal. Ladenberg and Friedrich Wilhelm IV established an almost instant personal affinity upon meeting. The King was enchanted with Ladenberg; so too was Ladenberg with Friedrich Wilhelm IV. Throughout the counter-revolution Ladenberg remained closer to the King on a personal level than most of the other ministers, and he played an important role in blocking the influence of the many cronies around Friedrich Wilhelm IV who attempted to hold sway at court.

Ladenberg thought, furthermore, deeply and critically about how to reform Prussia's cultural life throughout his period in office and beyond, bringing him into alignment with Manteuffel's penchant for modernization. He argued that schooling in Prussia required essential reforms, especially after 1848.[58] Ladenberg also believed that the Ministry of Religious, Educational, and Medical Affairs

[52] Perthes is quoted in John R. Gillis, 'Aristocracy and Bureaucracy in Nineteenth-Century Prussia', *Past and Present*, 41 (1968), 105–29, at 114.

[53] Ladenberg made it clear in his own writings that one could not pursue a career in the courts without substantial financial support. See Adalbert von Ladenberg, *Preußens gerichtliches Verfahren in Civil- und Kriminal-Sachen. Ein Auszug aus den darüber bestehenden Gesetzen, insbesondere aus der allgemeinen Gerichts-Ordnung, der allgemeinen Depositalordnung, der allgemeinen Hypotheken-Ordnung, der Kriminal-Ordnung, dem Stempel Gesetze u.s.w., nebst einer Einleitung, das Studium angehender praktischer Juristen und deren Laufbahn betreffend*, 2nd edn (Cologne: J. P. Bachem, 1833), 2.

[54] Friedrich Wilhelm IV to Altenstein, 31 May 1839, in GStA PK, I. HA Rep. 76 Kultusministerium, I. Sekt, 31 Lit. L, Nr. 14, Bl. 13. For correspondence between Ladenberg and Altenstein over the appointment, see ibid., Bl. 1–3.

[55] Holtz (ed.), *Acta Borussica*, iv. 700..

[56] *National-Zeitung*, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 22–3.

[57] 'Überlegungen zur Reorganisation der obersten Staatsbehörden', February 1854, in GStA PK, BPH, Rep. 192 Nl Adalbert von Ladenberg, Nr. 33.

[58] Ladenberg to Friedrich Wilhelm IV, 5 August 1850, in GStA PK, BPH, Rep. 192 Nl Adalbert von Ladenberg, Nr. 13.

should take a stronger lead in cultivating artistic education in Berlin and across the provinces. Theatre schools should be more heavily financed, he argued, and connections between productions in Berlin and the provinces better facilitated. The Academy of Arts should be reorganized to improve artistic training, and he believed that a conservatorium should be added to the Royal Opera House in Berlin to elevate the education of young musicians.[59] In all areas but especially through educational reforms, Ladenberg sought the 'improvement of art in general [and] its practical application in [shaping] the education and attitude of the public'.[60]

For the ultraconservatives, then, there was little to like about Ladenberg. The circumstances of his appointment to the *Kultusministerium* aligned him closely with progressives like Altenstein, men of enlightened temperament who had passed through the crucible of the Prussian reform movement, and, as a result, working in the *Kultusministerium* after Altenstein's death in 1843 had been extremely difficult for Ladenberg. Ladenberg frequently clashed with the Koblenzer school inspector Gerd Eilers—*Kultusminister* Johann Albrecht Friedrich von Eichhorn's 'right hand'—over the neo-pietist policies he promoted. As was written in Ladenberg's obituary in the *Augsburger Allgemeine Zeitung* on 18 February 1855, he had always been ill disposed towards pietism.[61] Likewise Ladenberg's difficulties would only continue when he became *Kultusminister* himself. After 1848, his dislike of neo-pietism increased as he refused to allow such convictions to guide his plans for cultural reformation in Prussia. Naturally, his commitment to a small German (*kleindeutsch*) solution to unification was directly at odds with many ultraconservatives.

The fourth and final minister to enter the Brandenburg cabinet on 8 November 1848, and one who played a relatively minor role in it, was the new head of the War Ministry (*Kriegsministerium*), Karl Adolph von Strotha (1786–1870). Like Brandenburg, Strotha boasted a long and distinguished military history. Unlike Brandenburg, however, he could not switch so easily from his former life in the military to his new role in the affairs of the state. When on 8 November he emerged from his garrison in Berlin, he was not interested in knowing the details of the political programme of the new Ministry of State but rather whether military garb or civilian clothing would be better suited to the times.[62] Nonetheless, Strotha, like Brandenburg, Manteuffel, and Ladenberg, was a far more intelligent and flexible conservative that he appeared. He was a capable officer and a good administrator. As the *National-Zeitung* put it on 10 November 1848, he was 'known to be an educated, wise and energetic officer', even if in every way an aristocrat.[63]

The new, though still incomplete, ministry constituted an important feature of the Prussian political landscape in late 1848. Its head, the Minister-President Brandenburg, remained responsible to the King rather than the parliament, and all members, now unequivocally departmental ministers, were united by a desire to

[59] 'Überlegungen zur Reorganisation der obersten Staatsbehörden', February 1854, in GStA PK, BPH, Rep. 192 Nl Adalbert von Ladenberg, Nr. 33. [60] Ibid.

[61] *Augsburger Allgemeine Zeitung*, 29 March 1856.

[62] Bernhard von Poten, 'Strotha, Karl Adolf von', *Allgemeine deutsche Biographie*, 36 (1893), 627–9, at 627.

[63] *National-Zeitung*, 10 November 1848, p. 1.

restore the monarchy. But all were increasingly looking to do so by moving away from the ideologically driven approach to politics espoused by ultraconservatives to a more pragmatic position informed by fatigue and the uncertainty of the times. This included ensuring the realization of Friedrich Wilhelm IV's constitutional promise. The new ministry also demonstrated strong impulses towards a reform and extension of government control into areas of life previously untouched by state authority. This mentality was encapsulated in Manteuffel's determination not to return to the 'old times' of reaction but to manage the new. Likewise, Ladenberg's advocacy of educational reform indicated a similar line of thinking.

This desire to adopt more realistic, future-oriented approaches to counter-revolution was also coming to the fore simultaneously in other parts of German-speaking Europe. In Austria, the Council of Ministers (*Ministerrat*) formed under Prince Felix zu Schwarzenberg (1800–52) in November 1848 was strikingly similar to that in Prussia. Schwarzenberg, a career diplomat cut from the noblest of cloth, was unwilling to implement ultraconservative plans to overturn revolutionary gains. Rather, he turned to a series of intelligent men who understood Austria's domestic situation better than himself to find solutions to revolutionary unrest. Schwarzenberg's most important counterpart in the cabinet was the Minister of the Interior, Count Franz von Stadion (1806–53), another figure who evoked parallels to Brandenburg and Manteuffel. Stadion would oversee the drafting of a constitution for Austria, focused on steering a middle course between the political extremes. And the new Justice Minister and later Interior Minister, Alexander Bach (1813–93), was perhaps the closest likeness to Manteuffel in the cabinet. Bach, as John Deak has recently written, 'became neither a liberal nor a conservative, but a "Man of the State" ' after 1848.[64] He sought to rationalize and expand the Austrian bureaucracy on a breathtaking scale, convinced that officials rather than revolutionaries were the men to bring in fundamental changes to state structures after mid-century.[65]

Beyond the German great powers, the Minister-President Ludwig von der Pfordten (1811–80) showed tendencies towards realism in Bavaria. Pfordten would soon begin to appeal to 'material interests' in his attempts to expand the reach of the state at home and within the German Confederation.[66] And, in the largest states of the Third Germany, there were ministers who embraced a similar preference for a pragmatic approach to diffusing revolutionary tensions and/or furthering a Third German agenda in confederal affairs. This was the case in both Württemberg and Saxony, even though reaction took a relatively hard line in the latter state. In Dresden, for instance, the Foreign Minister and later Interior Minister Baron Friedrich Ferdinand von Beust (1809–86) oversaw significant economic development with

[64] Deak, *Forging a Multinational State*, 101.

[65] Ibid. 68–109. See also Georg Seiderer, *Oesterreichs Neugestaltung: Verfassungspolitik und Verwaltungsreform im österreichischen Neoabsolutismus unter Alexander Bach 1849–1859* (Vienna: VÖAW, 2015).

[66] Michael John, *Politics and the Law in Late Nineteenth-Century Germany: The Origins of the Civil Code* (Oxford: Clarendon Press, 1989), 40–1.

the help of Albert Christian Weinlig (1812–73) in the Interior Ministry, capturing attention in Berlin in due course.[67]

FORGING COUNTER-REVOLUTION, 1848–1851

Once installed, conservative ministries across the German states had to make quick decisions to regain the initiative in political affairs. In Brandenburg's chambers, Ladenberg argued that Friedrich Wilhelm IV should usurp the National Assembly's mandate to draft a constitution by promulgating one himself. Brandenburg agreed. Promulgating a constitution, argued the Minister-President, was not ideal, but it was necessary to shut down the revolution. Only Manteuffel was against the move. He was no convert of constitutionalism and he certainly did not want to see such a document issued in Prussia.[68] He had even spoken of resigning over such an eventuality.[69] But Brandenburg was unyielding. He recognized the growing belief that popular participation and representative assemblies had become a necessary part of modern politics.[70] Hence, instead of heeding Manteuffel's opinion, he put his Interior Minister to work revising the draft constitution produced by the democrat Benedict Waldeck and committee earlier that year.

Over the course of his drafting activities in November 1848, Manteuffel's initial hesitations towards a promulgation rapidly dissolved so that he aligned himself with the ministry's acceptance of constitutional realities. And the resulting draft constitution he produced was a remarkably moderate document. As per the 'Waldeck draft', Manteuffel allowed for a bicameral legislature, in which an upper chamber would be chosen according to a restricted suffrage and a lower chamber by virtually all adult males over the age of 24.

Friedrich Wilhelm IV found such franchise arrangements difficult to agree to.[71] Others, such as David Hansemann (1790–1864), the former Finance Minister under Camphausen, agreed. As he wrote to the Prince of Prussia on 13 December 1848, broad voting arrangements could prove to be the 'most dangerous experiment' in Prussia.[72] Even the liberal-leaning *Grenzboten* believed that the new voting laws maintained the 'democratic spirit of the National Assembly'.[73] But Manteuffel ensured that Friedrich Wilhelm IV would still hold an absolute veto over the

[67] Bodie A. Ashton, *The Kingdom of Württemberg and the Making of Germany, 1815–1871* (London: Bloomsbury, 2017), 93; Richard J. Bazillion, *Modernizing Germany: Karl Biedermann's Career in the Kingdom of Saxony, 1835–1901* (New York: Peter Lang, 1990), 236–89. For a concise summary of the reactionary aspects of Beust's politics in the 1850s, see James Retallack, *Red Saxony: Election Battles and the Spectre of Democracy in Germany, 1860–1918* (Oxford: Oxford University Press, 2017), 25.

[68] Enax, 'Otto von Manteuffel', 9–18.

[69] Ludwig von Gerlach, diary entry of 6 December 1848, in Gerlach, *Von der Revolution zum Norddeutschen Bund*, i. 143–4, at 144.

[70] Mark Hewitson, *Nationalism in Germany, 1848–1866: Revolutionary Nation* (Basingstoke: Palgrave Macmillan, 2010), 40–2.

[71] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 51.

[72] Ibid. i. 67.

[73] Anon., 'Deutsche Staatsmänner. II. Otto Freiherr von Manteuffel', *Grenzboten*, 9 (1850), 453–9, at 457.

legislation produced by elected members seated in the new parliament. And he shaped Article 105 of the constitutional draft to empower emergency decrees. There were, therefore, enough assurances that the ministry would be able to achieve its aim of winning back public confidence without weakening the monarchy. As Manteuffel put it, the crown could 'rule through it'.[74]

Manteuffel's actions in the promulgation thus demonstrated a pragmatic acceptance of constitutionalism, as well as a shrewd reconsideration of the advantages of a constitution to the monarchy and bureaucracy. In time, this was not lost on Friedrich Wilhelm IV. The latter protested throughout the autumn of 1848, fell into bouts of depression, and even threatened at one point to take his life over such a course of action. But, after much convincing and a careful scrutiny of Manteuffel's work, he came around to the idea and, on 5 December 1848, officially promulgated Prussia's first constitution.[75]

Widespread support quickly followed. Moderate conservatives and liberals did not doubt that the time had come for such an adjustment, making them willing to overlook the means by which the constitution had come about. Elites located further towards the extremes of the political spectrum could also find reasons to support this constitutional arrangement. For instance, the liberals behind the *Kölnische Zeitung* showed great excitement at the effect the new constitution was having on stabilizing financial markets. In this paper, one could read on 8 December 1848 that 'The event has already influenced the bourse. The funds have appreciably climbed and each person who is in any way involved jumps with a self-pleasing joy for the new times, which one hopes will lead to even more profitable results.'[76] Equally on the right, the provisional nature of the document encouraged immediate goodwill among conservatives, as did the stabilization of markets.

Further support came in from across the provinces in the form of newspaper articles. The Prussian Literary Cabinet (*Literarisches Cabinet*) reported on 12 December that 'The German and in particular the Prussian daily press has today, regarding the issue of the constitution, retained the same favourable position as was indicated yesterday.' The report continued:

> One could even say that the general sense of satisfaction is increasing, since several of the most important newspapers including the *Vossische Zeitung*, the *Deutsche Reform*, and partly also the *Kölnische Zeitung*—continue coming back to the fact that bringing it about by force was a necessity, and that the content of the constitution satisfied all reasonable requirements.

The report concluded that a majority of Prussians were satisfied with the document and believed that it offered the 'very greatest hope' for the political development of

[74] James J. Sheehan, *German History, 1770–1866* (Oxford: Clarendon Press, 1989), 720. On Manteuffel's attempts to make the constitution broadly acceptable to as many interest groups as possible, see Grünthal, 'Zwischen König, Kabinett und Kamarilla', 123.

[75] For Friedrich Wilhelm IV's comments on the draft constitution, see Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 47–54.

[76] *Kölnische Zeitung*, 8 December 1848, quoted in James M. Brophy, *Capitalism, Politics, and Railroads in Prussia, 1830–1870* (Columbus: Ohio State University Press, 1998), 52, n. 188.

the state.[77] Even the hostile *Krakehler* newspaper in Oppeln critically agreed with the sentiment that what many Prussians in the provinces wanted most was a return to order. As it wrote: 'The majority of the people desired a constitution at any price because they imagined it would immediately bring about a return of trade, law, and order.'[78] Likewise in Breslau, the anonymous author of the manuscript 'Erzählung der Vorgänge in Breslau vom März 1848 bis July 1849 usw'—most likely a wealthy businessman and member of the Matthias parish—wrote that the promulgation sparked a 'joyful mood' and that for many days after the event citizens illuminated their houses in celebration. Most importantly, he too noted, the event had a positive effect on the Berlin stock exchange, pushing shares up around 5 or 6 per cent.[79]

The Literary Cabinet also surveyed the international press, suggesting that the reaction of the French and English papers to the promulgation was similarly positive:

> The *Presse* describes the new Prussian assembly as more liberal than that of the French republican constitution; the *Constitutionnel* tends towards the same verdict; the *National* is only able to direct its criticism at the way in which it was imposed by force . . . According to the *Times* the freedoms granted go 'too far' . . . nevertheless this verdict still approves the authors of the constitution.[80]

But not everyone was content with the new constitution. Leopold von Gerlach was one of the few conservatives who continued vocally to oppose the promulgation, yet his desire to maintain a rigid opposition now appeared especially retrograde, even among the ultraconservatives. Ludwig von Gerlach was more able to adjust to the idea than his brother, although he questioned the cabinet behind it. 'I doubted,' wrote Ludwig von Gerlach on 6 December 1848, 'whether we should have recommended Brandenburg as we did'.[81] But the notion that the *camarilla* could continue to shape the Prussian agenda was wishful thinking. The *camarilla* had played an important role in Brandenburg's appointment, yet their presence and influence at court were waning in late 1848. Definitely after Christmas that year, we can no longer speak of a formal *camarilla* or *camarilla* programme but instead of a loose mix of ultraconservatives jostling to influence Friedrich Wilhelm IV.[82]

[77] Literary Cabinet Report, 12 December 1848, in GStA PK, BPH, Rep. 50 Nl Friedrich Wilhelm IV, E 2, Nr. 5, Bl. 124–5, at Bl. 124.

[78] 'Richtkrakehlende Worte über die Verfassungs-Urkunde vom 5. December a.c.', *Krakehler 7* (1848), in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 987 Nr. 1, Bl. 15.

[79] Unpublished manuscript, February 1850, in GStA PK, XVII. HA Rep. 135 Handschriften, Nr. 505, Bl. 65–91, at Bl. 91. Also relevant here is Hans Wegge, 'Die Stellung der Öffentlichkeit zur oktroyierten Verfassung und die preußische Parteibildung 1848/49' (Ph.D. dissertation, Berliner Universität, 1932), 29–44.

[80] GStA PK, BPH, Rep. 50 Nl Friedrich Wilhelm IV, E 2, Nr. 5, Bl. 124–5.

[81] Ludwig von Gerlach, diary entry of 6 December 1848, in Gerlach, *Von der Revolution zum Norddeutschen Bund*, i. 143–4, at 144.

[82] David E. Barclay, 'The Court Camarilla and the Politics of Monarchical Restoration in Prussia, 1848–1858', in Larry Eugene Jones and James Retallack (eds), *Between Reform, Reaction, and Resistance: Studies in the History of German Conservatism from 1789 to 1945* (Oxford: Berg, 1993), 123–56, at 125.

Rather, the promulgation had important implications for the functioning of the Ministry of State, which was becoming more prominent in the political landscape. The ministry would henceforth be required to appear before the *Landtag*, seeking to secure majorities for a finalized constitution and future pieces of legislation.[83] This would require the ministers to discuss bills in the first instance and then again at the final stage after parliamentary debate. The new working routine also involved discussing any general matters that affected more than one department.

In addition, the promulgation coincided with one further important change to the workings of the Ministry of State: the inclusion of the merchant-banker August von der Heydt (1801–74) as the new Trade Minister. Heydt, a Rhinelander who had an established presence in Prussian banking and commercial circles, had been an active supporter of the constitutional movement in the Westphalian diet of the 1830s, the Standing Committee in 1842, and during the United Diet in 1847. As such, his political stance appeared more progressive than that of Brandenburg or Manteuffel, but this was no commitment to democracy and certainly not to republicanism. To be sure, Heydt displayed an unwavering commitment to Friedrich Wilhelm IV in the years before the revolution, just as he would alongside Brandenburg and Manteuffel after 1848. Nevertheless, Heydt's penchant for reform was genuine and not limited to constitutional questions. His belief that the state needed to play a far more ambitious and interventionist role in economic development aligned him with Manteuffel's modernizing impulses, as well as with several trade ministers across Austria, France, and Belgium in the 1850s.[84]

The promulgation brought about an initial surge of confidence in the Prussian state, but the ministry still needed to secure support in the Prussian parliament. Over the winter of 1848–9, Manteuffel coordinated elections, directing provincial authorities to ensure that they were devoid of every 'rabble rousing and partisan influence'.[85] The new voting law stipulated that men 30 years or older who paid a minimum of 8 Taler per year in tax were eligible to vote in the elections of the First Chamber. Along with these men, those with an income of 500 Taler or more or an estate valued at or over 5,000 Taler could also participate.[86] This meant that elections returned a largely conservative majority in the First Chamber, but parliamentary factions—that is, forerunners of parties—were slow to form. As Ludwig von Gerlach wrote, 'until now there has been little political consciousness . . . and in

[83] On Manteuffel's insistence in late 1850, it would even introduce bills to clarify ministerial responsibility as expressed in Article 61 of the constitutional draft. Manteuffel thought that public opinion would be receptive to such an initiative and tried to assert provisions for impeachment that favoured the government, especially with respect to the retention of evidence, but both chambers would block this measure on account of the substantial advantage it gave to the state. Hahn, 'Ministerial Responsibility', 8–9.

[84] Brophy, *Capitalism, Politics, and Railroads*, 54–6.

[85] Manteuffel to the provincial *Regierungen*, as recorded by Varnhagen von Ense, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 67.

[86] Ernst Rudolf Huber, *Deutsche Verfassungsgeschichte seit 1789*, 8 vols (Stuttgart: Kohlhammer, 1957–91), ii. *Der Kampf um Einheit und Freiheit, 1830 bis 1850* (1988), 764.

general, no solid party formation'.[87] As a result, many conservatives in the First Chamber tended towards compromise with their liberal counterparts, to the frustration of ultraconservatives such as Ludwig von Gerlach and Kleist-Retzow, who gathered in a loose faction around Friedrich Julius Stahl.

In contrast to the First Chamber, all independent men were eligible to vote for the Second Chamber. That is, all adult males who were not in receipt of poor relief from public funds.[88] Voting for the Second Chamber produced a dominant faction composed of moderate conservatives as well as a sizeable group of liberal constitutionalists, including Vincke. This faction, known as the 'London City Hotel' (*Hotel Stadt London*), generally provided support for the Ministry of State. Some ultraconservatives and liberals refused to join the faction, the latter clustering around Hans Viktor von Unruh. They adopted an oppositional stance but one that was still distinct from those democrats who also took up seats in the first session of the house.[89] In total, these left and extreme left minorities occupied around 140 seats out of a total 350 seats.[90]

With the opening of the parliament in February 1849, the Ministry of State immediately sought to secure retrospective support for Friedrich Wilhelm IV's promulgation. The First Chamber—meeting in the former palace of the Minister Heinitz in the Oberwallstraße—passed a motion in support of the promulgation by 114 votes to 23, and, on 17 March 1849, they made an address to the King backing the legitimacy of the constitution.[91] The struggle for endorsement was, however, much harder in the Second Chamber, seated in the Palais Hardenberg in the Leipziger Straße.[92] Here parliamentary members voted to address the King with 172 votes to 159 votes, but the nature of that address was left open. The far right wanted the chamber to acknowledge the legitimacy of the promulgation unconditionally, whereas the moderate liberals around the member Georg von Vincke wanted to state that the promulgation itself lacked legitimacy but the voting of the chambers had provided this. As for the far left, it rejected the promulgation altogether and called for the drafting of a new constitution. This suggestion was voted down on 19 March 1849 by 255 votes to 62, and instead a vague formulation was composed, which either allowed legitimacy to be read into the act of promulgation itself or its recognition by the parliament.[93]

The confirmation of parliamentary support for the constitution was a huge relief for the ministry, although it did not extend to an endorsement of the current state

[87] Kraus (ed.), *Ernst Ludwig von Gerlach*, i. 472, n. 34.

[88] Huber, *Deutsche Verfassungsgeschichte*, ii. 764.

[89] Herbert Kaltheuner, 'Der Freiherr Georg von Vincke und die Liberalen in der preußischen zweiten Kammer 1849–1855' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1928), 13.

[90] John R. Gillis, *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971), 129.

[91] Huber, *Deutsche Verfassungsgeschichte*, iii. 39.

[92] Hans Wilderotter, *Das Haus der Abgeordneten: Ein Denkmal preußischer und deutscher Geschichte in der Mitte Berlins* (Berlin: Philo Fine Arts, 2001), 66–7.

[93] Huber, *Deutsche Verfassungsgeschichte*, iii. 39–40.

of martial law.[94] Here the ministry had to work much harder to procure support, especially as the declaration of martial law on 12 November had been issued on a shadowy legal basis. Aware of this, Manteuffel drafted three laws before the opening of the parliament designed to ensure public order and security, thereby allowing the Ministry of State to lift the current conditions. The first law sought to regulate associational life in Prussia, the second posters and pamphlets, and the third granted freedom of speech in writing, printing, and pictorial representations.[95] But Manteuffel found little support for the proposed legislation among his own base. At a meeting of the Ministry of State on 11 February 1849, the General von Wrangel spoke vehemently against increasing the freedoms of the press. Brandenburg took a more practical approach, suggesting that it would only result in the consumption of popular magazines currently banned under martial law. Only the new Finance Minister Ludwig Kühne (1786–1864) spoke out in favour of restoring full press freedom.[96]

Beyond the ministry, opinion in political circles was sharply divided. On the one hand, Waldeck called for an unconditional end to martial law and rallied substantial support on the part of democrats and some liberals for his position.[97] On the other hand, ultraconservatives made clear that they were opposed to any lifting of the state of siege or a relaxation of press restrictions. The future Wilhelm I (1797–1888), the younger brother of Friedrich Wilhelm IV and Prince of Prussia since 1840, was particularly vehement in his criticism of Manteuffel's intentions. He believed that renewed unrest was likely to break out over the period 18–22 March and, as such, Berlin should remain under martial law until mid-spring at the very least.[98] The Prince of Prussia did not simply object to Manteuffel's time frame for lifting the state of siege; he was greatly troubled by the freedoms that Prussians continued to enjoy under it. All political clubs and associations were closed, and gatherings of more than twenty people on the streets or in official places were prohibited. But smaller gatherings were allowed up to one Prussian mile away from where the chambers were meeting. Moreover, Manteuffel had included further stipulations related to publishing rights that appeared dangerously generous. All the Prince of Prussia could conclude was: 'we're liberalizing ourselves to death!'[99]

Leading liberals such as the former Minister-Presidents Ludolf Camphausen and Rudolf von Auerswald, as well as the Baron Georg von Vincke, supported the ministry in negotiating a compromise to end martial law, but, in general, deputies

[94] For details of what martial law entailed, see the *Preußischer Staats-Anzeiger*, 12 November 1848, printed in *Stenographische Berichte über die Verhandlungen der durch das Allerhöchste Patent vom 5. Dezember 1848 einberufenen Kammern. Zweite Kammer. Von der Eröffnungs-Sitzung am 26. Februar bis zur Auflösung in der siebenunddreißigsten Sitzung am 27. April 1849* (Berlin: Druck und Verlag der Deckerschen Geheimen Ober-Hofbuchdruckerei, 1849), 661.

[95] Meeting of the Ministry of State, 8 February 1849, in Holtz (ed.) *Acta Borussica*, iv. 76; GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 2409, Bl. 10–20.

[96] Meeting of the Ministry of State, 11 February 1849, in Holtz (ed.), *Acta Borussica*, iv. 77.

[97] The notable exception being David Hansemann, who had openly argued for the declaration of martial law in Berlin. See Alan Kahan, 'Liberalism and *Realpolitik* in Prussia, 1830–52: The Case of David Hansemann', *German History*, 9 (1991), 280–307, at 302.

[98] Prince of Prussia to Manteuffel, 19 January 1849 and again on 23 January 1849, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 83–4.

[99] Ibid. i. 83.

in the Second Chamber were not willing to agree to Manteuffel's new laws before a lifting of the stage of siege. As a result, Manteuffel had little choice but to promote the continuation of martial law.[100] A small number of deputies mounted pragmatic arguments, rather than ideological ones, for its retention, which helped to support Manteuffel's position. For instance, the member Griesheim argued that, from 18 March to 1 November 1848, the number of unrented apartments in Berlin had increased from 2,219 to 4,529, whereas, with the introduction of martial law, this figure dropped by 500. Likewise, he continued, the stability had been good for trades and commerce, with tax revenues on the rise. Indeed, on the basis of 241 petitions containing some 19,000 signatures, he claimed that,

> if one put it to Berliners to vote, one by one, on whether they are content with martial law and if they wish to have it for a further period of time or not, I have the firm conviction that the vote would turn out differently to that of this house.[101]

Nevertheless, the result was a souring of relationships in the parliament. Members of the Second Chamber passed a denunciation of ministry actions with a majority of forty-five votes and, following this, a motion for the immediate removal of the state of siege.[102]

With martial law generating serious tensions, pressure also mounted on a second front with the still unresolved national question. At the end of March, the Frankfurt National Assembly had voted to appoint a constitutional monarch who would preside over a federal system for the German states, with a majority of delegates in support of offering the imperial crown to Friedrich Wilhelm IV. Vincke called for the chambers to discuss the issue, but his pleas were ignored and just days later, on 3 April 1849, a delegation of the Frankfurt National Assembly approached Friedrich Wilhelm IV and presented him with the imperial crown of a *kleindeutsch* state. Neither Brandenburg nor Manteuffel wanted Friedrich Wilhelm IV to accept this offer, but nor did they want him to reject it outright. To be sure, Brandenburg considered it necessary to address unification, but only on the condition that it strengthened Prussia's hand in Germany. Manteuffel agreed, wishing only to commit to a national solution that would make Prussia stronger. Although less than clear in their counsel, the two ministers therefore advised a conciliatory decline, and, that same day, Friedrich Wilhelm IV rejected the advance of the National Assembly.[103]

The rebuff of the imperial crown saw the Ministry of State's position take a dramatic turn for the worse. On 21 April, the Second Chamber passed a vote of no confidence in the ministry by 175 to 159, despite Manteuffel's pleas that national unification at this time would not be in Prussia's best interest.[104] Following this, liberal supporters of the national cause saw to it that the Second Chamber voted to

[100] For Manteuffel's framing of martial law, see *Stenographische Berichte… 27. April 1849*, 663–8.
[101] Ibid. 683–5. [102] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 101.
[103] Barclay, *Frederick William IV*, 193–4.
[104] Manteuffel in the Second Chamber, 13 April 1849 and 21 April 1849, in Poschinger (ed.), *Unter Friedrich Wilhelm IV, i*. 93–4.

accept the Reich Constitution devised by the Frankfurt National Assembly as legally binding in Prussia. These developments, along with the deadlock developing over martial law, led Friedrich Wilhelm IV to shut down the *Landtag* on 27 April 1849, provoking a wave of popular unrest across Silesia, Westphalia, and the Rhine Province. Here, support for the Frankfurt National Assembly intersected with a much wider landscape of social–revolutionary insurrection, creating a second wave of revolutions.[105]

During this period of intense opposition, the ministry's weakness was unmistakable, and Manteuffel responded by drafting a collective letter of resignation to Friedrich Wilhelm IV. On 3 June 1849, he wrote:

> It has as little as escaped our Royal Majesty's attention as it has our own, that we from the beginning of our operations were frequently under suspicion and that people were eager to ascribe false motives to our actions: they doubted the honesty of our determination to manage our offices in a constitutional way, and by accrediting us with an irreconcilable attitude towards the Royal Majesty, tried to draw His Majesty into this circle of suspicion. The seed of distrust that has been disseminated about us in this way has found fertile ground far and wide. We would be unjust if we did not wish to admit that the exceptional measures, which we, convinced by your indispensability, had recommended and implemented, were most perfect for feeding this distrust of us among the great numbers of people who were unable to understand them within the greater context of all that had happened. For that reason in particular, Prussia's behaviour in the German matter has been exploited, simply because we advised against accepting the imperial crown based on an untenable constitution, that is ruinous for both Germany and Prussia.[106]

The notion of a ministerial shuffle was deeply disturbing across the political spectrum. For the ultraconservatives, especially the Gerlach brothers, it was to be avoided, because, to their minds, there was no one suitable to replace the Minister-President and his Interior Minister, even if they were open to the idea of substitutions.[107] On the other hand, liberals feared that a more conservative cabinet could be called to replace the Brandenburg-Manteuffel Ministry of State. 'They say,' reported a correspondent of the *Augsburger Allgemeine Zeitung* on 9 July 1849, 'that the Minister of the Interior, that is Manteuffel, is no longer suitable and one intends to set a more conservative man in his post!'[108] Such speculation was limited as the ministry's resignation attempt was not publicized, but it was unsettling for those on both sides of the political spectrum who were privy to the fact. Unquestionably, it was unnerving for Friedrich Wilhelm IV, who made a speedy amends with his ministry, confirming their fundamental importance to the restoration of order.[109]

[105] David Blackbourn, *The Long Nineteenth Century: A History of Germany, 1780–1918* (New York: Oxford University Press, 1998), 161–4.

[106] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 126–9, at 127–8.

[107] See Gerlach's diary entries from 22 June 1849, 25 June 1849, 29 June 1849, and 7 July 1849, in Leopold von Gerlach, *Denkwürdigkeiten aus dem Leben Leopold von Gerlachs*, ed. Ulrike Agnes von Gerlach, 2 vols (Berlin: Wilhelm Hertz, 1891–2), i. 337–42.

[108] GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 3 Nr. 86.

[109] Friedrich Wilhelm IV to the Ministry of State, 7 June 1849, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 129.

Friedrich Wilhelm IV's support for the ministry enabled Manteuffel to supervise the release of two disciplinary decrees on 10 and 11 July designed to consolidate the ministry's power base in the bureaucracy. The disciplinary decrees gave the government the right to censure and punish civil servants who undermined government policy. In particular, this meant that bureaucrats who had been part of the first or second waves of revolution or who continued to be actively 'hostile' to the current political order were liable to dismissal. The disciplinary decrees also gave the government the final say in the relocation of administrative personnel or in matters of their forced retirement, although this did not forbid political opposition in its entirety. Indeed, Manteuffel made clear the distinction between active hostility towards the government and a passive difference of opinion in a circular of 7 April 1850, stressing that the main point was to shield the realization of policy from interference.

Although the disciplinary decrees looked like the tools of an ultraconservative, reactionary agenda, in reality the impetus behind them was far more indebted to the revolution. In June 1848, the democratic faction in the Prussian National Assembly had demanded that the Hansemann–Auerswald Ministry of State discipline conservative officials who were using their influence to stir up counter-revolution in the countryside. The government responded on 15 July by issuing a circular that established guidelines for action against political opposition in the bureaucracy, and the first instances of disciplinary action followed later that month. The initial steps towards the creation of a politically subordinate bureaucracy came, therefore, from the left rather than the right.[110] The later 1849 decrees were uncontested in conservative and moderate liberal circles, and support for the government's right to discipline the bureaucracy was still strong in 1851–2 when both chambers of the *Landtag* accepted Manteuffel's legislation. Those liberals who did oppose the decrees in the Second Chamber in 1851 took issue with the language defining the public responsibilities of administrative officials, but they did not dispute the government's right to suspend certain categories of officials on political grounds.[111]

At the same time as the ministry looked to bolster its internal strength, it sought to implement wider structures for stability. On 30 May, it oversaw a new voting law by emergency decree that rescinded democratic suffrage. The all-male electorate was now grouped into 3 'classes' according to their taxable income. Each class was then to vote for electors entrusted to nominate *Landtag* deputies. The Three-Class Voting Law would be rightly maligned in the decades to come because of the disproportional value afforded to first-class votes, but, at this stage, the decree appeared to be a moderate measure for restoring confidence, as it extended the voting rights enjoyed in the Rhine Province in the years before 1848 to the rest of the state, rather than introducing any estate-based categories for voting.[112] In addition to the new voting law, the ministry scrambled to maintain wider middle-class support

[110] Gillis, *The Prussian Bureaucracy in Crisis*, 112–16. [111] Ibid. 140.

[112] On the Three-Class Voting Law, see Günther Grünthal, 'Das preußische Dreiklassenwahlrecht. Ein Beitrag zur Genesis und Funktion des Wahlrechtsoktrois vom Mai 1849', *Historische Zeitschrift*, 226 (1978), 17–66.

through the promulgation of new press and association laws, measures it was unable to expedite before the dissolution of the chambers. It supported the release of a royal decree on 30 June 1849, which avoided reintroducing censorship and instead encouraged the police to administer fines of 20 to 200 Taler for any form of printed material found to be 'spreading the spirit of rebellion or violating the public peace'. In other words, these were laws designed to curtail radical opposition, of which many Prussians were becoming increasingly tired. Such offences could also result in imprisonment for anywhere between four weeks and two years. Furthermore, the royal decree entailed penalties for persons who 'offend[ed] morality'—yet another appeal to the sympathies of the middle classes.[113]

The petering-out of the 1849 revolutions allowed for an essential period of parliamentary debate to finalize the constitutional draft. Elections were held for a new legislative session opening on 7 August 1849, and voting for the Second Chamber returned a majority of constitutionalists to the right of centre. On the extremes, the far right doubled, and most democrats withdrew from consideration. This new composition allowed Manteuffel to push a strong line of revision in the constitutional debates that would strengthen state powers. As he explained on 25 September 1849: 'The revision of the constitution is . . . about attempting to find what profits the state.'[114] This elision of a particular factional agenda, especially one aligned to the ultraconservatives, meant that the revised constitution maintained many of the broadly popular elements contained in the draft of December 1848. And, notably, it delayed decisions to define aristocratic privilege in a number of areas. Debate on these points would continue throughout the 1850s, but, in the first instance, revisions were completed by 31 January 1850, and, on 6 February 1850, Friedrich Wilhelm IV swore an oath to the final document, thereby putting an end to the constitutional crisis.

Prussia's solution to the demands of constitutionalism was, then, less than ideal for many who had sought the realization of ideological agendas as seen in 1848, but it offered the prospect of further political development without violence, and, on this point, a substantial number of liberal constitutionalists were happy. Certainly, the Prussians avoided the extremes embraced in Austria. There, the constitution was revoked on 31 December 1851 with the New Year's Eve Patent, providing one of the most severe solutions to the constitutional question. But the Prussians were in no way as flexible as some of the smaller German states. For instance, the monarchy in Baden decided against any constitutional changes in the 1850s. Rather Prussia, like many of its neighbours of the Third Germany, chose a middle course. These states remained constitutional but redefined voting laws, implemented varying degrees of gerrymandering at elections, and altered legal arrangements to strengthen their position. This held true for states such as Saxony, Hanover, the two Mecklenburgs, Thuringia, Nassau, and Hesse-Darmstadt.[115]

[113] Ursula E. Koch and Martin Loiperdinger, 'Political Images and Censorship in Germany before 1914', in Robert Justin Goldstein and Andrew M. Nedd (eds), *Political Censorship of the Visual Arts in Nineteenth-Century Europe* (Basingstoke: Palgrave Macmillan, 2015), 130–90, at 144.

[114] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 147.

[115] Thomas Nipperdey, *Germany from Napoleon to Bismarck, 1800–1866*, trans. Daniel Nolan (Dublin: Gill and Macmillan, 1996), 600.

As the constitutional crisis rescinded, the national question—the last of this skein of interweaving revolutionary tensions—took an ever-increasing prominence in political debate. Since the rejection of the imperial crown in April 1849 and throughout the revolution that ensued, Friedrich Wilhelm IV had taken responsibility for finding an alternative solution to the demands for unification—an indication that his actions were based more on a concern to check revolution than on an inability to see the national cause as an important part of post-revolutionary politics.[116] To do so, he called his long-time confidant Joseph Maria von Radowitz to Berlin to advise him.[117]

Unlike Ludwig von Gerlach and other ultraconservatives who still supported a greater German (*grossdeutsch*) solution to unification, Radowitz advocated a Prussian-led unification of Germany, which would involve a small congregation of states loosely linked to a broader congregation, including Austria. This was known as the Prussian Union project. Members of the ministry were willing to consider and support the Union project, as they increasingly saw problems with the ultraconservative pro-Austrian stance. Brandenburg especially became a convert of a *kleindeutsch* unification, as it seemed likely to stabilize the Prussian initiative in German affairs at very little cost, and Manteuffel was willing to entertain the idea, particularly because he, like Brandenburg, saw a 'considerable split' between the two largest German states. As he later wrote:

> It seems to me that the persisting difference between the two states has a more profound cause than mutual insults and sensitivity to insults; there is in my opinion really a considerable split present . . . Prussia wants the organic formation of all or some of the German lands into a genuine whole. Austria notably negates this aim, insofar as it is a question, in the sphere concerned, of a radius capable of expansion and thus touching on the Austrian–German states.[118]

Of course, Ladenberg had always been a supporter of unification, and he gave his full support to the project.

In wider political circles, there was considerable sympathy for Radowitz's proposition. The Prince and Princess of Prussia were supporters of the Union plan, as were the majority of conservatives.[119] Notable figures straddling the centre such as Camphausen and Vincke supported the project, taking up seats in the Erfurt Parliament. Here they showed themselves willing to adopt a pragmatic stance in constitutional discussions to avoid the lengthy and bitter experience of the revolution and, in doing so, ensure the success of the project.[120] They were, furthermore, supported in the Popular Assembly (*Volkshaus*) of the parliament by a robust faction of liberals, the *Bahnhofspartei*, which held 120 seats out of a total of 222.

[116] Hewitson, *Nationalism in Germany*, 47.

[117] On Radowitz, see David E. Barclay, 'Ein deutscher "Tory democrat"? Joseph Maria von Radowitz (1797–1853)', in Kraus (ed.), *Konservative Politiker in Deutschland*, 37–67; Warren B. Morris, Jr, *The Road to Olmütz: The Career of Joseph Maria von Radowitz* (New York: Revisionist Press, 1976); Friedrich Meinecke, *Radowitz und die deutsche Revolution* (Berlin: Mittler, 1913).

[118] Hewitson, *Nationalism in Germany*, 144–5.

[119] Ibid. 145.

[120] Hans-Joachim Behr, *'Recht muß doch Recht bleiben': Das Leben des Freiherrn Georg von Vincke (1811–1875)* (Paderborn: Bonifatius, 2009), 200–2.

But, by the opening of the Erfurt Parliament on 20 March 1850, Manteuffel had developed substantial doubts about the project, believing that it had lost too much support within the German states. Saxony, Hanover, and Baden had pulled out, and by early May the Austrians, reinvigorated by their victory over the revolution in their own lands and equipped with Russian support, began to insist that the current plans should be scrapped in favour of the reinstatement of the old German Confederation. The longer talks persisted, the more the project of a Prussian-dominated union seemed likely to precipitate war with Austria and Russia. As a result, Manteuffel was ready to break with Radowitz by July 1850. He began to orchestrate a prolonged defamation of Radowitz and his Union project in the press, fostering widespread doubts as to its feasibility. By 23 July 1850, he had won over the new War Minister Stockhausen (1791–1861) and he attempted to drum up further support in the ministry in the cabinet meetings of 25 July and 19 August 1850.[121] In autumn, as it became clear that tensions would lead to a dangerous confrontation, Brandenburg finally withdrew his support for the project and allied himself with Manteuffel.

Manteuffel's and Brandenburg's withdrawal of support for the Union project was, however, no turn to ultraconservative principles that unquestioningly supported Austria in German affairs. Rather, both Brandenburg and Manteuffel were putting an end to the Union project out of practical concerns. As Manteuffel argued, it would be a sorry contradiction if the state won ground against the revolution in domestic affairs but was forced to begin a war abroad.[122] Manteuffel was not willing to risk a confrontation in which he predicted some 50,000–60,000 Prussian lives would be lost, and it seemed, with tensions growing in Schleswig-Holstein, such an outcome was likely.[123] As he reiterated in private on 7 November 1850:

> All call for war . . . [but] war is a weighty word. The majority of the current generation do not know what war means. One knows where war begins but not where it ends. Once the torch is ignited, who can put a stop to the flame?[124]

Manteuffel's position was shaped by current calculations but also by Prussia's collective Napoleonic trauma. That is, he wanted to ensure that the state should never again experience 'a year like 1806'.[125] And he was not going to budge. As he put it in the Second Chamber on 3 December 1850:

> I am well aware that the ministry would have a better standing if it advocated war given the mood at this moment in the chambers and perhaps across the country. I place great importance on the government and the chambers being in accord, and I personally value the opinion of these two chambers. However, my conscience tells me that, as things are, we cannot start a war.[126]

[121] Holtz (ed.), *Acta Borussica*, iv. 149, 154–5.

[122] Manteuffel to Friedrich Wilhelm IV, in Günther Grünthal, 'Im Schatten Bismarcks—Der preußische Ministerpräsident Otto Freiherr von Manteuffel (1805–1882)', in Kraus (ed.), *Konservative Politiker in Deutschland*, 111–33, at 122.

[123] Manteuffel in the Second Chamber, 3 December 1850, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 345–6.

[124] Ibid. i. 314. [125] Ibid. [126] Ibid. i. 345–6.

This stance angered Ladenburg, who broke with the ministry over the prospect of negotiations with Austria. Moreover, during what was still a critical situation in November 1850, Count Brandenburg fell ill and suddenly died. Manteuffel assumed temporary control as Minister-President and Foreign Minister, also taking over the role of negotiating a settlement with the Austrians at the town of Olmütz. At the Olmütz Conference of 28–29 November 1850, Prussia abandoned its Union plan and agreed to the resurrection of the German Confederation. Following this, Friedrich Wilhelm IV filled Ladenberg's position with the ultraconservative Karl Otto von Raumer.[127] Raumer—a cousin of the Gerlach brothers—possessed an ardent faith characteristic of the *Kreuzzeitung* circle, but, unlike his cousins, he was a weak politician who would make a number of notable blunders in office. Specifically, he would provoke the ire of Prussian Catholics through a series of decrees aimed at limiting missionary activity in the 1850s.[128] At the same time, Friedrich Wilhelm IV appointed the ultraconservative bureaucrat Ferdinand von Westphalen (1799–1876) to fill the office of Interior Minister. Westphalen is best known as the brother-in-law of Karl Marx—through the latter's marriage to Westphalen's half-sister—but to contemporaries he was a devoted ultraconservative, opposed to any notion of a Prussian-led unification.

With the closure of the Olmütz conference and this ministerial shuffle, the revolution finally came to an end. Vincke was enraged, and called for the removal of the ministry. So too did Friedrich Adolf Riedel, who saw serious problems with the way Manteuffel had conducted the Olmütz agreement. Specifically, he criticized the ministry's failure to consult with the chambers and their lack of regard for constitutionalism more generally.[129] Others such as Maximilian Duncker and Georg Beseler considered resigning, giving the impression that the opposition had been struck an irrecoverable blow. But the interpretation of Olmütz as a marker of ultraconservative reaction against the national demands of liberal revolutionaries was less than clear. The former Minister-Presidents Camphausen and Auerswald, along with Hermann von Beckerath, all tended to want to support government actions rather than protest against them, and, as Mark Hewitson has argued, Friedrich Wilhelm IV believed that national feeling had not been damaged at Olmütz, as the agreement allowed for 'the reconstruction of Germany by the entirety of its states under the united auspices of its two Great Powers'.[130] Latter nineteenth-century historians branded this a moment of humiliation for Prussia, in which the Manteuffel Ministry of State abandoned national unification for ideological reasons, but this assessment overlooks what was to be a powerful new line of thinking in international politics for the Prussians. The Manteuffel

[127] On Ladenberg's resignation, see his correspondence with Friedrich Wilhelm IV over the period 2 November to 19 December 1850, in GStA PK, VI. HA, Nl von Ladenberg, Nr. 18–26.

[128] Barclay, *Frederick William IV*, 224.

[129] *Stenographische Berichte über die Verhandlungen der durch die Allerhöchste Verordnung vom 2. November 1850 einberufenen Kammern. Zweite Kammer. Von der Eröffnungs-Sitzung der beiden vereinigten Kammern am 21. November 1850 bis zur sechsundvierzigsten Sitzung am 21. März 1851* (Berlin: Druck und Verlag der Deckerschen Geheimen Ober-Hofbuchdruckerei, 1851), 45–50, 54–6.

[130] Hewitson, *Nationalism in Germany*, 69–71.

Ministry of State was shaping Prussia's position in the national question in terms of *Realpolitik* rather than any sort of rejection of national debates or refound respect for Austria.

The Manteuffel Ministry of State maintained a realistic stance in foreign policy throughout the 1850s, especially during the later Crimean War (1853–6). In this conflict, Manteuffel preserved a neutral position in international affairs rather than ideologically aligning the state with Russia or Austria. The ultraconservatives championed an alliance with Russia, and the *Wochenblattpartei* argued for Prussia to support Austria, albeit reluctantly. Ultimately, it was in fact Friedrich Wilhelm IV's wavering that resulted in Prussia's neutrality, but that did not negate the fact that his ministry was advocating caution. As Manteuffel put it to Bismarck on 26 June 1855, 'we are being smart'.[131] Within Prussian conservatism, then, there was a significant shift in 1850 and again in 1854–6 towards facing the German question in international affairs with a cool calculation that increasingly meant the adoption of neutrality or a sidelining of Austria. The appointment of Bismarck to the position of Minister-President in 1862 only furthered this line of thinking. He had supported neutrality in the Crimean War and would marginalize Austria permanently in German affairs through the Austro-Prussian War in 1866. Naturally, his actions in winning across the Third Germany to a Prussian-led solution to unification were greatly aided by Austria's vacillating policy in the 1850s and 1860s, but the point here is that there was a distinct continuity from Manteuffel to Bismarck after 1848 in foreign policy decision-making.

THE REACTION, 1851–1854

After Olmütz, the willingness of the Ministry of State to break with the revolution in domestic affairs was clear, and, in the Second Chamber, Manteuffel defined the punctuation as such: 'Yes, it is a turning point in our policy. There should be a decisive break with the revolution!'[132] But, as we have seen so far, being anti-revolution did not necessarily mean adopting a position on the political extremes. Rather, Manteuffel's vision of breaking with the revolution was far more concerned with continuing to consolidate and extend state power. This meant that his priority during the 'Reaction' was to strengthen his own position within the Ministry of State, the standing of the latter in the chambers, and of the state as a whole through a reform of the bureaucracy.

To strengthen his position, Manteuffel looked to control channels of communication with Friedrich Wilhelm IV. This was difficult, but in late 1852 the opportunity arose when Friedrich Wilhelm IV appointed Radowitz as head of the Prussian military education system. Having failed to inform Manteuffel of the appointment, Friedrich Wilhelm IV was confronted by a furious Minister-President, holding his

[131] Manteuffel to Bismarck, 26 June 1855, in *Unter Friedrich Wilhelm IV*, iii. 38–9, at 38.

[132] Manteuffel in the Second Chamber, 8 January 1851, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 383–5, at 384 .

resignation in hand. The King, realizing his mistake, released a Cabinet Order on 8 September 1852 that gave Manteuffel primacy over his ministerial colleagues. It stipulated that cabinet members, except for the War Minister, could no longer go directly to the King but now had to inform Manteuffel in advance of any conversations with the monarch.[133] Additionally, the Minister-President was also then responsible for communicating cabinet reports to his superior.

In practice, however, Manteuffel was never able fully to control the work of his colleagues. He often had to resort to political manoeuvring and devised novel, underhand, tactics to regain control of debate. Nor was he able to silence extra-ministerial sources of advice around the King, such as the *Kreuzzeitungspartei* or newer counsellors such as the Prussian Police President Carl von Hinckeldey, the inspector and later head of political policing Wilhelm Stieber (1818–82), and the school director Carl Wilhelm Saegert (1809–79). As an exasperated Manteuffel wrote in a memorandum in 1856:

> The King of Prussia must have the right to choose his servants and to dismiss them. However, it violates the traditional organization of the Prussian system when he has, besides his official cabinet, still another; when he is advised not only by his ministers [but also by others] and lets his orders be carried out by them. The counsellors, adjuncts, and secretaries can only be the King's most intimate servants, never his counsel.[134]

Manteuffel's inability to use the Cabinet Order to create a powerful executive was largely due to Friedrich Wilhelm IV's monarchical politics. As David Barcklay has explained, Friedrich Wilhelm IV was willing to engage in a routine of regular—usually monthly—meetings with Manteuffel and the ministry, but he treated them as 'servants' rather than representatives of a constitutional order. He happily supplemented their advice with that of others, and he refused to be aligned with any one faction at the apex of the Prussian state, ministerial or otherwise, making Prussian politics particularly unstable in the 1850s.[135] In the 1860s, however, this would change dramatically as Bismarck took full advantage of the Cabinet Order of 1852 and managed to achieve what Manteuffel had been unable to do. As he would later write, the Cabinet Order of 1852 was decisive for his role as Minister-President. It 'alone gave him the authority which made it possible to exercise that level of responsibility for the collective policies of the cabinet'.[136]

Beyond the position of Minister-President, Manteuffel sought to strengthen the Ministry of State over the chambers, subordinating the latter to an overarching structure of expert guidance. In late 1851, he suggested reviving the Council of State (*Staatsrat*) of 1817—an institution that he believed to be relatively popular, politically neutral, and devoid of the party interests—to oversee this process.[137] According to him, the Council of State would bring a range of experts together to redirect those shocks that the parliamentary system could potentially unleash on

[133] Holtz, 'Das preussische Staatsministerium', 96.
[134] Gillis, *The Prussian Bureaucracy in Crisis*, 147.
[135] Barclay, *Fredrick William IV*, 236.
[136] Steinberg, *Bismarck*, 449.
[137] Manteuffel to Friedrich Wilhelm IV, February 1852, in GStA PK, BPH, Rep. 50 Nl Friedrich Wilhelm IV, J, Nr. 797, Bl. 93–102.

monarchical order. Friedrich Wilhelm IV was willing to agree to such a plan and, in 1852, appointed Manteuffel as head of the Council of State. But when this political body was formally reconstituted two years later, it neither developed into the institution that Manteuffel envisioned, nor did it garner a significant place in the political landscape. Rather, attempts to stabilize the parliamentary system focused on the *Landtag*, with Friedrich Wilhelm IV wishing to reorganize the First Chamber.[138]

The King's reactionary desire derived from a conviction that his political position was unsure—a paranoia fed by the sensationalist security reports penned by Hinckeldey, Stieber, and Saegert. Furthermore, Louis Napoleon's successful *coup d'état* in France on 2 December 1851 and later assumption of the title of Emperor in November 1852 increased his general nervousness by reviving the spectre of 'Bonapartism' on the continent. For these reasons, Friedrich Wilhelm IV believed that a reorganization of the First Chamber into a 'House of Lords', as in Britain, would better preserve the Prussian monarchy against such internal and external threats, particularly if it increased his power of appointment. A proposal was forthcoming—the so-called Heffter Proposition—which would transform the current First Chamber of elected property owners into a house of appointed members, largely at the discretion of Friedrich Wilhelm IV.

The ultraconservatives immediately opposed the Heffter Proposition on the basis that it held out the potential for replacing landed *Junker* with members appointed by merit.[139] But others were less concerned. Conservatives aligned with the politics of Bethmann-Hollweg supported the proposition, as did members of the Ministry of State. Manteuffel, Heydt, and the new Justice Minister Ludwig Simons (1803–70) could appreciate Friedrich Wilhelm IV's concerns during the counter-revolution, and for the first few years afterwards, as they too believed that the threat of insurrection remained real. For example, on 12 May 1850 Manteuffel received a private correspondence from the Prussian ambassador in Paris, Count Hatzfeld (1813–59), to the effect that political refugees in London were busying themselves with the organization of secret societies on the continent and the assassination of leading personalities.[140] 'It appears unquestionable', wrote Manteuffel on the basis of this information, 'that in Paris . . . a conflict between the socialist party and the party of order will occur . . . [and] that the *Umsturzpartei* will also bring their flags to Prussia'.[141] Following this, new reports alerted Manteuffel on 17 March 1850 to the likelihood of an assassination attempt.[142] These rumours of assassination culminated on 22 May 1850 with a failed attempt on the King's life. Genuinely shaken by the assassination attempt, Manteuffel spoke of the likelihood of further

[138] Barclay, *Fredrick William IV*, 264. For an excellent account of the conservative struggles to revise the constitution, see Hans-Christof Kraus, 'Konstitutionalismus wider Willen: Versuche einer Abschaffung oder Totalrevision der preußischen Verfassung während der Reaktionsära (1850–1857)', *Forschungen zur Brandenburgischen und Preußischen Geschichte*, NS 5 (1995), 157–240.

[139] Barclay, *Fredrick William IV*, 247.

[140] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 219.

[141] Manteuffel to *Oberpräsident* Eichman, 18 May 1850, in ibid. i. 219–20, at 219.

[142] Ibid. i. 219–20.

revolution in the Second Chamber on 31 March 1851 and 7 February 1852. But this line of thinking did not undermine their support for a more moderate reform of the First Chamber.

Consensus over the Heffter Proposition did not, however, last long, with the course of revision taking a dramatic turn in late 1852. The new Interior Minister Ferdinand von Westphalen became involved in Friedrich Wilhelm IV's project to restructure the First Chamber, seeking to inflect it with more particularist, ultraconservative elements. Westphalen was one of the few conservatives who desired a total revision of the constitution by abolishing the first and promulgating a far more reactionary document. On 20 December 1852, Westphalen began talking about an aggressive overhaul of the constitutional system, something Manteuffel's break with the revolution in 1851 had failed to bring about.[143] Westphalen's enthusiasm enabled ultraconservatives such as Stahl to assert their vision for a reorganization of the First Chamber that would see Prussia's monarch appoint representatives largely from landed property owners. The reorganization of the First Chamber into the House of Lords (*Herrenhaus*) in 1854 saw the removal of all elected members from this body. Instead, peers were henceforth appointed by the crown according to a number of categories, including one for representatives of 'old and established landed property'—a concession to the *Junker*. Furthermore, these peers would be complemented by hereditary members, including representatives from the royal family. In short, the resulting restructuring of the First Chamber preserved the King's wish for greater powers of appointment and reasserted aristocratic advantages in the parliamentary process.[144] Moreover, it strengthened the ultraconservative fraction around Stahl for the rest of the decade. As Hans von Kleist wrote in 1861 after Stahl's death: 'One can truly say that Stahl was the House of Lords. He gave it intellectual significance and thus weight in its decisions in contrast to those of the other House, the Government and in the country at large.'[145]

The creation of the House of Lords was the last genuinely reactionary measure that Manteuffel was willing to support in the 1850s. Rather, he had by this point started to enact a reform of the bureaucracy to free the Ministry of State from relying on ultraconservatives in the parliament. For the 1852 general election, he encouraged officials to support candidates who were loyal to the government rather than conservativism per se, and instructed them 'above all else to guard against division and self-interested objectives within the conservative party'.[146] Officials were, furthermore, urged to stand in the election as part of a new governmental party.

Results were disappointing in the first instance, with about 121 loyal officials elected to the Second Chamber, but by 1855 this number had risen to approximately 150—a resounding success for the Ministry of State.[147] Moreover, Manteuffel saw to it that the disciplinary decrees of 1848 were deployed to create an effective

[143] 'Pro Memoria', 20 May 1852, in GStA PK, VI. HA, Nl Ferdinand von Westphalen, Nr. 4, Bl. 15–26, at Bl. 16–17.

[144] Barclay, *Fredrick William IV*, 249.

[145] Hans von Kleist to Ludwig von Gerlach on 10 August 1861, quoted in Steinberg, *Bismarck*, 81.

[146] Gillis, *The Prussian Bureaucracy in Crisis*, 163.

[147] Kraus (ed.), *Ernst Ludwig von Gerlach*, ii. 641.

government across Prussia. While ultraconservatives called for a reactionary purge, only a small number of cases were launched against administrative officials openly hostile to government policies. Out of the 138 cases tried in 1852, only 14 involved officials accused of some form of political activity. Nine officials were tried for holding political positions dangerous to the government including the teacher Kühl, who was tried for insulting the monarch (*Majestätsbeleidigung*), the county court secretary Stiefel, who was tried for his actions at a public assembly, and four teachers who were tried for insurrection or involvement in the democratic party in 1848.[148] In 1853, the number of cases against hostile officials fell to two, and in 1854 just one official was tried on political grounds.[149] In 1855, 1856, and 1857, there were no cases against officials for political hostility.[150] Just how far Manteuffel and his colleagues were from exploiting the disciplinary laws for the purposes of a reactionary bureaucratic crackdown becomes clear when we consult the records of the highest disciplinary organ for low-level officials, the *Disziplinarhof* in Berlin, over the period 1852–8 as a whole.[151] In 1852, the largest group of officials brought to trial—51 out of a total of 138 cases—were those accused of being incompetent or having repeatedly damaged the reputation of their office. A further nineteen officials were accused of some form of illegal activity, including the county court messenger Stumpf and the forester Falcke, who were tried for stealing wood (*Holzdiebstahl*) and making profit from its sale respectively. In a similar vein, one county secretary was tried for accepting gifts in office.

In short: the disciplinary laws were used primarily to clear the bureaucracy of incompetent officials—a fact borne out in studies of even the most politically problematic provinces. For example, in the Rhine Province, the application of the disciplinary laws was focused on ridding the bureaucracy of incompetence and moral degeneracy rather than achieving political orthodoxy. In Aachen, seventeen disciplinary cases were brought against state employees in 1849, of which only one official was accused of having broken his 'duty of loyalty' during the revolution. And, after 1852, cases in Aachen continued to be brought predominantly on the grounds of negligence or petty corruption.[152] Back in Berlin, Friedrich Wilhelm IV complained that the disciplinary laws were underused and attempted to extend criminal law to include administrative offences, but there was no successful change to legislation or buck to the trend in the 1850s.[153] In addition, the rate of prosecutions before the *Disziplinarhof* on political or non-political grounds

[148] 'General-Bericht über den Disziplinarhof für nicht richterliche Beamte für das Jahr 1852', in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 661, unpaginated.

[149] Ibid.

[150] 'General-Bericht über den Disziplinarhof für nicht richterliche Beamte für das Jahr 1855, 1856, and 1857', in ibid., unpaginated.

[151] 'General-Bericht über den Disziplinarhof für nicht richterliche Beamte für das Jahr 1852, 1853, 1854, 1855, 1856, 1857, and 1858', in ibid, unpaginated.

[152] Simon Hyde, 'Hans Hugo von Kleist Retzow and the Administration of the Rhine Province during the "Reaction" in Prussia, 1851–1858' (D.Phil., University of Oxford, 1993), 221.

[153] Friedrich Wilhelm IV in the *Kronrat*, 20 September 1854, in Holtz (ed.), *Acta Borussica*, iv. 336–7; Bärbel Holtz, 'Einleitung', in Holtz (ed.), *Acta Borussica*, iv. 1–45, at 8 .

did not dramatically change with the onset of the 'New Era' or with Bismarck's appointment in 1862.[154]

The total number of cases brought before the *Disziplinarhof* was ultimately kept low in the 1850s because Manteuffel believed that the most effective approach to controlling the political activities of officials was a fastidious handling of recruitment. In April 1850 he wrote to the *Regierungspräsident* in Düsseldorf that, where possible, recourse to the disciplinary laws should be resisted in favour of careful hiring practices:

> The more value the government must place in its officials being men on whose reliability in political affairs it can build with confidence, the harder it becomes in many cases either to dismiss an official undeserving of such confidence, or to avoid the disadvantages the government might experience through the retention of such a man, so it has to become an ever more urgent duty to proceed with the greatest possible care in the selection of officials.[155]

According to Manteuffel, it was better to prevent open political hostility among the bureaucracy through the careful supervision of appointments and promotions rather than a dramatic dismissal of personal. Heydt too supported this policy. When he received pressure from Friedrich Wilhelm IV to purge the postal system of political opposition, he stressed that the more effective policy was to focus on hiring 'trustworthy' workers.[156] And even Westphalen agreed that an emphasis on appointments was the preferred course of action in personnel matters when he entered the Interior Ministry.[157]

CONCLUSION

On 7 July 1853, Friedrich Wilhelm IV complained to his ministers that the 'mud of 1848' continued to encrust the state.[158] The Prussian constitution—despite numerous rounds of revision—bound him too tightly, and the current legislation before the parliament concerning the reorganization of Prussia's counties suggested that his constitutional bonds were not going to get any looser.[159] Debates in parliament often failed to unfold according to his wishes, he continued, especially with respect to the budget. Outside the chambers, furthermore, the explosion of newspapers and public opinions ushered in by the revolution had not been effectively contained or displaced by a strong conservative press. Right-wing papers across the provinces were going bankrupt, and the Central Office for Press Affairs was creating serious tensions among leading conservatives.[160] If that were not enough,

[154] Hyde, 'Hans Hugo von Kleist Retzow', 222. [155] Ibid. 233.

[156] Heydt's Votum, 7 February 1849, in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 2322, Bl. 42–6, at Bl. 46.

[157] Westphalen, circular, 29 October 1851, in Hyde, 'Hans Hugo von Kleist Retzow', 233.

[158] Meeting of the Prussian *Kronrat*, 7 July 1853, in Holtz (ed.), *Acta Borussica*, iv. 292–4, at 293.

[159] Ibid.

[160] The tension centred on the actions of Rhyno Quehl, Head of the Central Office for Press Affairs (*Leiter der Zentralstelle für Pressangelegenheiten*) (1850–3), and the support he received from Manteuffel.

Friedrich Wilhelm IV argued that he had run into difficulty over his plan to increase the powers of the Berlin Police President. In short, it seemed that the Ministry of State was not exacting the reaction he expected. Yet, as the minutes of the Privy Council (*Kronrat*) reveal, Manteuffel could not see 'the hitherto development of the constitutional arrangement . . . in such a distressful light'. Nor was he so pessimistic about the 'the result of the last session of the chambers'. Like Manteuffel, the Trade Minister August von der Heydt was 'of the opinion that the power and standing of the government had increased unrecognizably and much in the administration had improved itself'.[161] The Finance Minister Karl von Bodelschwingh (1800–1873) agreed, and, although the Justice Minister Ludwig Simons did not voice his opinion on this occasion, his actions made clear that he stood on the side of Manteuffel and Heydt. Only the Interior Minister Ferdinand von Westphalen sympathized with Friedrich Wilhelm IV.

The difference of opinion arose because Brandenburg and Manteuffel had valued a more realist form of conservative politics in the years after 1848 that focused above all on strengthening the state. This included, as Brandenburg recognised, the need to bring Prussia into the constitutional age. Manteuffel soon came to this conclusion, as did most conservatives. He was no fan of constitutions and believed that the document of 1850 needed revising, but not in the particularist ways advocated by the ultraconservatives. Rather Manteuffel's ideal form of revision was to revive the old Council of State. This institution never garnered the place Manteuffel hoped it would on the political landscape, and, instead, he was reliant on the bureaucracy to support his agendas from within the *Landtag*. Here he was successful in creating a bureaucratic faction that enabled him to decrease his reliance on either extreme in political debate and policy formation. And, beyond the *Landtag*, Manteuffel adopted a more flexible approach to personnel to bolster reliability. Active political opposition was not tolerated among the bureaucracy after 1849, but there was no political purge. Rather, disciplinary laws were used to rid the bureaucracy of incompetence.

Manteuffel insisted that factions follow the government's agenda and not the other way around in the 1850s. This, of course, proved to be fundamentally fractious and only encouraged the development of party structures. In 1854, conservatives could be heard complaining that it was only the emergency situation that had held them together in the years after 1848.[162] By 1855, the ultraconservatives had begun to seek new directions, furious with Manteuffel's expectations of obedience to a government line and the dominance of a government party in the Prussian parliament.[163] But this was to little avail. Rather, Manteuffel was afforded the opportunity to implement an important series of state-building activities that encompassed a broader range of interests than merely those of the ultraconservatives. And it is to these activities that we turn in the following chapters.

[161] Meeting of the Prussian *Kronrat*, 7 July 1853, in Holtz (ed.), *Acta Borussica*, iv. 293.
[162] Kraus (ed.), *Ernst Ludwig von Gerlach*, ii. 558–9. [163] Ibid. ii. 698.

2

Bureaucratic Geographies of the State

The revolutionary experience brought to the fore ministers convinced of the need to reform the Prussian state. The time had come, Brandenburg argued, for Prussia to enter the constitutional age. But how was this to be achieved? On paper the answer was simple: through the drafting and confirmation of a constitutional document. But, in practice, the situation was more complex. For one thing, it meant the Ministry of State participating in representative life alongside those called to Berlin to take up seats in the *Landtag*. And, across the provinces, it meant the beginnings of electoral campaigns, in which Manteuffel and Westphalen sought to promote officials as attractive candidates.

Constitutionalism and participation in representative institutions were important lines of reform, but, for Manteuffel, his vision of change also included an ambitious extension of administrative structures. In his opinion, the advantage of a constitution was that it confirmed officials rather than older feudal intermediaries as the face of the state. As he put it: 'The Prussian state . . . is essentially a bureaucratic and military system.'[1] For Manteuffel, therefore, a major task of the 1850s was the expansion of legal structures, institutions, and officials uniformly across the provinces. Moreover, within this programme of enlargement, he advocated officials assuming a range of new activities on behalf of the monarchy. As Manteufel wrote to Leopold von Gerlach on 21 August 1852:

> The old feudal society was organized primarily for warlike purposes, for the old feudal states had originated in conquest, whereas today the pursuits of peace predominate and the interests of civil life are in the forefront, i.e., agriculture, industry, commerce, and the arts and sciences. It thus follows as a logical consequence that the princes must concern themselves in the most important fields of activity of civil society and wherever possible place themselves at their centre.[2]

This chapter explores the nature of the Prussian state on the eve of 1848 and the administrative challenges it posed to Manteuffel's programme of expansion and development. This includes an overview of Prussia's territories and administrative structures. Within this bureaucratic geography, the Prussian Central Statistical

[1] Günther Grünthal, *Parlamentarismus in Preussen 1848/49–1857/58: Preussischer Konstitutionalismus-Parlament und Regierung in der Reaktionsära* (Düsseldorf: Droste, 1982), 216–17. John R. Gillis, *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971), 132.

[2] Theodore S. Hamerow, *Restoration, Revolution, Reaction: Economics and Politics in Germany, 1815–1871* (Princeton: Princeton University Press, 1958), 237. For the full letter, see Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901), ii. 240–2.

Office comes to the fore as an institution that would be of great importance to state-building in the post-revolutionary decade. The chapter examines the activities undertaken by the director of this office and the bureaucrats who worked with him. Part of this includes showing how, as officials reached into civil society in the 1850s, they came to rely on an emergent body of academic and critical writing on issues of governance.[3] It also establishes their role in facilitating an exchange of government materials with other states in the 1850s. The Prussian Ministry of State would come to rely on many of these statistical materials in exacting reforms, as will be indicated in the chapters that follow.

PRUSSIA ON THE EVE OF 1848

On the eve of 1848, the Kingdom of Prussia was one of Europe's most powerful states. It was the fifth largest in terms of population, with 16,112,938 inhabitants.[4] This was a significant step behind the populations of Russia, Austria, France, or Great Britain, but, as Bernard Hebeler put it in his report read before the Statistical Society of London in November 1846, it was nevertheless positioned 'in the scale of European empires which proudly declares its great importance'.[5] Certainly, within the German states, Prussia occupied an influential position. This was clear to see in the federal structures that had come to replace the Holy Roman Empire. Along with Austria, it was one of the most powerful members of the German Confederation—that loose political alliance created in 1815. Austria dominated Confederal institutions and attempts to generate a united foreign policy for member states, but Prussia's importance to this body was unquestionable. For contemporaries, this was especially the case considering its significant contributions to the Confederal Army. In addition, Prussia was the dominant state behind the German Customs Union or *Zollverein*—an institution compatible with the German Confederation until its political importance shifted after the 1848 revolutions.[6]

Beneath the politics of the federal sphere, Prussia's power and territorial core were rooted in the uninspiring grey moors of Brandenburg. Variously described, albeit rarely with enthusiasm, this flat, monotonous country lacked many of the features that attracted the attention of travellers. It was, as Ernst Dronke described it in 1846, 'an ocean of sand in whose middle [Berlin] lies'.[7] But here, the Hohenzollern dynasty built up its territory and standing from the fifteenth century onwards. Territorial additions came variously through marriage, inheritance, or war, and, most

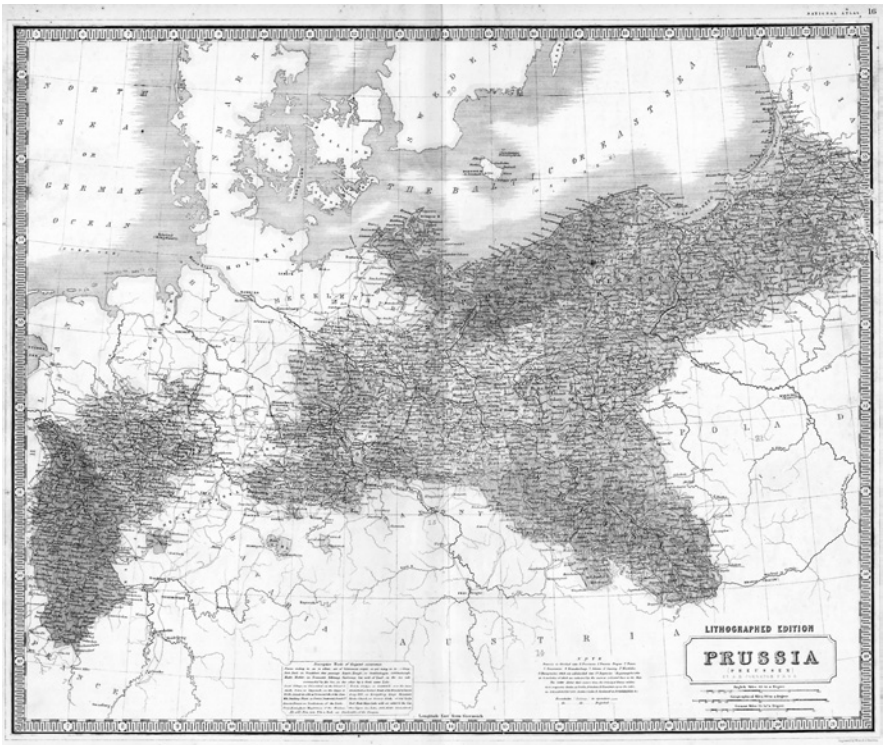
[3] On the analysists and critics of society in the 1850s, see Andrew Lees, *Revolution and Reflection: Intellectual Challenge in Germany during the 1850s* (The Hague: Martinus Nijhoff, 1974), 24–9.

[4] Note these statistics are for the year 1846. See Karl Friedrich Wilhelm Dieterici, *Die Bevölkerung des Preußischen Staats nach der amtlichen Aufnahme des Jahres 1846* (Berlin: Nicolai, 1848), 4.

[5] Bernard Hebeler, 'Statistics of Prussia', *Journal of the Statistical Society of London*, 10 (1847), 154–86, at 154.

[6] On the role of the *Zollverein* in German political culture, see Abigail Green, 'Representing Germany? The Zollverein at the World Exhibitions, 1851–1862', *Journal of Modern History*, 75 (2003), 836–63.

[7] Ernst Dronke, *Berlin*, 2 vols (Frankfurt am Main: Literarische Anstalt, 1846), i. 1.



Map 2.1. Prussia, 1849. *(Courtesy of The Barry Lawrence Ruderman Map Collection, David Rumsey Map Center, Stanford Libraries)*

importantly for our story, annexations at the end of the Napoleonic Wars resulted in a significant transformation of state geography. At the Congress of Vienna, the European powers confirmed Prussia's acquisition of what would become known as the Rhine Province, Westphalia, and the Province of Saxony. The result was that the Prussian state encompassed 5,080.48 Prussian geographical square miles or the equivalent of nearly 110,000 English square miles over eight provinces by 1843 (Map 2.1).[8]

Expansion in 1815 meant that the state fell into two main blocks. Directly neighbouring the Province of Brandenburg to the east was the Province of Saxony, and to the west and south-west were the Provinces of Posen and Silesia. Running along the edge of the Baltic Sea to the north-west were the Provinces of Pomerania and Prussia. These six eastern provinces were known for their cold, hard winters and large estates in the region east of the Elbe. Here, agriculture was the mainstay of production, but there were also important centres of linen-manufacturing in Silesia. The second part of the state was located further afield to the west, composed of

[8] Hebeler, 'Statistics of Prussia', 154.

Westphalia and the Rhine Province. The western provinces were known for their lively commercial life and large Roman Catholic populations in an otherwise Protestant-dominated state (apart from the Province of Posen). For example, in 1843 there were 560,863 Roman Catholics per one million persons in Westphalia, 752,203 in the Rhine Province, and 634,185 in Posen, whereas Roman Catholics were a minority in all other provinces. In Posen, one could also find the highest concentration of Jews in the state, but this was well below the two major confessions at 61,701.[9]

The Ministry of State in Berlin attempted to overcome Prussia's lack of geographical integrity by relying on provincial governors (*Oberpräsidenten*), who were appointed in each of the eight provinces to represent central state interests in local affairs. Under the *Oberpräsident*, Prussia's provinces were divided further into a total of twenty-six districts (*Regierungsbezirke*), and *Regierungsbezirke* into any number from four to twenty-two counties (*Kreise*). Each county was headed by a *Landrat*, who was responsible for overseeing rural affairs and any forms of urban self-government in their geographical remit. State and local administrative officials in a province also worked across from a provincial diet—a very narrow avenue of representative government established in 1823 and marked by corporate-based systems of election and organization.[10]

In carrying out their work, officials faced markedly different local conditions owing to uneven population density. Most Prussians lived in the countryside—about two and a half times the number living in towns or cities on the eve of the 1848–9 revolutions.[11] Urban densities were highest in the western provinces, but also noticeably pronounced in Silesia. And, in these regions, urban growth was among the highest in the state in cities such as Koblenz, Krefeld, Cologne, and Barmen.[12] By way of contrast, Pomerania and Prussia were the least densely populated provinces. In these regions, there was noticeable commercial stagnation, which meant some of the slowest-growing cities were located here, including Königsberg, Elbing, and Stralsund. Königsberg was a case in point. This once bustling port did not experience a recovery after the Napoleonic Wars, suffering especially from the crippling effects of the Continental System. Commercial atrophy was exacerbated by agrarian crisis in the 1820s and later by competition from growing industrial centres in Europe, meaning that seaborne commerce did not reach its pre-1806 levels until the 1850s, and population growth in the city was the third lowest of all Prussian towns over 15,000 persons in the years between 1825 and 1843.[13]

In addition to the variations of population, there was a multiplicity of legal regimes that stretched across Prussian territory in the years before 1848. This was particularly the case in the countryside. Legislation governing agricultural reform

[9] Karl Friedrich Wilhelm Dieterici, *Die statistischen Tabellen des Preussischen Staats nach der amtlichen Aufnahme des Jahres 1843* (Berlin: Nicolai, 1845), 40.

[10] Christopher Clark, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006), 340.

[11] In 1843, 11,208,352 Prussians lived in rural areas and 4,263,413 in towns. Hebeler, 'Statistics of Prussia', 158. See also the statistics in Dieterici, *Die Bevölkerung des Preußischen Staats*.

[12] Dieterici, *Die statistischen Tabellen*, 32.

[13] William J. Orr, Jr, 'East Prussia and the Revolution of 1848', *Central European History*, 13 (1980), 303–31, at 307; Dieterici, *Die statistischen Tabellen*, 32.

promulgated in 1807 sought to clarify property ownership and held out hope of an end to serfdom, but its details were limited. An ordinance of 14 February 1808, the Regulation Edit of 1811, and Declaration of 1816 all helped to clarify property ownership and the legal rights of rural workers, but this was still insufficient to bring about consistent verdicts in disputes or widespread emancipation before 1848. In urban areas, the same sense of legal uncertainty existed. Stein had sought to introduce a municipal ordinance across the state during the Reform Era, but this only resulted in a partial reorganization of Prussia's diminished territories. The provinces added after 1815 possessed their own municipal codes, meaning that there were six codes for urban communities on the eve of 1848, and three for rural communities. But even more unsettling was the fact that the majority of Prussia's smaller villages and towns were still without local government altogether when the revolutions broke out.

In other areas of administration, the lack of uniformity was equally glaring. Tax rates varied disproportionately across the provinces, so that there were 144 different types of property tax before 1848, with some provinces incurring vastly unequal tariffs. In criminal law, officials had to navigate four different systems after the Congress of Vienna. Most Prussians fell under the jurisdiction of the Prussian General Law Code (*Allgemeines Landrecht*) of 1794, but this had serious shortcomings. So too did the General Court Ordinance (*Allgemeine Gerichtsordnung*) of 1793, which regulated trial procedure. As a result, officials in the Ministry of Justice engaged in decades of reform work during the *Vormärz* but with no result by 1848.

These various patterns of population density and legal uncertainty contributed to social instability in the 1830s and 1840s. In some agricultural regions, rural workers were never far from misery. This excluded the Rhine Province and Silesia, where cottage industries helped to supplement peasant incomes in times of economic downturn. But it applied to many peasants in the Province of Prussia.[14] By the 1840s, hunger riots were not uncommon in Prussia, and in 1845–7 harvest failures would exacerbate peasant difficulties in purchasing basic foodstuffs. In Prussia's towns and cities, there were points of tension too. Artisans were suffering from progressive impoverishment and, with that, a threat to their social standing. A number of cities in the eastern provinces also saw a radicalization of their urban elites in the 1840s. In Breslau, Magdeburg, and Königsberg there was a proliferation of new political associations, chiming with wider spheres of politicization of popular culture, especially the politicization of newspapers.[15] Festivals and the carnival of the Rhine Province were also important spaces for the development of political opinion and dissemination of views on politics in the years before 1848.[16]

With growing discontent, reform movements came to the fore in Prussia's provincial diets on the eve of the revolutions. Across the diets, representatives chided the central authorities for their lack of engagement with constitutionalism. For example,

[14] Orr, 'East Prussia and the Revolution of 1848', 306–7. [15] Clark, *Iron Kingdom*, 443.

[16] James M. Brophy, 'Carnival and Citizenship: The Politics of Carnival Culture in the Prussian Rhineland, 1823–1848', *Journal of Social History*, 30 (1997), 873–904, at 890. See also James M. Brophy, *Popular Culture and the Public Sphere in the Rhineland, 1800–1850* (Cambridge: Cambridge University Press, 2007).

in the Prussian provincial diet between 1841 and 1845, the liberal nobility and an emboldened band of democrats from Königsberg pressed for a constitution, national estates, increased representation of commercial interests, a reform of local government, and religious toleration.[17] In addition, virtually all diets supported calls for a free press. Furthermore, the Rhenish provincial diet registered its opposition to the nature of criminal law codification taking place in the offices of the central administration, indicating yet another centre of expanding liberal dissent.[18]

THE REFORM IMPETUS

With Prussia's entry into the constitutional age, Manteuffel wanted to see this administrative and legal landscape undergo important changes, especially better to manage social tensions. To do so, he drew upon a rich storehouse of reformist thinking, located, in the first instance, in cameralist thought. In Prussia, there was a strong cameralist tradition of kingly rule dating back to the seventeenth century. Cameralism emphasized the creation of public wealth and social welfare provisions, and gave rise to important state activities up until the 1820s. It also fostered the development of the academic discipline of *Staatswissenschaft*, a practical political science for the training of civil servants.[19]

State institutions steeped in the ideas of *Staatswissenschaft* provided fertile ground for reform in the 1850s, as contemporaries observed, especially if *Staatswissenschaft* was extended to encompass social considerations. This is exactly what the legal scholar and commentator on mid-century socialism Lorenz von Stein argued. As Diana Siclovan puts it, Stein believed that,

> given the social developments of the early nineteenth century, this discipline [*Staatswissenschaft*] should now be extended to the social. Through the academic study of social tensions and socialist demands, German *Wissenschaft* could develop new strategies for public policy. A state-led response to social problems could, according to Stein, prevent a descent into violent revolution as in France.[20]

Others agreed. Robert von Mohl and Johannes Fallati, as well as the wider circle of scholars associated with the *Zeitschrift für die gesammte Staatswissenschaft* (1844), argued that 'state science' should be extended to social topics.[21] In the 1850s, Wilhelm Heinrich Riehl added further impetus to ideas about social research and social conflict. So too did Johann Karl Rodbertus.[22] This enthusiasm was not without effect for Manteuffel. He was deeply influenced by Stein's ideas and the broader

[17] Orr, 'East Prussia and the Revolution of 1848', 309–10. [18] Clark, *Iron Kingdom*, 443.

[19] Keith Tribe, *Strategies of Economic Order: German Economic Discourse, 1750–1950* (Cambridge: Cambridge University Press, 1995), 8–31.

[20] Diana Siclovan, '1848 and German Socialism', in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018), 254–75, at 258.

[21] Robert von Mohl, Johannes Fallati, et al., 'Vorwort', *Zeitschrift für die gesammte Staatswissenschaft*, 1 (1844), 3–6.

[22] Lees, *Revolution and Reflection*, 24–9.

interest in social tensions.[23] Several notable bureaucrats at lower levels of government also subscribed to this reform impetus. In particular, those in or associated with the Prussian Central Statistical Office became an important node for collecting and disseminating such knowledge. The numbers produced by this institution were invaluable to state ministries, and, as we will see, they were complemented in the 1850s by a circulation of statistics and legislation from abroad. Many ministers and senior officials would rely on this information to help the Prussian monarchy reform structures and administrative practices to better manage social tensions.

THE PRUSSIAN STATISTICAL OFFICE

The Prussian Central Statistical Office and Meteorological Institute (*Statistisches Bureau und das Meteorologische Institut*) was one of the most important and well-established institutions for disseminating expertise at mid-century. Beginning in the eighteenth century, Prussian officials increasingly generated a wealth of statistical observations (*Statistik*). This involved compiling descriptive tables that compared the size and natural resources of the Prussian lands with their European counterparts, as well as their relative military, economic, and intellectual strengths.[24] Yet the practice of *Statistik* increasingly came under criticism in the eighteenth century for concerning itself with historical information. The encyclopedic nature of statistical tables meant that it was difficult to keep data up to date, and the lack of analyses that accompanied their production resulted in few statistical tables ever being used to improve administrative practices.[25] In response, Friedrich Wilhelm III—at the urging of the Prussian reformers—approved the creation of a central office in Prussia on 28 May 1805 to collect more specific statistics that could be 'put to immediate use by the highest administrators in the land'.[26]

The resulting Central Statistical Office was a relatively modest enterprise. It did not grow substantially in the first half of the nineteenth century, which meant that, when the Director Carl Friedrich Wilhelm Dieterici (1792–1859) officially assumed his position in 1844, the office was still small. Throughout the 1850s, approximately five people worked directly under Dieterici, with an additional person working in the Meteorological Office. A further forty observers worked outside the Meteorological Office collecting data, and two people were responsible for the creation of the state

[23] Günther Grünthal, 'Im Schatten Bismarcks—Der preußische Ministerpräsident Otto Freiherr von Manteuffel (1805–1882)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 111–33, at 125.

[24] Sybilla Nikolow, 'A. F. W. Crome's Measurements of the "Strength of the State": Statistical Representations in Central Europe around 1800', *History of Political Economy*, 33 (2001), 23–56, at 28.

[25] Johan van der Zande, 'Statistik and History in the German Enlightenment', *Journal of the History of Ideas*, 71 (2010), 411–32.

[26] Interior Minister Dohna quoting Johann Hoffmann to Altenstein, in Ian Hacking, *The Taming of Chance* (Cambridge: Cambridge University Press, 1990).

calendar.[27] The office collected information on the number of births, deaths, and marriages in Prussia. It also helped the *Zollverein* to collect triennial enumerations of population from 1834 on, as well as statistics on shipping, and the production of mines, salt, and smelting works.[28] What is more, it was not alone. The Prussian office was part of a large-scale institutionalization of numbers that spread across the German states in the years before 1848. Statistical bureaus were established in Bavaria in 1808, Württemburg in 1820, and Austria in 1829. An officially subsidized association also carried out statistical activity in Saxony from 1831 until 1850, when it was officially taken over by the state. A wave of statistical offices were further founded in the German states in the wake of 1848–9, including: Hanover (1848), Saxony (1850), Bremen (1850), Mecklenburg-Schwerin (1851), Baden (1852), Brunswick (1854), Oldenburg (1855), Hesse (1861), Thuringia (1864), Hamburg (1866), Anhalt (1866), and Lübeck (1871).[29]

Although the Prussian Central Statistical Office was much older than the new offices founded in the 1850s, it too underwent an important transformation at mid-century in response to Dieterici's urgings. Dieterici welcomed the outbreak of revolution in 1848 and, after the promulgation of the Prussian constitution, entered the political arena as a delegate to the First Chamber of the *Landtag*. At the same time, he rushed to republish the results of the 1846 Prussian census to better inform debates about the drafting of a constitution. The chief results of the census had already been published in the *Allgemeine Preußische Zeitung* and other papers before the revolution, but he took it upon himself to see that the results were once again made available in print—in a pamphlet entitled *Die Bevölkerung des Preußischen Staats nach der amtlichen Aufnahme des Jahres 1846*.[30] Dieterici believed that statistics would be needed for a whole range of ensuing debates, particularly those concerning the working classes. Their demands, he reasoned, would have to be considered in the Frankfurt National Assembly and in the Prussian National Assembly—but what knowledge existed about current wages? How many people were working in what types of jobs? In which ways were they being paid? And how much wealth was there in private spheres beyond the penetration of the state's gaze?[31] Only statistics could, in Dieterici's opinion, provide these answers.[32] As he

[27] See the relevant sections in the *Königlich Preußischer Staats-Kalander* (Berlin: Decker, 1851–9).

[28] Eugene Würzburger, 'The History and Development of Official Statistics in the German Empire', in John Koren (ed.), *The History of Statistics: Their Development and Progress in Many Countries* (New York: Macmillan, 1918), 333–62, at 335.

[29] Hacking, *The Taming of Chance*, 31–3; Theodore M. Porter, 'Lawless Society: Social Science and the Reinterpretation of Statistics in Germany' in Lorenz Krüger, Lorraine Daston, and Michael Heidelberger (eds), *The Probabilistic Revolution*, 2 vols (Cambridge, MA: MIT Press, 1987), i. 351–75, at 353; Würzburger, *The History and Development of Official Statistics*, 334.

[30] Dieterici, *Die Bevölkerung des Preußischen Staats*, 3.

[31] Karl Friedrich Wilhelm Dieterici, 'Anzeige', *Mittheilungen des statistischen Bureau's in Berlin*, 1 (1849), unpaginated. On his attitude towards the working class, see Karl Friedrich Wilhelm Dieterici, *Über Preußische Zustände, über Arbeit und Kapital: Ein politisches Selbstgespräch, seinen lieben Mitbürgern gewidmet* (Berlin: Mittler, 1848), p. v.

[32] Karl Friedrich Wilhelm Dieterici, 'Ueber den Begriff der Statistik, deren Bedeutung für die Wissenschaft und für die praktische Anwendung auf das Leben, mit besonderer Beziehung auf die für den Preußischen Staat erscheinenden größeren Tabellen und amtlichen Nachrichten und diese Mittheilungen', *Mittheilungen des statistischen Bureau's in Berlin*, 4 (1851), 113–28, at 116. Strong

concluded, any discussion of new laws in the post-1848 representational assemblies would require the expertise of the Central Statistical Office:

> Just as anatomy describes the human body according to its organs and integral parts . . . so the statistician should provide material, investigate, and describe the state in the most diverse conditions, so that the statesman, the bureaucrat, and everyone who has an interest in its development can make use of the factual results that have been collated whenever there is talk of a new law, new administrative measures, or the examination and evaluation of existing state institutions.[33]

In 1848, Dieterici amplified calls for the active use of statistics that had begun to take form in the Central Statistical Office. Yet this was not all. Dieterici displayed a new openness to social statistics after the revolutions. Dieterici believed that statistics on the nature and effectiveness of state activity should be increasingly complemented with a new emphasis on that the aspect of the state known as 'population'—a line of enquiry akin to the production of social statistics in other west European states.[34] Social statistics sought to produce numbers on society and social tensions. This included generating more detailed data on questions such as: consumption, working conditions, crime, penal conditions, schooling, public health, and moral issues. Social statistics, as devised by the leading Belgian statistician Adolphe Quetelet (1796–1874), also included a new emphasis on the causal laws behind social problems, but this aspect of enumeration found only very limited ground in Prussian statistical circles in the late 1850s and early 1860s.[35]

Moreover, Dieterici responded to the revolution by displaying an increased interest in dissemination. Dieterici's predecessor, Johann Gottfried Hoffmann, had published statistics to a limited extent during the *Vormärz*. Likewise, Dieterici had published the 1846 census and overviews of *Zollverein* activity in 1843, 1844, and 1845. After 1848, however, there was a sense in the office that effective state-building required regular publications of the latest statistical data to help answer the political 'questions of the day'.[36] Certainly Manteuffel agreed. Manteuffel claimed that state offices, members of the *Landtag*, and the 'educated portion' of the population urgently required statistics to make judgements on the current situation in Prussia. Government-published statistics were essential, he argued, to creating a 'safe direction' for discussions of state initiatives in the public sphere.[37]

parallels can be seen here to Italy, where Italian liberals considered statistics to be a fundamental institution of representative government and used them to show the viability of an Italian nation. See Silvana Patriarca, *Numbers and Nationhood: Writing Statistics in Nineteenth-Century Italy* (Cambridge: Cambridge University Press, 1996), 6–7.

[33] Dieterici, 'Ueber den Begriff der Statistik', 116.

[34] Dieterici's growing appreciation of newer forms of social statistics is more evident in correspondence than in manifesto form. See, for example, his discussion of criminal statistics in his 1853 congress report, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 41–75, at Bl. 73.

[35] On the reception of Quetelet's ideas, see David F. Lindenfeld, *The Practical Imagination: The German Sciences of State in the Nineteenth Century* (Chicago: University of Chicago Press, 1997), 193–5.

[36] Dieterici, 'Anzeige'.

[37] Manteuffel and Rabe to Friedrich Wilhelm IV, 9 November 1849, in GStA PK, I. HA Rep. 89 Geheimes Zivilkabinett, Nr. 16796, Bl. 1–2, at Bl. 1.

And he followed up his verbal support by securing an allocation of 2,000 Taler per year from the *Landtag* in 1850 to fund the publication of statistical information collected by Dieterici and his colleagues. Dieterici used these funds to publish two major works in the 1850s: the regular publication of Prussia's census results and the twice-monthly distribution of statistical material in a publication entitled *Mittheilungen des statistischen Bureau's in Berlin.*

Dieterici's post-1848 publications of census material were a major step forward in the dissemination of social statistical data. The statistical tables that Dieterici published in 1845 and 1848 were impressive feats, but, as the editors of the *Archiv der politischen Oekonomie und Polizeiwissenschaft*—Dr Karl Heinrich Rau (Heidelberg) und Dr Georg Hanssen (Leipzig)—observed, the 1851 edition was 'an incomparably more extensive publication'.[38] In comparison to the earlier 1845 publication of 243 pages of data, the three volumes of the 1851 edition gave an instant indication of the difference between the works. The first volume alone was a hefty 425 pages, the second 622 pages, and the third 120 pages. As Rau and Hanssen concluded, the 1851 work had to be considered as setting new standards of comprehensiveness, thoroughness, and clarity.[39] Yet it was not just that the amount of data had increased, rather its focus on reliably enumerating the condition of the Prussian population was now becoming clearer. Earlier enumerations of the Prussian population such as the *Seelenregister*, *Klassensteuerlisten*, and *Historische Tabellen* approached the question of population well-being, but never directly. The *Seelenregister* was concerned with registering the number of souls in Prussia for the church, the *Klassensteuerlisten* the number of taxpayers, and the *Historische Tabellen* the wealth of the state.[40] In a similar manner, the collection of demographic data in Prussia from the founding of the Central Statistical Office to 1843 was designed to gather population statistics but again with varying purpose and reliability. Until 1834 villages were given tables to fill in collectively, and after that officials simply relied on the police or tax registers to generate this information. Only in 1846 did the first real census emerge in which counting from house to house took place—a trend that was consolidated in the 1851 census.[41]

The new census publications were a significant step forward in providing ministers and officials with reliable, detailed knowledge of the well-being of the Prussian population. The information contained in these documents included data on the populations living in rural areas, villages, and cities. This included analyses of the number of people per area of land and number of people per building in cities, from which statisticians believed deductions about quality of life could be made. Poles and other minority populations living in Prussia came under closer scrutiny by 1858, a likely response to the radical social disturbances of the 1840s and their

[38] 'Das statistische Bureau Preußens unter Dieterici, und seine Veröffentlichungen, namentlich in Bezug auf die Städteverhältnisse des Preußischen Staats', *Archiv der politischen Oekonomie und Polizeiwissenschaft*, 10 (1853), 51–84, at 53–4.

[39] Ibid. 84.

[40] Rolf Gehrmann, 'German Census-Taking before 1871', *MPDIR Working Paper* (2009), 1–24, at 5–6, <http://www.demogr.mpg.de/papers/working/wp-2009-023.pdf> (accessed 27 May 2018).

[41] Ibid. 12.

presence in rapidly urbanizing cities. Births, deaths, and marriages continued to receive close examination, with increasing attention paid to causes of death. Religion and schooling fell into the second section of the tables, as did issues of public health. The number of doctors, pharmacists, and hospitals in Prussia were counted to allow for inferences on medical care. And the data from the Meteorological Office contained in the third section of the tables were an important contribution to the post-1848 publications.

EXCHANGING STATISTICAL MATERIALS

The Prussian Central Statistical Office forged close relationships with other offices in the 1850s, both within German states and beyond, to enrich its numbers further. For Dieterici, the statistical office in the Kingdom of Saxony was particularly influential, because of its talented director, Ernst Engel (1821–96). Born in 1821, Engel was, even among statisticians, an unusually passionate practitioner of his craft. As Nico Randeraad put it: Engel 'personified nineteenth-century statistics perhaps more than any other statistician . . . If he could have organized and registered his own birth, he would have'.[42] Engel studied mining engineering at the Mining Academy of Freiberg from 1842 to 1845 before travelling to England, France, and Belgium for vocational training. Once back in Saxony, Engel was appointed to the Weinlig Commission. Chaired by Albert Christian Weinlig—Director of Trade, Manufacturing, and Agriculture in the Saxon Interior Ministry (*Direktor der Abteilung für Handel, Gewerbe, Fabrikwesen und Ackerbau*)—the Commission conducted a thorough study of Saxony's economic conditions, focusing especially on the problematic issue of labour. It oversaw the preparation of a 1,000-item questionnaire, which asked for information on economic issues ranging from perceptions of international competition, to the adequacy of state investment in manufacturing and workers' views on female labour.[43] Weinlig and Engel formed a close working relationship during the Weinlig Commission, and the former soon entrusted Engel with additional tasks. In 1850, Weinlig appointed him to oversee the General German Industrial Exhibition in Leipzig before he was promoted to the position of Secretary of the newly founded Saxon Statistical Office (*Statistisches Bureau des Königlichen Ministerium des Innern*).

Engel was sensitive to industrial and social change in his numerical calculations. By 1855, he had begun collecting local and foreign statistics (mainly French and Belgian) on working-class consumption, from which he formulated a '*Gesetz der Dichtigkeit*'. This law described the living conditions of the working class, including the principle that, 'the poorer a family is, the more of its total expenditure must be

[42] Nico Randeraad, *States and Statistics in the Nineteenth Century: Europe by Numbers*, trans. Debra Molnar (Manchester: Manchester University Press, 2010), 105.

[43] Richard J. Bazillion, *Modernizing Germany: Karl Biedermann's Career in the Kingdom of Saxony, 1835–1901* (New York: Peter Lang, 1990), 256–9.

proportionately spent to procure nourishment'.[44] He also took particular note of statistics on crime and punishment, and believed that prison statistics in particular could provide important insights on how to reduce recidivism. These numbers were clearly interesting, but, unlike the Prussians, the Saxon Statistical Office had only limited authority to publish its findings.[45] Nevertheless Engel, like Dieterici, believed that the political power of the office and statistics lay in their publicity.[46] From 1851, therefore, he provided most of the material for the *Statistische Mittheilungen aus dem Königreich Sachsen*, and, in 1855, Engel launched the *Zeitschrift des Statistischen Bureaus des Königlich Sächsischen Ministeriums des Innern*. Of course, the Prussians immediately purchased Engel's publications, just as they had already acquired the results of the Weinlig Commission.[47]

Further south, the statistical office located in the Baden Interior Ministry (*Statistisches Bureau Baden*) also became a second important contact for the Prussians. Officials in Baden were keen collectors of statistical reports and a wide number of publications of *Staatswissenschaft.* It was well known that the Baden Statistical Office had a substantial library at hand, but the Baden office also produced extremely interesting data sets itself, especially with the help of leading academics like Carl Joseph Anton Mittermaier (1787–1867). As the Prussians noted at the 1853 International Statistical Congress (*Congrès international de statistique*), Baden was the first state in Germany with a yearly publication of criminal-justice statistics. Moreover, the state had at that time just begun a forty-five-question survey on *Moralstatistik.*[48] Other academics produced important works in this region as well. In Heidelberg, Dr Karl Heinrich Rau joined Dr Georg Hanssen from Leipzig to produce the *Archiv der politischen Oekonomie und Polizeiwissenschaft* (established in 1834). Rau and Hanssen published mainly on economic topics such as state finances, taxation, and Baden's accession to the *Zollverein*, but they also kept an eye on the productions of the various statistical offices in operation before 1848, as well as information on the English poor law, laws regulating child labour in Saxony, and reviews of publications on the working class such as W. Cooke Taylor's *Factories and the Factory System* (1844) and Friedrich Engel's *Die Lage der arbeitenden Klassen in England* (1845). Across the border in nearby Tübingen, the members of the faculty of *Staatswissenschaft* also published the authoritative *Zeitschrift für die gesammte Staatswissenschaft*.

Most directors of the German statistical offices envisioned post-1848 statistical gathering as necessarily dependent. This included the Prussians, who sought to disseminate their materials beyond state borders and welcomed the establishment

[44] Ernst Engel, quoted in Daniel Schmidt, '"Kenntniß ist Macht"—Ernst Engel in Sachsen', *Fachzeitschrift für Statistik des Statistischen Landesamtes des Freistaates Sachsen: 175 Jahre amtliche Statistik in Sachsen*, 12 (2006), 35–41, at 40.

[45] Randeraad, *States and Statistics*, 105–6.

[46] Ernst Engel, quoted in Schmidt, '"Kentniß ist Macht"', 35.

[47] On the Prussian purchase of the Weinlig Commission's report, see Bazillion, *Modernizing Germany*, 260.

[48] Dieterici's 1853 report from the International Statistical Congress, 17 October 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 41–75, at Bl. 52.

of new offices committed to doing likewise. For example, Dieterici, writing in the *Mittheilungen* on 9 February 1855 about the new state Statistical Office in Oldenburg, celebrated the ends to which the new statistics might be deployed. As he wrote: 'It will be possible to make statistical comparisons between Oldenburg and Prussia, specifically with respect to those provinces and government districts, which are close to the Oldenburg state and resemble it in terms of commercial development and topography.' The value of such comparisons was, he continued, that they might facilitate a larger activity of collection and comparison by other German governments, resulting in 'a total statistic for Germany'.[49] The ministry in Oldenburg favoured the dissemination of statistical materials as well, making this a real boon for the Prussians. According to §9 of the instructions for the new office, the director was responsible for making connections with domestic associations, foreign statistical offices, and private persons who could help the office reach its goals.[50]

The push for a 'total statistic' had strong national overtones, but this was not all. It was also infused with a desire to gauge relative modernization. This can be seen in the attempts of the Prussian and other German states to disseminate and obtain statistics beyond German-speaking territories. For instance, by 1856 Dieterici had fostered formal exchanges with statistical offices in Belgium, France, England, the Netherlands, Denmark, Tuscany, and Switzerland.[51] Dieterici had been corresponding with Quetelet—the famous Belgian statistician—for years before he finally met him at the first International Congress on Statistics held in Brussels in 1853.[52] Likewise, he had built up significant channels of correspondence with statisticians in France. He was a corresponding member of the Institute of France, as well as being in individual contact with Alexis François Auguste Mignet, the Secretary of the Institute; Louis René Villermé, its President; Alfred Legoyt, the Director of the French Statistical Office; Block, an attaché in the Statistical Office who was responsible for preparing statistical publications in the papers; and Moreau de Fonnès, a member of the Institute of France and former Director of the French Statistical Office.[53]

Alongside arranged exchanges, the Prussians also purchased an ever-increasing volume of statistical publications from academics working across Europe, as can be seen in the reviews section of the *Mittheilungen.* Begun in 1850 by Dr Ernst Helwing (1803–75)—member of the Prussian Central Statistical Office and Professor of History at the University of Berlin—the review of current statistical literature became one of the most important parts of the *Mittheilungen*.[54] Since 4 July 1817,

[49] Karl Friedrich Wilhelm Dieterici, 'Ueber die Errichtung eines statistischen Bureaus im Großherzogthum Oldenburg', *Mittheilungen des statistischen Bureau's in Berlin*, 8 (1855), 40–4, at 44.

[50] Ibid. 42.

[51] Dieterici to the Foreign Ministry, 15 January 1856, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, III, Nr. 17637, unpaginated.

[52] Randeraad, *States and Statistics*, 11.

[53] Moreau de Fonnès's son had attempted to translate Dieterici's *Volkswohlstandes in Preußischen Staate.* See Dieterici to the Foreign Ministry, 27 February 1854, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, III, Nr. 17637, unpaginated.

[54] For Helwing's discussion of the review's origins, see Ernst Helwing, 'Uebersicht über die statistische Literatur des Jahres 1850', *Mittheilungen des statistischen Bureau's in Berlin*, 3 (1850), 359–78, at 359.

one employee in the Central Statistical Office had been responsible for surveying the daily press and collecting the most important material for answering 'political historical questions'. By 1847, however, it was clear that someone with expertise in historical and political affairs was needed to manage the ever-increasing material that came to the office. Helwing was put forward as the best candidate for the position. He was familiar with the latest political and historical literature by way of his position at the University of Berlin, and his inside knowledge of the press and his ability to engage deftly with popular opinion made him an ideal candidate. As Dieterici wrote, Helwing's work with the newspaper *Das Neue Preußen* had been both effective and persuasive, and it was to their advantage that Helwing had a practical knowledge of the book trade. He furthermore possessed 'an extraordinary ability to extract the most important information from a newspaper quickly, made possible by his scientific education'.[55]

Helwing published his reviews annually in the final two instalments of the journal (Nr. 23 and Nr. 24). There he presented the broad landscape of the statistical works published that year, from large-scale, government-driven projects, through to the newspapers in which Prussian readers could find statistical material.[56] Most material came to be gathered under the subheadings: political science; population tables; topographical statistics; travel books; state handbooks; immigration and emigration; agriculture; mining; trade; transport; communications; constitutional statistics (*Verfassungsstatistik*); administrative statistics (*Verwaltungsstatistik*); statistics on the military; the administration of justice; poor relief; and education. Of particular note in this literature was the substantial number of books and pamphlets that supported new programmes of reform. The 1852 review, for example, which began with the usual discussion of works under the topic 'political science', seized on the newly printed German translation of John Stuart Mill's 1848 work *Principles of Political Economy* as the occasion for a three-page discussion of the importance of socially inflected work to the state. Mill, Helwing wrote, alongside political

[55] Dieterici to Manteuffel, December 1848, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 536 Nr. 13 Bd. 1, Bl. 59–60. It should be noted, however, that Dieterici and Helwing experienced many a run-in during the 1850s. Helwing wanted a secretary to help him with his work, frequently attempted to work at home, despite Dieterici's demands that he should be present in the office, and he was censured by Dieterici for ordering double copies of journals so that he could take them back to his house to read. See Dieterici to Westphalen, 30 July 1856, in ibid., Bl. 178–84.

[56] By way of newspapers, the office was subscribing to the: *Augsburger Allgemeine Zeitung*; *Hamburger Börsen Halle*; *Cölner Zeitung*; *Staats-Anzeiger*; *Wiener Austria*; *Bremer Handelsblatt*; *Weser Zeitung*; *The Economist*; *Hamburger literarische Blätter*; *Magazin für Literatur des Auslandes*; *Breslauer Handels-Blatt*; *Schlesische Zeitung (Breslau)*; *Deutsche Allgemeine Zeitung (Leipziger Zeitung)*; *Elberfelder Zeitung*; *Erfurter Zeitung*; *Frankfurt Im Coursbericht*; *Frankfurt Im Postzeitung*; *Magdeburger Correspondent*; *Posener Zeitung*; *Osten Zeitung*; *Norddeutscher Correspondent*; *Hamburger Correspondent*; *National-Zeitung (Berliner Zeitung)*; *Vossische Zeitung (Berliner Zeitung)*; *Spenersche Zeitung (BZ)*; *Die Zeit (BZ)*; *Neue Preußische Zeitung (Kreuzzeitung)*; *Berliner Wochenblatt*; *Neusser Kreis und Handelsblatt*; *Oberschlesischer Anzeiger*; *Der Sprecher*; *Oberschlesischer Bürgerfreund (Friedland)*; and the *Neisser Anzeiger.* At the same time there were regular magazine subscriptions to: *Kazhten's Archiv*; *Justiz- Ministerial-Blatt*; *Centralblatt der Abgaben*; *Ministerialblatt des Innern*; *Auswanderer Zeitung*; *Rheinischer Antiguar*; *Quartal Rundschau*; *Preußische Provinzial Blätter*; *Annalen der Landwirthschaft*; *Militair Wochenblatt*; *Militair-Literatur-Zeitung*; *Zeitschrift für Erdkunde*; *Zeitschrift für Staatswissenschaft; Petermann's geographische Mittheilungen*; *Zeitschrift des Sächsischen Statistischen Büreaus*; *Bibliographisches Jahrbuch*; *Löbe's Jahrbuch der Landwirtschaft; Rangliste der Preußischen Armee*; *Ergänzungsblätter*; and *Neues Lausitzer Magazin.* See ibid., Bl. 185–91.

economists in England, France, and North America, had done more than any other writer to give depth to the field of political economy. This was because Mill, like Adam Smith before him, had combined economic ideas with the best social ideas of his age, thus producing a more insightful view of society (*Gesellschaft*). In Helwing's assessment, Mill's work was essential to state planning, especially as the 'power of material interests more forcefully push their way to the foreground'. These interests would, he concluded, only continue to gain importance, as the previous foundations of social organization were questioned.[57]

The discussion of Mill's work was typical of broader trends. Topics pertinent to officials and reformers across Europe such as free trade, criminal justice, prison conditions, and provision for the poor became staple subjects in the review. In the 1856 edition of the reviews, for example, Helwing reported that he had been reading a fascinating list of books on the growing urban poor. He found Tremenhere's work *Dwellings of the Labouring Classes in the Metropolis* (1856) to be a 'useful' book, which gave an insight into the living conditions of the 'so-called small people'. He also read the Scottish Temperance League's *Testimonies and Statistics in Reference to the Working of the Public-Houses Act, from Various Parties, Glasgow*, which contained new statistics on the increase of drunkenness in Scotland since the Act of 1854.[58] Likewise, the reviews show that the Prussians were also reading the statistics of important domestic organizations like the Central Society for the Welfare of the Working Classes (*Centralverein für das Wohl der arbeitenden Klassen*).[59] In short, the purchase of domestic but particularly foreign publications provided the Prussian ministries with the necessary materials to develop comparative thinking on issues of governance.

CONGRESSES AND CONFERENCES

Like exchanges, the number of new congresses and conferences that had begun to take place since the 1840s encouraged politicians to consider using statistics in a comparative manner. Progressive, liberal professionals were responsible on the whole for organizing congresses, as they were for conferences, which aimed to disseminate scientific knowledge to larger audiences. Through mutual instruction, congress organizers believed that their events could result in far-reaching innovations in governance and the implementation of new laws and policies.

Dieterici and individual statisticians closely associated with the Prussian *Zentralbehörden* acted as official congress representatives in the 1850s and 1860s at the International Statistical Congress.[60] This had the effect of facilitating and

[57] E. Helwing, 'Uebersicht über die Kameralistische, insbesondere die statistische Literatur des Jahres 1852', *Mittheilungen des statistischen Bureau's in Berlin*, 5 (1852), 356–92, at 356–8.

[58] E. Helwing, 'Uebersicht über die Kameralistische, insbesondere die statistische Literatur des Jahres 1856', *Mittheilungen des statistischen Bureau's in Berlin*, 9 (1856), 353–404, at 400.

[59] Helwing, 'Uebersicht über die statistische Literatur des Jahres 1850', 361.

[60] Although Dieterici attended the 1853 and 1855 Congresses, it should be noted that he failed to attend the Congress in Vienna in 1859. He was getting on in age (67) and was by this stage losing faith in the 'scientific' worth of the International Statistical Congress. He did, however, ensure that other Prussian representatives were in attendance.

reinforcing personal relationships with other German statistical offices. For example, in 1853 Dieterici was housed at the International Congress with Mittermaier from Heidelberg, Fallati from Tübingen, Czoernig from Vienna, Hermann from Munich, and Wenlig and Engel from Dresden.[61] The fact that they were living and meeting together at such events even spurred on discussions of a central office for statistics in German Europe, but this particular project came to little in the 1850s.[62] In addition, Dieterici usually wrote congress reports that were then passed on to Westphalen and Manteuffel. For similar events where official Prussian representatives were not always present—such as the Penitentiary Congress (*Congrès pénitentiaire*), the International Philanthropic Congress, and the Hygiene Congress (*Congrès général d'hygiène*)—the Central Statistical Office procured reports from Prussian academics who regularly attended such events or from officials in the cities in which the congress took place.[63] This was important, as published congress reports and those of state representatives contained many new ideas, discourses, and approaches to understanding society that had previously remained overlooked by the Ministry of State.[64]

Finally, congress representatives also frequently used their trips as a pretext for inspecting foreign cities on their journey to and from the event. For example, in 1855 Dieterici visited Lyon among other cities on his way to the International Statistical Congress in Paris. Lyon was of particular interest to Dieterici as it was the centre of the silk industry in Europe, an industry he had been tracking in statistics over the previous few years. Dieterici had undertaken studies into the silk industry in Krefeld, Elberfeld, and Berlin, and had constantly needed to refer to Lyon in doing so. Hence, a visit to the city itself was extremely instructive, he wrote to Westphalen, for understanding the phenomenon he was studying in the Prussian context.[65] Dr Rhyno Quehl, Director of the Press Office, also undertook his share of travel, including a visit in 1853 to Paris, where he was able to view the city and question the French interior minister.[66] He was particularly interested in finding out how the preparations for the 1855 world fair were progressing and what impact this would have on trade. Prison tours also became popular among Prussian officials in the 1850s, which led to a major attempt at penal reform in the latter part of the decade.

[61] Dieterici's conference report of 17 October 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 41–75, at Bl. 44.

[62] Randeraad, *States and Statistics*, 76–7.

[63] See, e.g., Westphalen's attempt to secure reports from the 1856 and 1857 International Philanthropic Congresses in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II, Nr. 1116, unpaginated. It is important to note that there were no Prussians in the 'epistemic community *avant la lettre*' identified by Chris Leonards and Nico Randeraad. But Dieterici and Manteuffel often corresponded with both Ernst Engel and Carl Mittermaier, thereby connecting Prussia to this network. See Chris Leonards and Nico Randeraad, 'Transnational Experts in Social Reform, 1840–1880', *International Review of Social History*, 55 (2010), 215–39, at 225–6.

[64] On congresses and conferences as a space of transfer, see, above all, Nico Randeraad, 'The International Statistical Congress (1853–1876): Knowledge Transfers and their Limits', *European History Quarterly*, 41 (2011), 50–65.

[65] 'Bericht über die Seiden-Industrie in Lyon', 15 October 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99, Bd. 1, Bl. 209–18, at Bl. 209.

[66] See Quehl's report to Manteuffel in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 344–50.

EXCHANGING LEGISLATION

The circulation of new social scientific knowledge would provide the Ministry of State with essential information on which legislation and regulation could be formulated. But there was also a further circulation of materials that took place to help this process. At the highest level of government, Manteuffel and others were interested in a more robust exchange of legislation across Prussian borders than had been seen at any point during the *Vormärz*. That is, Prussia came to exchange constitutional and legislative materials with fifteen other German states by 1851. And, beyond German-speaking Europe, similar documents were swapped with the Kingdom of Belgium and the Kingdom of the Netherlands, and, on Vincke's request, it was hoped that exchanges could soon be established with the English House of Commons.[67] For Prussia, the first point of reference in most matters was the other German great power, Austria. This meant that a whole range of legislative materials would move from Vienna to Berlin in the 1850s, as would legislation from Bavaria and across the Third Germany. Materials from the latter states proved important in particular areas of reform or when needed for establishing a panorama of activity against which Prussian reform could be compared.

CONCLUSION

With Prussia's embrace of a constitution, Manteuffel saw the opportunity for the state to expand its reach and the nature of its activity in economic, social, and cultural life. But to do so, ministers and officials required the kinds of specialist statistical knowledge being produced in the Prussian Central Statistical Office. This was in part because statistics contained more exacting information for the creation of new laws and administrative practices, but also because they allowed for more flexible approaches to state-building activity. Certainly, numbers appeared to be a seemingly neutral source to support realist policies.

In addition, statistics and materials acquired from abroad only helped to bolster measures designed to strengthen the state, sure up legal certainty, reform society, and develop the economy. This was made possible because ambitious projects of reform were also taking place in other German and European states. Most influentially for Prussia, such activity was taking place in Austria. As John Deak has recently argued, historians would do well to see the 1850s in Austria as the 'era of bureaucracy'. During this period, he writes:

> the state again became a major force for reform and innovation. Bureaucrats were trained in Vienna and sent out to hundreds of new districts. They oversaw the building

[67] See Vincke's comments on 6 March 1851 in *Stenographische Berichte über die Verhandlungen der durch die Allerhöchste Verordnung vom 2. November 1850 einberufenen Kammern. Zweite Kammer. Von der Eröffnungs-Sitzung der beiden vereinigten Kammern am 21. November 1850 bis zur sechsundvierzigsten Sitzung am 21. März 1851* (Berlin: Druck und Verlag der Deckerschen Geheimen Ober-Hofbuchdruckerei, 1851), 443.

> of roads, bridges, and canals. They witnessed school reform, the erection of town councils, agricultural societies, and clinics, hospitals, and pharmacies. They participated in the massive expansion of state offices and courts.[68]

Reform impulses were also evident in a secondary sphere of interest in Bavaria and across several of the larger states of the Third Germany, where the emphasis was more on cultural and economic innovation.[69] In Saxony and Württemberg—two of most representative states of the Third Germany—effort was directed at anchoring monarchy in the state, and extending the reach of the latter into museums, monument construction, festivities, and classrooms. In particular, state influence in the press was often much more successful here than in either of the two great power states. And, like the great powers, the conservative ministries in these states continued the liberal fiscal policies of the revolutionary years, as they oversaw the construction of new tracks of railway and telegraph networks across their respective territories. Indeed, governmental reform had become commonplace across the continent after 1848, capturing the interest of ministers in Berlin. In France, Louis Napoleon created an authoritarian political sphere with his *coup d'état* of 1851, but he still relied on a broad consensus and sought to modernize numerous aspects of state activity. In Piedmont, Count Camillo di Cavour entered into alliance with Urbano Rattazzi to garner wider support for reforming agendas. And, even in Spain, where ministers responded more to the shock of revolution in 1854 than in 1848, the Unión Liberal facilitated important modernizing policies.[70] Just what influence this would have on the Prussians and how they would compare themselves to other states undergoing reform is woven into the next four chapters, in which we turn to examine the most important areas of state-building reform undertaken by the Ministry of State in the 1850s.

[68] Deak, *Forging a Multinational State*, 100–1.

[69] AbigailGreen, *Fatherlands: State-Building and Nationhood in Nineteenth-Century Germany* (Cambridge: Cambridge University Press, 2001), 14.

[70] Christopher Clark, 'After 1848: The European Revolution in Government', *Transactions of the Royal Historical Society*, 22 (2012), 171–97, at 175–8.

3

Crime and Punishment

In late 1848, officials in the Justice Ministry impressed upon the Brandenburg–Manteuffel Ministry of State the sorry condition of criminal law in Prussia.[1] The Prussian General Law Code of 1794 was largely in effect, although it did not stretch uniformly across the state. This meant that officials often had to navigate a patchwork of codes to regulate crime and its punishment. Yet even where the Prussian General Law Code was in place, there were ever-urgent problems. Definitions of crime were tied, in part, to pre-Enlightenment ideas, meaning that sections of the code appeared particularly retrograde by mid-century. Trial procedure too had its problems. The Prussian state possessed its own courts but too few to deal with the many proceedings that needed to take place annually. Patrimonial courts were, therefore, still used as a way to manage the majority of criminal proceedings, provoking complaints on the part of liberal jurists about these arenas and the secret written form of trial procedure that took place in them.[2]

Of course, any official could respond by pointing out that court procedure was undergoing partial reform on the eve of the revolutions.[3] In 1847, Friedrich Wilhelm IV approved Prussia's first public trial—the infamous 'Poland Trial'—in which 254 Polish insurgents were brought before the Berlin *Kammergericht* on the charge of high treason. The court left its usual chambers for the trial to meet in open proceedings in the chapel of the Moabit prison. Throughout what followed, the authorities hoped to send a warning to potential revolutionaries not to emulate the example of the Polish rebels, and, at the close of the hearing on 2 December 1847, over eighty-two of the defendants were sentenced to imprisonment and eight to death. But the trial failed to work as a caution. The charisma, good looks, and shrewd framing of the Polish case by one of the insurgents, Ludwig von Mieroslawski, helped to cause a swelling of sympathy for the Poles among liberal circles. On 19/20 March 1848, a group of Polish and German students and civil servants successfully petitioned Friedrich Wilhelm IV to release the prisoners, who were

[1] See, e.g., the Votum of the Justice Ministry, 11 December 1848, in GStA PK, I. HA Rep. 90A Staatsministerium, A Tit. 33 Nr. 76, unpaginated.

[2] The fear was that secrecy allowed for arbitrary rulings, and arbitrary rulings undermined a general sense of certainty in the judicial system. See Kenneth F. Ledford, 'Lawyers, Liberalism, and Procedure: The German Imperial Justice Laws of 1877–79', *Central European History*, 26 (1993), 165–93, at 174.

[3] *Allerhöchste Kabinets-Ordre, die Betheiligung von Privatpersonen bei der Bank betreffend* (Berlin, 1846); FO 64/265: Earl of Westmorland to Viscount Palmerston, No. 16, Berlin, 29 July 1846, in Markus Mösslang, Sabine Freitag, and Peter Wende (eds), *British Envoys to Germany, 1816–1866*, 4 vols (Cambridge: Cambridge University Press, 2002), ii. 225–6.

then carried in a triumphal march out of Moabit and through the streets of Berlin.[4] Suffice to say, the experience dampened any enthusiasm on the part of the king or ultraconservatives for a more general use of the public forum across the state.

If the problems of court structures and trial procedure were not bad enough, officials made clear that many of Prussia's penal institutions were in a condition of utter neglect by the 1850s. As Friedrich Nöller, a judicial official in the Grand Duchy of Hesse and first-hand inspector of many of the penitentiaries across German-speaking Europe, wrote, those incarcerated in small prisons and houses of correction suffered from inadequate management, resulting in insufficient clothing, food shortages, delays with medical assistance, and a lack of appropriate forms of education. Larger institutions could claim better records, but, as he saw it, German governments were not learning from their experiences. Rather, they were contributing 'to the increase of pauperism and the proletariat, and the practical dissemination of the teachings of Proudon, Blanc etc.'[5]

This chapter sets out to chart the reforms to this criminal and penal landscape in Prussia in the 1850s. Both Manteuffel and the Justice Minister Ludwig Simons believed that further revolutionary unrest could be countered by completing unattended reform work from the *Vormärz* era. But realizing a reform agenda was, as we will see, no easy task. On the political extremes it elicited opposition, especially in the symbolically charged terrain of substantive criminal law. To avoid such complications, both ministers worked hard to shift debate to the realm of procedural reform in the 1850s, creating a surprising and largely integrating space for state-building. Politically moderate professors of law and jurisprudence welcomed this shift and the centrist reforms to the criminal justice system that accompanied it. The establishment of the courtroom and its verbal, public trials before a jury were eagerly discussed in a growing selection of journals. And support grew as liberal jurists saw in it not only the opportunity to secure important rights and guarantees, but also the scope to have a very real impact on the development of the state ruled by law (*Rechtsstaat*).

The resulting boost to certainty in the administration of criminal justice was striking, and yet just what this meant for the formation of modern Prussia and Germany requires another layer of consideration. As this chapter will show, all those German territories that were without criminal codes before 1848 developed such legislation by 1866. The post-revolutionary decade also saw patrimonial courts replaced with state courts across much of German-speaking Europe, and the creation of public trials before juries in a majority of German states. In a number of cases, post-revolutionary ministries reintroduced certain limitations on public jury trials, but, as legal scholars have reminded us, the basic principle

[4] 'Der Polenprozeß', *Illustrirte Zeitung*, 11 December 1847, p. 372. On Mieroslawski, see 'Ludwig von Mieroslawski', *Illustrirte Zeitung*, 2 October 1847, pp. 211–12; 'Die Öffnung des Polen-Kerkers in den blutigen Tagen in Berlin', in Hans Booms and Marian Wojciechowski (eds), *Deutsche und Polen in der Revolution 1848–1849: Dokumente aus deutschen und polnischen Archiven* (Boppard am Rhein: Harald Boldt, 1991), 173–4.

[5] Friedrich Nöller, 'Ueber Centralisation der Gefängnißverwaltung auf Grundlage des jetzigen Standes des Strafrechts', *Gerichtssaal*, 6/2 (1854), 332–47, at 334.

was preserved.[6] In penal affairs too, the improvement of penitentiaries slowly took hold, with states responding to suggestions made by professors and prison societies. In other words, the Brandenburg–Manteuffel and Manteuffel Ministries of State were part of a larger trend in which government officials looked to modernize their systems of criminal justice in the post-revolutionary period. In Prussia's case, though, it will be argued that the post-revolutionary ministries pursued reform without slipping into parochialism. That is, they did not permanently close avenues in the 1850s for the creation of a set of unified national codes to regulate criminal and penal affairs. Indeed, Bismarck would benefit from this arrangement a decade later. He seized the opportunity for national codification at a time more conducive to Prussian rather than Austrian pre-eminence in German-speaking Europe and, in doing so, reaped the political credit for the entire process outlined in this chapter.

TOWARDS A MODERN SYSTEM OF CRIMINAL JUSTICE

In the autumn of 1848, the Brandenburg–Manteuffel Ministry of State inherited what appeared to be an endless series of attempts to develop substantive criminal law as contained in the Prussian General Law Code. The Prussian General Law Code was a remarkable body of laws but it was not without problems, especially as it contained a mixture of pre-Enlightenment and Enlightenment attitudes that often contradicted one another. For example, the emphasis on equality before the law outlined in §22 of the code was undermined by estates-based privileges woven through its twentieth title regarding crime and punishment. Definitions of crime, criminal procedure, and the theoretical underpinnings of punishment were also internally irreconcilable. To be fair, such contradictions were typical of the most important codifications of criminal law of the late eighteenth century. In Austria, for instance, the General Code on Crimes and their Punishments of 1787 (the so-called *Josephina*) and the later Act concerning Felonies and other Serious Offences of 1803 (*Gesetz über Verbrechen und schwere Polizeiübertretungen*) exhibited similar characteristics, as did legislation in the largest state of the Third Germany, Bavaria. Nevertheless, the result for Prussia was that any claims to consistency on the part of the state in the administration of justice were spurious.

In addition to internal contradictions, the General Law Code and later laws such as the Circular Rescript on the Punishment of Theft from 1799 increasingly lacked the kind of detail about criminal offences needed for what many theorists and lawyers of the time deemed to be reasonable legal certainty. A range of supplementary laws were developed, but this made the legal landscape unnecessarily complex to navigate. Furthermore, the framework for procedure, encapsulated in the General Court Ordinance of 1793, only exacerbated any sense of uncertainty. It allowed for the continuation of secret, written trials that afforded the possibility of arbitrary rulings.

[6] Thomas Vormbaum, *A Modern History of German Criminal Law*, trans. Margaret Hiley (Berlin: Springer, 2014), 91–6.

These were serious shortcomings, but, most importantly, the Prussian General Law Code and the General Court Ordinance did not extend across the entirety of the Hohenzollern lands, stopping short of those provinces acquired at the end of the Napoleonic Wars. In the territories left of the Rhine, the French, under Napoleon, had overseen one of the first and most important steps in creating a modern legal system with the implementation of the *Code pénal* (1810) and the *Code d'instruction criminelle* (1808). The *Code pénal* introduced an important three-part division of criminal offences. This saw felonies, misdemeanours, and transgressions separated out into different categories of judgment and court jurisdiction. With respect to procedure, the French legal system also instituted public, jury trials in place of the secretive, inquisitorial trials common throughout German-speaking Europe.[7] The imposition of French law initially caused discontent in the German legal world but these more exacting changes were popular with the Rhenish middle classes for their embodiment of classic liberal approaches to criminal law, and, more importantly, because they provided an effective protection for property against theft. Certainly, with the *Code pénal* remaining in place after 1815 on the condition that it would be replaced once a reform of the General Law Code was completed, the jury court in the Rhine Province became above all 'the palladium of the bourgeois system of property interests [*Eigentumsordnung*]'.[8]

For the majority of Prussia, though, the judicial landscape remained governed by the Prussian General Law Code, and only in 1826 did Friedrich Wilhelm III charge the Justice Minister Count Heinrich von Dankelman (1786–1830) with its wide-reaching revision. This resulted in a draft criminal code for the Prussian state in 1830, which offered demonstrably clearer terminology than its predecessor, introduced more exact guidelines, and removed a number of outdated punishments such as corporal punishment (*körperliche Züchtigung*).[9] After Dankelman's death in 1830, the Justice Minister in charge of legislative revision, Karl Albert von Kamptz (1769–1849), produced two further draft codes, both of which elided Dankelman's reforms to punishments in the face of what seemed to be a wave of rising crime in Prussia. This was especially the case with Kamptz's 1836 draft, which reintroduced corporal punishment 'for the lower classes of the population'.[10] Kamptz was, furthermore, no keen reformer of trial procedure. He was a sharp critic of the juries in the Rhine Province and certainly did not want to see them spread across the rest of the state as part of a new criminal code.[11] Hence, any hopes for a liberal inflection to the process of reform were dealt a blow in the 1830s

[7] Ibid. 68.

[8] Dirk Blasius, 'Der Kampf um die Geschworenengerichte im Vormärz', in Hans-Ulrich Wehler (ed.), *Sozialgeschichte Heute: Festschrift für Hans Rosenberg zum 70. Geburtstag* (Göttingen: Vandenhoeck & Ruprecht, 1974), 148–61, at 158.

[9] Georg Beseler, *Kommentar über das Strafgesetzbuch für die Preußischen Staaten und das Einführungsgesetz vom 14. April 1851. Nach amtlichen Quellen* (Leipzig: Weidmann'sche Buchhandlung, 1851), 5–6.

[10] Richard J. Evans, *Tales from the German Underworld: Crime and Punishment in the Nineteenth Century* (New Haven: Yale University Press, 1998), 102.

[11] Blasius, 'Der Kampf um die Geschworenengerichte', 153.

but not too serious a one, as Kamptz did not remain in office long enough for his drafts to become a reality.

With the departure of Kamptz, the most important work of the *Vormärz* to reform criminal justice began under his successor, Friedrich Carl von Savigny (1779–1861). Although accused of being a reactionary conservative, Savigny demonstrated a stance on criminal law that was far too nuanced for such a label.[12] He was part of the Stein–Hardeberg network of reformers and, after the Napoleonic Wars, a proponent of constitutional transformation. This meant that Savigny advocated a more gradual shift towards legal codification based on indigenous common-law traditions rather than the immediate sense of change achieved by the introduction of foreign codes, such as the *Code pénal*. Constitutional transformation would, Savigny argued, bring about improved legal certainty and, with it, something that the adoption of foreign codes could not—national expression. Savigny's emphasis on 'national expression' indicated that he, like a growing number of jurists, ascribed to a small-German vision of national unification brought about in part by legal reform. This meant that Savigny had much in common with leading liberal figures across German-speaking judicial circles. It also meant that he possessed important affinities with the Germanists, such as the brothers Grimm, who also preoccupied themselves with questions of criminal law. This included his former student Jacob Grimm, with whom Savigny remained close friends throughout his life.[13]

Savigny's 1847 draft criminal code provided the basis for debate about criminal justice in 1848. Savigny looked to incorporate innovative aspects of French law into his code, which could be traced back to the *Code pénal*. This included the three-part division of criminal offences.[14] But he did so without seeming to adopt the *Code pénal* in preference to indigenous German legal traditions. Certainly, many professors of law read this draft as a more exacting step in the ongoing process of reform to criminal law began by Friedrich the Great.

Nevertheless, critics of Savigny's code quickly emerged. The most vocal of these included jurists in the Rhine Province, who thought that the milder classifications of crime and punishments contained in Savigny's code in comparison to the *Code pénal* would reduce the authority of their jury courts and accordingly increase the risk of theft. In other words, reform would deprive them of what had been a welcome era of autonomy from the strictures of the Prussian bureaucracy. Catholics too showed dismay at what would be an increase in state power over church affairs. The law professor in Bonn, Ferdinand Walter, published such critiques of the draft

[12] Margaret Barber Crosby, *The Making of a German Constitution: A Slow Revolution* (Oxford: Berg, 2008), 83.

[13] Ibid. 83–91, 111.

[14] Like Prussia, other states were also influenced by French innovation in the years leading up to the revolutions. Austria looked to introduce new criminal codes in 1803 and 1852. In Bavaria, the authorities introduced a criminal code in 1813, which, despite retaining relatively severe punishments, followed the approach of the *Code penal* for the categorization of criminal actions. And new codes came to the fore in the Kingdom of Saxony (1838, 1855, and 1868), the Kingdom of Württemberg (1839), the Kingdom of Hanover (1840), the Grand Duchy of Hesse (1841), and the Grand Duchy of Baden (1845). See Vormbaum, *A Modern History of German Criminal Law*, 68–71.

code, as did the Cathedral Canon (*Domkapitular*) R. München.[15] And a number of bishops wrote directly to Savigny, likening the treatment of clergy under the code to that of bureaucrats.[16] Yet, the Catholic authors of these dissenting opinions made clear that the code was not wholly unacceptable. It gave, they were willing to admit, an indication that the authorities were looking to find broader and more acceptable solutions for the drafting of a criminal code, and, on that basis, the future was not entirely bleak.

In parallel to the work of Savigny, the Justice Minister for administration, Heinrich Mühler (1780–1857), began a second line of activity focused on information-gathering that would prove foundational for debate in 1848.[17] Mühler was an energetic, reform-minded bureaucrat who studied law at Halle before becoming Minister of Justice (*Justizverwaltungsminister*) in 1832. In the 1830s, he began to produce detailed statistics on the workings of criminal and penal institutions, otherwise known as justice statistics (*Justizstatistik*). Justice statistics consisted of numerical and non-numerical data on personnel and process details at every level of the court system.[18] They also included keeping records of the total number of crimes committed per type, as well as the number of persons convicted in Prussia according to sex, age, and religion.[19] In 1841, Mühler further developed the ministry's numbers by adding new information on penal institutions to justice statistics, detailing changes to sentences, as well as the annual number of inmates who had died, escaped, or been transported to other penal institutions.[20] From 1844 on, he also added new data on the death penalty, collecting information on those who had received such a sentence, the nature of their crime, and the final decision of the crown to uphold or commute the sentence.[21]

[15] Ferdinand Walter, *Ueber die Verbrechen der Geistlichen nach dem neuen Entwurfe des Preußischen Strafgesetzbuches. Eine freimüthige Kritik* (Bonn: Adolph Marcus, 1848); Ferdinand Walter, *Nachtrag zu meiner Kritik über den Titel des Entwurfes des Preußischen Strafgesetzbuches von den Verbrechen der Geistlichen* (Bonn: Eduard Weber, 1848); R. München, *Ueber die Bestrafung der Geistlichen nach dem neuen Entwurfe des Strafgesetzbuches für Preußen. Aus der „Kölnischen Zeitung' abgedruckt"* (Cologne: M. DuMont-Schauberg'schen Buchhandlung, 1848).

[16] See the unpaginated materials in GStA PK, I. HA Rep. 76 Kultusministerium, IV Sekt. 1 Abt. II Nr. 42.

[17] On Mühler's appointment, see the Kabinetsorder of 9 February 1832, and on his resignation in 1844, see the Bekanntmachung of 30 September 1844, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 40133, Bl. 2, 193. On Mühler, see the anonymous obituary published by the *Verlag der Deckerschen Geheimen Ober-Hofsdruckerei* in Berlin in 1857, in ibid. Bl. 198–200; Werner Schubert, 'Mühler, Heinrich Gottlob v.', *Neue deutsche Biographie*, 18 (1997), 286–7.

[18] Mühler, 'Verordnung wegen Einreichung der Uebersichten und Tabellen über den Zustand der Justiz-Verwaltung', 31 October 1833, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 10107, Bl. 77–92.

[19] Such records were not original to Prussia; rather they were first developed in the southern German states. In 1802, officials in Bavaria began keeping notes on the criminal processes seen by the *Churfürstliche Gerichtshöfe* and by the 1830s they were generating regular statistical reports. In Baden, officials collected their first *Criminal-Tabellen* in 1809, and by 1830 the government was publishing regular justice statistics. Likewise, in the Habsburg lands courts were held responsible for collecting justice statistics after the introduction of a new criminal code in 1803. See Helmut Graff, *Die deutsche Kriminalstatistik: Geschichte und Gegenwart* (Stuttgart: Ferdinand Enke Verlag, 1975), 28–30.

[20] See the reports in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 10121, unpaginated.

[21] For the 1844 report, see GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8144, Bl. 2–11. The reports from 1845–53 all follow the same format. See ibid. Bl. 14–23, 28–33, 37–46, 49–59, 62–72,

Mühler's annual statistical reports were mainly focused on Prussia, although they also included some supplements generated abroad. For example, in 1837 Mühler received the first of what would become an annual exchange of statistics from Austria detailing crime in the German and Italian Habsburg territories.[22] At the same time, the Prussian government also began receiving reports from France on the administration of criminal justice.[23] In France, statistical information was first collected in 1803 on the cases brought before the *cours d'assises*, and in 1825 the Ministry of Justice centralized its information-gathering on crime. Every *département* was required to send quarterly reports detailing the number of charges brought before the courts, as well as giving details on the age, sex, and occupation of the accused, their civil status, place of birth, residence, and level of education. By 1827, these data were being published annually under the title *Compte général de l'administration de la justice criminelle*.[24] Furthermore, Prussia could have exchanged information with Britain, where the interest in judicial statistics was flourishing, but connections did not reach that far in the *Vormärz*. In England and Wales, for example, annual statistical returns relating to criminal activity had been published in the parliamentary papers since 1805. Following this, debates on the death penalty prompted the Home Secretary to request an annual return of the numbers of indictable committals for trial, capital convictions, and executions from the clerks of each court or circuit. The resulting statistics detailed the number of persons in England and Wales who had been tried for an indictment, discharged on 'no true bill' being found, acquitted, or convicted.[25] Supplementary information was later included on the types of crimes committed, and, in 1833, the judicial statistics of England and Wales were rearranged according to six major categories of crime: offences against the person; offences against property involving violence; offences against property not involving violence; malicious offences against property; offences against the currency; and miscellaneous offences such as treason or sedition. Information relating to gaols and prisoners was also systematized in 1836 to detail the age, sex, degree of instruction, and former incarcerations of all prisoners.[26]

The information compiled by the Ministry of Justice from both inside and outside Prussia was highly evocative, facilitating a growing interest in understanding crime, criminal and penal institutions, and the effects institutional practice should have on further lawmaking. For example, Friedrich Wilhelm III approved the first

74–83, 86–103, 106–14, and 118–26. For a discussion of their content, see Richard J. Evans, *Rituals of Retribution: Capital Punishment in Germany, 1600–1987* (Oxford: Oxford University Press, 1996), 285–305.

[22] GStA PK, I. HA Rep. 84a Justizministerium, Nr. 7967, Bl. 1 ff. For the Austrian reports over the entirety of the *Vormärz*, see also GStA PK, I. HA Rep. 84a Justizministerium, Nr. 7968, 7969.

[23] This was, however, on a less frequent basis. See GStA PK, I. HA Rep. 84a Justizministerium, Nr. 7967, Bl. 13 ff.

[24] Michael Friendly, 'A.-M. Guerry's Moral Statistics of France: Challenges for Multivariable Spatial Analysis', *Statistical Science*, 22 (2007), 368–99, at 369–70; Clive Emsley, *Crime, Police, & Penal Policy: European Experiences, 1750–1940* (Oxford: Oxford University Press, 2007), 119–20.

[25] V. A. C. Gatrell and T. B. Hadden, 'Criminal Statistics and their Interpretation', in E. A. Wrigley (ed.), *Nineteenth-Century Society: Essays in the Use of Quantitative Methods for the Study of Social Data* (Cambridge: Cambridge University Press, 1972), 336–96, at 341.

[26] Ibid. 342–3.

state-commissioned survey into crime rates in Prussia after reading Mühler's 1835 report. Mühler conducted this survey in November 1836, writing to the provincial authorities across the state to request information on the causes of the increase in crime.[27] As the *Regierungspräsident* in Breslau paraphrased, Mühler wanted specifics, not the kind of generalizations that administrators were hitherto prone to making. As he wrote:

> When investigating these causes, it is insufficient simply to state poverty or the lack of a moral, religious upbringing as general causes of the crimes that have been committed; rather it is [better] to go back to the causes of impoverishment, ignorance, and the lack of education, and to check whether these are rooted in the decline of trade, a shortage of commercial traffic, crop failure, the neglect of the education, the occupational management of children, avoidance of school and religious teaching, the personality and diminished effectiveness of a town's school teachers and priests, the proliferation of bars and taverns . . .[28]

In this way, Mühler collected an unprecedented amount of information on crime,[29] with most of the reports offering novel analyses that reached further into society than ever before. This was particularly striking, if we remember that the Justice Minister Kamptz used this same wave of crime to reintroduce retrograde measures into his draft criminal code. Moreover, these particular figures would be of great importance to debate in 1848, as would the many other statistics on institutions and institutional practices gathered by Mühler.

A reforming energy was thus clearly evident in both the legislative and the administrative offices of the Justice Ministry during the *Vormärz*, but by Mühler's departure in 1844 there were still no major restructurings to speak of. Discontent and frustrations with this situation began to mount alongside outbursts of wider social unrest. Specifically, Prussian legal experts such as Georg Beseler, Karl Mittermaier, Friedrich Dahlmann, and August Ludwig Reyscher, as well as large numbers of lawyers, gathered at the multidisciplinary Germanist conferences (*Germanistentage*) in 1846 and 1847, and voiced their concerns about the shortcomings of criminal law. At the 1847 *Germanistentag*, they affirmed the need for codification as per Savigny's suggestions—something many German jurists had been hesitant to endorse because of the conflation of codes with non-German legal traditions. The jurists among the *Germanisten* also advocated a greater legal certainty in criminal law that would reduce the former distinctions between the hereditary noble and newly propertied male, despite maintaining them across from other

[27] Friedrich Wilhelm III to Mühler, 19 October 1836, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8187, Bl. 1, or the same in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 10110, Bl. 259–60.

[28] Printed instructions of the *Regierungspräsident* in Breslau for use in the province, 29 November 1836, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8187, Bl. 16.

[29] These sources are extremely rich, numerous, and deserving of analysis in their own right. For an excellent example of the themes raised in this body of sources, see the report from Naumberg in ibid. Bl. 312–55. For the entire collection, see GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8187, 8188, 8189, 8190, 8191, 8192, 8193.

social groups, including women.[30] These legal opinions were complemented by a tide of popular opinion on the need to reform many of the punishments practised by the state. In particular, public torture in the form of capital punishment came to be considered an offensive relic of the past.[31]

In addition to the question of a criminal code, liberal jurists also demanded, even more vehemently, a reform of court procedure during the *Germanistentage*. A commission was formed at the *Germanistentag* in 1846 to explore the overall worth and possibilities for the implementation of juries more widely across the German states.[32] In 1847, Mittermaier presented its findings. The report outlined two types of jury court. The first, the *Schwurgericht* or *Geschworenengericht*, was composed entirely by laymen, who deliberated on the question of guilt. The second, the *Schöffengericht* or mixed court, was composed of laymen and judges. There was disagreement among the *Germanisten* as to which form was best, despite Mittermaier arguing for the effectiveness of both types of court.[33] But, either way, consensus existed for the argument that public trials before juries would reduce arbitrary judgments more effectively than the secret trials based on written evidence that characterized the pre-March era.[34] In other words, realizing the public nature of trials was essential.

Finally, the *Germanisten* called for an embrace of German legal traditions and, ultimately, the creation of a single body of laws for a unified Germany. As one participant argued, legislation based on Roman law rather than German foundations had not 'turned into flesh and blood'.[35] Such laws were, he and many others argued, detached from the German language and therefore incompatible with the German spirit.[36] Instead, he called for German law for the German people. This echoed Savigny's emphasis on 'national expression', but the *Germanisten* would go one step further, extrapolating it into a demand for the national unification of law. And this is precisely what Mittermaier and other leading legal reformers argued as they took up seats at the assembly in the Paulskirche in 1848.

REFORMING CRIMINAL JUSTICE

With the outbreak of revolution, the debate about reforming criminal justice rapidly politicized in Prussia. On 7 July 1848, the Minister of Justice Karl Anton Märcker (1803–71) led debate for the Auerswald Ministry of State in the Prussian National

[30] Crosby, *The Making of a German Constitution*, 134–9.

[31] Evans, *Rituals of Retribution*, 266–77.

[32] See Mittermaier's speech on 25 September 1846 in *Verhandlungen der Germanisten zu Frankfurt am Main am 24., 25. und 26. September 1846* (Frankfurt am Main: J. D. Sauerländer's Verlag, 1847), 101.

[33] See Mittermaier's report from 28 September 1847 in *Verhandlungen der Germanisten zu Lübeck am 27., 28. und 30. September 1847* (Lübeck: Carl Boldemann, 1848), 68–91.

[34] Peter Landau, 'Schwurgerichte und Schöffengerichte in Deutschland im 19. Jahrhundert bis 1870', in Antonio Padoa Schioppa (ed.), *The Trial Jury in England, France, Germany, 1700–1900* (Berlin: Duncker & Humblot, 1987), 241–304, at 263–6.

[35] See Christ's speech on 25 September 1846 in *Verhandlungen der Germanisten zu Frankfurt am Main*, 75.

[36] Ibid. 80.

Assembly, arguing that the state was moving with popular opinion in the redrafting of a criminal code and court procedure. And, in an article entitled 'Statistical Remarks on the Death Penalty' (*Statistische Bemerkungen über die Todesstrafe*)—published on 28 July 1848 in the *Justiz-Ministerial-Blatt* and again on 1 August 1848 in the *Preußischer Staats-Anzeiger*—the ministry argued that the materials developed in the years leading up to the revolution would help to consolidate this position, especially with respect to the issue of the complete abolition of capital punishment from any such code. As the article stated:

> For some time, the legitimacy of the death penalty has been repeatedly disputed and one field of application after another has been gradually stripped from it. During the deliberations over the draft of a new Prussian criminal code at the beginning of this year, influential voices declared themselves against the death penalty and now in the Prussian National Assembly the complete abolition of this penalty has once again been proposed. It would therefore appear timely to draw attention to the available statistical material in the files of the Justice Ministry, which in this connection leads to important insights on this matter, but has until now been overlooked.[37]

Debate narrowed noticeably in the Prussian National Assembly in 1848 to a focus on the symbolic terrain of substantive criminal law, particularly the place of the death penalty in a new criminal code. In this milieu, the Ministry of Justice presented its statistical observations on death sentences passed and confirmed between the years 1826 and 1843 (inclusive) to show that the draft criminal code of 1847 would provide milder punishments in tune with revolutionary demands. Had the draft criminal code of 1847 been in place over the period in question, it claimed, the exercise of justice by the state would have been far more restrained. Under the former arrangement, 426 death sentences had been passed and 100 confirmed, but, if the draft criminal code of 1847 had been in force during that period, there would have been 187 death sentences passed and 81 confirmed. It also showed that no cases of intentional poisoning of wells, intentional stranding of a ship, or intentional flooding had even been tried over the period 1826–43, suggesting that capital punishment for these crimes was simply redundant. Similarly, of the twelve persons tried for arson, only one death sentence had been enforced during the *Vormärz*. In this instance, the convicted had started four fires, which resulted in more than 50,000 Taler worth of damage and the death of one person. Such recklessness appeared to provide sufficient grounds for an exceptionally harsh sentence, as did the repeat nature of the accused's crimes, and the reports of the prison officers that he was 'dangerous, malicious, and depraved'. But, even then, the ministry argued, institutional practice had established the 'rule'—namely, that capital punishment was rarely applied in cases of arson.[38]

The same recourse to patterns also demonstrated the redundancy of capital punishment as a possible sentence in cases of murdering illegitimate children and cases of manslaughter against older relatives, but the area where reform was more

[37] *Justiz-Ministerial-Blatt für die Preußische Gesetzgebung und Rechtspflege,* 28. Juli 1848, pp. 247–58, at 247, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8144, Bl. 35.

[38] Ibid. Bl. 248.

complicated was that of murder. Here capital punishment was being used on a significant scale. Over the period 1826–43, 76 death sentences were handed down after the trial of 135 cases. But the Ministry of Justice nevertheless managed to make the argument for change. In the Rhine Province, it argued, only a very small number of death sentences (5 out of 48) were actually carried out. This was important, because it showed that, in the presence of juries, death sentences for murder were rarely exacted. With the new criminal code, it continued, juries would spread across the state, and lower rates of death sentences for murder would follow.[39] In short, the Justice Ministry was arguing that an understanding of how criminal and penal institutions worked was crucial to the question of reform, and that, when one recognized how sentencing was being applied in practice, the jump to abolishing capital punishment in law was not so great. Prussia could, Märcker concluded, afford to make the entire structure of sentencing milder without posing serious risks to safety and order, and, in doing so, it would win wider support for state institutions.

This emphasis on effectiveness had its detractors, especially on the political extremes where substantive criminal law was used to characterize the nature of the state *in toto*. Ultraconservatives in the *camarilla* were ill disposed towards Märcker and branded him a liberal in acting as he did.[40] Those on the left were likewise less than generous in their opinions. Having read the ministry's report, Karl Marx took up his pen and levelled his own interpretation of Prussia's statistical data. 'Admire the mildness, the excellence, and the glory of the Royal Prussian Criminal Code of 1847!' wrote Marx in the *Neue Rheinische Zeitung* on 3 August 1848. 'Perhaps as much as one entire death sentence less would have been carried out in the Rhine Province in 18 years! What advantages!'[41] But Märcker was not perturbed, nor was the National Assembly. It voted to abolish capital punishment with certain limitations on 4, 8, and 9 August 1848, stipulating that the death penalty would be used only for offences for which it was already prescribed in times of war or a state of siege.[42] And in doing so, one of the lines of argument underpinning debate was the idea that 'patterns of practice' provided a helpful way to think about judicial reform. In other words, Märcker's use of statistics reflected the 'arrival' of critical statistical method in government as justice statistics were no longer used only to understand institutional practice but were now employed to back particular government policies.

Such reforming activity was not lost as conservatives returned to power late that year. In December 1848 and January 1849, the Brandenburg–Manteuffel Ministry of State tasked the Justice Ministry with introducing a criminal code for all of Prussia. Additionally, it focused on executing the wider and more moderate reforms to court structures and trial procedure proposed during the *Vormärz* and developed in 1848. In the constitution of 5 December 1848, Manteuffel included articles

[39] Ibid. Bl. 248–51.

[40] Wilhelm Blos, *Die deutsche Revolution: Geschichte der deutschen Bewegung von 1848 und 1849* (Stuttgart: Dietz, 1893), 374.

[41] 'The Hansemann Government and the Old-Prussian Criminal Bill', *Neue Rheinische Zeitung*, 4 August 1848, in Karl Marx and Friedrich Engels, *Karl Marx, Friedrich Engels: Collected Works*, 50 vols (London: Lawrence & Wishart, 1975–2004), vii. 317–18, at 318.

[42] Evans, *Rituals of Retribution*, 274–6.

that: abolished private judicial authority in favour of courts under state sanction (Article 40); introduced public criminal proceedings (Article 92); and mandated the calling of juries (Article 93). This was followed on 2 and 3 January 1849 by a royal decree confirming the abolition of private judicial authority and a second decree outlining the new form that trials would take (*Strafprozessordnung*).[43] The *Strafprozessordnung* made, among other things, the public prosecution procedure that had existed for many years in the Rhine Province binding for the entire Prussian state.[44]

The creation of a new judicial landscape of state courts was a massive project of institutional change in Prussia that would continue to unfold throughout the 1850s. This included the introduction of a new supreme court, the *Obertribunal*, and twenty-one courts of appeals (*Appellationsgerichte*) to replace the older higher district courts (*Oberlandesgerichte*).[45] Additionally, some 970 patrimonial courts across the state were replaced with 89 jury courts (*Schwurgerichte*) by 1857.[46] In these courtrooms, the unique right of the landed nobility to public trials was brought to an end.[47] Henceforth, others too would have this entitlement, as outlined in the decree of 3 January 1849 and its later counterpart in the law of 3 May 1852. The emphasis on the verbal nature of proceedings in these pieces of legislation made transparency appear more accessible for newly propertied Prussians, although it continued to overlook women and the lower classes.

The presence of juries would fundamentally alter courtrooms across Prussia and beyond. In Austria, for instance, jury courts were instituted from 1850 to 1853, but, unlike Prussia, they did not remain a fixture thereafter. Most German states introduced provisional pieces of legislation in the first instance to initiate reform, including: Bavaria; Hesse-Darmstadt; Württemberg; Baden; and Nassau. Others formulated more detailed codes of criminal procedure, including Hanover, Hesse, Brunswick, and the Thuringian states. And only a small number of places resisted change altogether, adhering to the old inquisitional process. These included Mecklenburg, Holstein, Lippe, and the Hanseatic cities.[48]

While this was happening, work slowly began in the Justice Ministry on finally introducing a modern criminal code. Based squarely on Savigny's 1847 draft, a code was produced by judicial officials that provided more widely accepted ways of ensuring legal certainty and punishments for criminal infractions, despite reintroducing the death penalty for high treason, murder, and manslaughter or intentional

[43] Dirk Blasius, *Bürgerliche Gesellschaft und Kriminalität: Zur Sozialgeschichte Preußens im Vormärz* (Göttingen: Vandenhoeck & Ruprecht, 1976), 132–3.

[44] Peter Collin, *'Wächter der Gesetze' oder 'Organ der Staatsregierung'? Konzipierung, Einrichtung und Anleitung der Staatsanwaltschaft durch das preußische Justizministerium. Von den Anfängen bis 1860* (Frankfurt am Main: Vittorio Klostermann, 2000).

[45] John R. Gillis, *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971), 123.

[46] 'Statistik der Preußischen Schwurgerichte für die Jahre 1856 und 1857', *Archiv für Preußisches Strafrecht 6* (1858), 789–857, at 789–91.

[47] Crosby, *The Making of a German Constitution*, 139.

[48] Landau, 'Schwurgerichte und Schöffengerichte', 268.

homicide in connection with a crime.[49] Moreover, it sought to implement these changes uniformly across the state, from the Rhine Province to Silesia. A commission from the *Landtag* was formed to scrutinize the new code, and enthusiastically supported the work. It suggested only a small number of modifications, which Simons in turn encouraged the Ministry of State to accept in the interest of bringing this legislation swiftly before the chambers.[50] Following this, the commission reporter, Erasmus Robert Freiherr von Patow, presented the draft code in the Second Chamber on 27 March 1851.

Patow argued that few would contest the idea that a new criminal code was an urgent necessity for the Prussian state. He rehearsed the now common argument that maintaining a mixture of legislative codes across Prussia was untenable as multiplicity jeopardized legal certainty, and that, even in the Rhine Province, where codification was seen to be most advanced, there were shortcomings that needed addressing after forty-odd years of implementation of the *Code pénal*. None of Patow's remarks was new, but the point, as he framed it, was that the action now being taken by the Justice Ministry would not have been possible five or ten years previously. Furthermore, it certainly would not have been as ambitious.[51] In other words, the revolution had exposed the need for reform with greater drama, making the Ministry of State more motivated to ensure change occurred. Indeed, Simons claimed that the timing was right for a codification of substantive criminal law and the 'political advancement' it represented.[52]

Sure enough, there were still concerns. The representative Janecki raised his doubts about the inclusion of the death penalty in the new code, but even he acknowledged the support for it across the floor.[53] Other liberals in the Second Chamber adopted a different tack, using the opportunity to push the Ministry of State towards further reform. The representative Straß, for instance, in the hope of increasing the flow of capital in Prussia, suggested that a modification of §263 concerning usury was necessary. He emphasized the relationship between material want and crime, baiting the government with the premise that 'well-off people are rarely revolutionary. Consequently,' he argued, 'if you strongly support the subject of my amendment then you are indirectly working against the revolution'. In making this argument, Straß positioned himself cleverly, appealing to the sentiment that he was neither a reactionary nor a revolutionary, but simply interested in the effective administration of capital in Prussia.[54] Vincke likewise used the opportunity to raise the need for further reforms beyond that of criminal justice. As he put it: the strict penalties against begging contained in the new code made it all the more pertinent that the chambers undertake a far-reaching reform of poor relief

[49] Evans, *Rituals of Retribution*, 281.

[50] Meeting of the Ministry of State, 21 February 1851, in Bärbel Holtz (ed.), *Acta Borussica: Die Protokolle des Preußischen Staatsministeriums 1817–1934/38*, iv. *30. März 1848 bis 27 Oktober 1858*, ed. Berlin-Brandenburg Academy of Sciences under the direction of Jürgen Kocka, Wolfgang Neugebauer, and Reinhold Zilch (Hildesheim: Olms-Weidmann, 2000), iv. 191.

[51] *Verhandlungen der Ersten und Zweiten Kammer über die Entwürfe des Strafgesetzbuchs für die Preußischen Staaten und des Gesetzes über die Einführung desselben, vom 10. Dezember 1850* (Berlin: Verlag der Deckerschen Geheimen Ober-Hofbuchdruckerei, 1851), 1–4.

[52] Ibid. 8–14. [53] Ibid. 17. [54] Ibid. 437.

(*Armenpflege*), and this, he hoped, the government would attend to in the next parliamentary session.[55]

In the First Chamber, there were also misgivings. Ludwig von Gerlach dominated debate, decrying codification and the suggestion that the chambers should accept the legislation *en bloc*. He also questioned the wisdom of grounding the new code in a system that contained the jury court—an institution that, according to his experience, was losing popularity by the day.[56] This opposition was refuted on ideological grounds by Theodor Goltdammer and Wilhelm Adolf Lette. Simons, however, continued to avoid any sense of abstract musings on the inherent value of codification. Rather, he stressed once again the practical reasons for change. As he put it:

> the hitherto special laws have proved how difficult it is to regulate jurisdiction correctly and in accordance with the existing criminal systems; at the same time, one must consider three, and now, since the acquisition of the Hohenzollern Lands, four different systems of criminal law.[57]

And with that, the Ministry of State looked to curb any further discussion. On 14 April 1851, the Prussian Criminal Code was passed unanimously, finally bringing this long chapter of drafting and redrafting to an end.

Delighted, members of the commission immediately began writing publications to explain the code to a general public. Reports and commentaries by Georg Beseler and Theodor Goltdammer were well received in judicial circles.[58] And in newspapers aimed at the middle classes, the new code was also popularly reviewed. Of course, this made sense, given the gains afforded to Prussia's bourgeoisie in the area of criminal justice after 1848. But there was one noticeable constituency that still felt uneasy with the legislation. This was those Catholics who had reviewed the draft code of 1847 and noted the intrusion of criminal law into church matters, especially with respect to dismissals from post and perjury. Bishops in Cologne, Trier, and Münster appealed for a revision of the criminal code, yet this was met with no response, leaving their particular grievances unaddressed.[59]

The Prussian reforms to substantive criminal law were characteristic of those states in German-speaking Europe that had avoided any sort of revision to criminal law during the Napoleonic Wars or in the aftermath of the Revolutions of 1830. This included Austria, where, in 1852, officials revised the Empire's code of 1803. Furthermore, reform in the two largest of the German states was not lost on other states in need of criminal codes. The Prussian code provided a template for several of the smaller German free cities and states such as Lübeck, the Principality of Waldeck-Pyrmont, and the Grand Duchy of Oldenburg.[60] Yet, for states with recent criminal codes, reform was less dramatic in the 1850s. In Bavaria, the

[55] Ibid. 439. [56] Ibid. 421–2. [57] Ibid. 427.

[58] Beseler, *Kommentar über das Strafgesetzbuch*; Theodor Goltdammer, *Die Materialien zum Straf-Gesetzbuche für die Preußischen Staaten, aus den amtlichen Quellen nach den Paragraphen des Gesetzbuches zusammengestellt und in einem Kommentar erläutert durch Goltdammer, Königlichen Kammergerichts-Rath,* 2 vols (Berlin: Carl Heymann, 1851).

[59] See the letters from 1851 in GStA PK, I. HA Rep. 76 Kultusministerium, IV Sekt. 1 Abt. II Nr. 42.

[60] Carl Ludwig von Bar, *A History of Continental Criminal Law* (Boston: Little, Brown, and Company, 1916), 352.

Bavarian Criminal Code of 1813 had already introduced a three-part division of criminal offences that came under the purview of different courts or the police. This state offered, therefore, a more dynamic model for the positivization of criminal law in the *Vormärz* than the two German great powers. But, even here, the code would be reformed in 1861 to bring its severe punishments into line with the codes produced in the 1850s. In other states more representative of the Third Germany, such as Württemberg and Saxony, attempts were made in the years before 1848 to reform substantive criminal law, with the former producing a criminal code in 1839 and the latter undergoing a continual process of reform with codes introduced in 1838, 1855, and again in 1868. Here one saw the introduction of milder punishments deemed to be more appropriate to the times by liberal reformers, including the abolition of the death penalty in Saxony. And in smaller states with a strong liberal tradition, such as Baden, reform outpaced Prussia, as one would expect, with the introduction of a criminal code in 1845.[61] The Prussian response to these more liberal codes to the south would come to the fore in the 1860s as Bismarck sought to control national codification, but, for the moment, Prussia had taken a dramatic step towards the rationalization of criminal law.

REGULATING THE COURTS

The new judicial landscape of state courts acting in accordance with the Criminal Code of 1851 was a massive change in Prussia, but any further reform of substantive criminal law would not be seen in the 1850s. Rather, the attention of the ministry shifted to new court procedures, which were still delicate in practice. In this traditionally less sensational arena of criminal justice, it sought to defend newly minted court procedures against reactionary revisions. In particular, Manteuffel and Simons looked to counter the desire of Friedrich Wilhelm IV and the Prussian police to host show trials against political enemies—just as they had done with the Poland Trial.

One of the first such hearings involved the prosecution of Benedikt Waldeck, the most prominent democrat in the Prussian National Assembly in 1848 and a judge of the *Obertribunal*. Public interest around this case was substantial, but, contrary to expectations, Waldeck was acquitted of high treason in 1849 by a jury that deliberated for only fifteen minutes.[62] A second, similar trial centred on the Bonn professor of art history, Gottfried Kinkel, who had been arrested for his role in the Baden insurrection in 1849. The intention behind prosecuting Kinkel was once again to demonstrate the renewed power of the state over former revolutionaries, but, here too, the trial proved difficult to contain, as stories of Kinkel's court experiences, imprisonment, and prison living conditions generated a great deal of anger from the left-wing press both at home and abroad.[63] In addition, Kinkel's

[61] Vormbaum, *A Modern History of German Criminal Law*, 68–70.

[62] Kenneth F. Ledford, 'Judicial Independence and Political Representation: Prussian Judges as Parliamentary Deputies, 1849–1913', *Law & Social Inquiry*, 25 (2000), 1049–75, at 1062.

[63] On Kinkel's fame in Britain, see Rosemary Ashton, 'Gottfried Kinkel and University College London', in Peter Alter and Rudolf Muhs (eds), *Exilanten und andere Deutsche in Fontanes London* (Stuttgart: Hans-Dieter Heinz, 1996), 23–40.

spectacular escape from Spandau prison in November 1850 embarrassed the police in their attempts not only to manage the Kinkel story but to maintain security. As the *Kreuzzeitung* claimed, Kinkel's escape powerfully advertised the vitality of democratic networks across Prussia and throughout Europe. It wrote:

> Every fact that gradually comes to light connected with Kinkel's escape from Spandau is a proof of the dangerous energy and the power of a united action in the Democratic party. Kinkel fled in the first place from Spandau to Strelitz, and thence to Warnemünde. On the whole route at every two miles (eight English) were relays of horses with a carriage ready in waiting for three days and nights. More than a hundred individuals were informed of the plan but of course not one of those whose special duty it was to know of such matters. In Warnemünde the ship that was to have received the fugitive was not ready to sail, and Kinkel was taken to Rostock, and concealed in a house near the gate for eight days till he could embark in the vessel that landed him in Scotland.[64]

Kinkel became a *cause célèbre* for the left-wing press, which considered his dramatic escape from Spandau as a welcome raspberry in the face of the Prussian state. His flight to Scotland was followed up with newspaper reports in November 1851 that he and other 'revolutionary democrats' were attempting to raise money across the Atlantic to unleash a new wave of revolutions in the German and Italian states. It was reported in American and later in English papers that he had created a fund of US$2,000,000 for 'the approaching revolution in Germany' to match the US$2,000,000 that Italian revolutionaries had already accumulated in a bank in London for the purpose of 'blow[ing] up the crowned tyrants of the Old World'.[65]

Trials of this ilk were often failures, but they did not stop Friedrich Wilhelm IV and the Prussian police from meddling in the administration of justice, especially as fear of a communist revolution grew in the 1850s. This meant that, after the failure of the Kinkel trial, the monarch encouraged an even more spectacular trial of eleven men accused of high treason in Cologne in 1852.[66] At the centre of the event stood Peter Nothjung. Nothjung had been arrested at Leipzig's central train station for possessing a copy of the Communist Manifesto and the March and June Addresses of the Central Authority of the Communist League.[67] News of the arrest was taken with the utmost seriousness in Prussia, where the Berlin Police President Hinckeldey and police inspector Wilhelm Stieber interpreted Nothjung's actions as an attempt to gather support for an international communist conspiracy to overthrow the Prussian state. They secured an extradition from the Kingdom of

[64] *Kreuzzeitung*, quoted in 'Prussia', *The Times*, 3 January 1851, p. 6.

[65] 'America', *The Times,* 3 November 1851, p. 4.; 'The United States', *The Times,* 4 November 1851, p. 4.

[66] On the trial, see, above all, Jürgen Herres, 'Der Kölner Kommunistenprozess von 1852', *Geschichte in Köln. Zeitschrift für Stadt- und Regionalgeschichte*, 50 (2003), 133–55.

[67] He was arrested during an increased effort on the part of the German states to monitor travellers, vagabonds, and work-shy artisans—the groups they believed likely to form revolutionary plots. See Karl Marx and Frederick Engels, *The Cologne Communist Trial,* trans. Rodney Livingstone (London: Lawrence and Wishart, 1971), 20.

Saxony, and, on the encouragement of Friedrich Wilhelm IV, the Prussian office of public prosecution brought Nothjung and ten others to trial.[68]

On the morning of 4 October 1852, crowds gathered in the city of Cologne in anticipation of a spectacle. Inside the court the prosecution lived up to the expectations by calling an imposing seventy-three witnesses in comparison to the twenty-two witnesses presented by the defence.[69] And, outside the court, the *Kreuzzeitung* and the *Kölnische Zeitung* published official versions of the proceedings, while other newspapers jostled to relay details to an enthralled public.[70] Across the Channel, Karl Marx also followed the happenings in Prussia, writing his own damning coverage of the event.[71] As he saw it, rather than demonstrating the effective policing of communists, the trial was a farce.[72] Evidence to support a communist plot against the crown was seriously lacking. Furthermore, the cornerstone of the prosecution's case—the Minutes of the London Central Committee of the Communist League—appeared to have been fabricated.[73] What had begun as an event of 'world historical importance', relayed the *Allgemeine Zeitung* in Augsburg, quickly lost its intended significance. It reported:

> The political importance of the process diminishes each day as it becomes increasingly clear that we are not dealing here with a large, powerful association, which threatens the foundations of society as a whole. Rather [we are talking] at the most about a dozen people . . . who believe, in their vanity, that they are called to turn the world violently on its head.[74]

By November, the trial had become a public-relations disaster for Friedrich Wilhelm IV and the Prussian police, with the proceedings clearly demonstrating their willingness to transgress the basic principles of a legal state in the hope of prosecuting communists.

[68] Friedrich Wilhelm IV had been looking for such a trial since November 1850 to 'provide the Prussian public with the long and justly awaited spectacle [*Schauspiel*] of the discovery and (above all) the punishment of a plot'. See Friedrich Wilhelm IV to Manteuffel, 11 November 1850, in Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901), i. 328.

[69] Herres, 'Der Kölner Kommunistenprozess ', 144.

[70] On the coverage in the *Kölnische Zeitung*, see Karl Bittel, *Der Kommunistenprozeß zu Köln 1852 im Spiegel der zeitgenössischen Presse* (Berlin: Rüten & Loeing, 1955).

[71] Marx wrote the pamphlet *Enthüllungen über den Kommunistenprozeß zu Köln* during the trial. It was published in Basel in January 1853, but the Baden police confiscated almost all 2,000 copies intended for distribution in the German states. The pamphlet was successfully published in installments in the Boston newspaper *Neu-England-Zeitung* on 6 March, 2 April, and 28 April 1853. It was printed a second time at the end of April 1853, but plans to smuggle significant numbers of the pamphlet into Prussia were once again unsuccessful. See Karl Marx, *Enthüllungen über den Kommunisten-Prozeß zu Köln* (Basle: Buchdruckerei von Chr. Krüfi, 1853), in *Marx-Engels-Gesamtausgabe (MEGA)*, erste Abteilung, 32 vols (Berlin: Dietz Verlag, 1985), xi. 363–424, 974–1022.

[72] Indeed, the affair had already begun to fall apart long before autumn 1852. In October 1851, the Prosecution Council (*der Anklagesenat des Kölner Appellationsgerichtshofes*) had already ruled that there was insufficient evidence to try the accused. The Prussian police searched for and claimed to find new evidence, which resulted in the trial of October 1852.

[73] For a legal analysis of the trial, see Christoph Golsong, *Der Kölner Kommunistenprozeß von 1852 aus rechtshistorischer Sicht* (Ph.D. dissertation, Cologne, 1995).

[74] Herres, 'Der Kölner Kommunistenprozess', 144–5, n. 48.

The result of these and other poorly executed attempts to manage new court procedures in Prussia was that Friedrich Wilhelm IV sought the exclusion of juries from a broad range of political trials. This included trials for treason, for high treason, or for violence against the person of the King, the Queen, the heir apparent, other members of the royal house, or a Regent of the Prussian states. He also sought to withdraw cases regarding treasonable actions against friendly states from those held before juries. In these cases, the seat of the layman would be occupied by members of the judiciary. In striving for such gains, Friedrich Wilhelm IV hoped that a 'second Cologne trial' would take place behind closed doors and thereby secure the draconian sentences he had failed to achieve thus far.[75]

Manteuffel and Simons were partly willing to acquiesce to this line of thinking. They, along with many progressive ministers, agreed that the Cologne trial had been disastrous. And they believed that the communist threat was too dangerous not to be handled effectively. On this point, they were not alone. Even some penal reformers like Carl Joseph Anton Mittermaier believed that juries were not handling political cases well. Juries were, as he demonstrated on the basis of an analysis of Prussia's official statistical data, prone to handing out excessively lenient sentences.[76] It should be noted that Mittermaier's reflections spoke in part to a much larger debate taking place in the legal profession about the relative worth of mixed jury courts versus those with laymen only. And, while he was ultimately one of the most ardent defenders of the lay jury court, even he could see limitations to the institution when it came to more sensitive cases.

In this environment, Simons agreed to peel back the remit of juries in Prussia. He drafted a law of 23 April 1853, which established the Berlin *Kammergericht* (*Staatsgerichtshof beim Kammergericht Berlin*). To Friedrich Wilhelm IV's satisfaction, this court would take sole responsibility for political cases, effectively removing them from public exposure in jury courts. Alongside Friedrich Wilhelm IV, the Police President von Hinckeldey welcomed the new arrangement, having sought to keep juries out of press and political trials since September 1851.[77]

The removal of political trials from the jury courts was reactionary, but it did not undo the principles behind the procedural reform implemented by the Ministry of State in the years directly after 1848. This was because Manteuffel and Simons never fundamentally questioned the permanency of the public jury trials in the wider legal landscape in the 1850s. As Simons wrote to Friedrich Wilhelm IV in 1855:

> It is known that opinions about the worth of the jury courts differ considerably. After I took over the leadership of the . . . ministry, I soon came to the conviction that it would be desirable to withdraw from the jury the power to decide in cases of political

[75] This is exactly what happened. The men tried in the 'second Cologne Trial' were those who had helped Kinkel escape. See ibid. 154.

[76] Carl Mittermaier, 'Erfahrungen über die Wirksamkeit der Schwurgerichte in Deutschland, vorzüglich in Preußen', *Gerichtssaal*, 4 (1852), 299–334, at 319–20.

[77] See the 'Beschlüsse der Dresdner 2. Polizeikonferenz gegen Presse, Kolportage und Buchhandel (13.9. 1851)' written by Hinckeldey, in Wolfram Siemann (ed.), *Der 'Polizeiverein' deutscher Staaten: Eine Dokumentation zur Überwachung der Öffentlichkeit nach der Revolution von 1848/49* (Tübingen: M. Niemeyer, 1983), 53–4.

> crime and the crimes of the press. These changes were brought about through new laws, but incidentally the retention of the institution itself was always handled as an open question. So long as it exists in this form in this way, I believe we must agree that the first task demanding resolution is to achieve by means of the given institutions results that are as satisfactory as possible.[78]

The focus of Simons's work, in other words, involved ensuring that juries were a sound improvement, making the face of reform rather quotidian for most of the 1850s.

In great part, consolidating trials by jury required defending the institution against further, albeit less dramatic, ultraconservative attacks. For example, as early as 1852 Friedrich Wilhelm IV began to point out inconsistencies in the verdicts given by juries—what was in fact a characteristically liberal concern in criminal justice. On 15 September 1852, he asked Simons for a review of three verdicts from the court statistics, suggesting that their incongruities would cause an erosion of confidence amongst the Prussian people.[79] The first case Friedrich Wilhelm IV referred to concerned the labourer Jüterbock, who had been charged for murder during an attempted robbery. The basket-maker Lieske was also sentenced alongside Jüterbock in Küstrin's *Schwurgerichtshof* on 14 December 1851. Jüterbock was given the death penalty and Lieske life imprisonment (*lebenswierige Zuchthausstrafe*), two sentences that Friedrich Wilhelm IV questioned, owing to the incomplete nature of the court records.[80]

The second case involved the trial of the apprentice Studenski in Berlin on 9 February 1852. As Simons summarized it:

> The mill owner August was killed on the evening of 29 August last year in his living room by a shot fired from outside the window, shattering his head. The defendant had recently left his master's service as a result of dissonance and uttered repeated threats against him. The defendant was seen on many occasions armed with a rifle, which substantiated the suspicion that he was lying in wait for his former master. In addition, at the time of the incident he had been in the vicinity of the mill with a loaded rifle. This and many other compelling reasons for suspicion had the consequence that the charge of murder was levelled against Studenski.[81]

In this instance, Friedrich Wilhelm IV took issue with the fact that the jury had found Studenski guilty of murder but not preconceived murder and as a result had been given life imprisonment rather than the death penalty.

The third verdict, which Friedrich Wilhelm IV also found to be too mild, was that given to the tailor's apprentice Haube. Haube was tried by jury in Berlin on 12 March 1852. As Simons wrote:

> The tailor's apprentice Haube—sentenced to life imprisonment as a result of theft and the premeditated murder of his master, the tailor Notte—had resolved to rob his

[78] Simons to Friedrich Wilhelm IV, 19 December 1855, in GStA PK, I. HA Rep. 84a Justizministerium, Nr. 8050, Bl. 22–3, at Bl. 22.

[79] Friedrich Wilhelm IV to Simons, 15 September 1852, in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 4517, Bl. 324.

[80] 'Votum des Justiz-Ministers', 19 October 1852, in ibid., Bl. 300–23, at Bl. 300–1.

[81] Ibid., Bl. 302.

> master as he put it, 'no matter what it cost'. He brought a cleaver from the kitchen into his master's bedroom in order 'to prevent the masterfrom detaining him should he wake, and to throw it at him or hit him with it'. When the master really did wake up, the criminal seized the cleaver, which he had placed in front of the bed, and with it made several blows to the head of the master until he dropped the cleaver, went for a table knife and began to stab the master repeatedly. After this . . . the intruder changed his clothes and made off with the stolen goods. Recaptured in Hamburg, he immediately confessed to the deed but continually disputed that he had had the intention of killing his master.[82]

Haube's life imprisonment (rather than a death sentence) confirmed yet again Friedrich Wilhelm IV's suspicion that juries were handing out inconsistent and unjustifiably mild sentences. Simons conceded that in several recent murder cases sentencing did appear to be too light. But in the majority of cases, he argued, the introduction of juries had actually led to consistently harsher verdicts rather than more lenient ones. Between 1844 and 1849, Simons showed, the average number of death sentences handed out by the state for cases of murder and murder for gain (*Raubmord*) had been around 16 persons a year but in 1850 that number had risen to 37, in 1851 it stood at 43, and already in 1852 the courts had decided 21 death sentences.[83] This clear increase in the use of capital punishment coincided with the implementation of juries via the decree of 3 January 1849 rather than an increase in cases seen by the courts.[84] In short, juries were being extremely hard on offenders found guilty of murder, murder for gain, and manslaughter (*Totschlag*).

There was good reason for this. Despite Märcker's original prediction that the introduction of juries would see a decline in capital punishment, Simons argued that the way the presiding judge (*Vorsitzender des Schwurgerichts*) phrased his questions to the jury significantly influenced their perception of motive. In other words, they were eliciting inconsistent and often harsher verdicts. Yet, this was only partially true. The hostility of jurors in these cases also had to do with their vehement opposition to property crime. This was because Manteuffel had adopted the census system of the Rhine Province when stipulating who exactly had the right to sit as jurors, as had, coincidently, many other German states such as Bavaria, Hesse-Darmstadt, Baden, Hanover, Brunswick, and Oldenburg. This narrowed down prospective jurors to those who met the necessary tax qualifications to sit in court. Indeed, the census system was implemented in opposition to earlier suggestions for the universal right to sit on a jury for men between the ages of 30 and 70, as per the recommendations of the left-leaning representative of the Prussian National Assembly Julius von Kirchmann. For Manteuffel and many moderate liberals, this roused unacceptable democratic fears. But Manteuffel's solution also stalled the suggestions of Rudolf Gneist, August Heffter, and Mittermaier for a somewhat wider selection of persons.[85] Rather, he took comfort in the fact that such arrangements would boost the number of bureaucrats in the courts, and the government even went so far in a circular of 24 August 1849 as to encourage all

[82] Ibid., Bl. 302–3. [83] Ibid., Bl. 305, 325. [84] Ibid., Bl. 307.
[85] Landau, 'Schwurgerichte und Schöffengerichte, 269–76.

personnel to take up their right to sit on juries to strengthen this new institution in favour of the state.[86]

Simons, however, instead insisted that the problem of verdicts lay with the presiding judge. And he argued that it was necessary to refine courtroom practice rather than resort to new legislation to fix the problem.[87] He assured the king that he would be able to smooth out the inconsistencies in verdicts within the year. He would, as Manteuffel had done in the Interior Ministry, reverse the problem with presiding judges by a more careful selection and testing of candidates. He would also see to it that they were better informed about their task.[88] The same problems, he noted, had been experienced in two of the leading states of the Third Germany, Württemberg and Saxony, as well as in Hesse, Hanover, and Brunswick. In these states, no reactionary revision of legislation had taken place.[89] Hence, if Prussia too followed a course of personnel reform rather than legislative revision, Simons argued, there would be no reason to doubt that the statistics would become more consistent.

In the end, Simons was successful in his struggle with Friedrich Wilhelm IV. Friedrich Wilhelm IV appeared to be reasonably convinced by the ministry's ability to produce acceptable patterns of practice in the criminal justice system and made no further attempts to curtail the presence of juries in Prussian courts. Rather, he allowed criminal policy to focus on occupying the middle ground on law-enforcement issues. When placed against the pattern of revision undertaken across the German states in the years after 1850, this was a reasonably moderate position to adopt. As in Prussia, ministries in Hesse and Nassau revoked the right of juries to preside over cases of political import or involving the press in 1851, and in Hanover the same measures were taken in 1855 regarding political trials. Beyond these states there were cases of more extreme measures. The most dramatic revisions took place in Austria and Saxony. In the former, juries were repealed in January 1852 and abolished completely on 29 July 1853. This would last until their reintroduction in 1873. In Saxony, criminal cases involving the press were quickly removed from jury courts before the institution was abolished altogether in 1855. In both places, fears that the jury court could function as an instrument of revolution drove hostility to the institution. And, on the other side of the spectrum, it was mainly the southern German states that allowed political cases to be tried before juries. This included Bavaria, Wüttemberg, and Baden.[90]

With its success in preventing further interference, the Prussian Ministry of Justice looked to advertise its accomplishments in reforming criminal justice beyond government circles. In 1854, it produced the first of what would become an annual report on the effectiveness of Prussia's courts. The report was passed on to Theodor Goltdammer (1801–72)—a royal Tribunal Counsellor (*Obertribunalsrat*)—for publication in the *Archiv für Preußisches Strafrecht*, frequently referred to as

[86] Gillis, *The Prussian Bureaucracy in Crisis*, 126, n. 20.

[87] 'Votum des Justiz-Ministers', 19 October 1852, in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 4517, Bl. 313.

[88] Ibid., Bl. 314. [89] Ibid., Bl. 320–1.

[90] Landau, 'Schwurgerichte und Schöffengerichte, 268–9, 286–7.

Goltdammer's Archiv. Goltdammer's Archiv aimed to give a 'step by step' account of Prussia's legal development in the light of the new Criminal Code.[91] It contained both academic and practical discussions, and sought from its foundation to publish sources received from the Justice Ministry.[92] The importance of similar statistical reports to legal professionals had already been recognized for a considerable amount of time in England, France, Belgium, the Netherlands, Bavaria, and Baden, meaning that the Prussians were following, the journal claimed, a European trend in which states sought closer communication with professionals.[93]

The first report of the Prussian *Schwurgerichte* published in *Goltdammer's Archiv* attempted to trace the extent of work seen by the courts during the year 1854.[94] In the 88 courts in operation in Prussia, 5,553 cases were tried. Courts met on average three to four times a year for a period of ten days. Every session covered roughly seventeen cases and involved twenty-seven accused. These figures excluded Berlin, which sat every month. Of the cases seen by the state, the greatest percentage, at 23 per cent, was for incidences of repeat theft, followed by first-time acts of theft at 21 per cent. Following this were cases concerning forgery (*Urkundenfälschung*) at 9 per cent, perjury (*Meineid*) at 8 per cent, severe bodily harm (*schwere Körperverletzung*) at 6 per cent, crimes against morality (*Verbrechen gegen die Sittlichkeit*) at 5 per cent, malfeasance (*Verbrechen im Amt*) at 3 per cent, arson and other crimes dangerous to public safety (*Brandstiftung und andere gemeingefährliche Verbrechen*) at 3 per cent, robbery (*Raub*) at 1–2 per cent, counterfeiting (*Münzverbrechen*) at 1–2 per cent, murder (*Mord*) at 1 per cent, prison riots (*Zusammenrottung von Gefangenen*) at 1 per cent, and infanticide, manslaughter, fraudulent bankruptcy, and poisoning (*Kindesmord, Totschlag, betrügerischer Bankrott und Vergiftung*) at a combined total of less than 1 per cent.

The ministry was, of course, keen to highlight the decision-making of juries in these cases. Across Prussia only a small number of cases were decided without recourse to a jury: 19 cases ended *in contumaciam* and 1,888 with a guilty verdict by the court. Juries made the resulting 11,176 decisions. Of these decisions, 6,521 were pronounced guilty according to the charge, 439 guilty of another charge (*Verbrechen*), 757 guilty of an offence (*Vergehen*), and 1,932 not guilty. The remaining 1,527 cases were deemed to have mitigating circumstances (*mildernde Umstände*). The majority of non-guilty verdicts came in cases of arson, poisoning, perjury, infanticide, fraudulent bankruptcy, and malfeasance. By way of contrast, the toughest decisions were handed out for first incidents of grievous theft, repeated incidents of grievous theft, and robbery. Very rarely did decisions go against the state prosecution of these cases, confirming the principle that Prussian juries were tough on cases of theft.

The ministry's decision to publish in *Goltdammer's Archiv* exemplified the ongoing engagement of the state with upper-middle-class professionals on questions of

[91] Theodor Goltdammer, 'Vorwort', *Archiv für Preußisches Strafrecht*, 1 (1853), 3–5, at 3.
[92] Ibid. 4–5.
[93] 'Statistik der Preußischen Schwurgerichte für das Jahr 1854', *Archiv für Preußisches Strafrecht*, 4 (1856), 170–88, at 170.
[94] Ibid.

state-building after 1848, and the journal would become the longest-running journal for criminal law in Germany, producing editions throughout the twentieth century. Other journals, chiefly the *Gerichtssaal* (1849–1919)—a magazine devoted to the discussion of popular law in the form of legislation, court activity, exemplary cases, statistics, and new literature—also formed to evaluate the changes being made to the judicial landscape throughout German-speaking Europe, introducing changing legal thought on the jury court composed of laymen and mixed-court system into the public sphere.[95] So too did newspapers to a lesser extent. For example, the *Kölnische Zeitung* praised the statistics produced by the Justice Ministry and celebrated the fact that Prussian courts were, according to the numbers, so much more effective than their European counterparts.[96] Certainly the 1854 report emphasized this point. It ended with a six-page comparison of the courts in France, England, Belgium, Bavaria, and Hanover.[97] Prussia, it seemed, had successfully toughened up measures against crime. It had a rate of acquittal of around 18 per cent, which was far superior to the French, whose rate was still up around 25 per cent. The English, the report remarked, had a better rate of conviction than the French, which held fast in 1853 at around 23 per cent, but even that was inferior to the Prussian results. In Belgium, the number of acquittals in 1849 was around 24 per cent, aligning it with England and France, but in Bavaria for the years 1850 to 1854 inclusive the average was around 12 per cent. Bavaria appeared to have the best results, but this overlooked its much higher statistics in crimes of the press. Hence the Ministry of Justice suggested that not only had it substantially improved the workings of criminal justice in Prussia since 1848, but, when viewed according to a pan-German or pan-European panorama, it was doing its part to keep up with European standards of modernization. And on this point, liberal papers were willing to attest to the fact that the state was reforming courtroom practice in ways that were broadly acceptable to the upper middle classes.

REGULATING PENAL INSTITUTIONS

On the back of procedural law reform, changes to penal regulation were also consolidated in the 1850s. Since the Enlightenment, a growing number of thinkers had argued for penal institutions to focus on the 'improvement' of the prisoner. Officials wavered in their commitment to this goal, but the prognosis for a renewed boost to such an agenda came to the fore in the 1820s.[98] At this time, a range of university professors, lawyers, and doctors drew increasing attention to prison

[95] Ludwig von Jagemann, 'Der Uebergang vom alten zum neuen Rechte. Zugleich als Prospect der Zeitschrift', *Gerichtssaal*, 1 (1849), 3–16, at 15.

[96] *Kölnische Zeitung*, 14 March 1856, p. 1, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 343a Nr. 110, Bl. 49.

[97] 'Statistik der Preußischen Schwurgerichte für das Jahr 1854', *Archiv für Preußisches Strafrecht*, 4 (1856), 170–88, at 183–8.

[98] Friedrich Nöller, 'Ueber Centralisation der Gefängnißverwaltung auf Grundlage des jetzigen Standes des Strafrechts', *Gerichtssaal*, 6 (1854), 314–20, at 315.

conditions and consolidated these observations in a science of imprisonment known as *Gefängniskunde*. Leading figures among this group of penal reformers included the German physician Nikolaus Heinrich Julius (1783–1862), who travelled throughout Europe and North America, learning about prison systems and practices. Back home, Julius gave public lectures in various German states, notably attended by Friedrich Wilhelm IV.[99] Although less well travelled, Carl Mittermaier, the celebrated university professor in Heidelberg, was another keen supporter of penal reform and published many of his ideas on the subject.[100] So too did the founding member of the Protestant 'Inner Mission', Johann Hinrich Wichern (1808–81). In 1844, Wichern published his first works on penal reform, arguing that Christians could no longer avoid the urgent task of moral rehabilitation in Prussia's prisons.[101] Furthermore, international meetings of prison reformers in Frankfurt am Main and Brussels in 1846 and 1847 respectively took this growing interest in education and improvement to a whole new level.

Penal reformers generated a great deal of public discussion between 1820 and 1848. As the judicial official Friedrich Nöller claimed, concerns about the 'Social Question' drew an unusually wide public into the debate about improvement.[102] This was further helped by the completion of several purpose-built prisons in which the ideas of prison reformers became manifest in stone. In particular, the construction of new institutions of solitary confinement in Baden and Prussia in the 1840s only added to the broader sense of excitement around the possibility of reform. But, as Nöller claimed, the revolutionary years stymied both the discussions around and building of rehabilitative penal institutions, especially as the focus of the representatives in the Frankfurt National Assembly overlooked practical issues. As he put it: 'When, in 1848 . . . so many eloquent delegates in the National Assembly talked of improving our moral and social conditions nothing was said about that important question of law and *bürgerliche Gesellschaft*—the prison system.' The realities of prison life and the shortfall of financial capital needed to continue building new penitentiaries was often overshadowed by more rousing debates.[103] Furthermore, lack of action in 1848 was exacerbated by the introduction of public, jury trials, which caused a spike in the number of convicts sent to penitentiaries. The result was that a great number of Germany's penal facilities fell into a sorry state, and by 1854 gaols in Prussia and across much of German-speaking Europe had reached their capacity.

[99] On Julius, see Thomas Nutz, *Strafanstalt als Besserungsmaschine. Reformdiskurs und Gefängniswissenschaft, 1775–1848* (Munich: Oldenbourg, 2001), 239–46.

[100] On Mittermaier, see ibid. 253–8.

[101] Albert Wu, '"Unashamed of the Gospel": Johann Hinrich Wichern and the Battle for the Soul of Prussian Prisons', *Church History*, 78 (2009), 283–308, at 289–90. On Wichern more generally, see Sigrid Schambach, *Johann Hinrich Wichern* (Hamburg: Ellert & Richter, 2008).

[102] Nöller, 'Ueber Centralisation der Gefängnißverwaltung', 315–16, and Friedrich Nöller, 'Ueber Centralisation der Gefängnißverwaltung auf Grundlage des jetzigen Standes des Strafrechts (Schluß)', *Gerichtssaal*, 6 (1854), 332–47.

[103] Nöller, 'Ueber Centralisation der Gefängnißverwaltung', 316, and Nöller, 'Ueber Centralisation der Gefängnißverwaltung (Schluß)', 338.

The Manteuffel Ministry of State and Interior Ministry—of which the latter was responsible for penal institutions—were aware of the larger debates around prison reform, but in the first instance developed only short-term solutions to alleviate overcrowding in penal institutions. Unimpressed, prison reformers, particularly Mittermaier, Nöller, and Ludwig von Jagemann—the editor of the *Gerichtssaal* and judicial official in Karlsruhe—readily criticized this situation. They called for a twofold change to penal policy. Their first recommendation was to create a central office for the various penal systems across German-speaking Europe that would be capable of cultivating better-informed administrators, able to propagate an agenda in which criminals would be rehabilitated for a return to society. This, Nöller expected, would include reading the newest materials from abroad, especially criminal statistics (*Criminalstatistik*)—that is, statistics that focused on the social dimensions of the criminal and regularities of crime.[104] Reading said statistics would lead, they believed, to gains for individual states as well as a more general centralization of law, laying the foundations for a possible political unification. The second recommendation was focused less on the administrator than on the place of administration. That is, these penal reformers called for the expansion of solitary confinement for the rehabilitation of criminals.

The revolutions created a need for the Interior Ministry to be more responsive to such suggestions, in particular equipping its administrators with statistics on their work. This came though exposure to German professionals interested in criminal statistics, starting with Mittermaier. Since the 1830s, Mittermaier had read the mainstay of such materials coming out of France from his post at the University of Heidelberg. The *Recherches statistiques sur la ville de Paris et le département de la Seine* (begun in 1821) and the *Annales d'hygiène publique et de médecine légale* (begun in 1829) provided him with a swathe of government-generated data on traditional topics such as births, marriages, and death, but also on: madness, as obtained from the Parisian insane asylums; suicide; and even statistics on prison design.[105] Moreover, Mittermaier and others read the works of the Belgian statistician Adolphe Quetelet and the French lawyer and amateur statistician André Michel Guerry (1802–66), both of whom published monumental works for the future of criminology. In 1829, Guerry published his *Statistique comparée de l'état de l'instruction et du nombre des crimes*, which compared crime rates with levels of instruction across France. Following this in 1832, Guerry presented his highly influential work *Essai sur la statistique morale de la France* to the French Academy of Sciences, which included important new insights into the distribution of crime.[106] The major innovation in Guerry's works, including his latter publications, was that he illuminated both the predictability of criminal activity and the importance of motive or cause to crime. Quetelet too made a significant contribution to the emerging field of moral statistics in general and criminal statistics in particular.[107]

[104] Nöller, 'Ueber Centralisation der Gefängnißverwaltung (Schluß)', 335.
[105] Ian Hacking, *The Taming of Chance* (Cambridge: Cambridge University Press, 1990), 73–6.
[106] On Guerry, see Friendly, 'A.-M. Guerry's Moral Statistics of France'.
[107] On Quetelet, see Frank H. Hankins, 'Adolphe Quetelet as Statistician', *Studies in History, Economics and Public Law*, 31 (1908), 9–134.

In 1829, he published a work entitled *Recherches statistiques sur le royaume des Pays-Bas*, in which he used the first of the *Comptes généraux de l'administration de la justice criminelle en France* to indicate relative tendencies to crime (*penchant au crime*). Quetelet followed up this work with his *Recherches sur le penchant au crime aux différens âges* (1831) and *Sur l'homme et le développement de ses facultés ou Essai de physique sociale* (1835), both of which were foundational for innovative thinking about regularities in crime and punishment. As he wrote:

> We might enumerate in advance how many individuals will stain their hands in the blood of their fellows, how many will be forgers, how many will be poisoners . . . there is a budget which is paid with greater regularity than that of any finance minister—it is the budget of the prison, the galleys, and the scaffold.[108]

Mittermaier introduced this line of thinking into debates on crime in the German states. He began both to publish book-length publications of criminal statistics, as well as to edit the *Archiv des Criminalrechts* and *Beiträge zur Criminalstatistik.* In addition, Mittermaier helped to circulate the works of European statisticians among academic and amateur statisticians interested in moral statistics in Germany. His web of personal correspondence included experts on criminal law such as Julius Friedrich Heinrich Abegg, Albert Friedrich Berner, August Wilhelm Heffter, Karl Ferdinand Theodor Hepp, Christian Reinhold Köstlin, and Karl Georg Wächter. He also wrote to penal practitioners such as Carl August Diez, Julius August Füsslin, and Gustav Ekert, and even prisoners such as Theodor Mögling and Georg Friedrich Schlatter. And, most importantly, he garnered the attention of the Director of the Central Statistical Office in Prussia, Carl Friedrich Wilhelm Dieterici, through his presentations at the first International Statistical Congress in 1853.[109]

Thanks to Mittermaier, Dieterici began to appreciate the major limitations in Prussia's data and, by implication, policies, when they were considered against a broader panorama of European governmental activity.[110] The most glaring omission in the ministry's statistics was a consideration of the 'social and ethical relations of the nation'. Otherwise put, there appeared to be little attention to criminal statistics in Prussia, and hence criminals and criminal institutions. As Dieterici recounted in his report of the 1853 International Congress on Statistics:

> I did not believe before and only first became properly aware of the importance of criminal statistics through the Statistical Congress . . . Mr Mittermaier held a long speech about them and showed Baden as the only state in which the necessary attention is given to this important part of statistics.[111]

[108] Quetelet, *Recherches statistiques sur le royaume des Pays-Bas*, 35, quoted in Mathieu Deflam, 'Surveillance and Criminal Statistics: Historical Foundations of Governmentality', *Studies in Law, Politics and Society*, 17 (1997), 149–84, at 155–6.

[109] For Mittermaier's correspondence, see Lars Hendrik Riemer (ed.), *Das Netzwerk der 'Gefängnisfreunde' (1830–1872): Karl Josef Anton Mittermaiers Briefwechsel mit europäischen Strafvollzugsexperten* (Frankfurt am Main: Vittorio Klostermann, 2005); Lieselotte Jelowik (ed.), *Briefe deutscher Strafrechtler an Karl Joseph Anton Mittermaier, 1832–1866* (Frankfurt am Main: Vittorio Klostermann, 2005).

[110] Dieterici to Westphalen, 17 October 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99, Bd 1, Bl. 41–79, at Bl. 73–4.

[111] Ibid. 73.

Dieterici's report on criminal statistics had a significant impact on Manteuffel and Simons. Simons soon made contact with Mittermaier and involved him in evaluating Prussia's statistical output.[112] Even the former *Kultusminister* Ladenberg passed on the new criminal statistics he encountered in Munich in 1858 for consideration. In short, the Prussian Interior Ministry readjusted its remit according to the recommendation of reformers, undertaking what it saw to be a foundational step towards the reform of the penal system.

The results could be seen across the penal system, with an increased awareness of the social dimensions of crime and the criminal.[113] But this particularly applied to one of the most established features of the Prussian system: transportation (*Landesverweisung*). The transportation of convicts overseas had long been a feature of Prussia's penal system, alleviating pressures on domestic penal affairs. By the 1850s, the state was legally unrestricted in its right to expel non-citizens, but the complexities of this policy were widely acknowledged.[114] A diminishing number of people were therefore transported from Prussian soil by mid-century, and new efforts were made to understand the links between transportation and the return of an individual criminal to Prussia through the collection of new information. Both the Ministry of Justice and the Interior Ministry began in 1855 to keep detailed files on those criminals who were sentenced to transportation and those who requested clemency in order to stay in Prussia.[115] Although non-numerical in the first instance, these files reflected a heightened attitude towards understanding the social background of the criminal and the likely risks involved in transportation. In particular, requests for clemency included a wealth of details on the criminal. The sentenced was required to provide information on his or her childhood, religious affiliation, education, employment history, current situation, and the circumstances around the crime. For example, when making a request to repeal his sentence on 31 July 1855, the Polish defector Michael Jesenski wrote that he was born and lived in one of the territories of the former Kingdom of Poland until his twentieth birthday.[116] He was educated at the same school as his father until he was 10 years old. At the age of 11 he was baptized in the Roman Catholic Church and at the age of 23 joined the military. After one year's service, he left and since that time—over twenty years—he had made a life for himself in Prussia. For at least eleven of those years he worked as a labourer, married a Prussian, and had seven children. Until his arrest for theft in 1854, he had previously served another eight days in prison for theft.[117]

[112] Goltdammer to Mittermaier, 25 December 1855 and 13 January 1856, in Dorothee Mußgnug (ed.), *Briefe Herrmann Theodor Goltdammers an Karl Josef Anton Mittermaier* (Frankfurt am Main: Vittorio Klostermann, 2007), 106–9.

[113] For the actual figures produced by Prussia and other German states over the period 1854–1859, see Otto Hübner, 'Criminalstatistik deutscher Länder', *Jahrbuch für Volkswirtschaft und Statistik*, vi (1861), 1–90.

[114] Evans, *Tales from the German Underworld*, 11–92, esp. 77.

[115] GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 1176 Nr. 68 Bd. 1; GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 1176 Nr. 23, Bde. 3, 4.

[116] 'Abschrift zu den Akten des Königl. Ministeriums des Innern', 31 July 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 1176 Nr. 68 Bd. 1, Bl. 3–4.

[117] Ibid.; Abtheilung des Innern, Regierung zu Königsberg, to Westphalen, 3 July 1855, in ibid., Bl. 7–8.

It is apparent across such sources that Prussian administrators were taking into account personal details of the convicted in a new way. For example, it became evident that a stable family life improved a criminal's chances of clemency. If a convict could prove that he or she was married and had children in Prussia, the likelihood of leniency increased. The second was the length of time spent in Prussia. The longer the convicted had lived in Prussia, the more likely it was that he or she would return, and therefore, the greater the case for compassion. Indeed, the prostitute known by the pseudonym 'Louise Le Franc' made this abundantly clear to the Prussian authorities. Despite being unable to trace Le Franc's real name, the Prussian authorities were convinced that she was not the Russian aristocrat she claimed to be.[118] They did, however, believe her to have been born in St Petersburg and recommended she be transported back to her place of birth.[119] But Le Franc made clear that she was not going anywhere. She had been transported to the Netherlands before in 1853 and 1854, and both times she had found the means to return to Prussia. If the Prussian authorities decided to carry out their new plan to transport her to Russia, she would, as she put it, simply return.[120]

For some convicts, such as Wilhelm Franke, there was little record of life inside or outside Prussia, but this too could work in their favour. Franke was arrested in 1855, but upon arrest was unable to provide a convincing answer as to his place of birth. He knew that he had been born in a village called Stuckgart in Switzerland, but he had no knowledge of the canton or any further specifics. His father was a magician who had travelled through Germany and France. Franke spent his first eleven or twelve years in Stuckgart before travelling abroad with his parents. After settling for some time in a village in France, the name of which now escaped him, Franke took to the road once again with his parents until his father passed away. At that point, Franke took over the business and began travelling through Belgium, the Netherlands, France, and Germany. Since he possessed no papers and there was no way to trace his origins with certainty, the charge against Franke had to be dropped.[121]

The attention to family in these records is perhaps unsurprising, but what is surprising is the amount of detail on the education and employment history of the convicted. This reflected a very different set of priorities from those enshrined in traditional Prussian and even continental judicial statistics and institutions. It displayed a growing sympathy towards the concerns of reformers and their criminal statistics. Certainly, the cases of transportation were simply part of a growing attention in the Ministry of Justice to the offender him or herself, and in part the relationship between religious confession, gender, employment, and crime in assessing clemency. Legal professionals noted the gradual increase in these correlations,

[118] Abtheilung des Innern, Königliche Regierung zu Düßeldorf, to Westphalen, 10 February 1856, in ibid., Bl. 20.

[119] Le Franc was later shown to be Louise Hoffmann from Breitenstein. See ibid., Bl. 70.

[120] Request written for Louise Le Franc by the authorities in Duisburg to Westphalen, 9 January 1856, in ibid., Bl. 23–4.

[121] Abtheilung des Innern, Königliche Regierung zu Arnsberg, to Westphalen, 4 February 1856, in ibid., Bl. 26–8.

and such materials became indispensable to mid-century reformers, who believed that the penal system existed to rehabilitate individuals.[122] Of course this was still only in its infancy, but it was a powerful line of thinking that would return with force, albeit in a different form, with the scientization of the social in the 1880s and 1890s.

The Prussian Ministry of State also responded to the second objective for prison reform popular in the 1850s—the further spread of solitary confinement. Friedrich Wilhelm IV was particularly receptive to this line of thinking both before and after 1848. In 1842, he approved the construction of Berlin's Moabit prison as an experiment in the use of solitary confinement and by 1849, the prison was fully functional (Figures 3.1 and 3.2).[123] But the complex met with too much resistance from the Ministry of State in the 1840s to be fully implemented, and, until 1856, inmates continued to undertake work together, and during the day their cells remained open.[124] The Manteuffel Ministry of State was, however, much more willing to consider supporting the unrestricted introduction of solitary confinement in Moabit and beyond, particularly in the form of the Pennsylvania system.

At the request of Friedrich Wilhelm IV, Johann Wichern arrived in Berlin in 1854 to help introduce the new prison system on a statewide scale.[125] Wichern prepared a report on solitary confinement in Moabit. He was given funding to visit other prisons in the German states where solitary confinement had begun to take

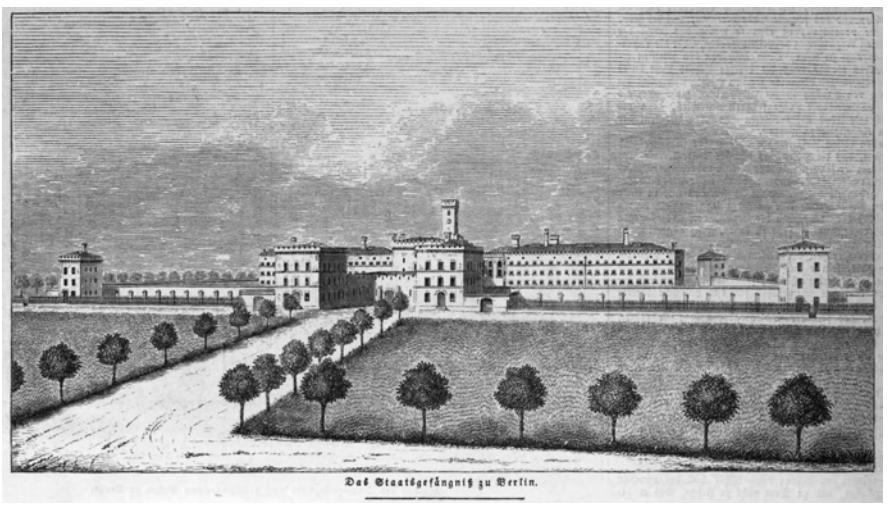


Figure 3.1. Moabit prison, *Illustrirte Zeitung*, 2 October 1847, p. 212. *(Bayerische Staatsbibliothek München, 2 Per. 26-8/9, S. 212, urn:nbn:de:bvb:12-bsb10498701-3)*

[122] See the Arnold's comments on the general state of criminal statistics in Germany in 'Zur Criminalstatistik', *Gerichtssaal*, 9 (1857), 232–7, at 232–3.

[123] Wolfgang Schäche and Norbert Szymanski, *Das Zellengefängnis Moabit: Zur Geschichte einer Preussischen Anstalt* (Berlin: Transit Buchverlag, 1992), 15.

[124] Ibid. 22. [125] Wu, '"Unashamed of the Gospel"', 294.

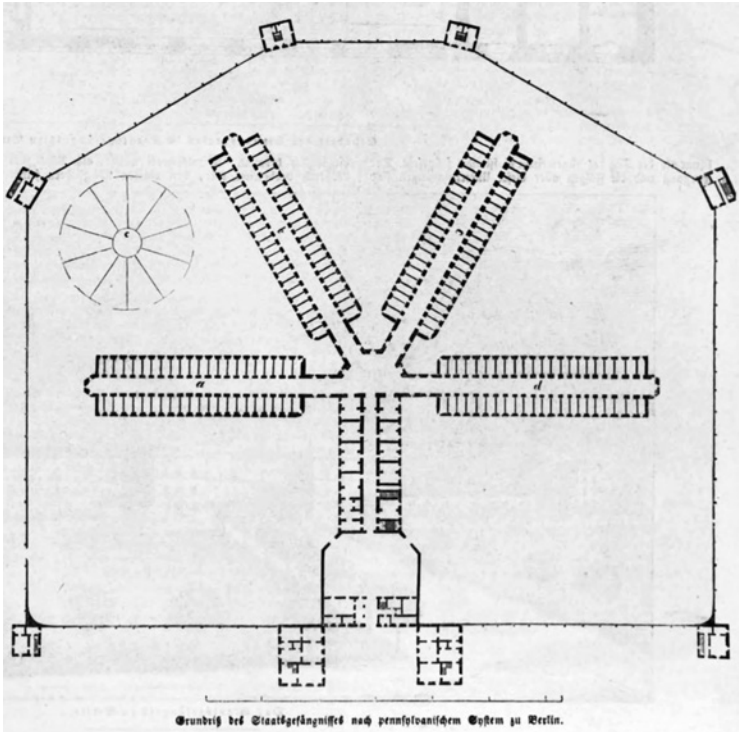


Figure 3.2. Plan of Moabit prison, *Illustrirte Zeitung*, 2 October 1847, p. 211. *(Bayerische Staatsbibliothek München, 2 Per. 26-8/9, S. 211, urn:nbn:de:bvb:12-bsb10498701-3)*

place, and generated a range of non-numerical descriptions on his prison tours to support the connection between solitary confinement and rehabilitation.[126] Other professionals had carried out similar work in more limited albeit imaginative terms in the 1840s and 1850s. For instance, Ludwig von Jagemann had examined solitary confinement in Bruchsal in Baden and interviewed prisoners themselves to provide a new insight into the workings of the facility. He published excerpts from diaries, letters, and interviews, obviously selectively, to show the immense improvement that this institution could make on the attitude of the incarcerated.[127] But, with the resources of the Prussian state behind him, the scope for Wichern's work was much greater. And the Ministry of State accommodated Wichern in the first instance, with Westphalen encouraging him to follow their lead and attempt to 'manage' the press around his reforming work.

[126] See, e.g., Johann Wichern, 'Die Behandlung der Verbrecher in den Gefängnissen und der entlassenen Sträflinge (1852/3)', in Johann Hinrich Wichern, *Sämtliche Werke*, ed. Peter Meinhold (Berlin: Lutherisches Verlagshaus, 1973), vi. 31–51.

[127] Ludwig von Jagemann, 'Stimmen der Gefangenen über die Gefängnissysteme', *Gerichtssaal*, 4 (1852), 90–107.

However, prison reform soon hit stumbling blocks. There were serious doubts about Wichern within the ministry. Wichern's proximity to Friedrich Wilhelm IV raised questions as to his role and relative autonomy in the formulation of penal policy. Likewise, Wichern also raised concern in the chambers. This was not because of his reforming impulses but was centred on the fact that he was a deeply pietistic figure who sought to employ only handpicked evangelicals for his prison staff.[128] In other words, he appeared to embody a dangerous blurring of church and state that for many liberals was to be avoided. Detractors were forced to put up with Wichern under Friedrich Wilhelm IV, but, with the change in government in 1858, the *Landtag* held up Wichern's reforms to Prussia's prison system and finally squashed the project in 1861. Instead, reform would eventually take place in the following decades according to more widely acceptable expert opinion.[129]

While penal reform was uneven, there was certainly no return to old methods of punishment in the 1850s. For example, Friedrich Wilhelm IV began to use crime rates to agitate for the reinstatement of corporal punishment in Prussia in the mid-1850s. He argued that crime rates had been increasing since 1848, confirming that penal policy was too mild. He was supported in this by the Interior Minister Westphalen. As Westphalen put it in 1854: 'Moral conditions have deteriorated, not improved since the abolition of corporal punishment. I even take the view that the new penal law system has had a deleterious rather than a beneficial effect on social conditions.' Support too was forthcoming from administrators in the 'old Prussian' provinces, and a proposal was drawn up for discussion in the *Landtag*. But Simons and the rest of the Ministry of State could not agree with this reactionary line of thinking. Simons argued that the increase in crime rates could be traced back to the 1830s rather than to the abolition of corporal punishment in 1848, a fact that Mühler's statistics clearly highlighted. Furthermore, he argued that the course of action proposed by the ultraconservatives would not improve the situation. The reintroduction of corporal punishment would not create consistent improvements in the administration of justice, as individual judges would decide upon the punishment according to an arbitrary scale of 'willfulness'. Moreover, a glaring problem with such an outcome was that it would put Prussia behind other German and European states on a scale of advances in penal policy. In the end the Ministry of State won the debate and oversaw the introduction of special custodial institutions for the young rather than the reintroduction of corporal punishment. The ultraconservatives sought again in 1856 to reintroduce corporal punishment, and once more drew upon government statistics to make their case, but attitudes towards penal policy had been too firmly altered by the mid-1850s to see a return to such a measure.[130]

[128] Wichern to Westphalen, 29 May 1856, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 859 Nr. 6, Bl. 1–33.
[129] Wu, '"Unashamed of the Gospel"', 300–3.
[130] Evans, *Tales from the German Underworld*, 105–14.

CONCLUSION

In the aftermath of the 1848 revolutions, the Brandenburg–Manteuffel Ministry of State implemented a new criminal justice system based on a long history of pre-March reform activity. This system featured the singular use of state courts across Prussia, rather than the former mixture of state and patrimonial courts, thus constituting an important part of the end to the feudal structures that had persisted so late into the nineteenth century. Within this more centralized system, the implementation of a criminal code in 1851 provided a much-needed boost to legal certainty, making clear many of the indictable offences in Prussia and likely punishments one could expect to receive if convicted. Needless to say, this was a counter-revolutionary piece of legislation, meaning that many punishments contained in the code were still harsh, but reformers and rank-and-file lawyers were generally satisfied with it, and it certainly resonated with the male middle classes who chiefly benefited from codification. Beyond the changes to criminal law, reforms to trial procedure were unquestionably popular in the 1850s. The introduction of public, spoken trials by jury garnered enthusiastic backing among leading legal reformers such as Karl Mittermaier and Georg Beseler, in legal journals, and among the middle classes.

Seen together, the changes to criminal justice in the 1850s helped to constitute a second Reform Era vital for the formation of the modern state. The particular emphasis of this work was on the realm of procedure, which shifted the focus of post-revolutionary debate to questions about regularities of state action, predictability, and reliability. This was a relatively uninspiring terrain when compared to the heady debates about criminal justice seen in the revolutionary years, but this is not to say that procedure was unimportant. On the contrary, it was important for two reasons. First, procedural reform incorporated many of the ideas of reform-minded professionals essential to the guarantee of liberty. The ministry's shift to procedural reform thus provided an integrating force after the upheavals of the revolutionary years. As the pages of the *Gerichtssaal* reveal, lawyers believed that there was space for professionals to continue to assert their expertise and interests in the new post-revolutionary landscape, even if the most significant of the reforms of this ilk would be realized only in the 1860s. But, more than this, liberal jurists believed that a reform of procedure rather than substance provided the best way to establish the rule of law in the second half of the nineteenth century.[131] This included securing codes of trial procedure, laws for court organization, and laws governing the organization of the private legal profession. In other words, the shift to procedural-law reform under the Manteuffel Ministry of State was a significant contribution to the formation of the modern *Rechtsstaat* in Prussia.

Post-revolutionary reforms would also have an important shaping effect on the formation of the German state. Initially, the Ministry of State was reticent to address calls for a national codification of law in the 1850s. This was not, as we

[131] Ledford, 'Lawyers, Liberalism, and Procedure', 170; Kenneth F. Ledford, *From General Estate to Special Interest: German Lawyers, 1878–1933* (Cambridge: Cambridge University Press, 1996).

know, because Manteuffel was ideologically opposed to unification. Rather, he was not willing to seek out such strategies because of his calculations that any such action would only increase Austrian pre-eminence in German-speaking Europe. But Bavaria and other middle states attempted to force the issue with a reform of the German Confederation. As Prussia's envoy to the German Confederation, Bismarck fought off all attempts by the middle states at national codification in the 1850s, though without wanting to appear to be obstructionist.[132] But, after the Austro-Prussian War of 1866 it would be to Prussia's advantage to proceed with national codification—something Bismarck recognized. Bismarck tasked Heinrich von Friedberg—an official in the Prussian Ministry of Justice—with drafting a criminal code for the North German Confederation. Friedberg turned to the Prussian Criminal Code of 1851, which came to form the basis of the Criminal Code of the North German Confederation of 1869 (*Strafgesetzbuch für den Norddeutschen Bund*) and the later Criminal Code of the German Empire of 1870–1 (*Reichsstrafgesetzbuch*). This meant that both pieces of legislation retained the three-part division of criminal offences introduced in Prussia in the 1850s, with the latter extending this across the Reich. Moreover, the sense of legal certainty achieved in the 1850s was retained in 1871, with the new code for the German Empire stating clearly stating that an act could be subject to punishment only if that punishment was previously defined by law.

Certainly, some states were unhappy with the Criminal Code of the German Empire, particularly those, such as Saxony, which had already abolished capital punishment but now, under the heavy hand of the Prussians, were forced to reintroduce this form of punishment. Likewise, those states that had been influenced by the Bavarian Criminal Code of 1813 were given no option but to reintroduce punishments for moral offences—something that liberal reformers considered a step backwards in the rationalization of penal affairs.[133] But the code did make way for compromise on solitary confinement, which was now no longer permitted for more than three years without the consent of the prisoner.

With respect to procedure, Bismarck also pressed ahead with national codification, though here it was less of a case of extending the Prussian system to all of Germany. Laws for the Organization of the Courts (*Gerichtsverfassungsgesetz*, 1877) and a Code of Criminal Procedure of the German Empire (*Strafprozessordnung*, 1877) relied on the advances made in Prussia in the 1850s, but, it must be noted, even more so on those made in Hanover during the same decade.[134] It was thanks to the work of Adoft Leonhardt—the liberal justice minister behind Hanover's 1850 legislation and since 1867 Minister of Justice in Prussia—that trials remained public in most instances, or, at the very least, the pronouncement of the judge had

[132] Enno E. Kraehe, 'Practical Politics in the German Confederation: Bismarck and the Commercial Code', *Journal of Modern History*, 25 (1953), 13–24; Michael John, *Politics and the Law in Late Nineteenth-Century Germany: The Origins of the Civil Code* (Oxford: Clarendon Press, 1989), 33–41.

[133] Vormbaum, *A Modern History of German Criminal Law*, 79.

[134] Richard F. Wetzell, 'Introduction: Crime and Criminal Justice in Modern Germany', in Richard F. Wetzell (ed.), *Crime and Criminal Justice in Modern Germany* (New York: Berghahn, 2014), 1–30, at 2.

to be public.[135] In addition, Reich legislation also mandated the continued use of juries for severe crimes but not press offences or serious political crimes. This was thanks in great part to the agitation of the southern German states, which were instrumental in protecting the jury court composed of laymen alongside the mixed court, making the *Gerichtsverfassungsgesetz* instrumental to establishing basic rights overlooked by the Constitution of 1871.[136]

[135] Vormbaum, *A Modern History of German Criminal Law*, 92.
[136] Crosby, *The Making of a German Constitution*, 158.

4

Agriculture, Industry, and Communications

As the Brandenburg–Manteuffel Ministry of State assumed office in late 1848, it inherited an uneven economic landscape. In the countryside, the edicts of the Reform Era were designed to create the beginnings of a free land market and a free market in labour in Prussia through the abolition of serfdom. But emancipation stalled in the years after 1811, leaving a patchwork of unfinished reform in the agricultural sector. This situation stifled farming, and in the years directly before the revolutions caused noticeable disruption to production in the east.[1] Commerce too had its problems. In the Reform Era, Friedrich Wilhelm III oversaw the relaxation of guild monopolies and strictures around commerce with the introduction of a law governing freedom of trade. And, in 1845, new laws were implemented further to remove barriers to enterprise. But the shift towards free trade caused significant distress among artisans, and it was not matched with long-needed state investment in the industrial sector.

Manteuffel, his Minister of Agriculture and younger brother Baron Karl Otto von Manteuffel (1806–79), and the Trade Minister August von der Heydt all believed that urgent change was required. As Manteufel quipped, the Prussian state could no longer be run 'like the landed estate of a nobleman'.[2] Rather, these ministers argued that expressions of discontent could be stymied through a new era of active state intervention in economic affairs. As Manteuffel put it, the creation of a 'proper economic system' was the basis 'on which a thorough victory over all anarchistic endeavours and a lasting social piece' could be achieved.[3]

This chapter looks at the efforts of the Brandenburg–Manteuffel and Manteuffel Ministries of State to reform agriculture, industry, and communications in the post-revolutionary decade. Throughout the 1850s, Manteuffel and Heydt sought to create and communicate economic growth in ways that had not been possible before the revolution. On a macro-scale, they implemented long-developed plans for peasant emancipation to make agriculture more profitable. They also looked to

[1] 'Motive zu dem Entwurfe des Gesetzes, betreffend die Ablösung der Reallasten und die Regulierung der gutsherrlichen bäuerlichen Verhältnisse', in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 31–55, at Bl. 31.

[2] This remark came during debates about fiscal reform. See Günther Grünthal, *Parlamentarismus in Preussen 1848/49–1857/58: Preussischer Konstitutionalismus- Parlament und Regierung in der Reaktionsära* (Düsseldorf: Droste, 1982), 476.

[3] Manteuffel to Niebuhr, 30 April 1853, in Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel,* 3 vols (Berlin: E. S. Mittler und Sohn, 1901), ii. 322–5, at 322; Karl Enax, 'Otto von Manteuffel und die Reaktion in Preußen' (Ph.D. dissertation, Universität Leipzig, 1907), 53.

foster initiatives to ease the effects of free trade and increase freedom of movement. In Prussia's industrial sectors, the Trade Ministry oversaw a programme of substantial direct and indirect interventions to stimulate growth, the likes of which were predominantly being borne by the business class before 1848. And, in communications, the state reached into the countryside in a whole new way with a massive boost in the construction of railways, roads, and telegraph lines. Of course, these state-driven reforms were carried out within the parameters of a highly political and ever-fluctuating relationship with Prussia's business class, and most of the time it was Manteuffel and the Trade Minister Heydt responding to the innovation and drive for change coming from within the business class in their reform work. In particular, bankers were especially successful in pushing the state to exact far more ambitious plans for reform than it wanted to introduce.

This expansion of state involvement in economic affairs coupled with astounding growth was common across German-speaking Europe in the 1850s. As Dieterici summed it up in 1855 in the Central Statistical Office: 'At the present time industry is penetrating human affairs with such power and significance that a comparison with earlier conditions is scarcely possible.'[4] It was certainly the case in Austria, where the Baron Carl von Czoernig wrote of 'Austria's re-creation' by 1858.[5] As in Prussia, the Austrians removed barriers to free trade and invested in the construction of new railways and roads in the years before 1856. And a similar story also came to the fore in Bavaria and in the most representative states of the Third Germany, where government efforts to facilitate economic growth saw direct interventions in industrial sectors, as well as new investments in the building of communications.[6] In other words, Prussia's economic reforms were both essential to the making of the modern Prussian state but also part of a larger trend across German-speaking Europe. This meant, as with other areas of reform, questions of national codification remained ever-present in debate and decision-making.

EASING STRUCTURAL CHANGE TOWARDS GROWTH

In the late eighteenth century and the beginning of the nineteenth century, German monarchs looked to ease aristocratic privileges to make their agrarian systems more productive. Cameralist ideas suggested that emancipation, among other things, would increase production, population size, and ultimately the strength of the monarchy. Physiocrats agreed. Their ideas bolstered plans for the relaxation of feudal services to increase output. Yet, the impetus for change was not simply ideological. Changing economic conditions also served to bolster the erosion of feudal ties, causing a slump in demand for servile peasant labour.[7]

[4] James J. Sheehan, *German History, 1770–1866* (Oxford: Clarendon Press, 1989), 733.

[5] John Deak, *Forging a Multinational State: State Making in Imperial Austria from the Enlightenment to the First World War* (Stanford, CA: Stanford University Press, 2015), 103.

[6] Richard J. Bazillion, *Modernizing Germany: Karl Biedermann's Career in the Kingdom of Saxony, 1835–1901* (New York: Peter Lang, 1990), 250–1.

[7] Christopher Clark, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006), 327–8.

During the Reform Era in Prussia, the Baron Karl vom und zum Stein and the bureaucrats working with him were responsive to these trends and began to develop a programme of agricultural reform for the king's consideration, condensed in a draft law known as the October Edict. On 9 October 1807, Friedrich Wilhelm III oversaw the promulgation of the October Edict to 'liberate', as Manteuffel put it, landed property 'from hindering restrictions'.[8] This meant two things. First, it established that all Prussians could 'own or mortgage landed property of every kind', though reference to inhabitants in the text still excluded women and religious minorities. Prussia was, it seemed, poised to see the growth of a free land market. Secondly, the October Edict sought to bring serfdom to an end for peasants who held land according to an inheritance, on their own right, or on perpetual lease. No new relation of serfdom could be created, and from 1810 it appeared that hereditary servitude as a whole was to come to an end. The likely result would be a free market in labour.[9]

But the promised abolition of serfdom raised complex questions about ownership, and, although it was clarified through the Ordinance of 14 February 1808, the Regulation Edit of 1811, and Declaration of 1816, the process of reform remained confusing and cumbersome in the years before 1848. As Manteuffel observed, attempts to realize the rights afforded by the new edicts had only eroded confidence in many parts of the state as courts frequently handed out vastly different and at times contradictory decisions regarding landholding.[10]

Like Prussia, other German states also suffered from unfinished emancipation in the years before 1848. In Austria, Maria Theresa and her son Joseph II both made gestures towards freeing peasants, including patents to increase freedom of movement and to end compulsory domestic and field service of peasant children. The Patent of 10 February 1789 ensured, furthermore, that all peasants who paid a land tax of at least 2 florins would have their manorial services commuted. The advances made under Joseph II were momentous, but later repeals by Leopold II rendered emancipation practically unrealizable in the eastern regions of the Habsburg Empire.[11] In Bavaria and in the south-west German states, emancipation was more effectively secured during the Napoleonic Era, but, even here, peasants were disgruntled.[12] For example, emancipation in states like Nassau in the west of German-speaking Europe did not necessarily result in a reserve of independent

[8] 'Motive zu dem Entwurfe des Gesetzes', in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 31–55, at Bl. 31.

[9] 'Edikt über die Bauernbefreiung', in Ernst Rudolf Huber (ed.), *Dokumente zur deutschen Verfassungsgeschichte*, 5 vols, 3rd edn (Stuttgart: Kohlhammer, 1978–97), i. 41–3. For an introduction to land reform in Prussia at the turn of the nineteenth century, see Clark, *Iron Kingdom*, 327–30; Christof Dipper, *Die Bauernbefreiung in Deutschland, 1790–1850* (Stuttgart: Kohlhammer, 1980).

[10] Ministry of State to Friedrich Wilhelm IV, 28 February 1850, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 151–60, at Bl. 158.

[11] Jerome Blum, 'Land Tenure in the Austrian Monarchy before 1848', *Agricultural History*, 19 (1945), 87–98, at 89–90.

[12] Wolfram Siemann, *The German Revolution, 1848–49,* trans. Christiane Banerji (Basingstoke: Macmillan, 1998), 30–1; Rainer Koch, 'Die Agrarrevolution in Deutschland 1848: Ursachen, Verlauf, Ereignisse', in Dieter Langewiesche (ed.), *Die Deutsche Revolution von 1848/49* (Darmstadt: Wissenschaftliche Buchgesellschaft, 1983), 362–94.

peasant owners. Here, too few peasants possessed the cash to buy properties placed on the free market, causing frustration and disappointment.[13]

The incomplete nature of agrarian reform created unrest in Prussia, especially in Silesia. Here, many peasant farmers remained locked into working great estates for ever-diminishing returns, and, in the case of those peasants who did manage to free themselves from manorial obligations, they were often forced to do so through a cessation of land. If that were not enough, changes to land use compounded the problem. The development of scientific forestry in Prussia along with the relaxation of restrictions on forest properties in 1811 enabled landholders to transform huge tracts of land, but their commercialization of communal and manorial forests incited a violent wave of wood theft on the part of those villagers reliant on such spaces. Indeed, in 1836 alone, 150,000 of the total 207,478 prosecutions in Prussia were for wood pilfering and other forest offences.[14] For the peasants in Silesia who were rising both politically and socially, this system of disadvantage fed strong feelings of injustice, small-scale revolts, and demands in 1848 for a redistribution of land.[15] As the Silesian schoolteacher Adolf Rösler declared in his address to the Frankfurt National Assembly: 'Grant legally what will otherwise happen anyway illegally. The peasant war stands without the gate. *Hannibal ante portas*.'[16]

With the outbreak of revolution in 1848, Brandenburg and Manteuffel argued that emancipation had to be completed with haste, and all the more so after December 1848. The promulgation of the constitution had made serfdom appear dangerously retrograde. As the Ministry of State wrote to Friedrich Wilhelm IV on 17 August 1849, a 'state of dependence' was no longer tenable in a constitutional landscape, and without an end to serfdom as a goal there was little hope of achieving the kind of sound, thriving communal order that the constitution was intended to produce.[17] In addition, Manteuffel argued that not only was an immediate and speedy completion of emancipation a political necessity; it would also reduce the inevitable and potentially troubling effects of bringing Prussia's feudal entanglements to an end. Other states, he noted, had shown the very real disadvantages of delaying. For example, Austria had tried to delay emancipation even more so than Prussia since Leopold II's repeals, and for that reason faced, as Manteuffel pointed out, a more difficult and costly transition after 1848.[18]

In early 1849, therefore, Manteuffel drafted a Redemption Law and Regulation Law to facilitate emancipation across Prussia. The first piece of legislation enabled peasants to convert manorial dues into money rents and considered the rent permanently rescinded after the peasant had paid the equivalent of eighteen times the

[13] Barbara C. Anderson, 'State-Building and Bureaucracy in Early-Nineteenth-Century Nassau', *Central European History*, 24 (1991), 222–47, at 231.

[14] For comprehensive figures on wood theft over the period 1833–1850 across the Prussian provinces see Blasius, *Bürgerliche Gesellschaft*, 140–6.

[15] Siemann, *The German Revolution*, 30.

[16] Quoted in Theodore S. Hamerow, *Restoration, Revolution, Reaction: Economics and Politics in Germany, 1815–1871* (Princeton: Princeton University Press, 1958), 162.

[17] Report of the Ministry of State to Friedrich Wilhelm IV, 17 August 1849, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 12–16, at Bl. 13.

[18] Manteuffel to Friedrich Wilhelm IV, 16 January 1850, in ibid., Bl. 117–31, at Bl. 131.

annual rent of the land. This applied to virtually all landholders, including categories of peasants and landholdings overlooked by the earlier laws. The second piece of legislation proposed to facilitate rural independence by establishing loan banks able to advance long-term, low-interest credit to peasants for the purchase of property. Manteuffel's draft legislation also enabled farmers to work the land in accordance with their own wishes, producing the kind of competition that had been absent under the old system of landholding.[19]

Ultraconservatives immediately lambasted the proposed legislation as an exercise in the equalization of property. According to their inflated rhetoric, Manteuffel had devised legislation that was nothing short of communist, and once instituted it would lead to the 'complete dissolution of legal status [*Rechtszustand*]'.[20] The Protestant synods of Stettin, who feared for the effect of the new legislation on church property, also registered their protests in the course of the debates.[21] Yet it was difficult for this kind of opposition to gain traction in the post-1848 political environment. Rather, the Ministry of State was right to assume that most conservatives in the chambers would agree to a 'faster and more complete' erosion of the feudal system.[22] They were broadly resigned to seeing the draft legislation as a regrettable but unavoidable inheritance from the Reform Era. Even Friedrich Wilhelm IV largely agreed. Despite finding 'such dangerous principles in these drafts', he 'repeatedly authorized the Ministry of State to present the said pieces of legislation to the chambers'.[23] Of course, he was encouraged in doing so by Manteuffel's promise that the most contentious parts of the proposed legislation would be handled as an 'open question'. Should there be any need for further adjustments, Manteuffel intimated, the legislation could be tweaked and revised.[24]

In its final stages of approval, reservations over the legislation reappeared, threatening to destabilize affairs. Friedrich Wilhelm IV was still acutely concerned about the potential impact of the new legislation on private property rights. In February 1850, he considered putting an end to the whole project, and, with the publication of the laws on 2 March 1850, he was so vexed over the encroachment that expropriation would make on property law that he even considered replacing Manteuffel. But, on this point, he was refuted by Leopold von Gerlach. Gerlach acknowledged the political necessity of emancipation, and in what was still an uncertain period before Olmütz, the need to keep Manteuffel in office.[25] As a result, any further debate over the laws was shelved.

[19] Hamerow, *Restoration, Revolution, Reaction*, 221–2.

[20] Report of the Ministry of State to Friedrich Wilhelm IV, 17 August 1849, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 12–16, at Bl. 14.

[21] Synods in Stettin to Friedrich Wilhelm IV, 6 February 1850, in ibid., Bl. 142–8; 'Der Entwurf einer Ablösungsordnung in ihrem Einfluß auf geistliche Institute', in ibid., Bl. 149–50.

[22] Report of the Ministry of State to Friedrich Wilhelm IV, 17 August 1849, in ibid., Bl. 12–16, at Bl. 13; Ministry of State to Friedrich Wilhelm IV, 28 February 1850, in ibid. Bl. 151–60, at Bl. 157.

[23] Friedrich Wilhelm IV to the Ministry of State, October 1849, in ibid., Bl. 85.

[24] Report of the Ministry of State to Friedrich Wilhelm IV, 17 August 1849, in ibid., Bl. 12–16, at Bl. 15–16; Friedrich Wilhelm IV to the Ministry of State, October 1849, in ibid., Bl. 85–7. On the revisions Manteuffel was willing to make, see Manteuffel to Friedrich Wilhelm IV, 16 January 1850, in ibid., Bl. 117–31; Ministry of State to Friedrich Wilhelm IV, 28 February 1850, in ibid., Bl. 151–60.

[25] Enax, 'Otto von Manteuffel und die Reaktion in Preußen', 56.

Once instituted, the new reforms began to have a serious effect. Between 1850 and 1865, almost 640,000 peasants freed themselves from manorial obligations, and in most cases, they did so without forfeiting property. The size of this figure becomes clearer when one remembers that over the period 1811–48, only 70,000 peasants were able to free themselves in Prussia's eastern provinces by relinquishing claims to their land, and another 170,000 through cash payments. Of course, for some peasants the legislation still had very real limitations. The establishment of free farming could not overturn aristocratic latifundium, especially on the right bank of the Elbe, and in many other parts of the state, peasants had little option but to leave the countryside, swelling the populations of cities such as Düsseldorf, Leipzig, and Breslau. A mass internal migration from the countryside to cities resulted, creating a period of sustained and irreversible urbanization in Prussia. Nevertheless, as the historian Theodore Hamerow has written:

> For the rural masses between the Elbe and the Vistula liberation from manorialism came not in the early years of the nineteenth century but in its middle period . . . conservatives like Manteuffel and Brandenburg were their benefactors more than liberals like Stein and Hardenberg.[26]

It is worth noting, moreover, that Prussia was not alone in such reforming activity after 1848. In Austria, too, the regime oversaw the implementation of peasant emancipation as per the announcements of 28 March 1848 and the April Laws for emancipation in Hungary.[27] Rural reforms on this scale were not necessary across other German states, as so many had undertaken this work in the Napoleonic Era or after the Revolutions of 1830. As a result, the course of post-1848 reform in states like Saxony, where a law of 15 May 1851 brought the commutation of servile obligations to an end, was more focused. But, beyond the German states, emancipation also unfolded dramatically in eastern Europe over the following decades. Here gradual change was achieved, with the exception of Russia, which maintained its commitment to feudal landholding arrangements.[28]

At the same time that Manteuffel was working on the Redemption Law and Regulation Law, he also attempted to end the traditional tax exemptions for manorial estates—a second extreme hangover from the pre-industrial age and a gross marker of inequality.[29] As with land reform, attempts to ease the advantages of the aristocracy in regard to taxation dated back to the Reform Era, specifically the Finance Edict of 27 October 1810. But, like the October Edict of 1809, the Finance Edict did not lead to a uniform reform of the old taxation systems. Rather it too petered out after the Reform Era, so that, by the revolution, 23 different systems still

[26] Hamerow, *Restoration, Revolution, Reaction*, 222–7.

[27] R. J. W. Evans, '1848–1849 in the Habsburg Monarchy', in R. J. W. Evans and Hartmut Pogge von Strandmann (eds), *The Revolutions in Europe, 1848–1849: From Reform to Reaction* (Oxford: Oxford University Press, 2000), 181–206, at 204.

[28] Hamerow, *Restoration, Revolution, Reaction*, 222–3.

[29] Eckart Schremmer, *Steuern und Staatsfinanzen während der Industrialisierung Europas: England, Frankreich, Preußen und das Deutsche Reich 1800 bis 1914* (Berlin: Springer, 1994), 110–14, 120–2, 127–8.

existed in Prussia with 144 different types of property tax.[30] Additionally, within these systems a small number of landowners, many of whom were aristocrats living in the six eastern provinces, were exempt from paying tax altogether.

While the scale of tax-free estates was not significant, the symbolic nature of their exemption caused serious offence. Rhenish industrialists were particularly sensitive to this because, by 1848, they were unfairly shouldering the burden of property tax in Prussia. For example, property in Saxony and Silesia was being taxed at a rate of around 9.5 per cent in 1848. In the six eastern provinces, the rate stood at 6 per cent, in Posen it stood at 5 per cent, and in Pomerania and Prussia property tax could be as low as 4.5 per cent. By way of contrast, property tax in the Rhine Province and Westphalia was between 11 and 12 per cent.[31] Furthermore, there was a second reason to reform property tax. The lack of revision in the *Vormärz* meant that by the 1850s the state income derived from property tax had come to a standstill. Between 1821 and 1838, the average annual amount of property tax gathered by the state was 10,049,241 Taler. In 1855, the figure was almost exactly the same at 10,085,387 Taler. By way of contrast, population had increased from 11 million to around 17 million people during the period between 1821 and 1855, and over the period 1849 to 1855, state expenditure had increased from 86 million to 105 million Taler.[32] In other words, there was an urgent need to reconsider the value of property, and to ensure that it was built into a new tax model.

During the revolution, the Finance Minister David Hansemann first addressed the situation by drafting a property tax and placing it before the National Assembly. The assembly worked on the new law, but it never brought the draft legislation to completion. Only during the counter-revolution did Manteuffel resurrect Hansemann's initiatives. Based on article 101 of the constitution of 5 December 1848, Manteuffel reintroduced the idea of a property tax, and, in June 1849, he saw to it—through a royal decree from Friedrich Wilhelm IV—that the parliament created a commission to prepare to lift land tax exemptions.

On 22 January 1850, draft legislation came before the chambers.[33] In the First Chamber, opposition to the new property tax was even more virulent than that mounted against the liberation of the peasantry. The ultraconservative member of the First Chamber August Werner von Meding printed a warning against the new tax, stirring up conservative opinion with claims that it was an attack on the sanctity of private property. But Meding's protests and lamentations, especially his allegations that the new tax would be more damaging that the recent loss of aristocratic hunting rights, were not the most effective forms of rhetoric.[34] Rather, the prominent farmer and moderate-conservative publicist Ernst von Bülow-Cummerow, who chaired the 'Association for the Protection of Property and for the Promotion of Prosperity of all Social Classes' (*Verein zum Schutz des Eigenthums und zur Förderung*

[30] C. G. Kries, *Vorschläge zur Regelung der Grundsteuer in Preußen* (Berlin: Wilhelm Hertz, 1855), 2.
[31] Kries, *Vorschläge zur Regelung*, 3. [32] Ibid. 4.
[33] Hans Walter, *Die innere Politik des Ministers von Manteuffel und der Ursprung der Reaktion in Preußen* (Berlin: Ebering, 1910), 82–9.
[34] Printed pamphlet, 27 November 1849, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 99–101.

des Wohlstandes aller Volksklassen), put forward a more convincing opposition to the new tax. Bülow-Cummerow did not attack the legitimacy of the tax but its ability to achieve the government's aims. He rightly claimed that it would affect a much wider segment of society than Hansemann's initial tax, which focused on the aristocracy. And as a result, small villages, farms, and church properties, which were also previously exempt from taxation, would henceforth be assessed. This, Bülow-Cummerow claimed, would push a large number of families into poverty.[35]

Bülow-Cummerow's conclusion made grossly inflated assumptions as to the number of people who would be affected by the new tax, but nonetheless, in late 1849, he printed hostile newspaper articles, and prepared a petition for circulation in the First Chamber. He also approached Friedrich Wilhelm IV's secretary Marcus von Niebuhr, begging him to work on Manteuffel and his 'utterly radical communist law'. Friedrich Wilhelm IV had to voice his misgivings, Bülow-Cummerow argued, and restrain Manteuffel's 'enthusiasm' before he used his support in the First Chamber to push through the legislation unmodified.[36] Friedrich Wilhelm IV did express his misgivings about the new tax, but it was ultimately the chambers that blocked its implementation. The parliament codified the draft of 22 January 1850 into law on 24 February 1850, but it had no practical worth, as the mechanics of enactment were never agreed upon.[37] The Ministry of State discussed the idea of a property tax again on 4 February 1856 and throughout 1857, but it was cautious about re-entering discussions on the topic in the chambers.[38] The hostility of property owners in the eastern provinces remained too influential in the legislative process, as did the problems of implementation owing to the unfinished reforms to Prussia's Municipal Ordinance. While other forms of progressive revenue collection such as income tax were successfully implemented in the 1850s, it was only in the New Era in 1861 that property tax in Prussia was finally reformed.

Depleting the agrarian sector of revolutionary potential was essential, because of its dominant position in the economy, but tensions also had to be addressed in the expanding commercial sector. Here the issue rested on Prussia's growing free-trade policy. The introduction of a law on the freedom of trade on 7 September 1811 and a new Trade Ordinance (*Gewerbeordnung*) on 17 January 1845—which contained a marked shift towards free trade—had created clear winners and losers in the Prussian economy. The winners were aristocratic landowners, who, although not ideologically committed to the concept of free trade, supported the movement

[35] On the various views of the association, see Der permanente Ausschuß des Vereins zum Schutz des Eigenthums und zur Förderung des Wohlstandes aller Volksklassen, *Ansprache an das Publikum* (Berlin: Schlesinger, 1849).

[36] Bülow-Cummerow to Niebuhr, 7 December 1849, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Nr. 1, Bl. 102.

[37] Stefan Wagner, *Die staatliche Grund- und Gebäudesteuer in der preußischen Rheinprovinz von 1815 bis 1895: Entwicklung von Steuerrecht, -aufkommen und -belastung* (Cologne: Rheinisch-Westfälisches Wirtschaftsarchiv, 1980), 68.

[38] Bärbel Holtz (ed.), *Acta Borussica: Die Protokolle des Preußischen Staatsministeriums 1817–1934/38*, iv. *30. März 1848 bis 27 Oktober 1858*, ed. Berlin-Brandenburg Academy of Sciences under the direction of Jürgen Kocka, Wolfgang Neugebauer, and Reinhold Zilch (Hildesheim: Olms-Weidmann, 2000), 380, 402–3, 410.

in the 1840s and 1850s because of the likelihood that it would stimulate greater agricultural exports.[39] Some industrialists favoured free trade, but these were few and far between, as most industries in Prussia were still too young and fragile to cope with an open market. This being said, there was a growing ideological commitment to free trade in liberal business circles in the 1850s.[40]

Within craft communities, on the other hand, moves towards free trade were vigorously opposed. Free trade laws, especially the ordinance of 1845, had begun to break open guild controls over trade licensing, apprenticeships, and pricing, with damaging economic effects. But more than this, the move towards free trade threatened the social standing of artisans. It was no surprise then that it was this social group, which had suffered the most from the gradual moves towards free trade made in the first half of the nineteenth century, that was an important source of revolutionary unrest in 1848–9.[41]

Within the Ministry of State, opinion was split on whether to embrace free trade or protective tariffs. The Trade Minister Heydt, who was the most vocal supporter of the industrial sector in the Ministry of State, favoured the nuanced use of duties to promote Prussian manufacturing. As he wrote to Manteuffel on 19 August 1851:

> Your excellency knows that I do not share the opinion of those who consider industry in Prussia to be dispensable or even detrimental and who would therefore prefer to purchase manufactures from abroad rather than granting protection to domestic industry. I believe that Prussia's prosperity can only be increased through the careful cultivation and strengthening of our own industries. And while I do not consider prohibitive tariffs [*Prohitivzölle*] or excessive protective tariffs [*Schutzzölle*] to be suitable measures, I consider it much more misguided under existing conditions to pursue the ideal of free trade through the gradual lifting of industrial duties [*Industriezölle*]. I believe that the principles adopted in the customs laws of 1818 for the protection of domestic industry must be retained.[42]

Although frequently in conflict with Heydt, Manteuffel agreed that the interests of the industrialist should be met on a case-by-case basis. As he wrote in reply to Heydt on 12 September 1851:

> I confine myself here to the general remark, that—being, as I see it, not at all an ideologue—nothing interests me less than orienting trade policy [*Handelspolitik*] towards the theoretical ideal of free trade. However, I evaluate every tax according to the extent to which it is justified by the general interest. I am also totally in agreement with Your Excellency, that the appropriateness of each individual tax should be tested. I will not shy away from such tests and I will set out the grounds for the view that I take in every single case.[43]

[39] Wolfram Kaiser, 'Cultural Transfer of Free Trade at the World Exhibitions, 1851–1862', *Journal of Modern History*, 77 (2005), 563–90, at 589.

[40] James J. Sheehan, *German Liberalism in the Nineteenth Century* (Chicago: University of Chicago Press: 1978), 84–5.

[41] On the changing legislation of the 1840s and the reaction of craftsmen, see Paul Geißen, *Die preußische Handwerkerpolitik unter Otto von Manteuffel* (Ph.D. dissertation, Universität Köln, 1936), 22–5.

[42] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 9–10, at 10.

[43] Ibid. ii. 11.

These comments came as Prussia secured perhaps the most important shift towards free trade in the 1850s: the integration of Hanover and Oldenburg into the *Zollverein.*[44] In this process, Manteuffel demonstrated particular sensitivity to Prussian manufacturers, eliciting noticeable support in the Rhine Provence. As the well-known Commercial Councillor (*Kommerzienrat*) and later General Director of the *Deutsche Continental-Gas-Gesellschaft* Oechelhäuser wrote in 1852, Manteuffel's retention of moderate tariffs created a new level of confidence on the Rhine. It seemed to them that Manteuffel would not uncritically promote the economic interests of the ultraconservatives.[45] Moreover, as Simon Hyde has argued, the flexibility in Manteuffel's trade politics should be considered part of the explanation for his win at the polls in 1855 in the Rhine Province.[46]

The way in which Manteuffel moved towards free trade, then, took significant account of the interests of industrialists, but it had its limits. In particular, he could not accept their demands for a complete deregulation of the skilled trades because of the effect it would have on craftsmen. As we have said, craftsmen had suffered enormously following the deregulation of the guilds in 1845, resulting in a wave of violent unrest in 1848–9. Further deregulation in favour of manufactures, Manteuffel believed, would only incite further violence. And the ultraconservatives vigorously supported Manteuffel on this point. This was partly because they too saw the relationship between deregulation and revolution, but also because of the traditional esteem of the conservatives for *Handwerk. Handwerk* to the conservatives meant more than a means of making a living; it invoked a moral economy in which thrift, hard work, and a stable and virtuous way of life were intertwined. As a result, notable ultraconservatives rallied to the defence of the craftsmen in parliament during the 1850s. For example, Hermann Wagener argued for a greater attention to the needs of craftsmen. 'I believe', he declared,

> that we now find ourselves in a position to warn the gentlemen on the left not to wait until disturbances arise before dealing with the demands of the handicraftsmen. For they will once again act in haste and become involved in complications which it will be difficult to disentangle.[47]

Similarly, Bismarck did not shy away from giving his opinion on the matter:

> If we do not hesitate to give assistance through lawmaking to those calling for protective duties, why do we hesitate to protect the existence of the artisan class by legal compulsion? The shareholder in railroads demands a guarantee of his dividends, the industrialist, the mine owner, the shipper, the viniculturist, etc., they all demand to be protected in their occupations by tariff laws at the expense of their customers. Why do you not want to grant this favour as well to the more numerous and more

[44] For an introduction to the literature on Prussia in the *Zollverein*, see Hans-Joachim Voth, 'The Prussian Zollverein and the Bid for Economic Superiority', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 109–25.

[45] Oechelhäuser to Quehl, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 206–7.

[46] Simon Hyde, 'Hans Hugo von Kleist Retzow and the Administration of the Rhine Province during the "Reaction" in Prussia, 1851-1858' (D.Phil., University of Oxford, 1993), 308–9.

[47] Quoted in Hamerow, *Restoration, Revolution, Reaction*, 230.

> moderate class, the artisan class?...It is true that industrial freedom may offer the public many advantages. It produces inexpensive goods. But to this inexpensiveness the misery and sorrow of the artisan are poisonously bound, and I believe that the inexpensive garments from the clothing shop may after all lie uneasily on our backs, when those who make them must despair of earning their daily bread honestly.[48]

The solution to the apparently ever-declining position of craftsmen devised by Manteuffel and Heydt was neither to maintain the 1845 law nor to revive the guilds. Rather, the ministers sought a compromise: regulation of the crafts would return but the regulator would henceforth be the state. Following a meeting with representatives from the tradesmen and surviving guilds in Prussia from 17 to 30 January 1849, Heydt and Justice Minister Rintelen began a cautious revision of the Trade Ordinance.[49] This resulted in the publication of two decrees on 9 February 1849, which made it mandatory for craftsmen to sit examinations and obtain a licence to work—both of which would be overseen by government officials. For those who became successfully licensed, the government introduced trade councils (*Gewerberäte*) to arbitrate on a range of issues affecting their work and to enable swift resolutions. Similar institutions had existed in the Rhine Province prior to 1848, but, for most of Prussia, police and justice officials had presided over commercial conflict. And east of the Elbe, oversight in these affairs was still exercised by the guilds. The new councils, however, consisted of equal numbers of employers and employees elected across local districts where the quantity of trade was sufficient to warrant such an institution. Furthermore, crucial to the role of the trade councils was that they represent the interests of tradesmen in their region and communicate to the government the impact of legislation on local enterprise.[50]

As well as the creation of trade councils, the decrees addressed the concerns of craftsmen about freedom of movement and increased the contractual ties between employer and employee. Specifically, in articles 56 and 58, the decrees increased the responsibility of employers to contribute to pension funds. And, following this, Heydt oversaw the confirmation of a new law to standardize the local regulations governing pension funds on 3 April 1854.[51] Liberals spoke out vehemently against what they saw as the 'resurrection' of the guilds and unnecessary financial contributions to the welfare of workers, but the draft laws were successful in placing regulation on a more stable legal footing. They elevated the place of the contractual relationship in economic affairs—both features that chimed with larger liberal principles.

On a macro-level, then, the Manteuffel Ministry of State moved cautiously towards a growth-oriented economy. But, at each juncture, the question of how to deplete economic change of its political potential remained dominant to its thinking. The same concern for broader patterns of social welfare could be seen across many of the German-speaking states in this period, and more so than in any other part of Europe. In Bavaria, a decree of 17 December 1853 demonstrated a similar concern for artisans. It shifted guild control to the state, which now regulated

[48] Ibid. 229.
[49] Geißen, *Die preußische Handwerkerpolitik*, 27–9.
[50] Ibid. 31–45.
[51] Ibid. 45–58.

the employment of apprentices, the sale of wares, and shop ownership. Likewise, in smaller states such as Saxe-Gotha, statutes established occupational courts and assemblies.[52] Beyond the specific concerns of artisans, German ministries turned to address questions of concern to workers more generally. Prussia did not reintroduce restrictions on freedom of movement, as some states felt the need to do after 1848, but instead made a compromise by easing charity claims on municipalities in the first year of movement to a new town, and, from 1853 on, engaged in a state supervision of companies transporting Prussians to the New World. Furthermore, relationships between employers and employees were increasingly subject to contract and regulated. In particular, Heydt's work to introduce stricter controls over the employment of juveniles in industry surpassed equivalent legislation in many other German states and certainly that in England and France. As one historian concluded: 'The Fifties became a decade of new hope for the farmer and the worker, for the impoverished masses of the countryside and the uprooted proletariat of the city.'[53]

DIRECT INTERVENTIONS AND THE POLITICS OF THE BUSINESS CLASS

The structural changes towards growth made by the Ministry of State in the 1850s were essential, but so too were the more direct interventions in industry and finance made after 1848. On balance, the Prussian Trade Ministry had done little to encourage industrialization over the course of the 1830s and 1840s, and often had placed obstacles in the way of economic development. Particularly telling was the fact that, in the years just before 1850, the net state investment in the industrial sector was only about 17 per cent of all investment.[54]

The March Ministries first sought to address such low levels of state investment in 1848, and in the decade that followed, both Manteuffel and the Trade Minister Heydt felt compelled to continue many of their liberal fiscal policies. In response to revolutionary disruption, the Trade Ministry oversaw the construction of over 135 surfaced roads in more than 24 districts in the years 1849 and 1850.[55] Along with this went the construction of canals and other works in the countryside, and, of course, investment in railroads. Indeed, over the period 1848–65, the Prussian state debt more than doubled, as the Trade Ministry invested in railways, and assumed planning costs and subsidies for private firms.[56] Likewise, building construction, which was already on the rise in the 1840s and would continue to boom

[52] Hamerow, *Restoration, Revolution, Reaction*, 231. [53] Ibid. 232–6.

[54] Eric Dorn Brose, *The Politics of Technological Change in Prussia: Out of the Shadow of Antiquity, 1809–1848* (Princeton: Princeton University Press, 1993), 242–8; Richard Tilly, 'The Political Economy of Public Finance and the Industrialization of Prussia, 1815–1866', *Journal of Economic History*, 26 (1966), 484–97, at 484–5.

[55] 'Bauwissenschaftliche Mittheilungen', *Zeitschrift für Bauwesen*, 1 (1851), 11–21.

[56] David Blackbourn, *The Long Nineteenth Century: A History of Germany, 1780–1918* (New York: Oxford University Press, 1998), 185.

until the 1870s, saw an unprecedented increase. Over the period 1852–67, over a million new buildings were constructed in Prussia, with a significant number of these being public buildings.[57]

Government spending was no straightforward issue, though. This was especially the case with railroad construction, in which the Ministry of State's preference for state ownership and administration was strong. As Manteuffel put it in debates about the purchase of the Lower Silesian–Mark Railway in the Second Chamber in February 1852: 'Some say that it is good to completely give way to private industry.' 'They point to England', he continued, whereas 'others are of the opinion that it would be good and important for the state to take charge of the construction and administration of the railroads'. Nevertheless, he continued: 'It has always been so in Prussia, that the government has more or less led the way in great general undertakings.' Intervention in the roads and postal service, he argued, provided resounding evidence for the rewards of state control. In other words, Manteuffel was still more likely to believe that the best developments required state leadership, but he did not think this should result in reckless state purchases or state ownership as a rule.[58]

Even more than Manteuffel, Heydt staunchly supported state ownership and controls over industry, especially the railroad sector. Heydt's stance resulted in a massive purchase of railways in the 1850s. As James Brophy has written, the Prussian state neither owned nor administered a single kilometre of rail in 1848, but, by 1860, it owned 1,494 kilometres of rail from a total network of 5,674 kilometres and controlled 49 per cent of Prussia's entire system. This government investment in railroads was particularly welcome during the crash of 1846–9, in the ensuing period of recovery up to 1852, and again in the crash and recovery of 1857–62. The business class also displayed enthusiasm for state ownership when it entailed the acquisition of important but profitless stretches of railway. But when the economy was strong in the period 1853–7, the business class became more vocal in demanding a greater share of entrepreneurial autonomy, including relief from the regulatory measures that Heydt produced in the years of high investment.[59]

The pressure to negotiate business-class interests in the building of the railroads has been covered in great detail in the work of James Brophy, but there were other important and often related industrial sectors in which the Manteuffel Ministry of State had to find new ways to balance its desire for state ownership and regulation with business-class interests. Mining was a case in point. Although still a relatively small sector, mining and metal production grew at an exceptional rate in the 1850s. Mining, indexed with 1913 at a base of 100, increased from 3.3 in 1850 to 6.9 in 1860, metal production from 1.5 to 3.2, and metalworking from 2.6 to 4.3.[60] Between 1850 and 1870, coal production south of the Ruhr increased from 1.7 million tons to 11.6 million tons, and in Silesia coal output went from 975,000 tons

[57] Ibid. 180. [58] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 157–9.

[59] James M. Brophy, *Capitalism, Politics and Railroads in Prussia, 1830–1870* (Columbus: Ohio State University Press, 1998), 53–74.

[60] Sheehan, *German History*, 739.

in 1850s to 5.8 million tons in the 1860s.[61] As economic historians have shown, this was a period of sustained take-off for mining in Prussia, but, unlike the situation with the railroads, the Trade Ministry did not seek to increase government ownership of mines at this time. Rather, Heydt made the decision to reduce government involvement as a minor owner and operator, and instead sought to regulate mining and metallurgical enterprise. Indeed, in 1851, Heydt began a massive restructuring of the mining industry, which included laws to reduce excise tax on mining and the replacement of government supervision of mines with a periodic inspection.[62]

The role of the government as overseer became contentious, and private companies resoundingly protested against it in the later 1850s. But less contentious were the indirect investments of the Trade Ministry. For example, the ministry oversaw the completion of valuable mapping resources began in the *Vormärz* but still incomplete by 1848. As early as 1841, the Director of the Mining Department in the Finance Ministry (*Bergwerksabteilung des Finanzministeriums*) Ernst Heinrich Karl von Dechen (1800–89) suggested that Prussia needed a new geological survey of the Prussian landscape. To be sure, the Mining Department already possessed geological surveys, but these were drawn at a scale too large to be of speculative use in the mining sector. This was chiefly because the existing maps were drawn at a scale of 1/400 to 1/1000 in the first instance, but they increasingly needed to be drawn in the range of 1/86,000 to 1/120,000 in order to aid the discovery of useful minerals. Hence, in a detailed report on the subject, Dechen argued that Prussia needed a more practical geological map, the likes of which industry could never have hoped to generate alone, better to support 'trade, agriculture, communications, and mining'. As Dechen wrote: 'For all who are engaged in these branches of activity, geological knowledge is regarded as a capital that yields lucrative interest.'[63]

The lack of geological surveys at both a workable scale and with a wide geographical reach, claimed Dechen, meant that Prussia was being 'left-behind' by geologists in North America, England, and France. Not only were they producing more detailed maps in these countries, but in all three cases some level of government had taken on the expense of publishing geological surveys for public use. In North America, one could find access to maps in most states, the *École des Mines* in Paris possessed a centralized collection of maps for each of the departments in France, and in England the Geological Society in Somerset House afforded access to geological materials. Even in German-speaking Europe, other states had already begun to follow this trend. The Kingdom of Saxony was by far the most advanced, having collated maps of this order since the turn of the century. There the eminent geologist Abraham Gottlob Werner (1749–1817) recognized the need to create

[61] Ibid. 742.

[62] James M. Brophy, 'Salus publica suprema lex: Prussian Businessmen in the New Era and Constitutional Conflict', *Central European History*, 28 (1995), 122–51, at 130.

[63] Dechen, 'Denkschrift: Die geognostische Landes-Untersuchung im Preußischen Staate betreffend', 14 February 1841, in GStA PK, I. HA Rep. 121 Ministerium für Handel und Gewerbe, Berg-, Hütten- und Salinenverwaltung, Nr. 8188, Bl. 148–61, at Bl. 148–52.

maps for both academic and mining interests, and the Saxon government willingly supported Werner in his endeavour. By 1836, it began to publish his individual surveys as a single map at a scale of 1/120,000. Cities in Saxony and those of Weimar and Altenburg also played a crucial role in facilitating the collection of information and providing public places to view and use the maps after their publication.[64]

Across Prussia, however, the development of geological surveys had been slow in the 1840s. In the Rhine Province, Dechen had personally carried out much of the work, but none of his surveys was considered to be finished. In Silesia, only four of the nine maps needed to print a systematic overview of the province had been created, but it was hoped that this work would soon come to completion. In the Province of Saxony, numerous investigations required revision or had failed to be compiled for printing, and in other provinces, the situation was even worse. As a report of 14 September 1850 stated, a major cause of the delay was personnel problems.[65] It was extremely difficult to find qualified officials to carry out the work. But there was also a second problem of funding. Only after 1848 could the state free up the funds needed to complete the most important work in Silesia, Westphalia, the Rhine Province, and Saxony.

For all the excitement of the 1840s, it was only after the revolution that geological maps at a useful scale and with a wide geographical reach could be produced in Prussia. The more generous funding of the post-1848 political period saw Heydt direct 3,000 Taler in 1850 for the completion of the project in the three aforementioned provinces.[66] Additionally in 1853, Heydt instigated new surveys, so that by the end of 1854 a total geological map of Prussia could be printed and used as a foundational tool in the mining industry.[67] In the Agricultural Ministry (*Ministerium für die landwirtschaftlichen Angelegenheiten*), Karl von Manteuffel—the younger brother of Otto von Manteuffel and Agricultural Minister from 1854 on—also diverted funds to researchers willing to produce the kinds of maps the state still required.[68]

Most importantly for Prussia's development, the new direct and indirect interventions in industry were supported by an unprecedented flow of capital into the sector via the emergence of commercial investment banks. This was, however, an initiative born of the business class and forced on the Ministry of State—making clear that the 1850s was no era of frictionless capitulation on the part of the business class to government aims.[69] To be sure, since the early 1850s, the Manteuffel Ministry of State's banking policy had come under attack. Friedrich Harkort led the opposition, calling in February 1851 for a commission to examine the state's ability to address banking needs. The commission levelled a number of criticisms

[64] Ibid., Bl. 153–4, 161.

[65] Carnall, 'Promemoria', in ibid., Bl. 220–7.

[66] Ibid., Bl. 225–6.

[67] Heydt to Karl von Manteuffel, 14 November 1854, in GStA PK, I. HA Rep. 87 Ministerium für die landwirtschaftlichen Angelegenheiten, B Nr. 3030, unpaginated.

[68] See Manteuffel's correspondence in ibid.

[69] James M. Brophy, 'The Political Calculus of Capital: Banking and the Business Class in Prussia, 1848–1856', *Central European History*, 25 (1992), 149–76, at 173.

at Prussia's state bank, but, most importantly, it drew attention to the government's refusal to allow joint-stock banks in Prussia—a style of banking essential to facilitating industrialization. This was despite the fact that such banks were already active in France and, by 1856, in Austria and several other German states. And these banks were actively looking to open branches in Prussia.[70]

Things came to a head in February 1856, when the Rothschild House and Crédit Mobilier petitioned the Prussian state to charter joint-stock banks. The requests sparked serious and sustained debate in the Ministry of State. Heydt knew that state funds were stretched and therefore saw that joint-stock banks might well be beneficial. But he still hoped to retain state control. He believed that chartering joint-stock banks would decrease the influence of foreign banks in Prussian affairs, allowing for an overall greater state control in finance. On the other hand, Karl von Manteuffel was against granting charters. So too was Westphalen. Westphalen argued that credit institutions would potentially impact negatively on state power and that of landholding elites.

On 26 March 1856, the ministry voted to refuse the charters but the decision to refuse to charter joint-stock banks only pushed the business class to innovate further to enable the establishment of private commercial banks in Prussia. David Hansemann and Gustav Mevissen led the way by establishing commercial investment banks using the commandite principle. Commandite companies contained both inactive and active partners, and, most importantly, they did not hold the legal status of a judicial person. This meant that these banks were not legal corporations and therefore did not require charters.[71] In response, Friedrich Wilhelm IV made a last-ditch effort and asked the Ministry of State to discuss the possibility of outlawing commandite banks. Heydt, Westphalen, and Bodelschwingh all supported the idea of imposing regulations on the banks via emergency decree, and in doing so, ensure that state control over finance was not diminished. As James Brophy has written:

> Heydt's willingness to support an unconstitutional decree in this instance points to his staunch opposition to any economic innovation that diminished state control. His alacrity to resort to such arbitrary measures characterizes well a political style that businessmen roundly criticized throughout the 1850s.

But both Manteuffels opposed the proposed move. Although no fan of the banks, Otto von Manteuffel believed that such forceful action on the part of the state through the use of an emergency decree would have negative effects, especially on the Ministry of State's relationship with the chambers. Manteuffel's post-revolutionary politics required the *Landtag* to act as a check to the interests of the ultraconservative right and democratic left. He therefore chose to tolerate commandite banks rather than allow the issue to destabilize any further the relationship between the Ministry of State and the chambers.[72]

With his preferred course of action blocked in the ministry, the only option open to Manteuffel was to act to prevent any such decree through political cunning.

[70] Ibid. 157–9. [71] Ibid. 153–4, 160–4. [72] Ibid. 168, 174–5.

During Friedrich Wilhelm IV's visit to Marienbad in July 1856, he wrote telegrams to the king's councillors, asking them to persuade Friedrich Wilhelm IV to drop the issue. As he wrote: 'I see neither a legal nor a political reason why the government alone should take on itself the odium of adopting an aggressive measure instead of sharing it with the *Landtag*.' The argument failed to convince. But this did not dissuade Manteuffel. He sent further telegrams casting doubt on the legality of the emergency decree and its likely effect on alienating pro-government parties. It was not a good time for the government to treat the chambers with high-handed disregard, he wrote, considering it had only recently defeated a reform bill related to this subject. Manteuffel continued to write, pushing for delays to any release of an emergency decree for over a month, with the result that by 19 August, when the Ministry of State was to reconvene and discuss the matter, five commandite banks had been established in Prussia, making any decree on the matter obsolete. In short: the decree was shelved, and, with government control over the credit landscape relaxed, commercial investment banks spread across Prussia, fundamentally accelerating industrial development in the years before 1871.[73]

COMMUNICATING ECONOMIC GROWTH

Alongside increased state investment in industry after 1848, the Trade Ministry also undertook a rapid expansion of communication structures, especially the electric telegraph. The Rhenish Railway Company (*Rheinische Eisenbahn-Gesellschaft*) first introduced the telegraph to Prussia on a stretch of railway between Aachen and Ronheide.[74] In 1843, the company requested permission for the venture, which it received but only on the onerous condition that state officials would to be allowed to send messages through its lines.[75] Other railroad companies that sought to establish electric telegraph lines before 1848 were likewise saddled with the burdensome demands of state use and a strict regulation of the network. Certainly, Friedrich Wilhelm IV encouraged the Finance Ministers Eduard Heinrich von Flottwell and Franz von Duesberg to prevent private enterprise from assuming the costs of developing the electric telegraph network as he, and his Minister of the Royal House (*Minister des Königlichen Hauses*) Count zu Stollberg, feared that businessmen could not be trusted with such a potentially political tool.[76]

In August 1848, however, the situation changed as work began on Prussia's first state-owned telegraph lines from Berlin to Aachen via Cologne, and from Berlin to Frankfurt am Main. These new lines were driven by two factors. In the first

[73] Ibid. 169–71.

[74] Bernhard Puschmann, 'Über den Aachener Eisenbahntelegraphen', *Technikgeschichte*, 34 (1967), 350–60, at 350.

[75] Josef Reindl, *Der Deutsch-Österreichische Telegraphenverein und die Entwicklung des deutschen Telegraphenwesens, 1850–1871* (Frankfurt am Main: Peter Lang, 1993), 65.

[76] Friedrich Wilhelm IV to the Finance Minister Flottwell, 12 June 1846, and Graf zu Stollberg to the Finance Minister Duesberg, 24 June 1847, in Wolfgang Löser, 'Die Rolle des preußischen Staates bei der Ausrüstung der Eisenbahnen mit elektrischen Telegraphen in der Mitte des 19. Jahrhunderts', *Jahrbuch für Wirtschaftsgeschichte*, 4 (1963), 193–208, at 194–5, 198–9.

instance, the construction of state lines was one way by which Friedrich Wilhelm IV could continue to resist private ownership but at the same time increase the flow of political information. Indeed, construction in 1848 appears to have been particularly linked to the desire to keep abreast of revolutionary events. As Werner von Siemans—the man responsible for the construction of the line to Frankfurt—later wrote: 'The line to Frankfurt—where the German parliament sat and the *Reichsverweser* resided—was to be completed as fast as was possible for political reasons.'[77] But the second impulse behind the building of the state telegraph lines was less politicized. Following the lead of the March Ministries, the Brandenburg–Mantueffel and Manteuffel Ministries recognized the economic gains to be made and continued the development of the telegraph network at an unprecedented rate. In 1851, the state increased lines by 17.1 per cent, taking the total length of telegraph lines in Prussia to 2,517 kilometres. In 1857, lines increased by 17.5 per cent, and in 1858, they increased by 10.4 per cent, resulting in a total of 5,893 kilometres of telegraph lines across the state. Only during the Crimean War was there a perceptible retardation of growth in the telegraph system. In 1856, growth fell to a decade low, but this was still an impressive 8.6 per cent increase in lines or an addition of 361 kilometres of electric telegraph lines to the network over the year.[78]

The scale of the post-revolutionary expansion of the electric telegraph reflected the Ministry of State's support for liberal fiscal policies, as any sense of expansion to defend against potentially political uses of the telegraph did not require such a large-scale investment. Moreover, the Trade Ministry tentatively but increasingly sought to promote commercial access to the telegraph in the 1850s, despite ultraconservative objections. When in October 1849 the first lines were opened, the ministry's decision to grant public use created a fundamental dilemma for those conservatives who promoted reactionary strategies. For example, the *Regierungspräsident* Möller in Cologne wrote to Manteuffel expressing his concerns that the telegraph should not be opened up to the public. Möller was worried about the political information that would be sent across the wires and the ability of the telegraph employees to identify said information.[79] Likewise, Manteuffel received similar concerns from other ultraconservatives. But both Manteuffel and Heydt claimed that the telegraph had to be open to public use. As Heydt argued, the willingness of the Austrians to open their telegraph lines for public use put the Prussian government in a precarious position. If other German states followed Austria's example, Heydt pointed out, then 'the trade and stock-market connections of the Prussian subjects' would be significantly disadvantaged. In short, Heydt concluded that it was far better to 'lead as to follow' in this issue, and the result was a continued expansion of public access to the telegraph despite the fears and doubts of doctrinaire conservatives.[80]

[77] Siemens, quoted in Reindl, *Der Deutsch-Österreichische Telegraphenverein*, 67. On Werner Siemens, see Jean-Michel Johnston, 'The Time and the Place to Network: Werner Siemens during the Era of Prussian Industrialization, 1835–1846', *Central European History*, 50 (2017), 160–83.

[78] Reindl, *Der Deutsch-Österreichische Telegraphenverein,* 262.

[79] Heydt to Manteuffel, 16 March 1850, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 813 Nr. 1, Bd. 2, Bl. 12–16.

[80] Ibid., Bl. 12.

Heydt sought to make room for commercial use of the telegraph mainly by avoiding official overuse. On 9 February 1849, Heydt secured oversight of the network from the military, and, although army personnel continued to man telegraph stations, he began to curtail needless use of the system.[81] One of the leading offenders was the Berlin Police President Hinckeldey. Hinckeldey saw the state-owned telegraph lines as a powerful new tool for policing domestic unrest in Prussia, and, although the police, like all high-ranking officials, were authorized to use the telegraph without cost for urgent and serious state affairs, it soon became apparent that police enthusiasm for the telegraph was leading to an abuse of their privileges.[82] For example in early 1851, the police inspector Wilhelm Stieber was accused of stopping public services for several hours in Berlin as he sent dispatches costing 68 Taler.[83] Unquestionably mid-century telegraphy was expensive: a single telegraph of up to twenty words from Berlin to Hamburg cost 2 Taler and 30 Silbergroschen, and a telegraph from Berlin to Aachen 5 Taler and 6 Silbergroschen.[84] But the egregious scale of this spending is clearly revealed when one remembers that the average weekly wage for a worker in industry or trade in 1849 was around 2 Taler.

If Stieber's spending was not bad enough, Heydt was outraged that the telegrams did not even fall into the category of urgent state business. Stieber had been sending messages to police bureaus in Frankfurt an der Oder, Breslau, Magdeburg, Cologne, Hanover, Stettin, Hamburg, Frankfurt am Main, and Leipzig, to alert them to the fact that a 500 Taler reward was now being offered for the capture of the on-the-run banker Salig. Although Stieber stomped and spluttered excuses, Heydt demanded that the person offering the 500 Taler reward should pay Stieber's bill. Indeed, Heydt used the opportunity to insist that the police be held financially responsible for their use of the telegraph and be forced to follow more detailed instructions to determine whether use of the telegraph was actually warranted. The telegraph staff should also, he insisted, keep him abreast of the police's usage of the lines.[85] Throughout 1851, therefore, Heydt pressed the Interior Minister Westphalen to curb the excessive spending of the police on non-urgent telegraphs and telegraphs that frequently could not be considered to be of the utmost importance to state interests. While the particular cases no doubt had merit, he claimed, the combined actions of the police were eroding the publicness of the telegraph.[86]

Westphalen obliged to a certain extent. He sent a circular to district governments insisting that police messages had to be approved before being sent, especially as

[81] Indeed, despite his best efforts to influence the appointment of non-military directors, convention ensured that the director of the telegraph came from the military. Heydt had to wait until 1857 before a telegraph director, Major Franz Chauvin, was appointed who was less bound by his military background. See Dennis Showalter, 'Soldiers into Postmasters? The Electric Telegraph as an Instrument of Command in the Prussian Army', *Military Affairs*, 37 (1973), 48–52, at 49; Reindl, *Der Deutsch-Österreichische Telegraphenverein*, 69.

[82] Heydt to Manteuffel, 29 June 1850, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 813 Nr. 1, Bd. 2, Bl. 18.

[83] Heydt to Westphalen, 10 April 1851, in ibid., Bl. 66–7.

[84] Reindl, *Der Deutsch-Österreichische Telegraphenverein*, 70–1.

[85] Heydt to Westphalen, 10 April 1851, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 813 Nr. 1, Bd. 2, Bl. 66–7.

[86] Heydt to Westphalen, 17 May 1851, in ibid., Bl. 71–2.

the state would be absorbing the costs rather than passing them on to the public.[87] However, the police felt the full brunt of Heydt's determination not through directives but at the office counter. As Hinckeldey recounted on 6 May 1851, the Berlin police had been following the banker Philippi, who had fled the country for London, leaving behind liabilities of 120,000 Taler. It was decided that the telegraph should be used to alert various authorities in Ostend, Bremen, and Hamburg. But the Police Commissioner Matthaei was stopped in his tracks as the telegraph officer sought—as per instructions from Heydt—that he should to settle the bill for the planned communication before it happened.[88] Furious over the principle that the police should be subject to financial restraints, Hinckeldey wrote to Heydt: 'When someone here is beaten to death and the murderer should be pursued through the telegraph, I cannot pay, every time, the costs to the telegraph administration beforehand.'[89] But Hinckeldey could not get his way. Under Heydt's direction, the telegraph bureau in Berlin continued to charge the police, helping to limit the impact they had on public use of the telegraph. What is more, Heydt's scrutiny of police messages also proved a thorn in Hinckeldey's side.[90] For example, in October 1851 the Police President in Breslau reported that the police had been using the telegraph to track the tradesman Victor Gicht, who had fled Warsaw on account of bankruptcy. The Police President noted that cases like Gicht's had become numerous and he believed that tracking Gicht fell into the category of an urgent state interest. It was, he argued, essential to general safety and a type of case that could not have been undertaken via the post.[91] Although Westphalen was persuaded, Heydt remained firm: the police should pay for such activities.[92]

By 1855, Heydt went one step further by overseeing the creation of a new law to enable private enterprise to take over the construction of telegraph offices and put them into operation. The new law worked on a strict licensing system, which meant that the state retained control of the system but private companies were not entirely shut out from the profits to be made in the sector. They were able to establish offices for the purpose of trade, although any breaches in the terms of the licence would incur penalties in the order of one year in gaol or a fine of up to 500 Taler. The total transfer of construction to private industry was not encouraged, as the government did not think this was in the political or financial interests of the general good, but the need to relax state control was clear.

Furthermore, Heydt pioneered a more business-friendly telegraph through the establishment of the German–Austrian Telegraph Organization (*Deutsch-Österreichischer Telegraphenverein*). The Telegraph Organization was founded with the intention of standardizing telegraph use in the German states. Heydt had already made an agreement on 3 October 1849 with the Austrians on forwarding state telegraphs, and he had pursued similar cooperation with the Kingdom of Saxony that year. Likewise, Austria worked closely with Bavaria on matters of the

[87] Circular, 10 July 1851, in ibid., Bl. 84.
[88] Hinckeldey to Heydt, 6 May 1851, in ibid., Bl. 73–4, at Bl. 73.
[89] Ibid.
[90] Hinckeldey to Westphalen, 16 March 1854, in ibid., Bl. 191–2, at Bl. 192.
[91] Police President in Breslau to Westphalen, 7 October 1851, in ibid., Bl. 97–8.
[92] Heydt to Westphalen, 18 December 1851, in ibid., Bl. 103–4.

telegraph. With the foundation of the German–Austrian Telegraph Organization, Austria, Prussia, Bavaria, and Saxony agreed on price scales, word limits, station opening hours, and much more to facilitate the flow of information across state borders. This had significant advantages for the business classes in each state, as well as those in Hanover, Württemberg, and the Netherlands, who, by 1853, were also part of the Organization.[93]

The expansion of communications naturally connects with one of the themes of this book, the new use and dissemination of statistics in the 1850s. The state had long generated valuable statistics on the nature of taxation, trade, and new infrastructure, but ministers were yet to use these figures successfully to promote a sense of cooperation and confidence in the Prussian state. This was a uniquely post-1848 enterprise that took shape through the publication and distribution of the magazine entitled the *Preussisches Handelsarchiv.* The *Handelsarchiv* was originally founded in 1847 in the Trade Ministry, but it never really took off. On 11 April 1850, the *Geh. Ob. Finanzrat* Viebahn and the judicial official (*Regierungsassessor*) Saint Pierre wrote to Heydt seeking funding to revitalize the project.[94] The new editors asked for 200 Taler for three years, which was jointly given by the Trade Ministry and Foreign Ministry.[95] In 1854, their contract was renewed and the magazine began to be published on a weekly basis rather than its former appearance on a monthly basis.[96]

The rejuvenated *Handelsarchiv* sought to circulate information on the latest trade legislation to bureaucrats and members of the business class, as well as statistics relevant to the *Zollverein* and *Zollverein* states.[97] This was similar to the pre-1848 objectives of the magazine, but the scale of the enterprise took on a new significance after the revolution. As Viebahn and Saint Pierre wrote, the post-1848 period was witnessing a new attention to material interests, which made the magazine more important than ever:

> An intensified care and public enthusiasm for material interests begins to emerge among the European nations and in the most different circles with the gradual withdrawal of political movements. It is a new participation in trade affairs; both within the state and between them. Some states have already moved to change their trade and shipping legislation substantially. Others are animated [to make], at the very least, such substantial alterations.

This trend was particularly evident in the German states, they continued, where, 'substantial changes to earlier political and trade conditions have already occurred

[93] 'Der deutsch-österreichische Telegraphen-Verein, seine Entwickelung und sein gegenwärtiger Umfang', *Zeitschrift des deutsch-österreichischen Telegraphen-Vereins*, 1 (1854), 1–40. See also Reindl, *Der Deutsch-Österreichische Telegraphenverein*, 102–9.

[94] Viebahn and Saint Pierre to Heydt, 11 April 1850, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1242, Bl. 98–9, at Bl. 98.

[95] Heydt and Manteuffel to Viebahn and Saint Pierre, 27 April 1850, in ibid., Bl. 100.

[96] Heydt and Manteuffel to Viebahn and Saint Pierre, 29 November 1854, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1243, unpaginated.

[97] Viebahn and Saint Pierre to Heydt, 11 April 1850, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1242, Bl. 98.

and are partly in progress'.[98] Now more than ever Germans needed a magazine on domestic and foreign changes to legislation, and the use of official sources to illuminate this held out important potential goodwill for the state.

Moreover, the *Handelsarchiv* positioned itself in opposition to magazines that had traditionally circulated information on trade in the German states by emphasizing its practicality. Many of the journals hitherto published in Leipzig, Tübingen, and Heidelberg, the editors claimed, had an academic focus and a tendency to provide general descriptions of various trade and industry sectors. By way of contrast, the *Handelsarchiv* would seek to clarify the individual significance of factories and the commercial worth of events. An essential part of this project would, therefore, be the flow of statistics on: the conditions and development of trade and industry; the consumption, trade, and commercial statistics of important places and regions at home and abroad, the number, types, and distribution of tradesmen; steam navigation; trade at fairs and markets; the construction of roads and railways; the development and conditions of individual branches of manufacturing; salt and steel operations, as well as the growth of mines; public institutions for the support of trade and industry; facilities for the protection of trademarks and factory prototypes; harbours; the growth of quarantine; the spread of trade schools; the number of trade, factory, and navy courts; the growth of chambers of commerce (*Handelskammern*) and other tradesmen's organizations; and the institutions established for the welfare of industrial workers.[99]

The statistics contained in the magazine were of great importance to boosting confidence among district governments, trade councils, and businessmen, as well as the chambers of commerce. In particular, the Trade Ministry sought to increase communication with the last of these groups.[100] The growth of chambers of commerce was substantial between 1848 and 1851, with the establishment of fourteen of the thirty-three *Handelskammern* that existed in 1870 taking place in this period. These institutions were, Heydt argued, essential channels of communication, and the magazine was used to pass on to them important information, and to act as a depository for reports from their meetings.[101] By 1856, yearly reports were published from seventeen different chambers of commerce, making up a substantial portion of the magazine.[102]

The new circulation of statistics in the *Handelsarchiv* reflected an increased willingness on the part of the Manteuffel Ministry of State to equip members of the business class with the latest information generated by government offices, but

[98] 20 May 1850, in ibid., Bl. 113. [99] Ibid.

[100] Roland Zeise, 'Zur Genesis und Funktion der deutschen Handelskammern und des deutschen Handelstages bis zur Reichsgründung, 1871', *Jahrbuch für Wirtschaftsgeschichte*, 4 (1976), 63–82, at 64–5.

[101] Heydt, 21 December 1850, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1242, Bl. 110.

[102] See *Preussisches Handelsarchiv: Wochenschrift für Handel, Gewerbe und Verkehrsanstalten*, 2 (1856), sect. III. The yearly reports were also used by the business class to vent their frustration with the Trade Ministry. Indeed, by 1857 Heydt had to order the chambers of commerce to remove the political editorials that had increasingly come to complement their statistics. See Brophy, *Capitalism, Politics and Railroads*, 67.

there were limitations, especially concerning information for speculation. Friedrich Wilhelm IV and many of the ultraconservatives such as Westphalen considered overly risky investment to be grossly problematic in Prussia. To be sure, this belief had played a major role in motivating Westphalen's attempt to ban the introduction of commercial investment banks in Prussia.[103] Likewise, fear of uncontrolled speculation resulted in Heydt's unwillingness to see the telegraph connected to the stock exchange.[104] For the *Handelsarchiv*, therefore, the fear of speculation resulted in limited correspondence on shares until 1856, at which time the growth of business in Prussia put too much pressure on the state to continue to resist the circulation of statistics from the stock exchange.[105]

Nevertheless, the statistics that were disseminated through the magazine were of important economic use to Prussians at home and those living and working abroad. Manteuffel, who received twenty copies of the magazine in return for subsidizing it, sent editions to the Prussian embassies in Paris, Vienna, London, St Petersberg, Madrid, Lisbon, Constantinople, Rio de Janerio, Antwerp, Rotterdam, Buckarest, Beyruth, and New York.[106] He also sent publications to Washington, Cairo, Hanover, Munich, Dresden, Karlsruhe, Copenhagen, Stockholm, Rome, Athens, Frankfurt am Main, Bremen, Lübeck, Rostock, Emden, Liverpool, and Edinburgh.[107] There was ample information in the magazine on international trade issues to show that Prussia was abreast of the latest economic trends and for practical use by Prussians in these regions. Indeed, Manteuffel received a letter from the *chargé d'affaires* (*Geschäftsträger*) Hesse on 12 September 1856 reporting that he and other Germans in the West Indies had been reading it and found it of such great value that he asked for it to be sent to the consul there.[108] Heydt was in favour of this, and, in general, he too encouraged sending materials to other consulates in non-European areas.[109]

CONCLUSION

For the Brandenburg–Manteuffel and Manteuffel Ministries of State, the creation of a more robust and profitable economic system was fundamental to their counter-revolutionary project. To achieve this, Manteuffel immediately sought to introduce long-desired macro-changes to landholding by completing peasant emancipation. This, as in the Austrian Empire, was one of the most dramatic outcomes of the post-revolutionary years. Of course, property tax in Prussia was also in urgent need of reform, but on this issue Manteuffel had much less success. Manorial estates remained exempt from taxation or were subject to comparatively low levels of

[103] Brophy, 'The Political Calculus of Capital', 162.
[104] Reindl, *Der Detusch-Österreichische Telegraphenverein,* 138–9.
[105] On the circulation of figures from the stock exchange after 1856, see ibid. 154–5, 157.
[106] 6 October 1850, in GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1242, Bl. 106.
[107] Ibid., Bl. 116–17.
[108] GStA PK, III. HA Ministerium der auswärtigen Angelegenheiten, II Nr. 1243, unpaginated.
[109] Heydt to Manteuffel, 11 September 1858, in ibid.

taxation when compared to Westphalia or the Rhine Province, and only after the Manteuffel Ministry's dismissal did such reforms come to pass in 1861. In commercial affairs, there was important change too. The Manteuffel Ministry of State displayed unmistakable caution as it increased measures to facilitate free trade. Here, Manteuffel and Heydt were attentive to the interests of industrialists, although not to the extent that they would introduce a complete deregulation of the skilled trades. This meant that Manteuffel and Heydt were particularly aware of the hardships of craftsmen, and, more than in any other region of Europe at this time, the German states introduced an array of measures for their protection.

Beyond macro-restructurings, the more direct and indirect interventions into industry continued the liberal fiscal policies of the March Ministries, but, to the frustration of the business class in the middle years of the 1850s, this was not coupled with deregulation. In the building of railroads, Heydt elicited anger on the part of railroad owners, and, in the Second Chamber, he encountered resistance as he took over private railways. In particular, his unwillingness to account for expenditures made his Railroad Fund a target in parliamentary debates during the years 1855–8. It was only in the period 1858–61, as James Brophy has argued, that mutual accommodation was reached between the two interests, and throughout the 1860s, as private interests came to dominate the railroad industry.[110] A similar pattern also occurred in the mining industry. Here Heydt oversaw a wide-reaching restructuring in 1851 and the creation of important aids for the industry. Nevertheless, oversight remained in the form of state regulatory offices, and only in 1860 and 1861 did laws come into existence that reduced state tutelage and completed the liberalization of industry.[111] By way of contrast, the business class was successful in pushing the ministry to far greater reforms than it had wished to enact in the 1850s in the sphere of banking. Here, it successfully precipitated the introduction of commercial investment banks that would prove instrumental to industrialization in the second half of the nineteenth century.

Finally, reform in the realm of communications became a third cornerstone of post-revolutionary state activity. In particular, the telegraph expanded at a rapid pace under the direction of the Trade Ministry, as did the dissemination of statistics designed to impress upon Prussians the new reach of the state into economic life. The end result of this and the larger landscape of economic reform activity in the 1850s was a substantial increase and standardization of government activity across Prussia instrumental to restoring confidence in the state. But it occurred within a wider environment of German affairs, in which calls for national codes, particularly a commercial code, became common. Specially in 1856, Bavaria initiated moves towards the creation of a uniform commercial code in the German Confederation. While Prussia was in no rush to take a lead on such codifications, it also did not want to lose the advantage it held in the *Zollverein* by allowing the Confederation to become a centre of economic policy in Germany. Thanks to the manoeuvrings of Bismarck, Prussia's representative in these discussions, Prussia was able to draft its own code and use this as the basis for the Commercial Code

[110] Brophy, 'Salus publica suprema lex', 129–30. [111] Ibid. 130–1.

confirmed in the diet in 1861. As Michael John writes, the Prussians in the 1850s might have hindered progress towards national legal unity, but this policy 'scarcely reflected an opposition to legal unity as such'. He continues, it 'was rather a reflection of Prussia's determination to prevent a diminution of its influence in the solution of the German question'.[112]

[112] Michael John, *Politics and the Law in Late Nineteenth-Century Germany: The Origins of the Civil Code* (Oxford: Clarendon Press, 1989), 39. On the Commercial Code, see also Enno E. Kraehe, 'Practical Politics in the German Confederation: Bismarck and the Commercial Code', *Journal of Modern History*, 25 (1953, 13–24.

5

Cities and Urban Life

Manteuffel was quick to recognize the many problems facing Prussia's cities, towns, and villages in November 1848. State officials had amassed significant powers from local officials between the end of the Thirty Years War and the beginning of the Napoleonic Wars, resulting in a narrowing of the scope of urban government. Attempts were made to rectify this state of affairs during the Reform Era, particularly as Baron Karl von und zum Stein oversaw the creation of a municipal ordinance to revitalize local communities. But Stein's ordinance came into effect only across limited parts of Prussia, and it did not extend to the new territorial acquisitions secured in 1814. In Rhine Province, Westphalia, and parts of Saxony, communal arrangements were seen to be more representative, relying on French laws in various states of revision, but they constituted a patchwork of regulations that proved difficult for any state official to navigate.

The limits and heterogeneity of legislation in Prussia were obvious, but they were not the only factor contributing to the sorry state of urban affairs in the years before the revolutions. Local officials too bore some responsibility. Many showed a very real malaise in carrying out municipal tasks, even in areas with reformed legal structures. This included failures to introduce new construction plans, building codes, infrastructure, and services. And as towns began to grow in the decade before the revolutions, it looked as if nothing was going to change. Conditions worsened in Prussia's largest cities, bringing about suggestive links between revolution and overcrowding or poor public health. Hence, as Manteuffel saw it, the state needed to stop watching on as urban communities decayed and, instead, take action.[1]

This chapter looks at the efforts of the Brandenburg–Manteuffel and Manteuffel Ministries of State, as well as the police, to reform local government in the 1850s. At the centre of this project stood the introduction of the statewide Municipal Ordinance (*Gemeindeordnung*) of 1850, developed according to the earlier templates of Baron vom Stein. The Municipal Ordinance of 1850 was designed to energize urban activity by increasing the power of state intervention in large cities and small towns, while being less intrusive elsewhere. In addition, the ordinance sought to replace corporate-based participation in local affairs with class affiliations, thus continuing to break down the last remnants of feudalism in Prussia. Realizing such a reform agenda was no easy task, but Manteuffel believed that it would

[1] Manteuffel quoted in Günther Grünthal, *Parlamentarismus in Preußen 1848/49–1857/58: Preußischer Konstitutionalismus- Parlament und Regierung in der Reaktionsära* (Düsseldorf: Droste, 1982), 183.

bring cities and towns in line with other post-revolutionary reforms, especially when coupled with energetic policing. Indeed, the police became an important element in this process of revitalization, overseeing a range of new programmes to develop towns and better to provide for the welfare of residents. This was particularly the case in Berlin, where the Police President Carl von Hinckeldey saw it as his mission to outperform political rivals through the astute management of building in the city.

Information about the new undertakings in Berlin soon spread to other Prussian towns and cities, aided by publishers, who amplified the effects of state-driven reforms through the circulation of magazines. A rich exchange of literature also developed across German-speaking Europe and beyond, as other states sought better to manage tensions in cities through administrative and material reform. Paris saw the most striking state interventions in this period, but in Madrid too, as in Barcelona, the 1854 revolutions prompted the central authorities to oversee vital expansions of the urban fabric.[2] And not surprisingly London, despite its lack of revolutionary activity in 1848, continued to be an important source of inspiration for reform based on its massive population size. Police engagement with such models of material urban reform was essential to the making of modern Prussia, and it would have long-term effects on the formation of modern Germany.

TOWARDS MODERN MUNICIPALITIES

In the midst of the Napoleonic Wars, state ministers and other officials across German-speaking Europe increasingly recognized the importance of restructuring municipal government as part of any larger programme of reform. The most famous to do so was Baron Karl vom und zum Stein. Stein introduced a system of local administration in Prussia in 1808 based on his experiences of temporary refuge, along with the Prussian court, in the East Prussian city of Königsberg. In Königsberg, a system of corporations administered local affairs, but they were stifled in their work by a state-appointed tax councillor (*Steuerrat*), who sought to enforce the interests of a larger absolutist-mercantilist system over Königsberg's particular concerns. In addition, a cumbersome division of labour and complicated jurisdictions meant that officials were unable to respond to problems quickly. For the 50,000 persons who lived and worked in the bustling port city, there was little to praise about this arrangement, and, as a result of war with the French in 1806 and 1807, the system collapsed entirely.[3]

Stein's response was to retain central bureaucratic direction in local government but, at the same time, alleviate unnecessary administrative structures in Königsberg. He removed the *Steuerrat* and instead established an assembly of elected deputies

[2] Anna Ross, 'Down with the Walls! The Politics of Place in Spanish and German Urban Extension Planning, 1848–1914', *Journal of Modern History*, 90 (2018), 292–322.

[3] Marion W. Gray, *Prussia in Transition: Society and Politics under the Stein Reform Ministry of 1808* (Philadelphia: American Philosophical Society, 1986), 104–5.

(*Stadtverordnetenversammlung*), which in turn voted for a mayor and other administrative executives. The new portfolios offered local officials a relatively wide remit when compared to their former roles. The assembly was responsible for supervising executive actions and approving the municipal budget, and the magistrates garnered responsibilities for the appointment of officials, control of the treasury, trade, industry, transport, and various forms of licensing. But the arrangement was made on the condition that provincial officials would continue to exercise state control by confirming a town's executive. The state also retained control of policing in cities, meaning that its presence in urban affairs was unmistakable, if now less stifling.[4]

Alongside this more streamlined system, Stein also expanded participation to break down corporate advantage in municipal activity. Citizens were to vote for the *Stadtverordnetenversammlung* according to districts, rather than the old system of guild or corporation membership, although with important qualifications. First, the possession of citizenship, rather than being a member of a household such as a wife, child, servant, or apprentice, was essential to enfranchisement. A distinction also existed between citizens and residents—that is, persons of no fixed address including the unemployed and paupers, as well as soldiers stationed in a town. Secondly, eligibility to vote was further narrowed down according to the possession of property or engagement in business. If a citizen could not claim either, he had to provide evidence for a yearly income of 200 Taler, or 150 Taler in smaller towns, in order to be enfranchised. This created an opportunity for a greater share of non-nobles in local affairs, although it resulted in the exclusion of the middling and poor from the electorate, along with women and many Jews who did not claim their citizenship rights.[5]

Stein's Municipal Ordinance came into effect in Königsberg in 1808 and then in Elbing in 1809. Following this, local administration was reorganized over the next two years across the diminished Prussian territories, including in Berlin. Yet a general petering-out and eventual abandonment of Stein's agenda meant that municipal administration of any kind simply failed to be instituted in much of the state. Furthermore, Stein's Municipal Ordinance was not extended to the provinces secured by Prussia at the Vienna Congress of 1814, including the Rhine Province, Westphalia, the Grand Duchy of Posen, the Swedish-ruled rump of western Pomerania, and the northern half of the Kingdom of Saxony. In these areas, municipal legislation rested on French law, with revisions in 1831 in the Province of Saxony, the former Saxon parts of the Province of Brandenburg, Westphalia, and several towns in the Rhine Province, before yet further revisions were introduced in the Rhine Province in 1845. This Napoleonic legislation allowed for more centralized state powers than Stein's Municipal Ordinance, and the revisions of 1831 saw the reintroduction of elections by guilds and corporations.

[4] Ibid. 106; Karin Friedrich, 'The Development of the Prussian Town, 1720–1815', in Philip G. Dwyer (ed.), *The Rise of Prussia, 1700–1830* (Harlow: Longman, 2000), 129–50, at 149.

[5] Gray, *Prussia in Transition*, 106–7.

By way of contrast, the reforms in the Rhine Province of 1845 instituted a three-class voting system, offering a wider franchise for local government.[6]

Reforms to local government spread unevenly across the rest of the German states in the decades after the Napoleonic Wars. The Austrians avoided implementing any changes to communal structures in their territories, but statesmen in Bavaria revised the municipal legislation they inherited from Napoleon in 1818 and 1834, retaining strong state supervision. This had a variety of outcomes. In the royal capital (*Residenzstadt*) Munich, for example, Ludwig I intervened with a heavy hand in urban affairs, whereas, in a commercial city like Augsburg, such interference was rare.[7] In Württemberg, reforms in 1817 and 1822 meant that state supervision was much weaker than Prussia or Bavaria and the franchise more democratic. Moreover, here, unlike in Prussia, police authority was vested in towns.[8] In 1831, Baden too abandoned the Napoleonic system and introduced a municipal code like that in Württemberg. Here the election of mayors, who were usually confirmed by the crown, took on a new dimension. That is, if a town in Baden chose the same candidate three times, any royal veto was no longer possible. Later regulations would see a reversal of this democratic spirit so that voting became indirect, as in Bavaria, and based on a three-class franchise, as would later be seen in the Prussian Rhine Province, but Baden was still seen as a more liberal model of local government.[9]

The incomplete state of local-government reform came under new scrutiny in 1848. In Prussia, David Hansemann, the then Prussian Minister of Finance, advocated a continuation of the principles expressed in the 1808 Municipal Ordinance. He proposed decentralizing local government further by limiting state powers to the confirmation of mayors. In addition, he advocated a limited male suffrage in all Prussian towns and cities—what was, essentially, an extension of the popular arrangement that had originated in Belgium and came into effect in the Rhine Province in 1845. Finally, Hansemann sought to end distinctions between urban dwellers, as would be agreed upon later by the Frankfurt National Assembly in §§1–3 of the Basic Rights, laying the groundwork for the right of all residents to communal institutions, and he extended the reach of local governments and police forces beyond the traditional urban–rural divide.[10]

Hansemann believed that the uniform application of such a municipal code in Prussia would finally secure the 'autonomy and self-government of urban communities'.[11] Reform would create, it was argued, new political arenas in cities and towns and the cultivation of unseen levels of debate. As one draft brought before the National Assembly stated: the *Gemeindeordnung* of the Grand Duchy of

[6] Gisela Mettele, 'Verwalten und Regieren oder Selbstverwalten und Selbstregieren?', *Historische Zeitschrift*, 16 (1993), 343–65.

[7] Ibid. 350–1.

[8] William Harbutt Dawson, *Municipal Life and Government in Germany* (London: Longmans, Green and Co., 1914), 23.

[9] Mettele, 'Verwalten und Regieren', 353–4.

[10] *Verhandlungen der constituirenden Versammlung für Preußen. 1848* (Berlin: Carl Schultze, 1848), iii. 1900–26.

[11] Ibid. 1914.

Baden had provided the means for the people of Baden to develop their 'political consciousness', so new legislation in Prussia should bring about similar results.[12] Such sentiments chimed with liberals, who saw the reform of local government as a political project designed to strengthen equality with the landed aristocracy. But democrats criticized the draft. They supported more extreme steps to remove state control, as would be seen in Frankfurt. In §43 of the Basic Rights of the German People and later in §184 of the constitution of March 1849, deputies to the Frankfurt National Assembly increased community powers at the expense of the state, entrusting the election of officials and the administration of community affairs, including local police, to towns.[13] Likewise, they criticized the limits placed on male suffrage, or, in the case of Carl d'Ester, even helped to develop a counter draft, put forward in Prussia on 16 August 1848. This draft underscored the importance of democratic, if still male only, voting stipulations.[14]

The onset of the counter-revolution did not put an end to this debate. Manteuffel believed that the successful completion of a constitution should entail provisions for 'a healthy community life' and so affirmed the general principles devised by the National Assembly to restructure municipal government in article 104 of the constitution of 5 December 1848.[15] Following this in early 1849, he began to give article 104 substance by drafting two key pieces of legislation: a municipal ordinance together with a Prussian police administration law (*Gesetz über die Polizeiverwaltung*), both of which were instituted on 11 March 1850.

Manteuffel's drafting of the Municipal Ordinance caused tensions almost immediately on both of the political extremes. By January 1849, the Gerlach brothers were talking about Manteuffel's 'radical draft', and, as the bill went before the First Chamber in August and again in December 1849, agitation increased.[16] The concern about the new Municipal Ordinance for Friedrich Wilhelm IV and the ultra-conservatives was that it undermined the control wielded by the traditional elites over rural areas—especially their cherished patrimonial police powers. As Friedrich Wilhelm IV wrote to Manteuffel, he could not bear to see police powers transferred from the nobility to district bureaucrats.[17] But Manteuffel was confident. The voting stipulations in the draft legislation meant that in many areas of the countryside the most likely persons to be elected as local representatives would still be aristocratic farmers. Furthermore, in contrast to Friedrich Wilhelm IV, he argued that bureaucrats would sufficiently represent the interests of the crown

[12] Ibid. 2023.

[13] Mack Walker, *German Home Towns: Community, State and General Estate, 1648–1871* (Ithaca, NY: Cornell University Press, 1971), 368–78, 382.

[14] Heinrich Heffter, *Die deutsche Selbstverwaltung im 19. Jahrhundert* (Stuttgart: Koehler, 1950), 311–12.

[15] *Stenographische Berichte über die Verhandlungen der durch die Allerhöchste Verordnung vom 30. Mai 1849 einberufenen Zweiten Kammer*, v (Berlin, 1850), 2585.

[16] Ludwig von Gerlach, diary entry of 4 January 1849, in Ernst Ludwig von Gerlach, *Von der Revolution zum Norddeutschen Bund. Politik u. Ideengut der preußischen Hochkonservativen, 1848–1866. Aus dem Nachlaß von Ernst Ludwig von Gerlach*, ed. Hellmut Diwald, 2 vols (Göttingen: Vandenhoeck u. Ruprecht, 1970), i. *Tagebuch, 1848–1866*, 148.

[17] Friedrich Wilhelm IV to Manteuffel, 15 November 1849, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Bd. 7, Bl. 51–2, at Bl. 51.

and nobility where traditional communal leadership was lost. As he put it: 'The reputation of the crown will not suffer, even if it is not only aristocratic landowners who are called upon to exercise a part of the sovereign right.'[18]

Friedrich Wilhelm IV tentatively accepted his interior minister's arguments that the Municipal Ordinance was 'flexible' enough to support conservative interests, and with that Manteuffel opened the debate in the Second Chamber.[19] Here, as the member Heffe put it in February 1850, there was much praise for the document, but also doubts.[20] These included concerns about the universality of the proposed legislation and the difficulties this could cause in the Rhine Province and Westphalia, as they would have to revise existing legislation rather than adopt the Municipal Ordinance from scratch. For Heffe, though, the introduction of a new code was absolutely necessary. Indeed, the debate and passage of the ordinance through the Second Chamber was relatively easy, confirming the broad appeal of the legislation. For moderate liberals, this was especially the case, as it proposed introducing local administration to the vast number of municipalities where it was lacking. As the commission into municipal government outlined in the First Chamber on 3 December 1849, of the 37,570 communities in Prussia, only 982 towns and 6,866 villages possessed any type of municipal organization.[21]

In addition, Manteuffel's draft legislation looked to impose administration uniformly. This was a welcome step towards efficiency because, of the total 7,848 communes that already possessed some form of administration, six different codes existed to guide the regulation of urban communities and three for rural communities.[22] Manteuffel's Municipal Ordinance would place urban and rural administrations across Prussia on the same footing, ensuring that no estates—especially those of the *Junker*—were left independent of uniform state authority. And increased state authority would also be matched by new voting regulations and elections, allowing for a greater level of participation in community affairs.

Finally, and perhaps most importantly, Manteuffel's Municipal Ordinance, when combined with the new Prussian Police Administration Law, sought to bring about material improvements in cities. The connection becomes clearer if we remember that police activity in the nineteenth century was not confined 'merely to defence against dangers and disadvantages and the preservation of what already exists' but existed also for the 'preservation and advancement of the general welfare'.[23] Manteuffel believed that, to ensure such tasks were undertaken with sufficient ambition, an increase in state powers was necessary. Local police forces (*Ortspolizei*) were thus placed under the control of a state-appointed director in

[18] 'Pro Memoria Ueber einige Erinnerungen gegen die Gemeinde-Ordnung vom 11ten März 1850', undated, in ibid., Bl. 71–82, at Bl. 71–2.

[19] Friedrich Wilhelm IV to Manteuffel, 24 July 1850, in ibid. Bl. 83–7, at Bl. 83.

[20] *Stenographische Berichte über die Verhandlungen der durch die Allerhöchste Verordnung vom 30. Mai 1849 einberufenen Zweiten Kammer*, v (Berlin: 1850), 2586.

[21] See Grünthal, *Parlamentarismus*, 183, n. 29.

[22] Ibid.

[23] Alf Lüdtke, *Police and State in Prussia, 1815–1850*, trans. Peter Burgess (Cambridge: Cambridge University Press, 1989), 24.

any city that the interior minister deemed necessary to ensure, along with security, a more active approach to urban issues.[24]

This emphasis on increased state surveillance was potentially troubling for many, but it was not a new idea, as it was born in the debates of the revolution. At the Frankfurt National Assembly, several deputies expressed concerns over entrusting police powers to urban administrators in very large or very small towns, as the local administration could not keep up with a growing population and economy.[25] Prussia embraced this argument, clearing the way for the state to assume a more active role in Berlin, Potsdam, provincial capitals, and a number of commercially important cities such as Cologne and Aachen.[26] For urban centres that did not fall into the extreme ends of population size there was less interference, but whether directly responsible to the state or not, the Prussian Police Administration Law of 11 March 1850 emphasized the social responsibilities of the police by making them accountable for overseeing:

> the protection of the person and of property; the care for life and health; the order, security and ease of traffic on public streets, roads and places, bridges, shores and waters; and everything else which from a police point of view must be included among the special interests of the towns and their members.[27]

As a whole, then, Manteuffel's Municipal Ordinance proposed to complete the reforms began by Stein by extending the reach and power of the state to communities below the level of the provincial administrative apparatus. To overcome the weaknesses of city governments, he increased state supervision in important cities, but in some areas, as we will see, there was a careful decentralization of state power in the interest of effective administration. In addition, the strengthening of central bureaucratic checks over the police would, Manteuffel expected, encourage them to undertake projects of material improvement, rather than affirming any liberal notion of the political development of the Prussian population. He also intended that a new income tax—the later Income Tax Law of 1 May 1851—would be implemented through district commissions, facilitated by a restructuring of municipal government. In particular, Manteuffel envisaged that officials from locally elected representative bodies would oversee the apportionment of taxation, problems therewith, and settle disputes.[28]

Despite the potential gains to be made for state authorities through the new ordinance, the ultraconservatives remained firm in their opposition to an extension of state powers and the introduction of elections at a local level. And their position was gaining momentum. Throughout the spring and summer of 1850,

[24] Elaine Glovka Spencer, 'State Power and Local Interests in Prussian Cities: Police in the Düsseldorf District, 1848–1914', *Central European History*, 19 (1986), 293–313, at 300.

[25] Walker, *German Home Towns*, 381.

[26] Brian Ladd, *Urban Planning and Civic Order in Germany, 1860–1914* (Cambridge, MA: Harvard University Press, 1990), 93.

[27] Mathieu Deflem, 'International Policing in Nineteenth-Century Europe: The Police Union of German States, 1851–1866', *International Criminal Justice Review,* 6 (1996), 36–57, at 40.

[28] Simon Hyde, 'Hans Hugo von Kleist Retzow and the Administration of the Rhine Province during the "Reaction" in Prussia, 1851–1858' (D.Phil., University of Oxford, 1993), 177–8.

the *Kreuzzeitung* embarked on a systematic opposition to the *Gemeindeordnung*, and, by early July, Friedrich Wilhelm IV could no longer stand by Manteuffel. Instead, he aligned himself with the growing ultraconservative opposition to the Municipal Ordinance. The First Chamber too put pressure on Manteuffel through reports on the extent to which the new legislation had been successfully implemented. The majority were overwhelmingly negative: in the six eastern provinces, only 83 out of 763 cities had carried out a full implementation of the new legislation (8/122 in Prussia; 10/138 in Brandenburg; 5/72 in Pomerania; 37/145 in Silesia; 1/146 in Posen; and 22/140 in Saxony).[29] These were certainly extreme cases, but Manteuffel was forced to admit that the implementation of the new municipal arrangements across the state had encountered 'difficulties, doubts, repugnance, and indifference'. Only in the western provinces were the measures enthusiastically received.[30]

Backlash was debilitating, but it alone was not enough to force a revision of the *Gemeindeordnung*. Rather, Manteuffel was becoming desperate for local government to come into effect quickly to facilitate income-tax collection. The situation became acute by 13 May 1851, as Friedrich Wilhelm IV wrote to Manteuffel to impress upon him the need for his government to balance state income and expenditure without a reduction in military spending.[31] On top of this, Manteuffel was trying to see to it that Prussia paid off the loans it had contracted in 1848 and 1850. The slow implementation of local government was threatening, therefore, to derail Prussia's precarious financial footing, and, with resistance in the eastern provinces growing, it seemed that the Municipal Ordinance could not be implemented fast enough in its current form. As a result, Manteuffel chose to accept a conservative revision of the legislation to facilitate revenue collection rather than adopting any principled return to pre-March conditions. But in doing so, he drew abuse from liberals, including from the *Kölnische Zeitung*, which lamented: 'all this for the income tax!'[32]

On 17 and 28 May 1851, Friedrich Wilhelm IV promulgated decrees to temporarily reintroduce pre-March forms of administration across Prussia, generating serious outrage.[33] Vincke charged the Ministry of State with acting unconstitutionally, as did the liberal press in Berlin. Unrest spread out from the capital and was particularly evident in the Rhine Province and Silesia, where varying but clearly robust civic identities could not be so easily overturned. For instance, Rudolf von Auerswald, the *Oberpräsident* of the Rhine Province, made his reservations public, and the Cologne Town Council put its anger into print in an article entitled 'The Elections to the Provincial *Lantage* Are Illegal'. It followed this statement with a refusal to assume the costs of upcoming elections. In the district of Koblenz, the *Landräte* and members of the Second Chamber Delius and Hilgers resigned their

[29] GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 760 Nr. 1 Bd. 4, unpaginated.
[30] 'Prussia', *The Times*, 4 December 1851, p. 5.
[31] Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E.S. Mittler und Sohn, 1901), ii. 22–5, at 23.
[32] Hyde, 'Hans Hugo von Kleist Retzow', 178.
[33] Heffter, *Die deutsche Selbstverwaltung,* 329.

positions, and in Düsseldorf, the *Landrat* Aldenhoven did the same, publishing his resignation. Furthermore, turnout at the autumn elections was low, something officials deemed to be politically motivated.[34]

Some conservatives also showed their displeasure. Moritz August Bethmann-Hollweg, one of the conservatives who stood closest to the political centre on account of his realism, abstained from participating in the provincial elections that September and published attacks against the decrees in the pamphlet *Die Reaktivierung der Preußischen Provinziallandtage* (Berlin, 1851). Bethmann-Hollweg complained, however, not so much about the stated aims of the Ministry of State as about the unconstitutional means of achieving them, which eventually led to a split within the conservative and the formation of the *Wochenblattpartei*.

The first revised draft of the Municipal Ordinance appeared before the chambers on 1 December 1851. Regulations for municipal governance would no longer be uniform but instead adapted to local circumstances. There would be one ordinance for the six eastern provinces, another for the towns and rural districts of Westphalia, and a third for the Rhine Province. Following this on 30 May 1853 a new city charter law (*Städteordnung*) was introduced for the six eastern provinces, which mainly strengthened the power of the bureaucracy over local administrations. The new *Städteordnung* of 19 March 1856 in Westphalia and 15 May 1856 in the Rhine Province similarly increased the supervisory role of government but allowed for the retention of municipal authority secured in the *Städteordnung* of 1853.[35]

Although it seemed like a return to pre-1848 conditions, the resulting *Städteordnung* for the six eastern provinces (31 May 1851) was, in reality, nothing more than a conservative revision of the Municipal Ordinance of 1850. The king was henceforth responsible for the appointment of the mayor (*Oberbürgermeiste*r) in larger towns and the executive council (*Magistrat*) required the approval of the state.[36] But elected city councils were still expected to carry out an expanded remit of tasks, even if subordinated to the *Magistrat* and lacking direct control of the police. In other words, the revision of the Municipal Ordinance created a hybrid space in which *both* the state and society gained increased room for movement in the development of cities and towns. As Manteuffel had said to Bismarck, he opposed the extremes favoured by the ultraconservatives in the affair and their triumphal attitude. He believed that nothing would be gained by a complete return to the *Vormärz* structures, 'at least not without sweeping measures, which we have good reason to avoid'.[37] And he was opposed to any suggestions of this ilk in the years thereafter, including a proposal from Ludwig von Gerlach in 1854 that mayors should be granted lifelong appointments. This, notably, did not come to fruition.[38]

Beyond Prussia, municipal reform also took place in several other German states in the 1850s. The most important was Austria, which underwent significant changes after 1848. For Austria, the creation of a municipal ordinance in 1850 was

[34] Hyde, 'Hans Hugo von Kleist Retzow', 121–5, 167.
[35] Heffter, *Die deutsche Selbstverwaltung*, 331–4. [36] Ibid. 331–2.
[37] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 48–9.
[38] Hans-Christof Kraus (ed.), *Ernst Ludwig von Gerlach: Politisches Denken und Handeln eines preußischen Altkonservativen*, 2 vols (Göttingen: Vandenhoeck & Ruprecht, 1994), ii. 577.

an even larger task than the one in Prussia, as there had been no equivalent reforms in the Habsburg territories during the Reform Era. Here, a three-part curial system was introduced for electing municipal authorities, but, unlike the Prussian Three-Class Voting Law, a minimum taxation level was included for enfranchisement, meaning that lower artisans were excluded from having a say in their municipalities. This would have a powerful radicalizing effect on Viennese politics that was unparalleled in Prussia.[39] Apart from the great powers, however, there was little work undertaken in the sphere of municipal reform. In the states of Bavaria, Württemberg, and Baden, this was mainly because of the more extensive activity undertaken in these states in the years after the Napoleonic Wars and before 1848.

THE BERLIN MODEL

The Manteuffel administration's reforms were intended to bring about a supervised but real increase in local government across Prussia. While this did not unfold as planned, many of the activities associated with self-governing communities did take place, thanks to the new powers conferred on the police by the Prussian Police Administration Law. This was especially clear to see in Berlin, where a confluence of three factors gave the city a disproportionate advantage over other Prussian cities. First, as the state capital, it remained under the watchful eye of the Interior Ministry. But Berlin was special in a second respect: its police enjoyed unparalleled levels of funding. Berlin received nearly four-fifths of *Landtag* funding for policing, which in 1849 stood at a total annual budget of 756,423 Taler. This enabled an increase in the number of policemen in the Prussian capital, which stood at 112 officers and 121 gendarmes at the beginning of 1848, and increased to 1,150 by the end of the decade, although it was hoped that the force might expand to as many as 2,000 policemen during this period.[40] Thirdly, Berlin's structural advantage was further enhanced by the appointment of an energetic police president in the 1850s, the infamous Carl Ludwig Friedrich von Hinckeldey.

Hinckeldey was born on 1 September 1805 in the Duchy of Saxe-Meiningen (Figure 5.1). His family was established, ennobled, and contained many successful officials, but it was nevertheless a minor family in the Prussian aristocratic elite.[41] Hinckeldey followed, therefore, the familiar path into state service taken by the likes of Manteuffel and Ladenberg. He studied law in Berlin and Göttingen from 1823 to 1826, before entering into the Prussian administration in Liegnitz. In 1842, he took a promotion in the administration in Merseburg, where he displayed exceptional energy and organizational talents. Manteuffel took note of this 'reliable and energetic official' and encouraged Friedrich Wilhelm IV to call him

[39] John W. Boyer, *Political Radicalism in Late Imperial Vienna: Origins of the Christian Social Movement, 1848–1897* (Chicago: University of Chicago Press, 1981), 9–17.

[40] Spencer, 'State Power and Local Interests in Prussian Cities', 296–9.

[41] David E. Barclay, *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995), 240.

Figure 5.1. Carl Ludwig Friedrich von Hinckeldey (1805–56). *(ÖNB/Wien, PORT_00125375)*

to Berlin. This he did, and, on 18 November 1848, Hinckeldey took up the position of Berlin Police President.[42]

Hinckeldey could be fanatical when it came to questions of security. He set about documenting the nature, size, and international connections of the democratic associations at large in the capital during the counter-revolution with particular fervour.[43] And he sent his reports directly to Friedrich Wilhelm IV, who was so impressed by what he read that he soon arranged for his police president to deliver security reports in person. On average, Hinckeldey travelled to Potsdam two to four times a week to present his latest findings and, in doing so, became indispensable to the increasingly paranoid monarch.[44] The police president stepped up the examination of those persons moving in and out of the capital, placed suspected radicals under surveillance, and even commissioned the surveillance of police

[42] Manteuffel to Friedrich Wilhelm IV, 12 August 1850, in GStA PK, BPH, Rep. 50 Nl Friedrich Wilhelm IV, J Nr. 797, Bl. 22–3, at Bl. 22.

[43] See, e.g., the report of 28 December 1848 in GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 2 Nr. 48 Bd. 1, Bl. 1–7; Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 71–2.

[44] Stephan M. Eibich, *Polizei, 'Gemeinwohl' und Reaktion: Über Wohlfahrtspolizei als Sicherheitspolizei unter Karl Ludwig Friedrich von Hinckeldey, Berliner Polizeipräsident von 1848 bis 1856* (Berlin: BWV, 2004), 506.

officers in certain instances in order to secure the state against internal and external revolutionary plots.[45]

Although obsessed with security, Hinckeldey was innovative and ambitious in matters of urban governance. As David Barclay put it: 'That redoubtable policeman was one of the most remarkable and creative conservative officials in nineteenth-century Prussia, and in many ways he invites comparison with his better-known Parisian contemporary, Baron Haussmann.'[46] Departing significantly from ultraconservative expectations, Hinckeldey believed that the way to deflate revolutionary tendencies was to outperform political rivals in securing public welfare. As wrote to Manteuffel:

> Herein, esteemed Minister-President, consists my main strength against democracy in Berlin!—I have learnt a great deal from these democrats! We must strive, using maximum and unrelenting enforcement against the individuals involved, for them completely to lose their influence as a result of the police accomplishing better things.[47]

For Hinckeldey, 'accomplishing better things' meant first restructuring the enlarged Berlin police force significantly to expand its remit. On the authority of a Cabinet Order of 27 December 1854, Hinckeldey increased the number of departments in the Berlin police force from five to nine. This included two departments responsible for policing and seven for overseeing, among other things, trade, building, the fire brigade, welfare of the poor, lending libraries, press affairs, and the city telegraph.[48] It also meant underpinning policing with a new knowledge of the city through the foundation of a statistical office in 1853 (henceforth Berlin Statistical Office).[49]

Unlike the Prussian Central Statistical Office, which collected information that was 'far too general' to be of use in urban affairs, Hinckeldey's new office sought to provide a more nuanced picture of how space was changing in the rapidly industrializing city and what impact it was having on the physical and 'moral' health of Berliners.[50] It collected and distributed information on: population growth; birth rates; mortality rates; causes of death, including suicide and accidental death; the number of people employed in trades per type; the number of publishers, bookshops, antiquaries, and libraries; data on industry and those working in factories; immigration, internal migration, and emigration out of the city; the number of public and private buildings in Berlin and especially the number of newly built apartments; the cost of apartments per location; the number of empty apartments in the city; average food prices; average market prices; the number of animals in

[45] Frank J. Thomason, 'The Prussian Police State in Berlin, 1848–1871' (Ph.D. dissertation, Johns Hopkins University, 1978), 158. On spying on other constables, see GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 2 Nr. 48 Bd. 1, Bl. 29–31.

[46] Barclay, *Frederick William IV*, 240.

[47] Hinckeldey to Manteuffel, 26 June 1854, in GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 3 Nr. 48, Bl. 8.

[48] Eibich, *Polizei, 'Gemeinwohl' und Reaktion*, 49–53.

[49] This office was known as the Statistical Office of the Royal Police Presidium or *Das statistische Amt des Königl. Polizei-Präsidiums in Berlin*.

[50] Hinckeldey to Westphalen, 23 January 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 147–8.

Berlin; the number of schools, teachers, and teacher-to-pupil ratios; attendance in university courses per subject; classifications and quantifications of magazines per genre; data on poor relief; the number of doctors and medical institutions; the capacity of hospitals; types and prevalence of disease; the number of public baths in the city; the number of savings banks and interest rates; the number and types of insurance being purchased; the frequency, seriousness, and causes of fires; information on civil and criminal justice; destinations of the incarcerated; and the number of people in Berlin's workhouses.[51]

Hinckeldey prized these statistics about urban life, as did Otto Hübner, Hinckeldey's representative at the International Statistical Congress.[52] As Hübner wrote:

> It is more consummate to produce the statistics of big cities than those of the entire state because it is there that the intelligentsia comes together; but the former are also significantly more important because metropoles are, owing to their large population, the place where social advances and social injuries crystalize fastest; they are where the *Courszettel* and revolutions are made.

Hübner ascribed to statistics the power to reveal patterns, much as Mühler had advocated with justice statistics, and he too supported the application of such information to a reform-driven policy agenda. As he continued: 'A statistic which registers the condition of the population of capital cities is the most important tool for an intelligent safety authority, because the latter looks not only for the outbreaks of discontent, but also to overcome its causes.'[53]

Such an approach had the potential to appeal to the local authorities and residents, especially as the Berlin *Magistrat* insisted that the new Berlin police president should work for the 'material interests of our citizens' (*Bürgerschaft*) and the 'welfare of our city'.[54] And it was of potential interest to other Prussian and German towns, even if the latter saw nothing like the statistical innovations made in Berlin in the 1850s. Municipal statistical offices only really gained ground across the rest of the German states in the 1860s. In 1862, the Berlin municipal authorities founded a statistical office before others were established in Frankfurt am Main in 1865, Hamburg in 1866, Leipzig in 1867, Lübeck, Breslau, and Chemnitz in 1871, and Dresden in 1874.[55] By 1914, 45 municipalities could claim to support

[51] E. H. Müller and C. F. Schneider, 'Jahresbericht des statistischen Amtes des Königl. Polizei-Präsidiums zu Berlin', in Otto Hübner (ed.), *Jahrbuch für Volkswirtschaft und Statistik*, 2 vols (Leipzig: Heinrich Hübner, 1854), ii. 10–134. The directors of the office also made connections with institutions they believed could render useful data to the police, including: the Taxation Department (*Steueramt*) and Registration Office (*Anmeldungsamt*); churches; civil-society initiatives like the Association for Medicine (*Verein für Heilkunde*); and members of the public.

[52] Hinckeldey to Westphalen, 20 August 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 54–6, at Bl. 55.

[53] This is part of the 1853 International Statistical Congress report printed in what is surely a segment of the *Staats-Anzeiger.* See GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 37.

[54] Magistrat Naunyn to Hinckeldey, 28 November 1848, in LAB A Pr.Br.Rep. 030 Nr. 8114, Bl. 28.

[55] Ian Hacking, 'Prussian Numbers, 1860–1882', in Lorenz Krüger, Lorraine J. Daston, and Michael Heidelberger (eds), *The Probabilistic Revolution*, 2 vols (Cambridge, MA: MIT Press, 1987), i. 377–94, at 380.

their own statistical offices across Germany, out of a total of nearly 100 municipal offices across Europe, and the combined budgets for German municipal offices on the eve of the First World War was around one million Marks, close to half of the 2.5 million Marks directed to the Central Statistical Office. Congresses too became an important feature of the urban statistical movement in Germany. In 1879, Germany held its first national conference on urban statistics, and after 1897 municipal statistical offices regularly met together for the purpose of attaining greater degrees of uniformity in their work. These meetings were complemented by the publication of the *Statistisches Jahrbuch deutscher Städte*.[56]

But, in the 1850s, such enthusiasm was limited to the Prussian capital and, specifically, with the intention of 'utilizing' this information to reform urban life.[57] Here, Hinckeldey's work would cause disputes with the *Magistrat*, the city council, and property-owners, when he attempted systematically to force new social responsibilities on them. In response, both the local authorities and disgruntled Berliners attempted to assert their influence on urban governance but with little success. Rather, as we shall see, it was only those middle-class citizens sympathetic to an emerging public health agenda that influenced Hinckeldey's measures to improve housing, streets, and extension plans in Berlin.

HOUSING

On 1 July 1853, Hinckeldey oversaw the introduction of a Police Construction Ordinance (*Baupolizeiordnung*) in Berlin, the first since 30 November 1641.[58] The need for such an ordinance had long been recognized, with builders often cutting corners in the construction process and apartment-owners frequently renting dwellings—especially cellars—before they had properly dried. Damp posed serious risks to the health of occupants, ranging from simple fevers to full-blown cholera. If anyone doubted such claims, a stroll past the apartments in the Mulaksgasse (6, 10, 11), Steingasse (5, 11, 14, 15, 17), or those in the Linienstraße (44, 48, 62) revealed this array of afflictions, as did any tour of the older parts of the city.[59] Furthermore, the problems associated with poor construction were often exacerbated by low rates of supply and overcrowding. Between 1841 and 1846, over 2,000 new dwellings were built each year, most of which were hastily erected around major areas of employment such as in the Oranienburg and Rosenthal suburbs, or in the Luisenstadt and the Stralau quarter. But this did not come close to satisfying

[56] Eugene Würzburger, 'The History and Development of Official Statistics in the German Empire', in John Koren (ed.), *The History of Statistics: Their Development and Progress in Many Countries* (New York: Macmillan, 1918), 331–62, at 338–52.

[57] Hinckeldey to Westphalen, 27 October 1853, in LAB A Pr.Br.Rep. 030 Nr. 7280, Bl. 45–6, at Bl. 46.

[58] *Bau-Polizei-Ordnung für Berlin und dessen Bau-Polizei-Bezirk* (Berlin: A. W. Hayn, 1853).

[59] Oberbürgermeister, Bürgermeister und Rat hiesiger Königlichen Residenzen to Polizei-Präsidium, 26 November 1849, in LAB A Pr.Br.Rep. 030 Nr. 589, Bl. 52; Königliches Medicinal-Collegium der Provinz Brandenburg to the Polizei-Präsidium, 24 November 1848, in ibid., Bl. 73–82, at Bl. 75.

demand, meaning that overcrowding continued apace, and poor living standards multiplied.[60] As one report put it in 1845: 'It is not uncommon to find five to six people living in a small, wretched room, which hardly has space for two persons.'[61]

The Police Presidium, the Berlin *Magistrat*, and the Berlin government were aware of these problems and their political potential. In particular, the Police Presidium made an argument for taking 'a lively interest' in the health of citizens. It supported the claim that 'the unhealthy Bürger are unable to support the state' and, if ill, they 'become a burden on the city'.[62] Such attitudes saw these government bodies work together on at least three building codes to rectify the problems with public health during the *Vormärz* but without result. Instead, revolution erupted, further conflating associations of disease with political unrest, and underscoring the inability of the state to deal with such problems.

In 1853, however, Hinckeldey broke through what had turned into bureaucratic deadlock by introducing the new Police Construction Ordinance based on the authority of Manteuffel's Police Administration Law.[63] The code of 1853 halted unruly building in Berlin by insisting that new constructions, repairs, or changes to a structure, excluding small works such as decorating balconies or roofing, henceforth required the permission of the police.[64] Room heights had to exceed 8 feet to provide adequate 'light and air', and it was mandated that new apartments dry for nine months before use so as to decouple living quarters from dangerous respiratory diseases.[65] That is, it encouraged builders to adopt a degree of concern for public health. Similarly, Hinckeldey ensured that fire prevention was a priority. Building materials had to be approved for new constructions, and builders were held responsible for fireproofing building features such as stairwells. In particular, construction in factories and manufacturing premises came under police supervision, especially those that required flammable products or used fire as part of their production processes. Thus the Police Construction Ordinance of 1853 provided a basis for the authorities to bring building into line with contemporary yardsticks of best practice evidenced in other states.[66]

In order to force property-owners to renovate insalubrious rentals in line with the new code, Hinckeldey commissioned a statistical census to determine the number and nature of damp cellar apartments in the capital. The police classified apartments as posing either an 'absolute' or a 'relative' danger to the health of occupants. In the first report in 1853, district physicians counted a total of

[60] Nicholas Bullock and James Read, *The Movement for Housing Reform in Germany and France, 1840–1914* (Cambridge: Cambridge University Press, 1985), 22.

[61] 'Beiträge zur Erleichterung des Gelingens der praktischen Polizei' from 13 February 1845 and attached to a letter from the Police Presidium to the Interior Minister Arnim, 3 April 1845, in LAB A Pr.Br.Rep. 030 Nr. 589, Bl. 2–3, at Bl. 3.

[62] Ibid.

[63] On the bureaucratic deadlock before 1848, see Eibich, *Polizei, 'Gemeinwohl' und Reaktion*, 157–66.

[64] *Berliner Intelligenz-Blatt*, 14 May 1853, in LAB A Pr.Br.Rep. 030 Nr. 597 Bl. 220–1, at Bl. 220.

[65] On broader discussions of 'light and air', see Ladd, *Urban Planning*, 45–6.

[66] On the other building codes collected by the Prussians, see GStA PK, I. HA Rep. 93B Ministerium der öffentlichen Arbeiten, Nr. 1050.

104 absolutely detrimental apartments and 142 relatively dangerous apartments out of the 702 cellar apartments in the city.[67] On this basis, Hinckeldey entered into over 80 negotiations with property-owners of 'absolutely detrimental apartments', pressuring them to renovate or face a rental ban on their property. At the next statistical survey the number of detrimental cellar apartments had dropped to 71 posing an absolute danger and 107 posing a serious danger to the health of their occupants—a significant success for Hinckeldey.[68] In addition, problems with issuing building permits and the number revoked in connection to newly constructed apartments fell below the levels seen during the *Vormärz* as the police exercised a more ambitious regulation of building in the city (Figure 5.2).[69]

Figure 5.2. The houses in Berlin with flooded cellar apartments in the months of February and March 1850, according to official inquiries. *(Landesarchiv Berlin, A Pr.Br.Rep. 030 Nr. 589, unpaginated)*

[67] Cited in Krieger, 'Ueber die Keller-Wohnungen in Berlin, die nahtheiligen Einflüsse derselben auf die Gesundheit der Bewohner und Vorschläge zu deren Abhülfe', in LAB A Pr.Br.Rep. 030 Nr. 589, Bl. 197–8.

[68] Ibid. [69] See the files in LAB A Pr.Br.Rep. 030 Nr. 532; LAB A Pr.Br.Rep. 030 Nr. 542.

Some Berliners welcomed this new emphasis on public health in the city. For example, the *Centralverein für das Wohl der arbeitenden Klassen*—an association founded in 1844 by reform-minded bureaucrats and professionals to counter the 'Social Question'—praised the police for the work they were doing to improve apartments. One of the Society's members, Dr Krieger, was given access to Hinckeldey's statistics and although impressed, he admonished the police to do even more with their regulatory powers.[70] The police, Dr Krieger argued, should be overseeing the drying period in newly constructed apartments by scientifically measuring damp with instruments such as hygrometers. He further suggested that a chemist or doctor should sign off on new apartments as being ready for occupancy rather than merely showing that a building had dried for the nine months as stipulated by the building code.[71] In short, Dr Krieger and the Central Society for the Welfare of the Working Classes embodied an important response to Hinckeldey's work. That is, they took an active role in the reform of urban life and created the possibility for legitimizing liberal claims to municipal and national government through good governance.

Most property-owners were, naturally, less interested in such a response, focusing instead on protecting their real estate from Hinckeldy's public-health initiatives. Yet they were unable to temper the regulation of housing, and Hinckeldey knew this. As he wrote to Heydt and Raumer:

> If a large part of the lodgings in Berlin that are inhabited by the poorer class, namely the cellar apartments, are unmistakably of such a state that they endanger the health of the occupants and . . . cause hotbeds of infection with the outbreak of epidemics, then the endeavours of the Police-Presidium in recent times have been directed earnestly towards the serious improvement and, where necessary, the closing down of such apartments, and they have often succeeded by means of the threat of closure in getting property-owners to renovate apartments in accordance with health requirements.[72]

The *Magistrat* stepped in to support property-owners. It acknowledged the importance of protecting heath and preventing fire but argued that the kinds of standards Hinckeldey sought would lead to a massive decrease in the desire to build and a resulting increase in rents across the city. [73] Yet it too was unsuccessful in peeling back Hinckeldey's reforms.[74] Rather, the Berlin police increased responsibilities for providing salubrious apartments throughout the 1850s. This included,

[70] Krieger to Hinckeldey, 1 March 1856, in LAB A Pr.Br.Rep. 030 Nr. 589, Bl. 196.

[71] Krieger, 'Ueber die Keller-Wohnungen in Berlin, die nahtheiligen Einflüsse derselben auf die Gesundheit der Bewohner und Vorschläge zu deren Abhülfe', in LAB A Pr.Br.Rep. 030 Nr. 589, Bl. 197–8.

[72] Eibach, *Polizei, 'Gemeinwohl' und Reaktion*, 130.

[73] *Magistrat* to Flottwell, 24 April 1857, in GStA PK, I. HA Rep. 93B Ministerium der öffentlichen Arbeiten, Nr. 1055, unpaginated.

[74] The *Magistrat* and the city council continued to defend propertied interests against admonishments from the public health movement well into the 1880s. See Ladd, *Urban Planning*, 155.

with the support of the Interior Ministry and Friedrich Wilhelm IV himself, the mandatory instillation of running water in all new buildings by 1857.[75]

The Berlin building code spread beyond the Prussian capital to other Prussian cities and towns in the 1850s, as did discussions of the importance of public health to urban self-government. Prussian mayors and police directors in Liegnitz, Stettin, Remscheid, Frankfurt an der Oder, Dortmund, Düsseldorf, Mayen, and Duisberg all wrote to the Police Presidium in Berlin asking for copies or further details of the new ordinance, before seeking to develop codes themselves.[76] In doing so, many reproduced the clauses in Berlin's code on public health, including Düsseldorf's 1855 ordinance, which reproduced them word for word.[77] The ordinance also received limited attention in France via Manteuffel, who, on 15 October 1853, wrote to Hinckeldey asking for exemplars of the new ordinance at the request of the French government.[78]

Throughout the 1850s, the Berlin police requested materials from abroad to continue to improve the application of the new building code, although this was patchy and limited to only a few states in which progress in this area was being made. In the German states, Austria was the most useful counterpart. For example, new engineering ideas in Vienna became essential to solving the problems Berlin was having with injuries caused during new construction projects in the 1850s. So helpful were the four pages of diagrams and five pages of explanations by two of Vienna's city engineers that the Prussian state decided to honour the exchange by awarding the men *Der rote Adler-Orden vierter Klasse.*[79] Again in 1857, after Hinckeldey's death, the Trade Minister Heydt urged the Police Presidium to use Hinckeldey's principle and look to other German and European states to solve their problems with applying the new code. In particular, the police looked to review section §28 of the code, which regulated the height of new constructions in small streets, with the help of the recently instituted construction ordinances in London.[80] The English materials—the Building Act (1855) and the Metropolitan Local Management Act (1855)—were, however, not detailed enough for the Prussians, but later French files, obtained by Manteuffel from the Seine Prefect in Paris Baron Georges-Eugène Haussmann, proved to be more useful and indicated a growing level of exchange between municipalities had not been seen before the revolution.[81]

[75] Westphalen to Heydt, 20 February 1857, in GStA PK, I. HA Rep. 93B Ministerium der öffentlichen Arbeiten, Nr. 1055, unpaginated.

[76] LAB A Pr.Br.Rep. 030 Nr. 597, Bl. 282, 283, 284, 319; LAB A Pr.Br.Rep. 030 Nr. 598, Bl. 11, 30, 32, 59, 64, 66.

[77] Ladd, *Urban Planning*, 94.

[78] LAB A Pr.Br.Rep. 030 Nr. 597, Bl. 273.

[79] GStA PK, I. HA Rep. 93B Ministerium der öffentlichen Arbeiten, Nr. 1055, unpaginated.

[80] Heydt to the Police Presidium, 22 August 1857, in LAB A Pr.Br.Rep. 030 Nr. 598, Bl. 130–1.

[81] See the correspondence in ibid., Bl. 184–97. Other materials from European states were amassed even sooner. For example, in 1853 Hinckeldey acquired the latest reports from the General Board of Health in London including 'The Proceedings on the Inspection of the Barnard Castle Sanitary Works: Exemplifying the Relation and Co-operation of the General with Local Boards of Health, and the Results of Sanitary Improvement (1853)'. He also collected a significant number of materials from Belgium.

STREETS

Just as apartments came under a new degree of police regulation in the 1850s, so too did streets, with the building code making it mandatory to maintain minimum distances between buildings and roads.[82] Such work impacted on private property only in marginal terms, as the police predominantly focused on the construction of new roads rather than the alteration of existing ones. But the reordering of established streets did take place on occasion. For example, outside numbers 34, 35, and 74 in the Berliner Straße in Charlottenburg, the police identified three front gardens that had, over time, increasingly encroached on the footpath until they blocked it entirely.[83] The identification of such obstacles usually resulted in only minor complaints on the part of Berliners, such as that of a certain widow named Thomas, who registered her annoyance about the 'forcible removal of a fence' with the police in Charlottenburg in 1856. Moreover, those property-owners willing to work with the authorities as they plastered and extended streets stood to make tidy profits from minor expropriations of land. For example, during discussions of a reordering of the Wallstraße between Spittelmarkt and the Grünstraße in 1856, the owners of houses 7 to 11 inclusive joined together to reap the advantages of a group sale of their combined properties. Had they been successful, the widow Struenhee, the manufacturers Cottenet and Knörcke, and the stone dealer Dietrich would have won one of the largest settlements of this kind in the 1850s, at 18,100 Taler.[84] As it was, settlements for partial expropriations of front gardens and the like were usually in the order of hundreds of Taler rather than thousands.

Not only did the police assume a greater role in the widening of streets; they also shouldered the cleaning of streets. After 1848, the police regularly flushed the road network, and, in December 1852, Hinckeldey signed a contract with the English entrepreneurs Sir Charles Fox and Thomas Russell Crampton for the construction of a waterworks in Berlin. Only with Hinckeldey's newly amassed power could the city see over one million Taler of communal funds directed towards this end and, by 1856, a fully operational facility. Throughout the negotiations with Fox and Crampton, Hinckeldey primarily sought to facilitate the improved cleaning of streets, but of course these measures also provided property-owners with further gains—namely, the fact that, by March 1857, 341 houses, including 314 private properties, were supplied with running water. The provision of water for private consumption was not instantly popular, as Berliners were shocked at the idea of paying for it. But by the 1860s they had become accustomed to the idea, and after 1871, demand would grow rapidly.[85]

[82] *Berliner Intelligenz-Blatt*, 14 May 1853, in LAB A Pr.Br.Rep. 030 Nr. 597, Bl. 220–1.

[83] See the correspondence from 29 May 1854 and 9 June 1854 in LAB A Pr.Br.Rep. 030 Nr. 21196, Bl. 24–7.

[84] 'Extract aus der Protokoll der Geldbewilligungs-Deputation vom 2. September 1856', in LAB A Pr.Br.Rep. 000-02-01 Nr. 1074, Bl. 187.

[85] Harry Rutz, 'Die Entstehung der Berliner Wasserwerke und der Wasserleitung—eine kulturhistorische Skizze', *Mitteilungen des Vereins für die Geschichte Berlins*, 17 (1969), 230–4, at 232–4.

Middle- and lower-class Berliners further benefited from the proliferation of public baths around the Spree. To build public baths, Hinckeldey needed to collaborate with notable residents who were both sympathetic to public-health initiatives and, more importantly, capable of securing the capital to fund them. For example, the joint-stock company (*Aktiengesellschaft*) known as the *Gesellschaft für öffentliche Wasch- und Badeanstalten zu Berlin* funded, with Friedrich Wilhelm IV's approval, the first public bath in the city. Hinckeldey worked with the company to raise over 200,000 Taler in start-up cash, and, by 1856, it brought construction to completion on a public bath in the Schillingsgasse.[86] Alongside such initiatives, individual citizens established other baths across Berlin, including Wilhelmine Pochhammerum, who sought to open a bathing centre between Mühlendamm and the Lange Brücke.[87] Indeed, the police could not have achieved the proliferation of bathing and swimming pools seen in the 1850s without the active entrepreneurship of the urban middle classes, providing yet another area of reform in which engagement by members of the upper middle classes proved to be essential to expanding the reach of police activities.

The measures taken to clean Berlin's streets and provide public bathing facilities were substantial, and yet the stench of sewerage during the summer months made it clear that they were still not ambitious enough. New mortality statistics certainly indicated as much. For example, the Berlin Statistical Office created a report in February 1857 entitled 'The Calculation of the Area-, Housing-, Resident- and Mortality-Relationships in the Individual Police Districts of the City of Berlin', which consisted of five city plans shaded in green, yellow, golden brown, pink, blue, grey, and black to differentiate living conditions.[88] According to this report, the healthiest streets in Berlin were the Unter den Linden, Jägerstraße, those around the Brandenburg Gate and the Gendarmenmarkt, the Wilhelmstraße, and the streets in the Friedrichstadt—all relatively wide thoroughfares. By way of contrast, the mortality rates in the area from the old Jacobstraße to Kottbuss Gate were deemed to be substantially higher owing to the 'narrow and unfriendly streets in this area'. Of course, there were pockets of clean air in the less salubrious parts of town—for example, the police noted that garden areas helped to reduce mortality rates around the Frankfurt Gate—but in general the mortality rates in the city appeared to fall into an east–west axis, with deaths in the eastern part of the city being considerably higher than in the west.[89]

The Berlin police were keen to compare their mortality rates with those produced abroad to gauge the relative merit of their work and find new solutions to these patterns. Using the *Thirteenth Annual Report of the Registrar General of Births, Deaths, and Marriages in England*, the Berlin police showed that even the worst streets in Berlin were better than their counterparts in London. This was not surprising, considering that Berlin's population was still around 419,000 persons and

[86] Eibich, *Polizei, 'Gemeinwohl' und Reaktion*, 133–8. [87] LAB A Pr.Br.Rep. 030 Nr. 7061.

[88] This report is discussed in Dieterici's correspondence with Westphalen, 22 April 1857, GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 287–98.

[89] Ibid., Bl. 294–7.

London had already reached 2,685,000.[90] The same conclusion was made when mortality rates in Berlin were compared to those in Paris.[91] Certainly parts of London and Paris sustained low numbers of deaths, but, overall, Berlin was still not as congested as either of these two cities, and the exercise worked only to overestimate police successes. To form a more accurate assessment of the effectiveness of police measures, however, comparison needed to be made to cities of an equal size rather than to Paris and London, which were, in this period, exceptionally large. Better would have been a comparison with conditions in Vienna, critiqued Carl Friedrich Wilhelm Dieterici—the Director of the Central Statistical Office. As Dieterici wrote, Vienna possessed useful statistics created by Joseph Hain, but they were not considered by the Berlin police.[92]

Just as the Berlin police sought to improve the physical health of the city by introducing mandatory minimums in new streets, flushing them regularly, and supporting the construction of public baths, so too did they seek to address the burgeoning problems associated with its 'moral' health. In particular, regulating prostitution became important to Hinckeldey's agenda. Brothels had been banned in Berlin since 1845, but Hinckeldey believed this to be a mistake. He claimed that prostitution would always find a way into city life, and, as a result, the best course of action was to legalize and supervise it. Throughout the 1850s, therefore, Hinckeldey promoted the containment of brothels to their traditional location in the Königsmauerstraße and the enclosure of prostitutes to the private sphere rather than allowing them open access to the street.[93]

Nevertheless, rumours of the likelihood of a renewed ban on prostitution circulated in the 1850s, causing concern for the proprietors and tradesmen who were interested in the financial success of these institutions. As an internal police commission reviewing prostitution wrote to Hinckeldey on 23 July 1851, said rumours had resulted in daily visits to their office from creditors seeking assurance for their investments and making clear their expectation that, if there were to be a resuspension of trade, the state would be held to account in providing compensation.[94] Hinckeldey took heed of this constituency and the tradesmen who wrote to the police in fear of losses, but this only elicited further complaints from neighbouring property-owners. In 1852, for instance, Hinckeldey received a series of letters agitating for an end to prostitution and, in 1853, a petition on behalf of 35 citizens.[95] This constituency garnered support from Westphalen, who was entirely sympathetic

[90] Andrew Lees and Lynn Hollen Lees, *Cities and the Making of Modern Europe, 1750–1914* (Cambridge: Cambridge University Press, 2007), 287.

[91] GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 297.

[92] Ibid., Bl. 288–9.

[93] On prostitution in the 1840s and 1850s, see William W. Sanger, *The History of Prostitution: Its Extent, Causes and Effects Throughout the World* (New York: Medical Publishing Co., 1913), 239–52; Franz Schuppe, *Die verwaltungsrechtlichen Voraussetzungen für eine Bestrafung wegen Sittenpolizei-Kontravention im Gebiete des preussischen Staates* (Ph.D. dissertation, Königlichen Universität Griefswald, 1913), 18–20; Wilhelm Stieber, *Die Prostitution in Berlin und ihre Opfer* (Berlin: A. Hofmann, 1846). For prostitution in the latter nineteenth century, see also Richard J. Evans, 'Prostitution, State and Society in Imperial Germany', *Past & Present*, 70 (1976), 106–29.

[94] GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 2 Nr. 48 Bd. 1, Bl. 51–3.

[95] See the complaints in GStA PK, VI. HA, Nl Markus von Niebuhr, Tit. 4, Nr. 5.

to calls for an end to prostitution. So too were most ultraconservatives. But, rather than looking to find any form of negotiation, Hinckeldey pushed on with his zoning of prostitution.

In late 1852, the morals police (*Sittenpolizei*) began to collect continuous and detailed information on the number of brothels in Berlin, their addresses, and the number of prostitutes active in the city to bolster supervision. According to the first count, there were 19 official brothels in Berlin and 620 prostitutes.[96] The police mandated that these prostitutes undergo regular medical examinations at the Charité and that their doctors compile statistics for the morals police on the spread of syphilis among sex workers. This they then did throughout the rest of the 1850s.

As with mortality rates, the police were ready to interpret their statistics as a sign of success. For example, in the statistical report produced by the morals police on 18 September 1852 it was noted that both the frequency and the intensity of syphilis (genuine syphilis and *Schleimflüsse*) had decreased over the course of the previous three years. This was due, the report claimed, to a decrease in the number of troops moving through the city, increased supervision, and, of course, constant medical checks.[97] The police argued that these attempts to bring prostitution more closely under the management of local authorities were highly effective, but we should not be too eager to side with their findings. From the same report, some 15,000 prostitutes were known to be active in Berlin in 1846, and, although this number was inflated because of hard economic times, it is highly unlikely that the number of prostitutes fell to 620 by 1852. More persuasive is the conclusion that the police chose to interpret their statistics as a significant success and overlooked the large numbers of unregulated prostitutes in the city. Indeed, the regulation of complex moral problems proved to be more difficult than public health initiatives, but the efforts of the Berlin police were still presented as a reforming measure that the middle classes were increasingly advocating: the public control of private morals without resort to punitive measures. Certainly, Hinckeldey's approach resonated with an important strain of liberal support for regulation in Prussia and abroad. As the Berlin doctor Behrend noted in an exposé for Ladenberg in 1850, the French physician Alexandre Jean-Baptiste Parent du Châtelet had written as much in his work *De la prostitution dans la ville de Paris* (1837). Likewise, Behrend continued, the doctor Potton from Lyon supported the belief that prostitution could never be entirely wiped out in his work *De la prostitution et de ses conséquences dans les grandes villes et dans la ville de Lyon en particulier* (1842). Behrend concluded that it was not only in France but also in Belgium, England, and Scotland that such attitudes had taken hold.[98]

Beyond improving public health in physical and moral terms, the police also made a modest attempt to reform aesthetics in the city after 1848. In general, they

[96] Report of the *Commission für Sittenpolizei*, 17 September 1852, in GStA PK, VI. HA, Nl Otto von Manteuffel, Tit. 3 Nr. 42, Bl. 56–7.

[97] Ibid., Bl. 55, 59.

[98] Friedrich J. Behrend, *Die Prostitution in Berlin und die gegen sie und die Syphilis zu nehmenden Massregeln* (Erlangen: J. J. Palm and Ernst Enke, 1850), 207–10.

used the new building code to regulate the orderliness of driveways, windows, and courtyards, as well as the planting of trees on sidewalks.[99] But the mainstay of such police action came to focus on the organization of the large amounts of posters that had come to line buildings, walls, and trees during the *Vormärz*. To do this, Hinckeldey considered a proposal by the publisher Ernst Litfaß (1816–74) to construct a series of advertising columns across Berlin better to regulate postering. The proposal was well developed, drawing upon what Litfaß had seen in newly styled shop-front windows and on street furniture in Paris and London. Therefore, on 5 December 1854, Hinckeldey contracted Litfaß to erect 150 advertising columns in some of Berlin's busiest streets (Figures 5.3 and 5.4).[100] Litfaß also successfully secured contracts across numerous German cities, including: Hanover (1863); Hamburg (1871); Dresden and Stuttgart (1872); Bremen (1873); Vienna and

Figure 5.3. Berlin's new advertising columns, *c.*1855

[99] This did not extend to regulating building styles as in some other European cities, but it was nonetheless an important step towards beautifying the city. See Ladd, *Urban Planning*, 112.

[100] Peter Payer, *Blick auf Wien: Kulturhistorische Streifzüge* (Vienna: Czernin, 2007), 107–8; Steffen Damm and Klaus Siebenhaar, *Ernst Litfaß und sein Erbe: Eine Kulturgeschichte der Litfaßsäule* (Berlin: Bostelmann & Siebenhaar, 2005), 47; 'Polizei-Verordnung', *Zweite Beilage zur Königl. Privilegirten Berlinischen Zeitung*, 23 June 1855, pp. 1–2, in LAB A Pr.Br.Rep. 000-02-01 Nr. 2393.

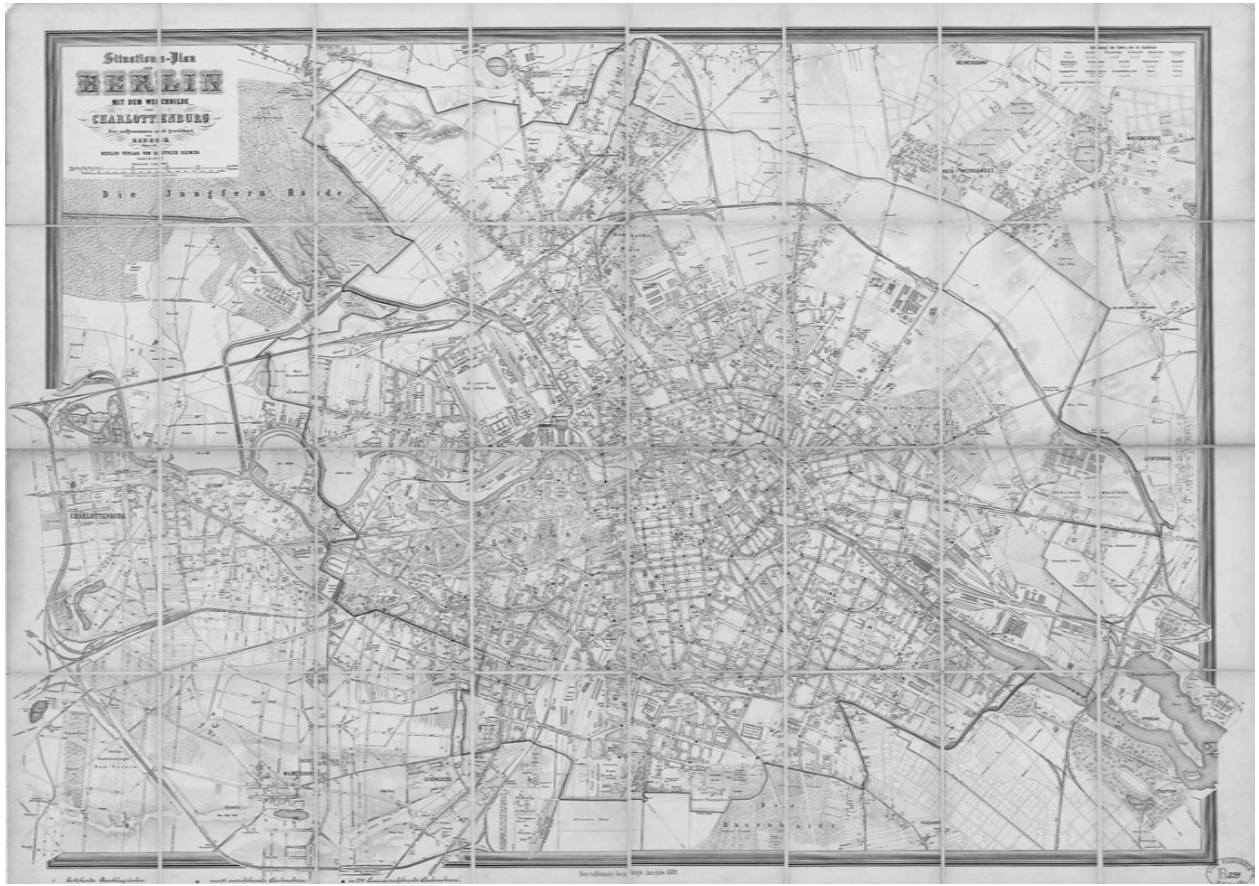


Figure 5.4. Map of Berlin and Charlottenburg showing existing and planned advertising columns, 1889. *(Landesarchiv Berlin, F Rep. 270, A 2223)*

Magdeburg (1877); Leipzig and Stettin (1878); Nuremberg (1881); Augsburg (1882); Breslau (1888); and Lübeck (1888).[101]

For some, Litfaß's venture threatened to strip the city of the political activity. For example, Friedrich Engels readily classed any measures to curb postering as a form of censorship. He described postered street corners as open-air newspapers, which stirred the revolutionary passions of the working class. Otherwise put, they were a journal and a club in one.[102] Columns, on the other hand, were the very opposite of this. But it would be wrong to think that the introduction of the Litfaß columns brought all forms of postering to an end as private-property-owners and renters continued to stick pamphlets to their own properties or rented facilities,[103] and sources show that Berliners routinely plastered invitations to assemblies of district clubs and associations on front doors thereafter. During elections they also stuck posters to houses, which called on locals to attend balloting.[104]

Therefore, rather than arousing concern, the proposal garnered significant support. As *Das Deutsche Museum*—a magazine for literature, art, and public life—put it, many property-owners had become infuriated with unregulated posters since 1848. 'One loathes,' it wrote, 'the posters . . . No one likes them on one's house or to tolerate them on one's gateway.'[105] Newspapers likewise printed enthusiastic nods to the move. The *Vossische Zeitung* celebrated the potential to turn 'a motley chaos of posters on trees, fountains, and street corners' into a 'systematic order' in more deserving places. A sense of order, the newspaper continued, would help to spread reading throughout the Berlin public and in due course, across the rest of the state.[106] The Berlin *Magistrat* could also see how columns might help to regulate modern city life. The *Magistrat* knew that advertising in Berlin was only in its 'infancy', but it believed that the Prussian capital would grow in the next decades to new and perhaps parallel proportions to those seen in Paris. Growth, it concluded, would make some form of regulation necessary.[107]

While the concept of the advertising columns was, for the most part, uncontroversial, the *Magistrat* and city council perceived serious drawbacks. First, the *Magistrat* believed the contract failed to represent the public interest because of the financial advantage it gave to Litfaß.[108] Litfaß had secured a monopoly on the construction of the columns as well as the printing of the posters and pamphlets to go on them. This was, the *Magistrat* rightly claimed, a huge blow to other publishers in the city and any form of commercial enterprise, which would now be subject to

[101] Wilfried F. Schoeller, *Ernst Litfaß: Der Reklamekönig* (Frankfurt am Main: Schöffling, 2005), 153–4.

[102] Ibid. 104.

[103] 'Polizei-Verordnung', *Zweite Beilage zur Königl. Privilegirten Berlinischen Zeitung*, 23 June 1855, pp. 1–2, in LAB A Pr.Br.Rep. 000-02-01 Nr. 2393.

[104] 'Die Litfaßsäulen und die öffentlichen Bedürfniß-Anstalten', *Erste Beilage zur Königl. Privilegirten Berlinischen Zeitung*, 13 May 1863, pp. 1–3, in ibid.

[105] Schoeller, *Ernst Litfaß*, 143.

[106] *Vossische Zeitung*, 1855, in LAB A Pr.Br.Rep. 010-01-02 Nr. 3300, Bl. 42.

[107] 'Die Anschlag-Säulen und die Bedürfniß-Anstalten', *Communal-Blatt der Haupt- und Residenz-Stadt Berlin*, 22 December 1861, pp. 416–20, in LAB A Pr.Br.Rep. 000-02-01 Nr. 2393.

[108] See the original 1854 and 1855 discussions quoted in *Extract aus dem Protokolle der Geldbewilligungs-Deputation vom 4ten December 1861*, unpaginated, in ibid.

Litfaß's pricing strategies. Additionally, the *Magistrat* argued that this would only increase as trade and advertising grew over the next fifteen years. Finally, the *Magistrat* also protested against the fact that the terms of the agreement were not ambitious enough with respect to other forms of growth. Litfaß was contracted to build thirty urinals inside his columns, to help sanitize the streets, but the *Magistrat* pointed out that such a number was too small to handle expected population growth. Besides, Litfaß was not compelled to clean or illuminate the urinals he was expected to build. Rather than seeking an ambitious contract, the police had allowed the print mogul a decided advantage in his handling of public sanitation.[109]

Throughout the 1850s, Hinckeldey managed to avoid making any changes to his agreement with Litfaß. But this does not mean that the protests made by the *Magistrat* went without effect, as its actions in 1855 were instrumental in framing the debate of the 1860s and 1870s. In 1861, as a proposal for additional columns was brought before the city council, the *Magistrat* raised objections once again to the unfair advantage held by Litfaß over the advertising landscape.[110] Following this in 1862, it protested against the contract and again in 1863.[111] Discussion became heated in 1863, thanks to the fact that the police had started to rescind the right of residents to stick local announcements to their properties by issuing fines for such displays.[112] At each of these junctures, the *Magistrat* and newspapers aligned to its point of view circulated the letters and protests it had made in 1855, and, through this means, the local authorities were able to demonstrate the manifold ways in which this arrangement had increasingly failed to work for the 'public interest'. This was especially important because the public interest seemed to come under an even greater threat in the 1870s, as the Berlin police sought to acquire ownership of the columns. As the municipal authorities put it: the city had to have full control over its streets for the principle of self-government to take effect.[113] In short: what had started as protests over the lack of foresight in police actions turned into a rallying point for self-government, and it was on the basis of these arguments, made so vociferously in the 1850s, that the city authorities finally acquired control of the streets and street furniture in 1875.

CITY EXTENSIONS

Beyond houses and streets, the third area to come under greater regulation in Berlin after 1848 was city extensions. According to the building code, new street networks and squares were to be created only with police approval, and any type of

[109] See the original 1855 sources quoted in 'Die Anschlag-Säulen und die Bedürfniß-Anstalten', *Communal-Blatt der Haupt- und Residenz-Stadt Berlin*, 22 December 1861, pp. 416–20, in ibid.

[110] 'Extract', *Sitzungs-Protokolle der Stadtverordneten-Versammlung, Berlin*, 5 December 1861, unpaginated in ibid.

[111] 'Extract', *Sitzungs-Protokolle der Stadtverordneten-Versammlung, Berlin*, 22 January 1863, unpaginated, in ibid.

[112] 'Die Litfaßsäulen und die öffentlichen Bedürfniß-Anstalten', *Erste Beilage zur Königl. Privilegirten Berlinischen Zeitung,* 13 May 1863, pp. 1–3, in ibid.

[113] Gutachten, pp. 2, 32, in ibid.

construction near street boundaries or the city walls was banned. This attention to planning was not entirely new, as the Berlin police had engaged in such work since the late 1820s. Between 1827 and 1830, the senior building advisor Johann Carl Schmid (1780–1849) produced the first plan of Berlin and its surroundings for the Higher Building Board, and, in September 1831, the Berlin Police Presidium commissioned Schmid with setting out new street networks. This he did, but by the 1850s it was clear that Schmid's surveying work had become insufficient for guiding the actual development of the city.[114] Furthermore, royal interventions frustrated the execution of new projects according to Schmid's plan. For example, Schmid's vision for the Köpernicker Feld sought to order space in a way that avoided making unnecessary intrusions into private property by retaining 'the existing boundaries of fields and garden plots' and catering for 'convenient communications and good connections'. But Friedrich Wilhelm IV—Crown Prince at the time—deeply disliked Schmid's plan, preferring to give more attention to princely aesthetics than industrial functionality. He sought to tilt the scales back in the direction of royal prestige by commissioning the Royal Gardens Director Peter Joseph Lenné (1789–1866) to create an alternative design solution. The plans produced by Lenné compromised Schmid's vision, but they were not a complete regression, as they too displayed a new awareness of municipal interests by infusing the growing areas beyond Berlin's tariff wall and the already crowded areas in the city centre with green spaces and tree-lined boulevards.[115]

The revolution opened the way for Hinckeldey to extradite much of the work started by Schmid and left unrealized by Lenné. Hinckeldey took over the surveying began in 1844 to produce an accurate and up-to-date version of Schmid's plan, supplying it with significant financial backing. He eventually paid for four out of the five parts to the project, with surveying in Department V alone—Moabit, Wedding, and Gesundbrunnen—costing 7,800 Taler.[116] Hinckeldey ensured that the focus of the surveying and building of public works was now decidedly industrial and infrastructural, just as Schmid and other members of the Higher Building Board had wanted. For example, both the Police Presidium and the Trade Ministry believed that in Department I there should be no speculative street planning until the location of the future eastern railway station (*Ostbahnhof*) could be secured.[117] The hope was that the careful planning of railway stations and land thereabouts would enable the construction of a junction route to connect all five terminal railway stations in the city (Figure 5.5).[118]

[114] Jutta Lubowitzski, 'Der "Hobrechtplan": Probleme der Berliner Stadtentwicklung um die Mitte des 19. Jahrhunderts', in Wolfgang Ribbe (ed.), *Berlin-Forschungen* (Berlin: Colloquium, 1990), 11–130, at 56–8.

[115] Thomas Hall, *Planning Europe's Capital Cities: Aspects of Nineteenth-Century Urban Development* (London: E & F N Spon, 1997), 192.

[116] Only one of the projected departments was surveyed before 1848. See LAB A Pr.Br.Rep. 030 Nr. 585, Bl. 63–4; Report of the *Bau-Inspektor* Köbckl, November 1852, in LAB A Pr.Br.Rep. 030 Nr. 586, Bl. 31–4.

[117] Heydt to Hinckeldey, 23 November 1851, in LAB A Pr.Br.Rep. 030 Nr. 586, Bl. 19.

[118] Patrick Abercrombie, 'Berlin: Its Growth and Present State II. The Nineteenth Century', *Town Planning Review*, 4 (1914), 302–11, at 304.

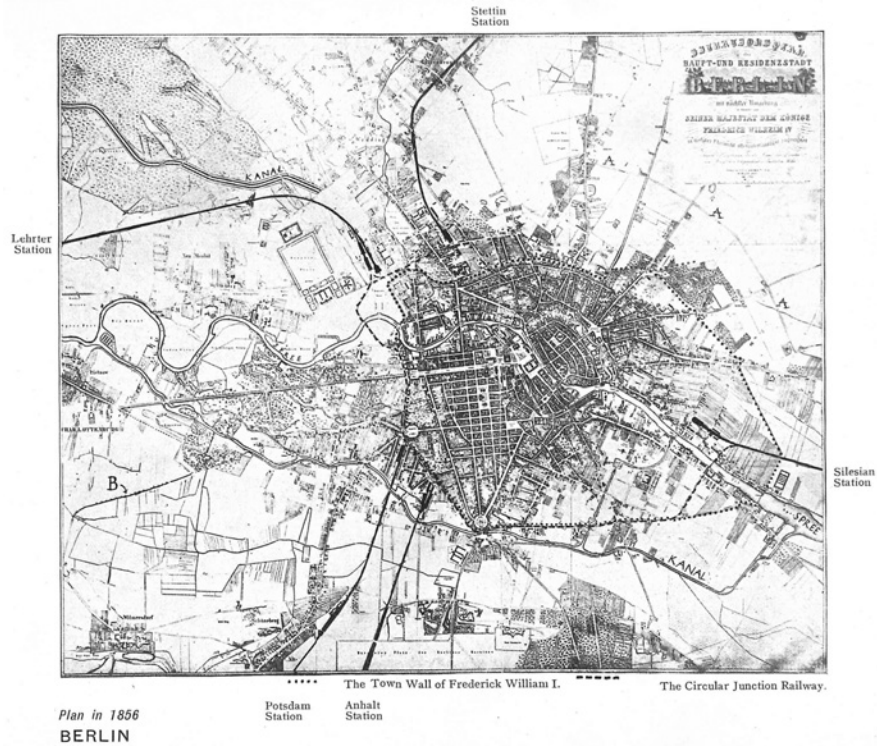


Figure 5.5. Map of Berlin indicating the state of railway construction in 1856. *(Courtesy of Patrick Abercrombie, 'Berlin: Its Growth and Present State II. The Nineteenth Century',* Town Planning Review, *4 (1914), 302–11, plate 73)*

Hinckeldey's desire to see a substantial increase in surveying and planning entailed a campaign to consolidate as many municipal bodies and budgets as he, with Friedrich Wilhelm IV's support, could manage. There was, Hinckeldey suggested, a great advantage to consolidating municipal funds and decision-making 'in one hand' so as to ease agreement and bypass any reluctance of local authorities to spend money on planning projects.[119] As Hinckeldey wrote on 8 March 1856:

> I remember the many difficulties with which the Police Presidium had to battle, when it made a request to these authorities on the basis of some police-related need. What develops in response is firstly an endless correspondence about the need, then the actual feasibility, and finally about the costs. Those authorities are in their turn obliged to apply to their superior authorities, producing the subject for renewed correspondence. From recent times, I particularly remember the negotiations over the surfacing of the road in the Hasenheide, the lighting of the Charlottenburg Chaussee, the negotiations over the bridges of the city, the regulation of the same streets, the creation of

[119] Hinckeldey to Flottwell, 27 January 1854, in BLHA Rep. 1, Nr. 38, Bl. 52–3.

> canals and pavements and much more. In all these instances, the number of which will likely double in the near future, the shortcoming of a decisive influence on these authorities is perceptible.[120]

Friedrich Wilhelm IV attempted to amalgamate the Ministerial Building and Military Commission (*Ministerial-Bau- und Militair-Kommission*), the Tiergarten Administration (*Tiergartenverwaltung*), the Mill Administration (*Mühlen-Administration*), and the local Berlin Bursary (*Rentamt*) into a revived Berlin government under Hinckeldey in late 1853.[121] But it was here that Hinckeldey's work became contentious. There was little support for the idea from within the Ministry of State, in part because of the difficulties involved in amalgamating so many budgets but also because of a general unwillingness to see Hinckeldey amass too much power across from the cabinet.[122] Likewise, the ultraconservatives were against any restructuring that would see Hinckeldey possess such a degree of power. As a civilian-minded police chief, Hinckeldey was an abomination to those conservatives who wish the city to remain under military control. He was seen, among other things, as someone dedicated to demilitarizing urban space. Even those liberals who sympathized with the reform agenda in Berlin were likewise unsupportive of any move to see further powers funnelled away from the municipal authorities in Berlin and with them an erosion of self-government.

Although his ambitions were curbed, Hinckeldey's work nevertheless resulted in the realization of Berlin's first, long-reaching, and industrially focused plan to guide the city's future development. This project began in 1855, when Hinckeldey ordered the creation of a scheme to regulate Berlin's surroundings. Unlike the former plans prepared on a case-by-case basis, this was intended to be much more ambitious, providing an organizing system for the growing city. Owing to personnel problems, it was delayed until after Hinckeldey's death in 1856, but, when things got going again in 1858, it retained the systematic approach that Hinckeldey had thought so important to urban administration.[123] In 1858, the 32-year-old James Hobrecht (1825–1902) was commissioned with the task of drawing up the plan to regulate future growth in Berlin, which he completed in 1862.[124] The resulting and now infamous Hobrecht Plan placed a premium on connecting roads and housing blocks, thereby securing the circulatory structure of the city. And, in

[120] Hinckeldey to Flottwell, 8 March 1856, in ibid., Bl. 164–5.

[121] Friedrich Wilhelm IV to the Ministry of State, 15 November 1853 and 18 November 1853, in GStA PK, I. HA Rep. 89 Geheimes Zivilkabinett, Br. 14955, Bl. 5, 6; Berthold Schulze, 'Polizeipräsident Carl von Hinckeldey', *Jahrbuch für die Geschichte Mittel- und Ostdeutschlands*, 4 (1955), 81–108, at 96–7.

[122] Manteuffel to Friedrich Wilhelm IV, 12 December 1853, in GStA PK, I. HA Rep. 89 Geheimes Zivilkabinett, Nr. 14955, Bl. 7–8.

[123] See the report of the *Geheime Regierungs- und Baurat* regarding further changes to the *Bebauungs-Plan für die Umgebungen Berlins* from 30 August 1857, in LAB A Pr.Br.Rep. 030 Nr. 624, Bl. 77.

[124] It would take several years longer, however, for Berlin to be defortified. On the process of defortification, see, above all Yair Mintzker, *The Defortification of the German City, 1689–1866* (Cambridge: Cambridge University Press, 2012); Kristin Poling, 'Shantytowns and Pioneers beyond the City Wall: Berlin's Urban Frontier in the Nineteenth Century', *Central European History*, 47 (2014), 245–74.

doing so, it avoided unnecessary expropriations of private property, for which no specific legal framework existed until 1875.[125]

Like Berlin, a number of Prussian cities and towns began planning for expansion thanks to a ministerial directive in 1855 that granted powers of extension to local governments in cooperation with the local police.[126] Some, such as Cologne and later Frankfurt am Main, avoided exercising their power of extension as per the wishes of the central authorities until very late in the century, but, on the whole, most local governments were forced to expand anyway as a result of the construction cycles generated by enterprising developers in the 1860s and 1870s.[127] This matched similar work beyond Prussia. Vienna was the most stunning example of urban expansion in all of the German states at the time, but, with new laws to facilitate the requisition of land passed in Baden (1868) and Württemberg (1872), expansion increasingly took place in capitals across other states.[128] In short, moves to expand German state capitals fell into a larger patter of expansion seen across Europe in the 1850s and 1860s. Aesthetic considerations were limited in comparison to other European states, especially the likes of France, but debates beginning in the 1870s would see the question of aesthetics in extension planning come to the fore as professionals questioned the relative beauty of cities created according to large-scale plans versus organic development.[129]

BEYOND BERLIN

Hinckeldey's initiatives to reform the construction of housing, streets, and city extensions would shape urban growth in Berlin for decades to come, but, as has been suggested in this chapter, the desire to improve provision for the welfare of urban populations was not intended to be limited to the Prussian capital. Rather, Hinckeldey sought to disseminate the urban statistics underpinning his reforming projects to other Prussian cities and towns. He established a *Jahresbericht des statistischen Amtes des Königl. Polizei-Präsidiums in Berlin* in 1853 and asked the Interior Minister Westphalen to finance the venture with 1,900 Taler, the likes of which had been granted by the *Landtag* to the Central Statistical Office for publishing in 1850.[130] Hinckeldey's request received mixed reactions. Westphalen struggled to recognize the worth of the project, but Manteuffel supported the production and

[125] Ladd, *Urban Planning*, 91; Anthony Sutcliffe, *Towards the Planned City: Germany, Britain, the United States and France, 1780–1914* (Oxford: Blackwell, 1981), 18–19. On the Hobrecht plan, see Lubowitzski, 'Der "Hobrechtplan"'; Klaus Strohmeyer, *James Hobrecht (1825–1902) und die Modernisierung der Stadt* (Berlin: Verlag für Berlin-Brandenburg, 2000). On the historical reception of the Hobrecht plan, see Claus Bernet, 'The "Hobrecht Plan" (1862) and Berlin's Urban Structure', *Urban History*, 31 (2004), 400–19.

[126] Sutcliffe, *Towards the Planned City*, 17.

[127] Ladd, *Urban Planning*, 88.

[128] Sutcliffe, *Towards the Planned City*, 19. On Munich, see Leif Jerram, 'Bureaucratic Passions and the Colonies of Modernity: An Urban Elite, City Frontiers and the Rural Other in Germany, 1890–1920', *Urban History*, 34 (2007), 390–406.

[129] Ladd, *Urban Planning*, 83.

[130] In 1850, the chambers approved an allocation of 2,000 Taler per year for publishing statistical information from the Prussian Central Statistical Office.

publication of urban statistics. He described the first report of the Berlin Statistical Office as containing 'very instructive results' that would only increase in interest as urban statistics became more established in the future.[131] For Manteuffel and Hinckeldey, in other words, statistics facilitated more exacting and ambitious attempts to regulate urban environments. And Hinckeldey made sure to emphasize that the distribution of urban statistics should never become a simple exercise in knowledge production, arguing that, if officials and the public believed that statistical publications were made only 'to fill the draws of filing cabinets', then there was still little point to publishing them.[132]

Westphalen doubted such arguments, continuing to classify Hinckeldey's request as an unnecessary outlay, but Hinckeldey was not perturbed. He pushed to receive support from the Interior Ministry for the publication of his statistics until finally a compromise was found: Hinckeldey would not receive funding for the venture but he would be given permission to sell a limited number of his reports to the Interior Ministry and *Kultusministerium.* These ministries would then forward the reports to provincial and police authorities across Prussia.[133]

Although Hinckeldey received only wavering support from the Interior Ministry, statistics enthusiasts were keen to support the venture. The most important of these was Otto Hübner, who wrote the *Jahrbuch für Volkswirthschaft und Statistik* (founded in 1852). The *Jahrbuch* was an ideal complement to the *Jahresbericht*, designed to equip the 'statesman, lawgiver, teacher and businessman' with current information on the German states so as to improve the individual welfare of populations.[134] Hübner collated and published a vast range of statistics in his *Jahrbuch*, and although most of the material he circulated related to the highest levels of government, urban statistics quickly found a place in his publication. From his 1854 edition onwards, Hübner regularly printed urban statistics, including those collected under Hinckeldey.[135] And Hinckeldey encouraged Hübner to make his *Jahrbuch* a second node for the circulation of his materials alongside the *Jahresbericht*. He increased his channels of communication with Hübner, providing him with copies of the publications he received from other German states interested in urban statistics, and he made Hübner his official representative at the International Statistical Congress in 1854.[136]

Hübner and his *Jahrbuch* showed the importance of professionals for facilitating Hinckeldey's aims, as did other collaborative journals. These included the *Zeitschrift für Bauwesen*, which carried a far broader range of materials related to urban governance. Founded in 1851 on the instigation of Heydt and in collaboration with the Architects' Society of Berlin (*Architektenverein zu Berlin*), this magazine circulated official correspondence related to construction, as well as professional

[131] Manteuffel to Hinckeldey, 24 August 1853, in LAB A Pr.Br.Rep. 030 Nr. 7280, Bl. 34.

[132] Hinckeldey to Westphalen, 23 January 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 147–52.

[133] This arrangement was, however, terminated directly after Hinckeldey's death. See Eibich, *Polizei, 'Gemeinwohl' und Reaktion*, 196–200.

[134] Otto Hübner, 'Vorwort', *Jahrbuch für Volkswirthschaft und Statistik*, 1 (1852), pp. iii–iv, at p. iii.

[135] Ibid., pp. v–vi, at p. vi.

[136] LAB A Pr.Br.Rep. 030 Nr. 7280, Bl. 174–95, at Bl. 174.

discussion. Indeed, Heydt intended the magazine to function as a forum, in which communication would flow from central state officials out across Prussia, and Prussian professionals in local governments would feed back their contributions to the magazine.[137] This magazine built on an older-styled body of literature that functioned as 'archive[s] for the best and newest *Bauwerke*' across Europe.[138] These included the *Allgemeine Bauzeitung* (1836–1918) published in Vienna, and, to a lesser extent, the *Illustrirte Zeitung* (1843–) published in Leipzig. Both of these magazines circulated useful images of plans, elevations, three-dimensional representations of buildings, as well as information on the newest laws related to construction. The *Zeitschrift für Bauwesen* grafted state materials onto this flow of information, and, in the years after 1871, it became the forum for a German-wide dissemination of urban statistics.

Hinckeledy knew that he needed to cultivate better relationships with professionals for practical reasons but also because, as he put it, there had been a growing expectation that statistics would be made available to the public during the *Vormärz*. This expectation had increased during the massive expansion of the press in 1848–9, and, considering that his statistics were so useful, he argued, why not share them?[139] The involvement of professionals in dissemination meant that Hinckeldey's data were not limited to Prussia or even to the German states. Several international journals picked up and reprinted Hinckeldey's urban statistics throughout the decade, and increasingly formal government exchanges came to strengthen this process. In 1854, for example, the New York municipal authorities began exchanging statistics, demonstrating an interest in the problems accrued by rapid urban growth as seen on both sides of the Atlantic.[140] By mid-decade it was clear that Hinckeldey's urban statistics were being read in statistical offices across Europe and that he was reading a range of data sets in return. And Hinckeldey was well aware of the fact that printing urban statistics helped to align Prussia with other European states making advances in the management of social problems.[141]

[137] 'Verfügung an sämmtliche Königl. Regierungen, die „Zeitschrift für Bauwesen" betreffend, vom 11. April 1851', *Zeitschrift für Bauwesen*, 1 (1851), 3. This magazine would be complemented by the *Wochenblatt des Architekten-Vereins zu Berlin* (later *Bauzeitung*) in 1866. Unlike the *Zeitschrift für Bauwesen*, which appeared every two months, the *Wochenblatt* appeared weekly and deliberately sought to transcend state boundaries. See 'Was wir wollen und was wir bringen', *Wochenblatt des Architekten-Vereins zu Berlin*, 1 (1866), 1–2.

[138] 'Plan der Bauzeitung und Aufforderung an Männer vom Fache, dieselbe durch Mittheilungen zu bereichern', *Allgemeine Bauzeitung*, 1 (1836), 1–3, at 2.

[139] Hinckeldey to Westphalen, 23 January 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 147–52.

[140] As an excerpt from the 1859 *Annual Report of the City Inspector, of the City of New York* on housing indicated: 'In the general process of its more recent architecture many of the continuous groups of first-class habitations in the city (New York) rival any similar class of habitations in any European city, and perhaps few, if any of the more northern cities in Europe, including London and Paris, approximate to it in the quality and supply of water it receives, and of the capabilities of which this department is still susceptible; but the very causes that have accelerated the extension of this city, have, also, led it to partake of those defects connected with the habitations of the poorer classes of the community, which are now attracting so large a share of attention on both sides of the Atlantic'. *Annual Report of the City Inspector, of the City of New York, for the Year Ending December 31, 1859* (New York: Edmund Jones, 1860), 210.

[141] Hinckeldey to Westphalen, 23 January 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 147–52.

As Dr J. Behrend wrote in the *Haude- und Spenersche Zeitung,* the new Statistical Office in Berlin had enabled Prussia to claim a sense of administrative equality with France, England, and Belgium.[142]

But exchanges could and did also highlight limitations in Hinckeldey's project. This was best emphasized in 1854, when the New York City municipal authorities sent the *Annual Report of the City Inspector, of the City of New York (1851)* to a number of capital cities across Europe in the hope that a regular exchange of municipal materials might result. The Minister-President Manteuffel, in his dual capacity as Foreign Minister, asked the Interior Ministry to organize suitable materials to be sent across the Atlantic. Initially, the *Jahresberichte* of the Berlin Statistical Office for the years 1852 and 1853 were sent, but the exchange did not sit well with Dieterici, the Director of the Prussian Central Statistical Office.[143] This was not because Dieterici questioned the value of the exchange—he too believed Prussia needed to collect and compare as many materials as possible.[144] He was sympathetic to Hinckeldey's desire to quantify society in the urban landscape, and he knew many of the pioneers of urban statistics personally, such as Louis René Villermé, with whom he had toured Paris and inspected the new districts emerging in the city.[145] He had also made numerous detours on his way to the international statistical congresses in Brussels and Paris to inspect the changes to cities across the Germany states and France. Rather, Dieterici's problem was the quality of material Prussia had to give in return. Specifically, he questioned the scientific standard of Hinckeldey's statistics.

Others tended to agree. On 16 March 1857, officials in Brandenburg expressed their belief that the reports produced by the Berlin Statistical Office were a 'valuable and interesting venture', but the 1854 report was, for instance, terribly misleading.[146] It was not that Hinckeldey's statistics were incorrect per se, but rather that he used a different method of counting from that employed in the central office. Dieterici suggested that the work done by Hinckeldey's office could benefit from the help of trained statisticians and, rather than chasing New York's publication, which no doubt would be beneficial, Dieterici argued for first improving the standard of urban statistics by incorporating the Berlin Statistical Office into the Central Statistical Office. But these recommendations were not followed and instead knowledge exchanges continued to develop through the newly founded International Statistical Congress, with Hinckeldey's numbers attracting attention there too.

Hübner attended the first congress in Brussels in 1853, where he presented the urban statistics of the Prussian police. Hübner's presentation, along with another set of urban statistics produced by the Parisian Chamber of Commerce, impressed

[142] Ibid., Bl. 155–6.

[143] Westphalen to Manteuffel, 25 February 1855, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 94 Bd. 1, Bl. 13.

[144] Dieterici to Westphalen, 23 October 1855, in ibid., Bl. 16–17.

[145] Dieterici to Westphalen, 22 April 1857, in GStA PK I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 80 Bd. 1, Bl. 287–98, at Bl. 290.

[146] LAB A Pr.Br.Rep. 030 Nr. 7280, Bl. 172–95.

upon the audience the need for more attention to be given to urban statistics. As an article in the Prussian *Staats-Anzeiger* claimed:

> If the first [i.e. the statistics of the Parisian Chamber of Commerce] distinguished itself through a complete handling of a section of statistics, so the second [Hinckeldey's statistics] was remarkable for the care with which every single branch of statistics found consideration. That the congress in Brussels expressly recommended—through unanimous decision—the cultivation of urban statistics in the interests of science and of administration is to be attributed to the worth of both works.[147]

Urban statistics were further developed at the 1855 Congress. Charles Dupin—the chief organizer behind the event—gave an extensive and well-received report on the statistics of large cities. Dupin suggested a litany of subjects for uniform study across the continent, including: area covered by houses, gardens, and streets; municipal laws relating to the construction of buildings; the state of drainage and supply of water; public health; public security; number of hospitals; the consumption of food; communications; transport; and crime. [148] Further suggestions were also made to the effect that details on the introduction of water into cities should be collected and an architect should be used to generate exact descriptions of buildings and the means of their construction.[149] Most significantly, mortality rates received increased attention in urban statistics. As such, the International Statistical Congresses of the 1850s, along with the transnational exchanges and circulation of urban statistical materials, affirmed Hinckeldey's belief that the city was a fundamental new component of society that had to be understood by the state and helped to consolidate a new administrative culture in Prussia more open to considering exchanges and transnational trends in guiding municipal reforms.

CONCLUSION

The reform of Prussia's cities and towns in the 1850s was an important part of the post-revolutionary agenda. The introduction of the Municipal Ordinance in 1850 sought to complete Stein's reforming work first implemented in Königsberg but only partially realized in Prussia the years before 1848. It was designed to establish local government across the entirety of the Prussian state, without distinction between region or city and the countryside. The pressure the old conservatives put on the process meant that the envisaged reform did not come to fruition, but nor was there a simple return to the conditions of the pre-March years. Municipal government could now exist on a much wider scale, even if not uniformly. Indeed, the resulting compromise meant that both state administration in cities and local government would continue to develop in the decades to come.

[147] GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 37.

[148] *Compte rendu de la deuxième session du congrès international de statistique réuni à Paris les 10, 12, 13, 14 et 15 septembre 1855* (Paris, 1856), 122–32, 411–18.

[149] Dieterici's report to Westphalen of the 1855 congress in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 94 Nr. 99 Bd. 1, Bl. 227–52, at Bl. 245.

Within the broader umbrella of municipal reform, the police assumed many of the tasks associated with self-governing communities in the regulation of housing, streets, and urban extensions. In Berlin, the introduction of the Police Construction Ordinance in 1853 and associated statistical work played an important role in ordering building, preventing fire, and affirming a growing state interest in public health. The attention to public health in Berlin was unusual in German-speaking Europe, even in states where new building codes had been promulgated. For instance, the Austrian authorities first introduced a building code in Vienna in 1829, followed by a *Bauordnung für die k.k. Reichsstadt und Residenzstadt Wien* in 1859 and an updated version in 1868. The 1859 code sought to regulate new building in Vienna's inner suburbs, which were not included in the 1829 code, but these efforts did not promote a new attention to public health.[150] Likewise in Bavaria, the Penal Code of 1861, and later building codes of 1863 for Munich and 1864 for Bavaria in general, did not reflect a new shouldering of public health on the part of the state. Rather, it was in the years after unification, with the establishment of more vocal organizations interested in sanitation, that ambitious building codes came into effect across German towns. The 1880s saw further developments in Berlin too, with state authorities once again having to use extraordinary powers to force the *Magistrat* to accept a wider remit of regulatory activity.[151]

In other words, the 1850s saw a limited but nonetheless important strengthening of official activity commonly associated with self-governing communities. Manteuffel provided the way for the Prussian police to play a greater role in reforming urban life, especially in Berlin. Here Hinckeldey made a significant contribution. He broadened the remit of activities undertaken in Berlin, and inflected them with a wider concern for the welfare of the population, especially the poor. As Frank Thomason puts it: 'Hinckeldey may well be considered as an important link between the older, agrarian-oriented paternalism and the state socialist politics of Otto von Bismarck in the 1880s.'[152]

[150] Eve Blau, *The Architecture of Red Vienna, 1919–1934* (Cambridge, MA: MIT Press, 1999), 65.
[151] Ladd, *Urban Planning*, 93–5, 155–6.
[152] Thomason, 'The Prussian Police State in Berlin', 143.

6

Public Opinion and Press Management

The Brandenburg–Manteuffel Ministry of State had to move quickly to regain control of the press after the relaxation of censorship in March 1848. The subsequent expansion and politicization of newspapers afforded, many including Manteuffel believed, very real opportunities for radical activity. 'The foundations of state order', wrote Manteuffel in October 1848,

> are shaken in several parts of the monarchy, the legal protection for persons and property is weakened and thereby the true freedom, which can only exist on the basis of the law, is endangered. The free press and the right of free association have been abused by malicious individuals to disturb the legal order and bring about anarchic conditions.[1]

A minority on the political right responded to this situation by calling for a revival of censorship. Notably, however, they did not include ultraconservatives such as the Gerlach brothers, who were dexterously acclimatizing to the new environment. The response on the political left was similarly uncompromising. Democrats championed a free press, but, similar to their political opponents, this position did not have broad appeal, and it certainly did not interest liberals such as Vincke, who conflated a completely free press with 'radicalism'.

Instead of embracing either extreme, the Ministry of State supported the development of an ambitious system of press management centred on activities of influence in the 1850s. This system took its cue from earlier experiments in the management of news first undertaken during the Napoleonic Wars, but it expanded them on a whole new scale. Prussian press management included the institutionalization of a press office, which was responsible for the production of daily reports on the state of the news. It also included the production of official newspapers, circulation of government friendly articles, and granting of subventions to non-oppositional papers to strengthen support. Yet it soon became clear that the office could not shape public debate, as had been hoped. It was difficult for Dr Rhyno Quehl, Manteuffel's most devoted director in the office, to gain the upper hand against newspaper editors who continued to develop their papers in new ways throughout the post-revolutionary decade. And, even when he did, the impact was often less than hoped for. As Manteuffel wrote, when one attempts to displace oppositional papers with conservative newspapers, 'you win more but still not much'.[2] Certainly, failures in press management were not helped by the opposition

[1] Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901), i. 15.

[2] Manteuffel to the *Oberpräsident* Eichmann, 18 December 1851, in ibid. i. 172–5, at 174.

Quehl roused amongst the ultraconservatives, but such animosity was of little concern to a minister-president who preferred this style of regulation to more punitive measures such as the suspension of newspapers.

The difficulties experienced in Prussia were also felt in the other large German states in the 1850s. In Austria, influence over the press was relatively weak. So too in Bavaria, where the circulation of government organs remained low in comparison to oppositional papers. This was not the case, however, in states of the Third Germany such as Saxony and Hanover, in which the development of propagandistic press measures was much more successful after 1848. Here circulation statistics reveal that government-sponsored papers achieved a substantial foothold in the market.[3] But, no matter the success of the official press and official press measures, governments had increasingly to show themselves willing to open up the workings of the state to greater scrutiny to restore their position. This became particularly apparent in Prussia, where, in fits and starts, news management was complemented by a greater circulation of state materials. Here change would have a powerful effect, as statistics and reports couched in government-friendly spin flowed out of government offices in the decades that followed, fundamentally shifting the relationship between the state and public sphere, especially after the unification of the German states.

TOWARDS A MODERN SYSTEM OF NEWS MANAGEMENT

Experiments with news management first emerged at the beginning of the nineteenth century in the German states.[4] In Austria, Clemens Wenzel von Metternich founded an official political newspaper in 1810, the *Österreichischer Beobachter*, to secure public opinion against Napoleon.[5] Officials in Prussia soon followed suit. Seeking to encourage pro-Prussian sentiment, they published rousing proclamations such as Frederick William III's appeal to the Prussian people, *An mein Volk*. And, following this in 1819, Karl August von Hardenberg founded Prussia's first official newspaper, the *Allgemeine Preußische Zeitung*. Beyond the German great powers, similar initiatives also came to the fore. In Bavaria, the establishment of the magazine *Allemannia* in 1815 fit into this pattern, although here the focus was directed less towards rousing anti-French sentiment and more towards the state's

[3] Abigail Green, 'Intervening in the Public Sphere: German Governments and the Press, 1815–1870', *Historical Journal*, 44 (2001), 155–75, at 172–3; Mark Hewitson, *Nationalism in Germany, 1848–1866: Revolutionary Nation* (Basingstoke: Palgrave Macmillan, 2010), 119–21.

[4] On censorship during the *Vormärz*, see Katy Heady, *Literature and Censorship in Restoration Germany: Repression and Rhetoric* (Rochester, NY: Camden House, 2009); Frederik Ohles, *Germany's Rude Awakening: Censorship in the Land of the Brothers Grimm* (Kent, OH: Kent State University Press, 1992).

[5] Green, 'Intervening in the Public Sphere', 159; Manfred Overesch, *Presse zwischen Lenkung und Freiheit: Preußen und seine offiziöse Zeitung von der Revolution bis zur Reichsgründung (1848–1871/72)* (Pullach: Dokumentation, 1974), 17.

anti-Prussian politics.[6] And parallel enterprises were evident in states of the Third Germany such as in Saxony, where the authorities released semi-official publications after the disasters of 1813–15.[7]

The restoration of order and the introduction of the Karlsbad Decrees in 1819 saw, however, a quick about-turn from such innovations. Only in October 1841 did Friedrich Wilhelm IV develop the initial attempts to produce state-sponsored newspapers by suggesting the establishment of an office in Prussia to observe the domestic and foreign press, and to exercise a certain influence on 'the public mood'.[8] This office wavered in purpose between more dated attempts to identify transgressions of censorship laws and a new sense of press management, but it was a unique attempt to institutionalize state-sponsored interventions in the public sphere.[9]

Manteuffel saw great value in these early attempts at press management. In December 1848, he re-established a Literary Cabinet (*Literarisches Cabinet*) under his jurisdiction in the Interior Ministry, believing that management would put the Prussian state on the right side of history. As he wrote on 3 July 1851:

> Every century has seen new immaterial powers enter into the sphere of traditional life, powers which were not to be destroyed but incorporated. Our generation recognizes the press as such a power. Its significance has increased with the expanded participation of the people in public affairs, which the daily press partly expresses, partly feeds and partly directs.[10]

Otherwise put, the monitoring of the press and the production of government-friendly newspapers to influence it was one way to 'incorporate' the challenge of public opinion. Brandenburg agreed. He eagerly supported the move, arguing that there was an urgent need to refute the attacks of democrats and anarchists through a daily newspaper.[11]

Manteuffel appointed a series of talented directors to the Literary Cabinet in the 1850s, seeking to expand its reach and influence. The first was Wilhelm Traugott von Merckel (1802–61). Although less than excited about the appointment, Merckel was an able administrator who successfully modernized systems of reporting on the news, particularly the writing of daily press overviews.[12] The first such overview appeared on 22 January 1849, as officials in the Literary Cabinet finished compiling a twenty-seven-page report on the new journals that had appeared during

[6] Wolfgang Piereth, 'Propaganda im 19. Jahrhundert: Die Anfänge aktiver staatlicher Pressepolitik in Deutschland (1800–1871)', in Wolfram Siemann and Ute Daniel (eds), *Propaganda, Meinungskampf, Verführung und politische Sinnstiftung 1789–1989* (Frankfurt am Main: Fischer Taschenbuch Verlag, 1994), 21–43, at 28–32.

[7] Lawrence J. Flockerzie, 'State-Building and Nation-Building in the "Third Germany": Saxony after the Congress of Vienna', *Central European History*, 24 (1991), 268–92, at 280–1.

[8] Friedrich Wilhelm IV to the Interior Minister von Rochow, 14 October 1841, in Gertrud Nöth-Greis, 'Das Literarische Büro als Instrument der Pressepolitik', in Jürgen Wilke (ed.), *Pressepolitik und Propaganda: Historische Studien vom Vormärz bis zum Kalten Krieg* (Cologne: Böhlau, 1997), 1–78, at 2.

[9] Ibid. 3; see also Kurt Wappler, *Regierung und Presse in Preußen: Geschichte der amtlichen preußischen Pressestellen, 1848–1862* (Ph.D. dissertation, Universität Leipzig, 1935), 1–2.

[10] Manteuffel to Rochow, 3 July 1851, in Wappler, *Regierung und Presse in Preußen*, 91.

[11] Piereth, 'Propaganda im 19. Jahrhundert', 32.

[12] Nöth-Greis, 'Das Literarische Büro', 5–6.

the revolution and their political positions.[13] The report showed that the removal of censorship in March 1848 allowed for a deluge of new papers in Prussia with rapidly increasing copy numbers.[14] For example, between February and April 1848 print runs of the *Kölnische Zeitung* increased from 9,500 to 17,400 copies. The *Vossische Zeitung* underwent a similarly astounding increase in sales, taking its print run to 24,000 copies.[15] Papers also increased their impact in terms of content. Broadsheets such as the *National-Zeitung* offered readers unprecedented and increasingly politicized insights into state affairs by tying news to new party positions.[16] Other papers tried to examine growing but quotidian concerns in a political light. For example, *Die medicinische Reform* became a major forum for debating the reform of public health and its political implications.[17]

The Literary Cabinet's report concluded that the expansion of newspapers was irreversible and had fanned what it considered to be 'mob terrorism' (*Pöbelterrorismus*). But it also acknowledged that, if parts of the press created significant opposition against the state, other parts generated support. Moreover experience dictated that editors were willing to shift the stance of their papers according to the political climate. This was especially evident after the promulgation of the constitution, when a number of newspapers embraced the new course adopted by the Ministry of State. The report noted that, in December 1848, papers such as the *Oder-Zeitung*, the *Berliner Zeitung*, and the *Düsseldorfer Zeitung* had denounced their former 'opposition at any price' and instead propagated a new programme, in which they recognized the constitution of 5 December as the foundation of future state-building in Prussia.[18] The political position of many newspapers was, in other words, open to persuasion, and the potential impact of the press office was substantial.

Following such early and foundational commentaries, Merckel saw to it that the Literary Cabinet produced daily reports on the state of the press and the effectiveness of government actions to influence it. He put six lectors in charge of writing the daily reports, who read a total of 116 papers. By the middle of 1857, the Literary Cabinet was surveying 133 papers, including: 72 daily newspapers of which 25 were Prussian and 47 sourced from abroad; 11 weekly newspapers; 23

[13] 'Über die Wirksamkeit der deutschen zumal der preußischen Tagespresse im abgewichenen Jahre 1848', 20 January 1849, in GStA PK, I. HA Rep. 77 A Literarisches Büro, Nr. 134, Bl. 3–27.

[14] Ibid., Bl. 10–27. See also Martin Henkel and Rolf Taubert, *Die deutsche Presse, 1848–1850: Eine Bibliographie* (Munich: K. G. Saur, 1986), 226–442.

[15] Jürgen Frölich, 'Repression und Lenkung versus Pressefreiheit und Meinungsmarkt. Zur preussischen Pressegeschichte in der Reichsgründungszeit 1848–71', in Bernd Sösemann (ed.), *Kommunikation und Medien in Preußen vom 16. bis zum 19. Jahrhundert* (Stuttgart: F. Steiner, 2002), 364–85, at 373.

[16] Jürgen Kahl, 'National-Zeitung, Berlin (1848–1938)', in Heinz-Dietrich Fischer (ed.), *Deutsche Zeitungen des 17. bis 20. Jahrhunderts* (Pullach: Dokumentation, 1972), 177–89; Ernst Gerhard Friehe, *Geschichte der 'National-Zeitung' in den Jahren 1848 bis 1878* (Ph.D. dissertation, Universität Leipzig, 1933).

[17] On the links between public health and state-building, see Rudolf Virchow, 'Die öffentliche Gesundheitspflege', *Die medicinische Reform*, 8 (4 August 1848), 21–2.

[18] 'Über die Wirksamkeit', GStA PK, I. HA Rep. 77 A Literarisches Büro, Nr. 134, Bl. 6–9.

other domestic and overseas newspapers; and 27 journals.[19] The most important lector in the office was Dr Metzler, who was responsible for reading the mainstay of Prussian papers as well as the *Augsburger Allgemeine Zeitung*. After 1850, he was also responsible for communicating the daily reports to the minister-president. The lector Bülow read papers from Frankfurt am Main, Hanover, north Germany, and Silesia, including the *Frankfurter Journal* and the *Zeitung für Norddeutschland.* The lector Dr Pfersch focused on the southern German states, and the lector Breza was employed to read the Polish language newspapers. A Dr Arnd was responsible for reading mainly French newspapers, including the *Moniteur* and *Journal des débats,* and Professor Herzog was responsible for reading English papers. These included *The Times* and *Punch.*[20] Additionally, on the first of every month, each lector was responsible for creating an overview of government influences on their allocated newspapers. They were to report on the newspapers with which they had corresponded, the frequency with which they made contact, and what success they had had in directing government-sponsored articles into these papers.[21]

Merckel's term in office was foundational but brief, as was the location of the Literary Cabinet in the Interior Ministry. When Manteuffel became Minister-President, he took the Literary Cabinet with him, rebranding the office as the *Zentralstelle für Pressangelegenheiten* (henceforth Press Office) under his direct control. Manteuffel also made two further changes to the office. First, in December 1850 he increased the annual budget of the office from 26,500 Taler to 35,000 Taler, making funding for the Press Office nearly half of the larger, 80,000 Taler budget for police initiatives, from which it came. Secondly, he employed Dr Rhyno Quehl (1821–70) as the new director.[22]

Quehl was a perfect fit for Manteuffel. Born in Erfurt in 1821, he attended *Schulpforta* before studying theology at the University of Berlin. Quehl hoped to move into a career as a lawyer during his university days, but precarious family finances made this impossible. Instead, he took up the position of editor of the *Danziger Zeitung* and *Danziger Dampfboot* in late 1845—both oppositional papers. 'Until the March Revolution' Quehl was, in his own words, 'very liberal [and] also very young'. He supported revolutionary upheaval and wrote against the government without any sense of 'accountability'.[23] But the revolution failed to live up to Quehl's expectations. As he wrote to Manteuffel in 1855, for him as for many others, the primary lesson of the revolution had been that 'the nation is unable to rule alone'.[24] The debates of the Frankfurt National Assembly certainly suggested as much in the summer of 1848, as it failed adequately to engage with

[19] Nöth-Greis, 'Das Literarische Büro', 7.

[20] 'Geschäfts Ordnung des Literarischen Cabinets', 24 April 1850, in GStA PK, I. HA Rep. 77 A Literarisches Büro, Nr. 2, Bl. 23–7, at Bl. 23–5.

[21] Ibid., Bl. 26.

[22] Unless otherwise stated, the details of Quehl's biography come from Manteuffel's letter of recommendation to Friedrich Wilhelm IV in 1850. See GStA PK, I. HA Rep. 89 Geheimes Zivilkabinett, Nr. 10459, unpaginated.

[23] Quehl to Manteuffel, 4 February 1855, in GStA PK, VI. HA Nl Otto von Manteuffel, Tit. 2 Nr. 92 Bd. 2, Bl. 49–52, at Bl. 49.

[24] Ibid., Bl. 50.

questions of sovereignty, let alone popular concerns about the 'Social Question'. And the later, radical uprisings in the provinces would prove fundamentally unsettling. As a result, Quehl 'shifted more and more towards a conservative direction', or, as the Minister Schaetzell in Bernburg put it, Quehl 'opened his eyes to the consequences of liberalism in March 1848'.[25]

Quehl might have believed that the nation had shown itself incapable of self-government in 1848, but he still believed that public opinion required thoughtful engagement, and he supported the new November Ministry of State in its attempts to restore order. Such attitudes ensured that Quehl fell out of favour with the liberal elites in Danzig, who were less willing to rally behind the likes of Brandenburg and Manteuffel. But his sympathies for the November Ministry of State opened up the way for Quehl to pursue journalistic work in Berlin. Here, Quehl found employment at the *Deutsche Reform*. Moreover, during his time at the *Deutsche Reform*, Quehl caught the eye of the *Kultusminister* Ladenberg, who recommended him for work in the Interior Ministry, which led to his appointment as Director of the Press Office in 1850.

As Director of the Press Office, Quehl became one of Manteuffel's most valued counterparts in developing the daily reports and exploring avenues for influencing the press. He made astute observations, but they caused tensions among the ultraconservatives, especially with Hermann Wagener, the editor of the *Kreuzzeitung*. Throughout 1852, Quehl engaged in a press war with Wagener, in which he defended the growing distance between Manteuffel's policies and the 'party line' preferred by the ultraconservatives.[26] This caused considerable friction with the *Kreuzzeitungspartei*, who attacked Quehl time and again, exaggerating his involvement in 1848 and accusing him of having been one of the 'leaders of the revolution…and of the democratic party'.[27] The pietistic *Kreuzzeitungspartei* also frequently branded Quehl an atheist.[28] What these attacks essentially expressed was the fact that Quehl had distanced himself from the revolution without adopting a doctrinaire conservatism. In his opinion, Manteuffel too shared this conviction that one did not need to subscribe to the conservatism of the 'small and powerful' party to get things done. Indeed, Quehl claimed that others, such as the conservative publicist Victor Aimé Huber, were making a break with the ultraconservatives in questions of social reform, with similar smearing by the *Kreuzzeitung*, but, in Huber's case, publishing rebuttals in his pamphlet *Bruch mit der Revolution und Ritterschaft.*[29]

[25] Quehl to Manteuffel, 18 November 1852, in GStA PK, VI. HA Nl Otto von Manteuffel, Tit. 2 Nr. 92 Bd. 1, Bl. 29–51, at Bl. 36.

[26] Quehl to Mantueffel, 13 August 1852, in ibid., Bl. 20–2, at Bl. 20; Leopold von Gerlach to Ludwig von Gerlach, 15 July 1851, and 23 July 1852, in Ernst Ludwig von Gerlach, *Von der Revolution zum Norddeutschen Bund. Politik u. Ideengut der preußischen Hochkonservativen, 1848–1866. Aus dem Nachlaß von Ernst Ludwig von Gerlach*, ed. Hellmut Diwald, 2 vols (Göttingen: Vandenhoeck u. Ruprecht, 1970), ii. *Briefe, Denkschriften, Aufzeichnungen*, 754, 803; Dagmar Brussiek, *'Mit Gott für König und Vaterland!' Die Neue Preußische Zeitung (Kreuzzeitung), 1842–1892* (Münster: Lit, 2000), 114–17.

[27] Quehl to Manteuffel, 18 November 1852, in GStA PK, VI. HA Nl Otto von Manteuffel, Tit. 2 Nr. 92 Bd. 1, Bl. 35–6.

[28] Ibid., Bl. 36–8.

[29] Ibid., Bl. 39–40. On Huber, see Andrew Lees, *Revolution and Reflection: Intellectual Change in Germany during the 1850s* (Martinus Nijhoff: The Hague, 1974).

Quehl readily attacked ultraconservatives in the pages of *Die Zeit*, until Friedrich Wilhelm IV could stand the mounting animosity no longer. In 1853, he intervened in the situation, forcing the resignation of Wagener and the reassignment of Quehl.[30] Manteuffel threatened to resign in the hope of keeping his director, but it was to little avail. Quehl spent the rest of the 1850s as the Prussian Consul in Copenhagen, albeit in frequent contact with Manteuffel over important political affairs.[31]

After Quehl's departure, Manteuffel replaced his former director with Immanuel Hegel (1814–91)—son of the famous philosopher. Hegel oversaw a new dimension to the office's activities in the production of quarterly, statistical reports to assess 'the efforts of the parties, their representation in the press, and the position and the relationship which they have to one another in general and in the provinces'.[32] The point here was to enhance the daily reports by tracking consumption. The statistical reports of the Press Office showed that, within Berlin, the political press expanded steadily from 10 papers in 1853 to 17 papers in 1862, and a total number of editions increasing from 50,625 to 81,138 in those years—a 60 per cent increase.[33] Here papers ranged from: the semi-official *Die Zeit* (6,800 copies in 1854); to the generally government-friendly papers of the *Vossische Zeitung* (12,950 copies in 1854) and the *Kreuzzeitung* (5,650); the moderate conservative *Preussisches Wochenblatt* (1,100); and the liberal papers of the *Kladderadatsch* (24,550); the *National-Zeitung* (6,750); the *Volkszeitung* (7,200); the *Magdeburger Zeitung* (5,550); the *Hallesche Zeitung* (3,138); and the *Spenersche Zeitung* (7,860).[34] The total number of Berlin's political papers transported to the provinces also increased from 19,112 copies in the third quarter of 1852 to 39,423 copies in the third quarter of 1862—a 106 per cent increase.[35]

The reports showed that in the north and north-eastern markets Berlin's political papers captured dominant readerships, but Berlin's political papers made few inroads in the west, south-east, and east. The statistical reports further showed an uneven increase in the consumption of foreign political papers. In the first quarter of 1854, it was shown that, for every 1,000 German-language, political papers sent through the post, 23.7 foreign political papers entered circulation. This ratio varied across the provinces, with the lowest number of foreign papers in Saxony (2:1,000) and the most extreme infiltration of foreign papers in Posen (169:1,000).[36] Polish papers constituted the largest number of foreign newspapers,

[30] David E. Barclay, *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995), 262.

[31] See, e.g., Quehl to Manteuffel, 3 October 1858, in GStA PK, VI. HA Nl Otto von Manteuffel, Tit. 2 Nr. 92 Bd. 3, Bl. 70–5.

[32] 'Bericht über die statistischen Verhältnisse der politischen Presse in Preußen im ersten Quartal des Jahres 1854', 3 July 1854, in GStA PK, I. HA Rep. 77 A Literarisches Büro, Nr. 144, Bl. 1–12, at Bl. 12.

[33] Frank Vorpahl, *Die Berliner politischen Tageszeitungen in Nachmärz und 'Neuer Ära' (1850–1862)* (Frankfurt am Main: Peter Lang, 2011), 32.

[34] Hewitson, *Nationalism in Germany*, 182.

[35] Vorpahl, *Die Berliner politischen Tageszeitungen*, 131.

[36] 'Bericht über die statistischen Verhältnisse der politischen Presse in Preußen im ersten Quartal des Jahres 1854', 3 July 1854, in GStA PK, I. HA Rep. 77 A Literarisches Büro, Nr. 144, Bl. 1–12, at Bl. 2.

followed by French broadsheets. Later reports also detailed the number of political papers in relation to non-political papers moving across the German states (including Austria) and Switzerland, and the non-political, non-German language papers moving into Prussia.[37]

The statistical reports offered the Press Office three further lessons to those gleaned from the daily reports. First, they demonstrated that in some provinces local identities clashed too greatly with the Prussian state identity to enable papers to influence public opinion evenly. For example, Berlin's papers gained little traction in the hinterlands of the Rhine to the Weser, from the Vistula to the Russian border, and in Silesia. Silesia in particular had such a large Polish-speaking population that any government efforts to influence the market there would have to be made through Polish-language newspapers. Secondly, the office noted that religious affiliation was essential to understanding the success of any paper in the provinces. From the Rhine to the Weser and from the Weser to the Elbe, religious identities guided consumption. For example, the *Kölnische Zeitung* dominated the political press in the Rhine Province, but in specifically Catholic *Kreise* in the region the *Deutsche Volkshalle* was the paper of choice. Otherwise, in the strongly Protestant areas of the Rhine Province, the *Elberfelder Zeitung* held the most sway.[38] Finally, the office viewed positions on trade as being essential to understanding the different newspaper markets in Prussia. In the Rhine Province, most papers were on the whole pro-protectionism, except for the *Kölnische Zeitung*, which supported the growth of free trade. From the Elbe to the Vistula it was also noted that only papers with an economic focus were competitive on the market. Virtually all were for free trade, and as such the government could easily use economic issues to connect with this section of the population.[39]

In short, the reports produced under Merckel, Quehl, and Hegel confirmed that Prussia's press markets were deeply variegated, and, as this chapter will show, Manteuffel had no option but to direct funding and resources across the state based on negotiated priorities. But the forecast was not entirely pessimistic. Another curious spin-off of the new data was, as the first statistical report claimed, that consumption statistics provided a way to predict the likely success of 'measures and institutions' across the provinces.[40] And they established a basis for press management in a way that outpaced the rest of the German states, except perhaps for Austria. The Austrians lagged behind Berlin, surveying only thirty-two papers by 1855.[41] But, after its refounding by Felix Fürst zu Schwarzenberg in 1852, the Austrian office received more funding than the Prussian office, at 100,000 Gulden per year until 1862, compared to Prussia's 35,000 Taler (approx. 60,000 Gulden) per year until 1858. They used this funding on foreign policy, installing press stations in Frankfurt am Main, Leipzig, Stuttgart, Karlsruhe, and Munich. In comparison, Prussia established a presence only in Frankfurt am Main.[42] In Bavaria, things moved far more slowly, with the authorities unable to establish an office in the

[37] See the reports in ibid. [38] Ibid., Bl. 9. [39] Ibid., Bl. 10. [40] Ibid., Bl. 12.
[41] Hewitson, *Nationalism in Germany*, 150.
[42] Piereth, 'Propaganda im 19. Jahrhundert', 34–5.

1850s despite several attempts. And in the states of the Third Germany, press offices emerged only in the early 1860s, if at all, when domestic politics began to intersect with questions of national unification. Here the Prussian example was often instructive, especially in Hanover, where the former member of the Prussian Press Office, Oskar Meding, took over responsibility for press policy in 1859, and in 1862 founded a press office on the Prussian model. But in other states, such as Württemberg and Saxony, press management remained less institutionalized.[43]

THE OFFICIAL PRESS

Manteuffel readily supported the official papers produced by the Press Office, but, as historians have noted, this aspect of state propaganda policy often had little effect. The *Preußischer Staats-Anzeiger* had, for example, a circulation rate of 4,300 papers in 1852 in contrast to oppositional papers like the *Kölnische Zeitung*, which sold around 10,200 newspapers that same year.[44] Other government organs, such as the semi-official *Deutsche Reform* (later *Die Zeit*), fared little better. Between 1852 and 1861, this paper's circulation only increased from 2,020 to 4,200. And the other two major semi-official papers, the *Königsberg Hart Zeitung* and the *Stralsundische Zeitung*, garnered meagre circulations of 4,175 and 3,000 respectively between 1852 and 1861.[45] As a result, Manteuffel sought to establish a range of semi-official newspapers alongside official ones and credit subventions to others willing to promote government policy. Based on the daily reports and later statistical reports, effort was directed primarily to the Provinces of Silesia, Prussia, Westphalia, and the Rhine Province, where the Berlin press failed to have an influence.

In Oppeln in the Province of Silesia, the *Regierungspräsident* Pückler reported on 23 February 1849 that the *Kreis-Blätter* were not having a strong influence over public opinion.[46] He blamed their lack of traction mainly on deficiencies of style. *Landräte* did not have time to write inviting journalism, he claimed, and, although many conservatives wanted to use the press to influence public opinion, 'very few were in possession of the necessary talents' to do so. In addition, it was almost impossible to find a talented writer who could work in Polish.[47] It was concluded that a second government-sponsored paper was needed in the province to devote the necessary time and energy to attracting a larger readership. Manteuffel supported this line of thinking and funded the Director of the Agricultural Academy (*Direktor der landwirthschaftlichen Akademie*) in Proskau, a certain Heinrich, to establish a new paper.[48] Heinrich aimed his broadsheet towards residents of small towns and countryside areas, and, although Heinrich believed the political appetite of rural populations to be limited, he argued that they could be induced

[43] Abigail Green, *Fatherlands: State-Building and Nationhood in Nineteenth-Century Germany* (Cambridge: Cambridge University Press, 2001), 158–9.
[44] Ibid. 182. [45] Hewitson, *Nationalism in Germany*, 119.
[46] Pückler to Manteuffel, 23 February 1849, in GStA PK, I. HA Rep. 77A Literarisches Büro, Nr. 245, Bl. 1–8.
[47] Ibid., Bl. 3. [48] Marginalia by Manteuffel, in ibid., Bl. 7.

towards pro-government political positions if the paper was presented in a way that appealed to them. The paper was therefore divided into three sections that mixed politics with practical subjects such as agriculture, housekeeping, business advice, and a discussion of moral issues.[49]

Support for more innovative, semi-official papers in Silesia caused tensions for those conservatives who preferred the exclusive promotion of ultraconservative ventures alongside official newspapers. This difference can be seen clearly in the rise and fall of the *Conservative Zeitung für Schlesien.* In 1851, Manteuffel helped to finance the paper's foundation, but, by 22 March 1853, it had run into financial difficulties and required 4,000–5,000 Taler to stay afloat.[50] Manteuffel was reluctant to invest so much money in the *Conservative Zeitung*. It was, he acknowledged, a good resource, but his 35,000 Taler budget needed to be spent in 'the interest of the government and for things that absolutely cannot be refused'.[51] Clearly, ultraconservative interests were not automatically conflated with government interests. Friedrich Wilhelm IV pressured Mantueffel to find the funds to keep the paper in business, but in the end it folded owing to Manteuffel's unwillingness to finance it on such a scale. Indeed, Mantueffel received support from some oppositional papers for distancing himself from conservative papers such as the *Conservative Zeitung für Schlesien* and the *Kreuzzeitung* in Berlin.

Establishing semi-official papers was challenging in the east, but nowhere was it more difficult than in the west, in the hostile press environment of the Rhine Province. Here, for example, the opinions expressed by the *Kölnische Zeitung* dominated the news landscape, and its incredible print runs far outstripped government papers. In 1852, 10,500 copies entered circulation; in 1854, 12,250; and in the years 1856 and 1857, 12,750 copies. This made the *Kölnische Zeitung* without question one of the most widely circulated papers in Prussia and its political positions a serious problem for the ministry.[52] Furthermore, the hostility of the ultraconservatives to such papers further complicated the situation. Westphalen, for instance, advocated confiscation to keep the paper in check, rather than a simple support for conservative papers in the region. Friedrich Wilhelm IV also supported this approach and attempted to see the paper suspended in 1851, 1852, 1854, and 1856.

But Manteuffel believed that the state would only ever be able to manage public opinion in the Rhine Province if it could form some sort of an arrangement with the *Kölnische Zeitung*. He was willing, as he wrote in April 1852, to tolerate independence and critique, 'if the paper represented Prussia's interests on the Rhine in general'.[53] Manteuffel had good reason to expect that the paper could potentially support a number of government agendas. As Manteuffel wrote in 1852, its position

[49] Heinrech, 'Pro Memoria', 4 January 1849, in ibid., Bl. 9–13.
[50] Westphalen to Manteuffel, 22 March 1853, in ibid., Bl. 78–9.
[51] Manteuffel to Westphalen, 7 April 1853, in ibid., Bl. 80.
[52] Jürgen Herres, Georg Mölich, and Stefan Wunsch (eds), *Quellen zur Geschichte der Stadt Köln*, 3 vols (Cologne: J. P. Bachem, 1996–2010), iii. *Das 19. Jahrhundert (1794–1914)* (2010), 212–19, at 213.
[53] Ibid.

vis-à-vis the government was not as hostile as it had been in the past. A point of equipoise might be found with this paper without the state having to endure extreme criticism. In addition, the *Kölnische Zeitung* did not engage with the ultramontane opinions frequently expressed in the Rhine Province. This was one of the few papers through which the state could enter the market and avoid an association with tricky religious complications. And, most importantly for Manteuffel, the *Kölnische Zeitung* was willing to support the government on issues of trade—an extremely rare phenomenon in the region.[54]

As a result, Manteuffel attempted to establish a relationship with the *Kölnische Zeitung* in November 1851. He drafted a secret fourteen-point contract that sought above all to curb the paper running articles on the Prussian royal family. This first attempt to bind the editors to government agendas proved to be unsuccessful, and the lack of cooperation on the part of the *Kölnische Zeitung* resulted in the government breaking off the agreement after a year. In 1852 and then during the Crimean War, Friedrich Wilhelm IV pressured Manteuffel to take drastic action against the paper, but Manteuffel refused. He still desperately wanted to win over the paper for government ends. Even Hinckeldey agreed with Manteuffel's approach and argued that a contractual relationship with the paper would be far better than attempting to suspend it. As he wrote:

> The suspension of the *Kölnische Zeitung* is a measure of far-reaching, hard to overlook consequences. The paper is known in almost every house on the Rhine; it has become a decisive necessity for the Rhinelander. To simultaneously withdraw the paper from him would produce a far stronger impression than if the *Vossische Zeitung* should be withheld from the Berliner because the Rhinelander is more sensitive than the Berliner when it comes to a disruption of his traditional domestic habits. To risk such an intervention can only be advised in the instance of the most pressing need. I cannot recognize that at present such a need prevails.[55]

On 2 June 1854, Manteuffel was able to persuade Friedrich Wilhelm IV and Westphalen to hold off with their intended suspension while he continued to seek some form of agreement with the paper. The suspension was finally avoided on the condition that the Chief Editor Brüggemann give up his post. Manteuffel seized on his second chance at winning over the paper, and in 1855 he secured an agreement, stipulating that in matters of foreign policy the paper would adhere to a government line in exchange for information.[56]

In total, Manteuffel spent 12,000 Taler a year from the Press Office's budget on subventions for official and Prussian-friendly papers across the provinces, plus 5,000 Taler for sundry editions.[57] In many cases, he had to settle for far less of an

[54] Manteuffel to Niebuhr, 4 May 1852, in Manteuffel to Niebuhr, 19 April 1852, in GStA PK, VI. HA Nl Marcus von Niebuhr, Tit. 3 Bd. 3, Bl. 103–4, at Bl. 104.

[55] Herres, Mölich, and Wunsch (eds), *Quellen zur Geschichte der Stadt Köln*, 216.

[56] Green, 'Intervening in the Public Sphere', 171.

[57] Richard Kohnen, *Pressepolitik des Deutschen Bundes: Methoden staatlicher Pressepolitik nach der Revolution von 1848* (Tübingen: Max Niemeyer, 1995), 138.

influence over the press than he desired, but his attempts to direct his limited resources according to negotiated priorities were not entirely without effect.

When subventions failed, Manteuffel had little option but to rely on harsher measures of press management. First and foremost, he preferred for difficult newspapers to be sanctioned by indirect economic means afforded by the Press Law of 12 May 1851. The press decree of 5 June 1850 and Press Law of 12 May 1851 mandated that editors buy a licence for their paper, which could be confiscated in the event that the newspaper broke legal limits in reporting. Alongside the licence, editors had to pay huge deposits for their newspapers, which could also be forfeited. The introduction of a stamp duty on papers in 1852 further encouraged editors to curb contentious journalism to avoid any financial loss.

In particular, the selective confiscation of deposits enabled the Berlin police to remind editors of the stakes involved in political reporting. This was strikingly evident in the so-called 'second Cologne trial', in which Hinckeldey arrested a number of leading democrats during a 'flare-up of revolutionary activity' in Berlin.[58] On 30 March 1853, the *Vossische Zeitung* outlined the discovery of sixty grenades in a local factory, and concluded this was without question evidence that a 'dangerous *complot*' was at hand. The *Spenersche Zeitung* likewise went on to condemn the revolutionary impulse in Berlin. As it wrote:

> One likes to view the revolutionary symptoms that were discovered this spring here and there in Germany as childish and adventurous attempts . . . but the fuel for these occasionally appearing experiments remains in the assumption that revolutions can bring about material improvements. This assumption must be challenged through the press, schools, guild-committees, higher educational institutions, factory-owners and level-headed and reasonable master craftsmen.[59]

The accused were tried and anyone associated with the supposed democratic plot was sanctioned. This included Hermann Holdheim, the editor of the *Urwähler-Zeitung*. Holdheim was released from prison after several days, but his paper did not recover from the economic sanctions he incurred upon arrest. The message was clear for the rest of the newspaper industry: get too close to the democratic movement and economic sanctions would follow.

Such occurrences were common in Berlin. There, Hinckeldey often tried to increase the twenty-four-hour time frame in which he had to notify the state's attorney of a confiscation.[60] The police president also used noticeably broad parameters to justify confiscation, causing significant problems with the Ministry of Justice and public prosecution throughout the 1850s.[61] But Hinckeldey's tactics did not extend to the provinces, where the police avoided using the full potential of confiscation. For example, in early 1853 a number of articles appeared across

[58] *Volkszeitung*, quoted in Vorpahl, *Die Berliner politischen Tageszeitungen*, 83.

[59] *Spenersche Zeitung,* 1 April 1853, quoted in ibid. 84–5.

[60] Kohnen, *Pressepolitik des Deutschen Bundes*, 100–1.

[61] On Hinckeldey's relationship with the public prosecution, see Peter Collin, *'Wächter der Gesetze' oder 'Organ der Staatsregierung'? Konzipierung, Einrichtung und Anleitung der Staatsanwaltschaft durch das preußische Justizministerium. Von den Anfängen bis 1860* (Frankfurt am Main: Vittorio Klostermann, 2000).

Prussia, quoting renewed calls to revolution made by Giuseppe Mazzini and Lajos Kossuth. But, as Friedrich Wilhelm IV noted, government action to silence the story had been in no way consistent. The king wrote to Manteuffel and Westphalen demanding to know why, 'some government-oppositional papers, for example the *Neue Oder-Zeitung* and the *Deutsche Volkshalle*, were not confiscated whereas this measure had been used against conservative papers such as the *Kreuzzeitung*'.[62] Over a three-month period Westphalen collated reports from the provincial governments describing the extent to which the speeches had been reprinted in their districts and what action had been taken.[63]

Manteuffel and Westphalen informed Friedrich Wilhelm IV that six partial or total reprints of either Mazzini's speech and/or Kossuth's speech had been printed in 1853 in government-sponsored papers. Three papers with no connections to the government and no history of being oppositional and five papers categorized as being actively oppositional had also published the speeches across the provinces. The report suggested that on the whole papers containing the speeches were not confiscated because their coverage posed little political threat. The *Deutsche Volkshalle* and the *Echo der Gegenwart* had predominantly conservative Catholic readerships, and it was argued that their reprinting of the speeches had only strengthened support for the Austrian government, against whom Mazzini and Kossuth rallied. The *Regierungspräsident* Möller in Cologne wrote, in addition, that those people in his district likely to lead any agitation did not read the *Deutsche Volkshalle.* The political influence of the story in Stralsund, wrote the *Regierungspräsident* Krassow, was also in no way dangerous. The 'spawn of revolutionary despicableness' who wrote on such topics in his province were, he argued, without a wide base of support at present. The district government in Erfurt reported that the publication of the Mazzini manifesto in the *Erfurter Zeitung* was done with no intention of provoking unrest, and the *Regierungspräsident* Massenbach in Düsseldorf even claimed that the articles had strengthened movements for law and order in his jurisdiction. Similar reports also came in from Aachen and Trier.[64]

There seemed to be little reason to intervene in the districts, but, even if there had been, suspension could have caused more problems than it solved. As Manteuffel and Westphalen argued, tolerating such articles was often necessary because the success of taking papers to court was not guaranteed. In Magdeburg the police had confiscated no. 39 of the *Magdeburger Zeitung,* but the county court would not confirm the action. In Elberfeld, the Police Director claimed that the *Elberfelder Zeitung* had not been confiscated, because it seemed highly unlikely that he would be successful in the courts. *Regierungspräsidenten* in Aachen und Trier held the same opinion. As the report stated, 'at present it must also be regarded as doubtful whether those confiscations will have a judicial conviction'.

[62] Friedrich Wilhelm IV to Manteuffel and Westphalen, 20 February 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 381 Nr. 17, Bl. 1.
[63] Westphalen to the *Königl. Regierungspräsidenten*, 24 February 1853, in ibid., Bl. 5.
[64] Manteuffel and Westphalen to Friedrich Wilhelm IV, 28 May 1853, in ibid., Bl. 47–9.

Manteuffel and Westphalen concluded that the current number of papers reprinting such provocative materials had to be lowered, but this could not be done through uniform confiscation and prosecution. Such a policy would involve the state in unnecessary conflicts and more importantly it would necessitate taking many government-sponsored papers to court. Friedrich Wilhelm IV thus had little option but to give in to the ministry on this issue and allow the press laws to be used at their discretion.[65]

Friedrich Wilhelm IV maintained a penchant for regulating reporting according to hard-and-fast standards in the 1850s, but to little effect. In 1854, he demanded that the Ministry of State do something to control the 'oppositional remarks' in the press. He insisted that any papers found to be publishing incorrect or oppositional information should be named and refuted in a weekly article entitled 'Tageslügen'.[66] This was not the first time he had sought to implement such a measure. In 1844, Friedrich Wilhelm IV attempted to see articles of refutation mandated across the press.[67] The endeavour had already met with resistance in 1844, and by 1854 it was out of the question. The Press Office instantly opposed the publication of such articles.[68] The Ministry of State was likewise hostile to the idea.[69] The problem with trying to control the press in this way, they argued, was that the information contained in many such articles was often factually correct. It was the spin that was the problem. Moreover, they argued, anything missed by the 'Tageslügen' would gain instant credibility, despite potential factual inaccuracies or anti-government commentary. This was likely, considering that since 1848 government could no longer survey the entire Prussian press nor could it do so quickly. Finally, a third problem with the 'Tageslügen' was that such publications would spread anti-government stories from one province to another when the state might otherwise have contained them. Rather than directing the press with such a heavy hand, the Ministry of State argued once again that the Press Office and individual ministries should be left to monitor the press. Friedrich Wilhelm IV conceded but demanded that the Ministry of State immediately increase its efforts to control the press.[70]

THE POLITICAL PRESS AND CONTINUED POLITICIZATION

The Press Office struggled to achieve Manteuffel's desired results owing to its own shortcomings in recruiting effective editors, planting articles, and upholding police confiscations in the courts, but it also encountered problems because highbrow newspapers continued to politicize in new ways after 1848. This was most evident

[65] Ibid., Bl. 49.
[66] Friedrich Wilhelm IV to the Ministry of State, 14 March 1854, in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 2414, Bl. 25.
[67] See the report of the Ministry of State, 9 April 1854, in ibid., Bl. 30–3, at Bl. 30.
[68] See Metzel's report, 17 March 1854, in ibid., Bl. 24.
[69] See the report of the Ministry of State, 9 April 1854, in ibid., Bl. 30–3.
[70] Friedrich Wilhelm IV to the Staatsministerium, 17 April 1854, in ibid., Bl. 34.

in the coverage of foreign policy, as the Press Office followed growing reports on the meetings of the German Confederation. In 1856, the police confiscated the papers involved in such reporting, but the judiciary viewed the matter differently: the city court in Berlin found the *Preussisches Wochenblatt* and *Volkszeitung* not guilty of libel.[71] This verdict was highly troubling for the Prussian authorities, who feared a flood of further critical reporting, and the result caused a wave of concern in Frankfurt.[72] Certainly, as Jürgen Frölich has pointed out, much of this style of reporting and that on the Crimean War became a new way indirectly to critique domestic politics, as papers pitted liberal England against reactionary Russia. The authorities responded in kind, with Westphalen seeking out pro-Western papers or articles for confiscation, but he was faced with a more difficult task when it came to articles deploying allusion, suggestive parallels, or extended metaphors. In such pieces, writers avoided saying too much so as to sidestep problems with the police, but they were in no way being silent about Prussia's political development since 1848, just cautious.[73]

The daily reports indicate, moreover, that newspapers became interested in evaluating the stability of foreign policy more generally. This was evident in reporting on markets and the stock exchange. Within this field of journalism, the *Börsen-Zeitung* was the most notable example. The *Börsen-Zeitung* was founded at the end of 1856 as a response to 'the tremendous increase in trade in recent decades', with its main purpose being to provide up-to-date information on market activity.[74] This was not the first paper ever to write on the stock exchange; broadsheets of this style can be traced back as far as 1739. But the paper was part of a quadrupling of financial papers, gazettes, and local newssheets between 1853 and 1862 that facilitated new financial activities.[75] And its political nature was tied to its desire to give a healthy and right foundation for speculation, which in practice involved making assessments about current affairs and their economic impacts.[76]

Naturally, this line of reporting proved to be a concern for the Prussian Ministry of State. The authorities confiscated the first edition of the paper, as Westphalen wrote, because of its coverage of the Neuchâtel Crisis.[77] In Neuchâtel—a canton of the Swiss Confederation—local Royalists had attempted a counter-revolution in September 1856 to reaffirm Prussian rights to the territory after a republican revolution in 1848. The uprising failed, resulting in their arrest and a diplomatic standoff between Prussia and Switzerland. Friedrich Wilhelm IV intervened on behalf of the instigators to secure their release from custody, but, when his entreaties failed to have effect, he issued orders to mobilize.[78] It was speculation on the likelihood

[71] Manteuffel to Westphalen, 7 January 1856, in ibid., Bl. 97–8, at Bl. 97.
[72] Ibid.
[73] Frölich, 'Repression und Lenkung', 374–5.
[74] 'Prospectus', November 1856, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 27, Bl. 6.
[75] Vorpahl, *Die Berliner politischen Tageszeitungen*, 116.
[76] 'Prospectus', November 1856, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 27, Bl. 6.
[77] Westphalen to the Berlin Police President, 6 January 1857, in ibid., Bl. 13.
[78] E. Bonjour, H. S. Offler, and G. R. Potter, *A Short History of Switzerland* (Oxford: Clarendon Press, 1952), 277–8.

of war that brought the *Börsen-Zeitung* to the attention of the authorities and saw it confiscated. But, by 19 January, proceedings before the Berlin *Kammergericht* deemed the actions of the police to have been legally untenable.[79] As a result, the paper would continue to reflect on the likely effects of a whole range of political disputes throughout 1857, causing the authorities ongoing frustration.

Although less widespread than discussions on foreign policy, the reports of the Press Office identified an increase in the coverage of domestic institutions in the political press. For example, the reports of the Press Office show that the meetings of the Ministry of State became a new source of interest in the 1850s. On 10 June 1856, for instance, the *Publicist* reported that the editors of Berlin's political papers had been invited to the Police Presidium to discuss the current state of reporting on the Ministry of State. The Press Office had made writing on the meetings of the Ministry of State possible by distributing official announcements on the topic, but Hinckeldey accused the editors present of printing extra, libellous information derived from illegal leaks in the administration. The publication of articles based on leaks would be, he made clear, henceforth considered an intentional attempt to undermine state security.[80] And Hinckeldey thereafter attempted to enforce a zero-tolerance line on this style of reporting, but, legally, his position was weak.

Articles tracing the movement of ministers in and out of Berlin also became common, as did ministerial sightings around the city. For example, the *Vossische Zeitung* reported on 30 October 1849 that Manteuffel and the writer known only as 'Malméné' had disguised themselves and headed to the *Schuldersche Bierstube*—a pub in Berlin well known for its political discussions—hoping to get a feel for the state of public opinion.[81] The *National-Zeitung* also covered the event, but it was far more sceptical as to whether Manteuffel had been the one drinking in the pub. Nonetheless, it noted that the *Schuldersche Bierstube* had increased its custom as a result of the 'sighting'.[82] Even *The Times* picked up similar stories in 1851 of Manteuffel visiting Berlin's pubs in order to know if it was true that 'in some of the quarters of the city, in consequences of the events of Paris, a lively agitation existed'.[83] Reporting of this nature did not yet consist of a sharp view into the personal lives of politicians, as would be the case by the turn of the century, but it did amplify their presence in the political landscape in a way that had not been seen before 1848.[84]

[79] Berlin Police President to Westphalen, 21 January 1857, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 27, Bl. 19.

[80] *Publicist*, 10 June 1856, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 17, Bl. 32.

[81] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 185.

[82] Ibid. 187.

[83] 'Prussia', *The Times,* 12 December 1851, p. 5.

[84] On reporting on politicians at the turn of the century, see Frank Bösch, 'Transfers and Similarities: Journalists, Politicians and Scandals in Imperial Germany and Britain', in Frank Bösch and Dominik Geppert (eds), *Journalists as Political Actors: Transfers and Interactions between Britain and Germany since the late 19th Century* (Augsburg: Wissner, 2008), 16–34; Jean K. Chalaby, *The Invention of Journalism* (Basingstoke: Macmillan, 1998), 109–11.

Figure 6.1. 'The Reaction at the Liberty Tree', *Kladderadatsch*, 19 January 1850, p. 12. (*Universitätsbibliothek Heidelberg, Kladderadatsch, S. 12—CC-BY-SA 3.0)*

Moreover, images of ministers—both flattering and unflattering—increasingly circulated alongside these stories. The images in the *Kladderadatsch* were a case in point. First published in Berlin on 7 May 1848, this satirical magazine produced extremely hostile images of Manteuffel and the Ministry of State.[85] In 1849, it published caricatures of Manteuffel's supposed obsession with political plots (*Der Gespensterseher*) and his perceived close association with the ultraconservatives. In 1850, images continued to abound of Manteuffel interfering with press laws, capitalizing on article 105 of the constitution, being a central member of the 'reaction', and having a sinister control over the chambers (Figure 6.1). These images came to an end with the Press Law of 1851, and only in 1854 and 1858 did the *Kladderadatsch* depict Manteuffel again.[86] This being said, what did increase after 1851 were the government-produced images of ministers. For example, both Manteuffel and Westphalen had portraits made in 1851 in order to increase their popularity.[87] They were, in other words, forced by the press to make themselves recognizable to the voting public.

THE POPULAR PRESS AND CONTINUED POLITICIZATION

Articles in the political press helped to keep debates about constitutional reform, civil liberties, and to a lesser extent national unification active. Yet it was not only here that political sentiment remained buoyant and critical. As James Brophy and Chase Richards have recently argued, middlebrow printed material predominantly, but not exclusively, read by the *Kleinbürgertum* also channelled political impulses into new spaces.[88] Specifically, former democrats and liberals began to edit popular family papers—such as the *Gartenlaube* (1853–1944), *Illustrirte Welt* (1853–1902), and *Über Land und Meer* (1858–88)—in an attempt to shift from open political confrontation with their local authorities and the German Confederation to the political education of German families.[89] Such editors wrote and shaped these papers to be read by the fireside, in the hope that the political nation would come to maturity through reading in a way it had failed to do in 1848. Of course, most of these papers were published outside Prussia, particularly in

[85] On the *Kladderadatsch*, see Michaele Siebe, *Von der Revolution zum nationalen Feindbild: Frankreich und Deutschland in der politischen Karikatur des 19. Jahrhunderts: 'Kladderadatsch' und 'Charivari'* (Münster: Lit, 1995); Ingrid Heinrich-Jost (ed.), *Kladderadatsch: Die Geschichte eines Berliner Witzblattes von 1848 bis ins Dritte Reich* (Cologne: Leske, 1982) .

[86] On the censorship of images, see Ursula E. Koch and Martin Loiperdinger, 'Political Images and Censorship in Germany before 1914', in Robert Justin Goldstein and Andrew M. Nedd (eds), *Political Censorship of the Visual Arts in Nineteenth-Century Europe*, edited by (Basingstoke: Palgrave Macmillan, 2015), 130–90.

[87] Eva Giloi, *Monarchy, Myth, and Material Culture in Germany, 1750–1950* (Cambridge: Cambridge University Press, 2011), 136.

[88] James M. Brophy, *Popular Culture and the Public Sphere in the Rhineland, 1800–1850* (Cambridge: Cambridge University Press, 2007); Chase Richards, 'Pages of Progress: German Liberalism and the Popular Press after 1848' (Ph.D. dissertation, University of Pennsylvania, 2013).

[89] Richards, 'Pages of Progress', 137–8.

Leipzig, but their phenomenal circulation meant that the Prussian markets were flooded with family papers. As Richards writes:

> While sustained print runs for the major German newspapers dropped after 1848 and generally remained confined to the 5000–15,000 range, by 1860 the *Gartenlaube* had bested the old 100,000 circulation record of the *Pfennig-Magazin*, en route to 230,000 copies by 1867 and a zenith of 382,000 in 1875.[90]

The family papers were crucial to keeping nationalism alive after 1848, but there were other papers that did more to keep questions of civil liberties buoyant too. In particular, the judicial paper often slipped into popular, political news as it mushroomed across the German states in the 1850s. Such papers included the *Allgemeine Deutsche Gerichtszeitung*, which first appeared in Leipzig and Vienna in 1849, but it did not outlast the revolutionary year. Also in Vienna, the *Allgemeine Österreichische Gerichtszeitung* was established in 1850 and continued to circulate until 1918. In Saxony, the *Allgemeine Gerichtszeitung für das Königreich Sachsen* was established in 1857, and in Prussia two papers spearheaded reporting on the courts, the *Berliner Gerichts-Zeitung* and the *Publicist.*[91] The *Publicist* was the older of the two papers founded in 1845. It remained in circulation until 1859. The *Berliner Gerichts-Zeitung* appeared slightly later, in October 1853. It was a daily paper, sold twice weekly in 1853 and three times a week from January 1854.

The articles of the *Berliner Gerichts-Zeitung* and the *Publicist* immediately caught the attention of the Press Office, as they considered themselves to be part of a wider sphere of political newspapers with an important role to play in ensuring the development of the state of law in Germany. As the *Allgemeine Deutsche Gerichtszeitung* wrote in its first edition, it considered itself to be a watchdog, making sure that the realities of the German police states (*Polizeistaaten*) did not erode the budding foundations of a single, German state of law. It focused on explaining courts and court procedure, reforms to court structures, precedential court cases from Germany and abroad, as well as current judicial literature.[92] The *Berliner Gerichts-Zeitung* likewise conceived of itself as a political paper. It regularly included columns on the Prussian *Obertribunal*, *Kammergericht*, *Kreisgerichte*, *Schwurgerichte*, and the activities of the Berlin police (*Polizei-Chronik*). It also reported on the state of law across Europe.[93] In a slightly different vein, the *Publicist* was an example of this style of journalism, which reached into middlebrow circulation. It was committed

[90] Ibid. 58.

[91] The original title of the *Publicist* from 1845 until March 1847 was *Der Publicist: Eine Zeitschrift zur Besprechung criminalistischer und administrativer Gegenstände, gesellschaftlicher und bürgerlicher Verhältnisse.* From March 1847 until April 1848 it was entitled *Der Publicist: Eine Zeitschrift zur Besprechung gerichtlicher und polizeilicher Gegenstände, gesellschaftlicher und bürgerlicher Verhältnisse in Bezug auf jene Gegenstände.* From 1848 to 1859 it was known as *Der Publicist: Eine Zeitung für Freiheit und Gesetz, für öffentliches Recht und Gerichtsverfahren.* See W. Buchge, *Der Springer Verlag: Katalog seiner Zeitschriften, 1843–1992* (Berlin: Springer-Verlag, 1994), 102.

[92] Schmidt and Wolff, 'Einleitung: Plan der Zeitschrift', *Allgemeine Deutsche Gerichtszeitung: Zeitschrift für die nothwendigen Umgestaltungen des gesammten deutschen Gerichtswesens, Mündlichkeit, Oeffentlichkeit, Ausbildung des Geschwornengerichts und Mittheilung belehrender und unterhaltender Rechtsfälle aus dem In- und Auslande*, 1 (1849), 3–16.

[93] 'Prospect', *Berliner Gerichts-Zeitung*, 1 October 1853, p. 1.

to reporting on the judicial system but with more of a popular bent than the *Allgemeine Deutsche Gerichtzeitung* or the *Berliner Gerichts-Zeitung.*

Reporting on police and judicial affairs was clearly controversial for the Prussian police, who regularly and egregiously eroded the development of the *Rechtsstaat* in Prussia. For example, Hinckeldey sought to confiscate successive editions of the *Publicist* when it exposed the wide use of spies by the police. On 15 March 1853, the *Publicist* published an article entitled 'Revelations of a Police Spy' ('Enthüllungen eines Polizeispions'), which outlined the life of the spy Wilhelm Hirsch.[94] Born in Hamburg, Hirsch had worked as a spy for the Prussian police in London and had played a role in gathering information for the Cologne Communist Trial. Although the *Publicist* grudgingly agreed that spies were a necessary evil, it shone light on the lack of discernment shown by the police when dealing with them. Hirsch had won his job in London without any qualifications, and on repeated occasions he had fed the Prussian Lieutenant Greif falsified information as to the whereabouts of Prussian exiles in London. As Hirsch wrote, 'it was easy to dupe officials'. Hinckeldey immediately confiscated the said edition of the *Publicist* for its portrayal of the police and its defamation of a civil servant. But neither the public prosecution at the municipal court nor the *Kammergericht* believed that Hinckeldey had a sound case against the paper.[95] The Ministry of State agreed, and on this occasion Hinckeldey was forced to drop the issue.[96] But this did not stop him from seeking to confiscate issue number 40 of the *Publicist* when it again broached the theme of spies.[97]

The problems raised by the *Publicist* and other broadsheets could be even greater in their reach. These papers indicated that the Prussian administration was spying on not only political enemies such as democrats but also on conservatives. The press coverage of the 'Potsdam dispatch-theft' was a case in point. In October 1855, it became apparent that private papers belonging to Leopold von Gerlach and Marcus Niebuhr were being secretly transcribed and their contents passed on to third parties. Shortly thereafter two servants were arrested and charged with selling copies of their masters' correspondence. Further investigations ensued, and on 30 January 1856 the former army lieutenant Carl Techen was also arrested. Techen's arrest and confession elevated the affair to an outright political scandal. 'For a long time,' he wrote, 'I have been employed as a secret agent of the Minister-President, Baron von Manteuffel. I had to deliver reports to him on the situation in Potsdam, and for that I received indefinite payment.' Manteuffel, it appeared, was using spies to keep abreast of the meetings and movements of the Prussian ultraconservatives.[98] If the fact that the Minister-President was using spies was not

[94] 'Enthüllungen eines Polizeispions', *Publicist*, 15 May 1853, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 17, Bl. 8.

[95] Hinckeldey to Westphalen, 19 July 1853, in ibid., Bl. 6–7, at Bl. 6. See also Staatsanwalt Noerner to Hinckeldey, 23 May 1853, and Oberstaatsanwalt bei dem königlichen Kammergericht zu Berlin to Hinckeldey, 12 July 1853, in ibid., Bl. 10–11.

[96] Minister des Innern (Im Auftrag) to Hinckeldey, 6 August 1853, in ibid., Bl. 12.

[97] Polizei-Präsident (Im Auftrag) to Westphalen, 20 August 1853, in ibid., Bl. 13–14.

[98] Barclay, *Frederick William IV*, 252–3.

bad enough, the materials being copied indicated that this was just the tip of the iceberg. Within Gerlach's correspondence there was a letter from Emil Lindenberg, the editor of the *Patriotische Zeitung*, to Gerlach in which Lindenberg relayed details on the Prince of Prussia as he toured Westphalia.[99] There seemed to be no limit to the use of underhand political practices at the apex of the Prussian state, and, when this information was disclosed, the Prince of Prussia took the only action he could and instituted libel proceedings against Lindenberg. The case dragged on for most of 1856.[100]

Not only did the Press Office view papers such as the *Publicist* and the *Gerichts-Zeitung* as being troublesome because of their intrusion into judicial and police affairs; it also noted their penchant for covering morally questionable aspects of city life. The best example of how criminal journalism created unease in this way was through its reporting on Berlin's brothels. In the *Publicist*'s coverage of the newest regulations regarding brothels it presented what some contemporaries considered to be titillating snapshots into the spaces and lives of prostitutes. For example, the paper released in July 1856 a series of articles designed to illuminate the changing trade regulations governing brothels.[101] The first article of 4 July presented an overview of the exchange of money in a brothel via a virtual tour. The article began by geographically mapping Berlin's sex trade in the city and tracing its historical consolidation in the Königsmauerstraße. In the Königsmauerstraße the journalist analysed the lighting and music used by the establishments. He then followed every transaction a customer encountered after passing over the threshold of the brothel and through its various rooms. Once the tour moved into the bedroom of the prostitute, the discussion switched to the various overhead costs borne by the prostitute: clothing; hairdressing; washing of underwear; and bed linen. As prostitutes rarely had the capital to pay for such expenses, the article explained, they quickly became indebted to their brothel owner. It was nothing short of a truck system.

The tone and visual imagery of the article caused problems for the authorities. In particular the problem was that it gave 'a highly alarming nourishment for a large reading public, especially for the youth, who should not be given such a view into the mysteries of those secret happenings through public organs'.[102] On other occasions Westphalen too lamented that the writers for this paper often used a 'frivolous tone' and sought only to satisfy 'interest in scandal'.[103] Even the *Vossische Zeitung*, which stood in no official relationship to the government, wrote against the filth coming out of the *Publicist* and the *Gerichts-Zeitung*. Nevertheless, the *Publicist* continued to publish 'scandalous' articles and in doing so repeatedly drew

[99] *Gerichts-Zeitung,* 30 September 1856, p. 2, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 17, Bl. 94–5.

[100] Barclay, *Frederick William IV*, 254.

[101] 'Auch eine Berliner Ultimoregulierung', *Publicist*, 4 July 1856, unpaginated, and 'Auch eine Berliner Ultimoregulierung (Schluß)', *Publicist,* 8 July 1856, unpaginated, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 17, Bl. 44, 51.

[102] See Hahn to Westphalen, 5 July 1856, in ibid., Bl. 42.

[103] Westphalen, undated, in ibid., Bl. 59–60.

attention to itself in the Press Office. On 8 July 1856, for example, the paper included an article entitled 'The Moral Condition of Berlin', which sought to show that, in contrast to the brutal crimes that pervaded most of the eastern provinces of Prussia, it was 'hidden sin' that was crippling Berlin.[104] 'Hidden sin' like prostitution was, the paper claimed, the result of the massive changes to the city since the 1830s. It arose primarily from 'the contemporary luxury of life and the stylish craving for pleasure' characteristic of European capitals.[105] The reality presented by the paper was overstated and far from sophisticated, but it nonetheless caught the attention of the authorities for being potentially dangerous writing.

The Ministry of State had to be careful though with libel and criminal cases against such newspapers. In 1856, Westphalen was particularly outraged by the sensationalist reporting of the *Publicist* and the *Gerichts-Zeitung* and wanted to see these papers censured by the courts on criminal grounds.[106] Manteuffel supported him in this. As he wrote to Westphalen, he too saw this style of journalism as being a serious danger to order:

> In general, there is an increasing tendency in the local press and particularly in the so-called court newspapers—in the *Berliner Gerichts-Zeitung* and the *Publicist*—to exploit criminal-judicial events in a way that aims to calumniate the personality of the accused or those convicted . . . rather than illuminating the crimes committed in the right light. In the apparent absence of any sufficient scientific and moral education on the part of the writers of those papers, criminal cases are discussed in an almost frivolous or glorifying tone. Your Excellence will agree with me that such a treatment of social relations is capable more and more of having a very disadvantageous influence on the morality of the capital's population, particularly when one considers that the papers named above are widely spread in the middle and lower strata of the local population and currently read both for their cheapness as well as for the attraction which criminal cases hold for the morally less-educated public.[107]

Manteuffel did not underestimate the size of the task of curbing such journalism, but he suggested that §87 of the Criminal Code regarding opposition against the government would not help the Interior Minister in his pursuit of the *Publicist* and the *Gerichts-Zeitung*. Technically, these papers had not undermined state authority. Rather, Manteuffel suggested that §48 of the Prussian Press Law of 1851 would be more useful, which stated that the names of jurors could appear in newspapers only with the announcement of the formation of the *Schwurgericht.* Penalties from one week to a year's imprisonment also accompanied reports detailing charges or any other written component of a criminal process before the jury had entered into deliberations or the trial had been resolved by another means. Manteuffel's advice was telling. The courts would not uphold charges against criminal journalism on the basis of opposition to the state. Offending papers could, however, be caught

[104] 'Die Sittlichen Zustände Berlins', *Publicist*, 8 July 1856, in ibid., Bl. 51.
[105] Ibid.
[106] Westphalen, 16 July 1856, in GStA PK, I. HA Rep. 77 Ministerium des Innern, Tit. 54a Nr. 17, Bl. 61–2.
[107] Manteuffel to Westphalen, 1 July 1856, in ibid., Bl. 64–5, at Bl. 64.

out on their eagerness to release trial information. Searching for technicalities was the government's only option. But, whatever means Westphalen adopted against the papers, Manteuffel concluded that protecting morality through legal measures would always be difficult and limited.

Although distinctly different from the family papers in their form of instruction and absent moral tone, the court papers were yet another important genre in which editors sought to keep alive liberal-democratic political sentiment. They were significant for reflecting on the development of the *Rechtsstaat* and enabled their readers to begin to form opinions on the need to protect civil liberties from police infringement. Naturally, judicial papers rarely contributed to the promotion of national identities, but here the family papers amply filled such a void after the revolution.

With the many difficulties that press management elicited and the continued politicization that editors were able to achieve, the best course of action to secure support for the state was often to disseminate government materials with a positive spin. In Prussia, this was primarily achieved with the publication of the *Mittheilungen des statistischen Bureau's in Berlin* by the Interior Ministry's Central Statistical Office. The *Mittheilungen* were a twice-monthly publication, printed on the 15th and 30th of each month, and initially cost ½ Taler for a quarterly subscription in 1848.[108]

In the first instance, the *Mittheilungen* was intended to be an effective means for dealing with the volume of written and verbal enquiries made to the Central Statistical Office. To do so, it covered a wide range of staple topics, from average market prices for basic foodstuffs like bread, to consumption, infant mortality, immigration, and emigration. Some topics appeared only occasionally, such as statistics on epidemics, which in 1858 included a comparison of the yellow fever outbreak in Lisbon in 1857 and the cholera epidemic in Berlin in 1849. But the Director of the Central Statistical Office, Carl Friedrich Wilhelm Dieterici, also believed that the *Mittheilungen* had a political role to play. As he wrote in the 'Anzeiger' to the *Mittheilungen* in 1848:

> There has been a general awakening of interest in public affairs in our esteemed Fatherland. Everybody wants to inform themselves about existing relationships. They form opinions, as to how this or that institution meets the general welfare, [and whether] to seize this or that measure.[109]

In other words, the *Mittheilungen* acknowledged the politicization of public opinion and sought to guide it by providing the statistical measures now required to judge the success of state-building. Hence, 700 copies of the *Mittheilungen* were passed at no cost to Prussian administrative offices, and copies were made available

[108] 'Anzeiger', *Mittheilungen*, 1 (1849), unpaginated.

[109] Ibid. Dieterici also frequently mentioned the increased public desire for statistics in his correspondence with Manteuffel and then Westphalen over *Dispositionsfonds*. See, e.g., GStAPK, I. HA, Rep. 77 Ministerium des Innern, Tit. 536 Nr. 13 Bd. 1, Bl. 70.

to the public in Berlin bookstores.[110] This, Manteuffel believed, would bring the publication of statistics in Prussia into line with other nations such as England, France, and Belgium, which already published detailed or at the very least regular statistical summaries for use in the political arena.[111]

Other attempts were also made from within the Interior Ministry to disseminated government-generated statistics and various forms of information. For example, as Manteuffel recalled on 17 January 1853, Hinckeldey was able to achieve influence over Dr Bernhard Wolff's Telegraphic Correspondence Bureau in Berlin in March 1850, without a formal agreement. Wolff—a physician-cum-journalist with national–liberal sentiments—did not want the bureau to become an instrument of the state, but he promised to give up any oppositional stance on the condition that the government fed him facts from the Interior Ministry. This the Interior Ministry did until the end of 1851. From 1852 on the relationship became less formal, but one in which the office requested confirmation as to the viability of sources and to which the Interior Ministry often obliged. Turning Wolff's bureau away from its oppositional stance was a significant victory for Manteuffel and Hinckeldey, as over forty other papers got their announcements from it.[112]

Like the Interior Ministry, most ministries began to pass on statistics to papers and notable societies in order to complement government-friendly opinion with a wider circulation of government-friendly data. The Ministry of Justice passed their justice and criminal statistics on to officials who occupied leading positions in the legal world such as Theodor Goltdammer. Goltdammer published the ministry's numbers in his *Archiv für Preußisches Strafrecht*, and the celebrated university professor Karl Mittermaier also received copies of Prussia's justice statistics for publication in the *Gerichtssaal*, *Archiv des Criminalrechts*, and *Beiträge zur Criminalstatistik*. Other papers copied, reprinted, or commented on these statistics, often thereby increasing support for government policies. For example, on 14 March 1856 the *Kölnische Zeitung* deferred to the state's most recent statistical overviews of jury courts to criticize a new book entitled *Are Jury Courts Necessary?* (*Sind Schwurgerichte nothwendig?*). According to the paper, the statistics produced by the Justice Ministry provided 'an especially good testimony' for the necessity of trials before juries. By mere reference to the government statistics, the paper boosted its argument for the retention of jury courts and lent support to the idea that the state was practising moderation in the area of trial procedure.[113] In the Trade Ministry, bureaucrats

[110] Karl Friedrich Wilhelm Dieterici, 'Ueber den Begriff der Statistik, deren Bedeutung für die Wissenschaft und für die praktische Anwendung auf das Leben, mit besonderer Beziehung auf die für den Preußischen Staat erscheinenden größeren Tabellen und amtlichen Nachrichten und diese Mittheilungen', *Mittheilungen des statistischen Bureau's in Berlin*, 4 (1851), 113–28, at 124.

[111] Manteuffel and Rabe to Friedrich Wilhelm IV, 9 November 1849, in GStAPK, I. HA Rep. 89 Geheimes Zivilkabinett, Nr. 16796, Bl. 1–2, at Bl. 1.

[112] Manteuffel to Friedrich Wilhelm IV, 17 January 1853, in GStA PK, VI. HA, Nl Marcus von Niebuhr, Tit. 3 Bd. 3, Bl. 120–3. On Wolff, see Alex Nalbach, '"Poisoned at the Source"? Telegraphic News Services and Big Business in the Nineteenth Century', *Business History Review*, 77 (2003), 577–610, at 581.

[113] *Kölnische Zeitung*, 14 March 1856, in GStA PK I. HA Rep. 77 Ministerium des Innern, Tit. 343a Nr. 110, Bl. 49.

disseminated statistics through the *Handelsarchiv*, and here too a modicum of positive press resulted. And, like the Ministry of Justice and the Trade Ministry, the Berlin police passed their urban statistics to Otto Hübner for publication in his *Jahrbuch für Volkswirthschaft und Statistik* as well as to the *Centralverein für das Wohl der arbeitenden Klassen*. In particular, the building inspector Emmich, who was also a member of the *Centralverein,* facilitated the distribution of statistics on the state of housing in Berlin.[114]

Yet the distribution of statistics could also cause the government serious problems, as numbers often became detached from the ideas behind them or were reinterpreted to highlight the failure of the state to meet the needs of society. For example, in 1856 the *Publicist* printed the Ministry of Justice's statistics on the death penalty in such a way as to blur the distinction between the sensationalist views it promoted and official opinions supported by state-generated statistics. As a result, the editor and publisher of the *Publicist* were 'invited' to the Police Presidium in Berlin to discuss the position (*Haltung*) of their paper.[115] But this seemed to have little effect, and newspapers continued to reprint and reinterpret government-produced statistics with relative freedom.

This increasing habit of ministries pairing government-friendly opinion with an increased circulation of information also appeared on an individual, ministerial level. Over the period 1850–3, Manteuffel, via Rhyno Quehl, regularly fed memoranda and minutes of the Ministry of State to newspapers in Berlin in order to isolate his political enemies, with Radowitz, Westphalen, and Raumer bearing the brunt of this activity. As Ludwig von Gerlach wrote to Bismarck in February 1853: 'At every opportunity, Manteuffel is already moved via Quehl to a very nasty, secret, and passive opposition against Westphalen and his measures.'[116] Westphalen was outraged at this defamation in the press. So too was Radowitz. He cited abuse by Manteuffel in the press as one of the major reasons for Prussia abandoning the Union project and for his own personal exit from politics. To be certain, the charge was not without foundation, since Manteuffel had conveyed his doubts about Radowitz's plans to a number of writers, including Ludwig Hahn, an employee of the *Schlesische Zeitung*.[117]

Manteuffel rightly gained a reputation for turning the best of his contemporaries against one another, but he was not the only minister feeding information to the press for personal political gain.[118] The same could be said for other ministers. Ladenberg, Heydt, and Simons all leaned on the Press Office to outmanoeuvre political opponents, albeit on a smaller scale than Manteuffel. And, outside the ministry, Hinckeldey too exploited the press to cement his close relationship to

[114] See, e.g., 'Ueber die Kellerwohnungen in Berlin, die nachtheiligen Einflüsse derselben auf die Gesundheit der Bewohner und Vorschläge zu deren Abhülfe', *Mittheilungen des Centralvereins für das Wohl der arbeitenden Klassen*, 2 (1856), 218–48.

[115] Züdig to Westphalen, 9 July 1856, in LAB Pr.Br.Rep. 030 Nr. 597, Bl. 54.

[116] Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 281.

[117] Ibid. i. 232.

[118] Günther Grünthal, 'Im Schatten Bismarcks—Der preußische Ministerpräsident Otto Freiherr von Manteuffel (1805-1882)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 111–33, at 112.

Friedrich Wilhelm IV. To be sure, Friedrich Wilhelm IV claimed on 7 July 1853 at the meeting of the Privy Council that the manipulation of official newspapers by ministers for personal–political gain was fuelling the widely held conviction that there was 'discord in the Ministry of State'.

Broader conservative networks also appeared to adapt to this style of politics relatively quickly, mixing opinion with increased information. The future William I aligned himself with the *Preussisches Wochenblatt*, which was confiscated on sixteen occasions for printing, according to the police, 'principles and views . . . which seemed not to be suitable for general dissemination and recognition, which may indeed increase the tendency amongst those who are still undecided to oppose the decrees of the authorities'.[119] And the ultraconservatives used their close association with the *Kreuzzeitung* to amplify their influence on politics. Of course, while such conservative networks were adjusting to the advantages of sharing information with newspapers, a young Bismarck was busy in Frankfurt running the Prussian press station and developing an appreciation for the power of the press for personal gain.[120] As the Prussian envoy to the German Confederation, Bismarck saw first-hand the important connection between foreign policy and the press for Prussia, especially in terms of the state's rivalry with Austria. He became acquainted with the liberal press of the Third Germany, which throughout the 1850s continued to debate *grossdeutsch* and *kleindeutsch* solutions to the national question. And it was in this context that he came to see the importance of the individual journalists to his own diplomacy abroad and political position at home.[121]

CONCLUSION

After the revolutions, German governments increasingly shifted towards strategies of management when dealing with the press. Austria and Prussia immediately formed press offices, with the latter producing an impressive array of daily and statistical reports on the state of the press throughout the decade. Both states also attempted to cultivate newspapers and subventions for government-friendly broadsheets, but neither was able to use these two methods as successfully as was seen in the Third Germany. The poor performance of official and semi-official newspapers in Prussia was not merely due to the regular problems of being associated with government agendas or poor journalism; the continued politicization of the political and popular press after 1848 also contributed to this state of affairs. As the daily reports showed, contested ideas about civil liberties retained a presence in the news and captured reader interest, even if carefully crafted in reports on foreign affairs or expressed through the incendiary journalism of newspapers interested in questions of the courts, police, and criminal activity. And the same point

[119] Hewitson, *Nationalism in Germany*, 178.
[120] Piereth, 'Propaganda im 19. Jahrhundert', 34.
[121] On Bismarck, see Irene Fischer-Frauendienst, *Bismarcks Pressepolitik* (Münster: C. J. Fahle, 1963).

has been made with respect to the family papers, which kept national questions alive throughout the 1850s.

Yet the efforts of the Brandenburg–Manteuffel and Manteuffel Ministries of State to manage the press were not entirely without effect. One of the important developments in post-revolutionary press relations was the beginnings of a concerted effort to disseminate government-friendly data. Reports, statistics, and confirmations of news increasingly flowed from the Ministry of State to individual editors. This included ministers passing on the minutes and memoranda of meetings to editors in the interest of securing personal political victories against other ministers, or their political opponents outside the Ministry of State. Most of the ministries likewise increased their dissemination of government-friendly data in the 1850s. This included the Interior Ministry, Justice Ministry, the Finance Ministry, the Trade Ministry, and Berlin Police Presidium. Here statistics became an important instrument in helping to underscore government action in bringing about a return to order and promoting growth.

Both the management of the press and the sharing of government-friendly data continued at different rates after 1858. In the New Era, the Prussian Press Office remained a part of the apparatus of state, but the number of personnel and the budget were significantly reduced. And, when Bismarck became Minister-President, he further diminished the role of the office, moving it back into the Interior Ministry and encouraging it to assume a more repressive goal.[122] In a similar vein, Bismarck would attempt to curb oppositional papers through a press ordinance in 1863 and through the ill-defined provisions in the Imperial Press Law of 1874. But the same trend was not seen with the dissemination of government-friendly data. Magazines such as the *Mittheilungen* would be replaced in the 1860s and 1870s better to reflect the new institutions they became attached to and a wider German audience after unification. Bismarck also relied on personal relationships with journalists, sharing information and generating spin. Certainly, this line of action would only increase after 1871, as the press rapidly expanded to become a mass media.

[122] Piereth, 'Propaganda im 19. Jahrhundert', 37–41.

Conclusion

In the autumn of 1857, the Manteuffel Ministry of State entered into its final term in office. Friedrich Wilhelm IV's health had taken a serious turn for the worse with what appeared to be a stroke, and for several days those closest to him feared that death was imminent. By 23 October, however, the king had recovered, although not enough to return to his former duties. He therefore initiated a series of rolling agreements with his brother, granting the latter something like a regency but, notably, without the power to sack his Ministry of State. For almost a year this arrangement remained in place before the ailing monarch finally signed a cabinet order on 7 October 1858, empowering the future Wilhelm I to replace him as Prince-Regent of Prussia. Wilhelm I now had the opportunity to re-evaluate Prussia's political standing, and, if he so desired, to restructure the Ministry of State.

Throughout October 1858, Wilhelm I considered his options. He intended to shift the Ministry of State closer to the centre of the political spectrum, but to his mind this did not necessarily mean a change of minister-president. He also decided to retain the demonstratively more realist ministers in the Manteuffel Ministry of State. Simons would continue on as Minister of Justice until 14 December 1860 and Heydt as Trade Minister until 18 May 1862. On the other hand, he ordered Manteuffel immediately to dismiss Westphalen, the minister most aligned with the ultraconservatives. Manteuffel was reluctant—as he told Bismarck on 12 October 1858—but had no other option. He also had no say over Westphalen's replacement—Eduard Heinrich von Flottwell (1786–1865).[1] By late October, Wilhelm I had started to seek out more liberal ministers to substitute into the ministry, and in early November he relieved Raumer, Bodelschwingh, Waldersee, and Manteuffel Junior of their responsibilities. Wilhelm I hoped his new ministers would work under Manteuffel, but he found it difficult to convince candidates to join such a ministry. As Leopold von Gerlach put it, Manteuffel was simply 'not liberal enough' for such an eventuality.[2] Indeed, Manteuffel had made too many enemies across the political spectrum to survive the transition, and so, on 6 November 1858, he too was officially retired.

Manteuffel resolved to make an honourable exit, assuring Wilhelm I that any offence caused by the dismissal had quickly passed. He thanked the Prince-Regent

[1] Manteuffel to Bismarck, 12 October 1858, in Heinrich von Poschinger (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel,* 3 vols (Berlin: E. S. Mittler und Sohn, 1901), iii. 329–30, at 330.

[2] Gerlach to Friedrich Wilhelm IV, 26 May 1859, in ibid. 352.

for the many honours he was promised, including an elevation in his rank to the position of count and membership of the House of Lords. Sure enough, he artfully rejected them to emphasize the purity of his political motives, writing that, 'as I assumed the office of a minister ten years ago, I did so out of love for my king and fatherland, out of innate loyalty, and without the expectation of recognition or reward'.[3] Nevertheless, Wilhelm I thanked Manteuffel and Brandenburg for their work in saving Prussia from the instability of revolution in a decree of 6 November 1858, and awarded Manteuffel the Insignia of the Order of the Black Eagle—an honour that trumped all that Manteuffel had professed to turn down.

After almost ten years in high office then, Manteuffel's career came full circle, and, with it, the ministries of the post-revolutionary period came to an end. 'I leave my office and this city,' he wrote in November 1858, 'to which I was called in the year 1844 to join the service of your Royal Majesty. I do so without animosity or resentment, rather with the best wishes for your Royal Majesty's government, and for our dear fatherland.'[4] Manteuffel was still a member of the House of Deputies, and at the end of 1858 he was re-elected once again for the 1859/60 session as the representative of Görlitzer *Kreis* in Berlin. He accepted the mandate, but soon withdrew from politics, entering the chamber on only one occasion before announcing his resignation on 1 January 1861. In doing so, Manteuffel became known as the 'silent statesman', especially as he refused to address the commentary directed at him after his dismissal.[5] In 1866, he returned to Berlin to take up his seat in the House of Lords, but once again his absence in the chamber was more noticeable than his presence. Rather, Manteuffel chose to spend his days away from the capital on his estate near Luckau, dabbling in the classics, as well as provincial and church politics. On occasion, he corresponded with his former colleagues, but, in general, he stayed out of Prussian political affairs.

With the Manteuffel Ministry of State now removed from office, Wilhelm I appointed the moderate-liberal Prince Karl von Hohenzollern-Sigmaringen as Minister-President and then recruited the remaining ministry members from the *Wochenblattpartei*, including Moritz Bethmann-Hollweg as his new *Kultusminister*. But in doing so, Wilhelm I did not want to hear of 'a break with the past'. As Heydt wrote to Manteuffel on 12 November 1858:

> Incidentally the Prince stressed at the first meeting of the Ministry of State once again and with particular emphasis that he did not want a break with the past, that he wanted a conservative government, and that he would decisively oppose the emerging tendency towards drastic changes.[6]

Nevertheless, the Ministry of State was positioned to shift to an even more moderate position in the Berlin political landscape and, in doing so, elicited widespread support. The new ministry quickly gained approval in public opinion, and newspapers celebrated Wilhelm I's oath to the constitution on 26 October 1858. Elections that November saw many of the conservatives who had been active

[3] Manteuffel to Wilhelm I, 5 November 1858, in ibid. 335–7, at 336.
[4] Ibid. [5] Ibid. 354–5, 360. [6] Ibid. 342, 346.

during the 'Reaction' forced out of office, suggesting, it seemed, that Prussia had entered a 'new era' in its political life.[7]

The post-revolutionary period had been formative for the development of the Prussian state—a second Reform Era. Brandenburg was appointed to restore monarchy, and this he did with tenacity, but not in the way expected by the king or the court *camarilla*. Manteuffel too confounded expectations. Throughout their terms in office, these ministers eschewed ideological agendas in preference for realist settlements that would strengthen and extend the reach of the state into new spheres of activity.

Foundational to the politics of the Brandenburg–Manteuffel Ministry of State was its embrace of constitutionalism. Despite the declaration of Friedrich Wilhelm III at Paris on 22 May 1815 that Prussia would receive a constitution and representative institutions, Prussia emerged out of the Reform Era with neither. The provincial diets were modernized, but this was little consolation for Prussian liberals, who became increasingly disgruntled in the years leading up to 1848.[8] In 1830, moreover, the lack of revolutionary activity in Prussia meant that the state was cut off from a second wave of constitutional reform seen across the German states. Friedrich Wilhelm IV recognized the unsustainability of Prussia's situation when he promised to constitutionalize the state in March 1848, as did many conservatives, including the *camarilla*. But it was Brandenburg who took up the task of making the promulgation of a constitution a reality. He believed that Prussia could enter the constitutional age on the condition that the monarchy was able to make use of state officials in the new environment. As he put it: 'a good administration is the basic underpinning of the Prussian monarchy ... It may be necessary to use it in certain instances to suppress the constitution, but it should never be employed to restore the corporate system.'[9] Manteuffel agreed. He argued that a strong government that knew what it wanted could certainly rule with a constitution. Its strength, however, would depend on whether and how it could rely on the bureaucracy.[10]

Much of the work undertaken by Manteuffel in the drafting and revising of the constitution transferred Friedrich Wilhelm IV's political pre-eminence into law, including his control of the executive, bureaucracy, military, and foreign policy, as well as being able to issue emergency decrees. But this was no simple repackaging of absolute power as the constitution allowed for a separation of powers, which fundamentally reshaped political life. In the legislature, the king's ministers were known to counsel restraint when it appeared that royal plans would not find a majority. Here, too, Friedrich Wilhelm IV was bound on the question of budgets. The creation of an independent judiciary and the introduction of measures to curb

[7] David E. Barclay, *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995), 280–1.

[8] Thomas Stamm-Kuhlmann, 'Restoration Prussia', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 43–65, at 56–63.

[9] Cited in John R. Gillis, *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971), 128.

[10] 'Circular', 7 April 1850, in GStA PK, I. HA Rep. 90A Staatsministerium, Nr. 2322, Bl. 53 ff.

the special legal protections of state officials also meant real limitations on the exercise of monarchic power. Of course, one will remember that Friedrich Wilhelm IV's Ministry of State showed itself willing to transgress constitutional limits in the 1850s. This was best exemplified in the repeal and replacement of the Municipal Ordinance—a point made by those conservatives who broke with the government to form the *Wochenblattpartei*. But the bending of the constitution was, as Brandenburg and Manteuffel made clear, never intended to support a revival of the corporate order that had characterized pre-constitutional Prussia. Even Bismarck did not intend his decision to rule against the chamber majority in constitutional conflict of 1861–6 to undo the new political landscape cemented in 1848 in place of estates-based politics.

The parliamentary institutions established with the arrival of a constitution in the 1850s were designed to be a middle path between absolutism and democratic government. The king called the *Landtag* to session, exercised an absolute veto over any legislation it produced, and had the right to dissolve either of the chambers. But Manteuffel had made sure that the upper middle classes were now given political representation. And, as we know, Bismarck would extend this only with the introduction of universal manhood suffrage for the North German Confederation in 1866/7 and the German Empire in 1871. Experiments with widening suffrage encouraged the development of political parties clubs on both the left and the right in 1848 and beyond.[11] In the 1850s, this process was slow, but factions soon came to occupy an important place in the *Landtag* due to increasing government majorities. In 1851, oppositional factions occupied 170 seats in the Second Chamber in comparison to 114 pro-government seats, but in 1853 pro-government groups stood at 182 seats and oppositional groups at 170, and in 1855 conservative and ministerial groups totalled 218 seats to 131 seats allotted to oppositional or independent groups.[12] These generally increasing majorities manufactured by Manteuffel freed up the Ministry of State from an overreliance on old conservative or old liberal support in passing legislation. This frustrated many deputies and, at times, encouraged cross-party consensus to block ministry initiatives. But, more commonly, it facilitated further faction formation, particularly on the part of the ultraconservatives.

Indeed, it was essential for the ultraconservatives to establish structures characteristic of modern political parties in the 1850s. The pre-eminence of the *Landtag* over older regional bodies controlled by the landed elite meant that aristocratic interests had become less directly aligned with state agendas in the years after 1848. This aided the formation of associations in 1848 and 1849, best exemplified by the *Verein für König und Vaterland*, which looked at elections as an opportunity to engage a popular conservative base.[13] Others too, especially provincial officials,

[11] Dieter Langewiesche, 'Die Anfänge der deutschen Parteien. Partei, Fraktion und Verein in der Revolution von 1848/49', *Geschichte und Gesellschaft*, 4 (1978), 324–61.

[12] Mark Hewitson, *Nationalism in Germany, 1848–1866: Revolutionary Nation* (Basingstoke: Palgrave Macmillan, 2010), 166–7.

[13] Wolfgang Schwentker, *Konservative Vereine und Revolution in Preussen 1848/49: Die Konstituierung des Konservativismus als Partei* (Düsseldorf: Droste, 1988).

embraced the idea of elections and reflected on the ways in which they could successfully navigate a constitutional system. Most notably, the *Oberpräsident* Rudolph von Auerswald in Königsberg suggested that the state needed to think about equipping provincial administrators with funds to make an impact on public opinion.[14]

In 1855, the development of factions took on a new energy once again, as the ultraconservatives became fed up with the minister-president's expectation that they should align themselves to government initiatives. Better than expected results in the 1855 general election energized Ludwig von Gerlach to plan for the future and to consider developing new initiatives for strengthening the popularity of conservatives.[15] In short, the activities of the Gerlach brothers and others in this period constituted 'a normative "breakthrough"... from an "old conservatism" to a fundamentally new form of conservatism' open to the idea that parties were a legitimate structure for defending their interests against liberalism and radicalism.[16] In fact, it can be argued that Manteuffel's insistence on creating a cleavage between the interests of the state and those of the ultraconservatives offered conditions conducive to long-term democratization in Germany. As Daniel Ziblatt has suggested, conservative party-building appears to be the essential factor in the success of democratization during this century. Sure enough, we know the history of such party-building was fraught with difficulties in Prussia, but this was not because of the post-1848 settlement. Rather, as Ziblatt explains, the failure of democratization had more to do with the problems of confessional divisions that weakened the formation of a strong conservative party in Imperial Germany and left ultraconservatives profoundly frightened by democracy at the turn of the twentieth century.[17]

Beyond encouraging party-building, association formation, and new voting habits, the post-revolutionary settlement provided a platform for the Ministry of State to expedite essential state-building initiatives that had languished between their first attempts at implementation in the Reform Era and 1848. This included the implementation of a new criminal justice system that featured a singular use of state courts. Such an ambitious measure involved the creation of a new supreme court and the introduction of twenty-one courts of appeals to replace the older higher district courts. Furthermore, across the state some eighty-nine jury courts were established by 1857. These courts were seeing 4,377 cases a year by the end of the decade, which involved processing 7,103 accused in regular sessions designed to last between twelve and fifteen days.[18] As part of this reform of court structures, the ministry also oversaw the standardization and professionalization of judicial practice in the 1850s, as well as the introduction of a Criminal Code in 1851.

[14] Auerswald to Manteuffel, 31 January 1849, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, i. 73.

[15] Hans-Christof Kraus (ed.), *Ernst Ludwig von Gerlach: Politisches Denken und Handeln eines preußischen Altkonservativen*, 2 vols (Göttingen: Vandenhoeck & Ruprecht, 1994), ii. 698.

[16] Daniel Ziblatt, *Conservative Parties and the Birth of Democracy in Europe* (Cambridge: Cambridge University Press, 2017), 208.

[17] Ibid. 210–12.

[18] 'Statistik der Preußischen Schwurgerichte für die Jahre 1856 and 1857', *Goltdammer's Archiv für Strafrecht*, 6 (1858), 789–857, at 789–91.

Court procedure, too, underwent significant change in the 1850s. Trials were now conducted verbally before juries, and in most cases they were public affairs. The worth of jury courts would become increasingly debated in the decades that followed, but, even here, the role of judicial professionals in assessing such institutions indicated a shift in state-building practices. Within penal affairs proper, the Ministry of State embraced the recommendations of reformers for the introduction of solitary confinement, although they were criticized for failing to facilitate a vital increase in funding for penitentiaries. Rather, Manteuffel and Westphalen were better placed to act on the recommendations of reformers to equip officials with criminal statistics, and this they did willingly.

In the countryside, there was widespread change as the state expanded its reach into new areas of rural life. Thanks to Manteuffel's work in drafting the Redemption Law and Regulation Law, almost 640,000 peasants freed themselves from manorial obligations between 1850 and 1865. This figure was over double the size of emancipation achieved by the October Edict of 9 October 1807 and later legislation of the Reform Era. Of course, many peasants were forced to head to cities as a result of this process in the 1850s and 1860s, but even here a modicum of state support emerged with new forms of municipal activity designed to benefit public welfare. The network of free trade that traversed the rural landscape also came under new forms of state regulation after 1848. Dispensing with guilds, the Trade Ministry introduced trade councils and trade councilors in the 1850s to oversee commercial affairs. The latter were entrusted with regulating the sitting of examinations and the release of licences to tradesmen, as well as the representation of local interests to the state.

In industry, too, there were important shifts in state-building, as Heydt continued the large-scale spending begun in the revolution to stimulate growth. During the 1850s, state involvement in the construction of railroads grew at an astounding rate, especially considering that it neither owned nor administered a single kilometre of track in 1848. By 1860, it owned 1,494 kilometres of rail or approximately 25 per cent of Prussia's entire network and controlled a further 24 per cent.[19] State intervention in other sectors was less striking, but it did not go unnoticed. In the mining sector, for instance, there was no increase in government ownership, but investments were made in the creation of maps and other materials needed by metallurgical enterprise. Certainly, communications enjoyed a boom with the construction of roads, canals, and bridges in the 1850s. In the case of the telegraph, it now stretched across a total of 5893 kilometres of land, having been virtually non-existent in 1848. State investment here saw an increase of around 17 per cent of lines per year, excluding during the Crimean War, and agreements with other German states meant that the total usable network reached much further.

In cities and towns, the presence of the state also manifested itself in new spaces. For Manteuffel, it was essential that Stein's project of municipal reform be completed, given that 29,722 out of 37,570 communities in Prussia still lacked any

[19] James Brophy, *Capitalism, Politics and Railroads in Prussia, 1830–1870* (Columbus: Ohio State University Press, 1998), 53–8.

form of organization. The implementation of a Municipal Ordinance in 1851 sought to rectify this deficiency, but opposition in the 1850s brought about its repeal and conservative replacement. Nevertheless, the resulting legislation meant that both state interests and local government were strengthened in communities after 1848. In addition, the police assumed a number of activities associated with self-governing communities in the 1850s. In particular, Berlin police received substantial financial backing for such measures totalling nearly four-fifths of all state funding for policing. This, combined with the introduction of the Police Construction Ordinance in 1853, had a transformative effect on the regulation of housing, streets, and urban extensions in the Prussian capital, drawing new attention to the prevention of fire and concern for public health.

Finally, the state extended its role and reach in the news and publishing world after 1848. Led by Manteuffel's efforts as Interior Minister and later as Minister-President, the Prussians introduced a complex system of press management in the 1850s that had its origins in the Napoleonic Wars. This consisted of the consolidation of a press office, which, by 1858, was receiving 35,000 Taler. The officials in this office were responsible for reading 133 papers by the end of the 1850s and recording their ensuing observations in daily reports and quarterly statistical reports. The Press Office in Prussia also published official newspapers and awarded subventions for government-friendly broadsheets, totalling 12,000 a year. As we have seen, official and semi-official papers were unpopular, owing to shortcomings on the part of officials, but also because of the continued politicization of the political and popular press after 1848. Still, the efforts of the Press Office were not wholly disappointing, as ministries increasingly came to complement the work of the press officials by disseminating government-friendly data.

For both Brandenburg and Manteuffel, the bureaucracy was essential to carrying out these reforms and developing new forms of expertise in the 1850s. In particular, this book has made reference across all its chapters to the increasing use of statistics in the work of officials. The spike in statistics in the 1850s was, as Wilhelm Dieterici in the Central Statistical Office noted, because they were one of the few administrative tools that could describe the state and its manifold relations in the kind of detail needed to draft a constitution, assess the current state of trade legislation, and/or create new regulations to protect the worker.[20] Likewise, as Ludwig Simons showed, basic forms of regulation required a much more nuanced analysis of the benefits and disadvantages of current legislation, the likes of which statistics appeared to offer. But it was not simply the quantity of information that officials needed in the 1850s that turned them to statistics. The social protests of 1848–9 impressed upon many conservatives and liberals that the causes of crisis were

[20] Karl Friedrich Wilhelm Dieterici, 'Anzeige', *Mittheilungen des statistischen Bureau's in Berlin*, 1 (1849), unpaginated; Karl Friedrich Wilhelm Dieterici, 'Ueber den Begriff der Statistik, deren Bedeutung für die Wissenschaft und für die praktische Anwendung auf das Leben, mit besonderer Beziehung auf die für den Preußischen Staat erscheinenden größeren Tabellen und amtlichen Nachrichten und diese Mittheilungen', *Mittheilungen des statistischen Bureau's in Berlin*, 4 (1851), 113–28, at 16.

increasingly to be found in society itself. Officials came to acknowledge that the more innovative line of social statistics developed abroad, particularly in France and Britain in the 1820s and 1830s, offered new glimpses into societal tensions and deployed new approaches that somewhat echoed these advances. Hinckeldey's work with urban statistics in Berlin was perhaps the best example of this, but so too was the Justice Ministry's embrace of criminal statistics.

With the expansion of newspapers and the establishment of new government organs, statistics were a compelling, seemingly non-ideological means by which ministries could garner support for new laws, and the Prussian Ministry of State was certainly not alone in encouraging a significant increase in the publication of statistical materials and the dissemination of data to government-friendly magazines. Reform-minded ministers in Prussia relied upon a growing exchange of materials in the 1850s. By March 1851, Prussia was exchanging parliamentary papers with at least fifteen different institutions, most of which were located in German-speaking Europe. Newspapers, too, provided statesmen with essential information from wider European states. Furthermore, a careful examination of Hinckeldey's administrative documents shows that public health reports also increasingly moved through the Foreign Office or directly between municipal administrators. Sanitary assessments, building codes, and engineering solutions to common construction problems were far from limited to the local context. Certainly, the wide range of professional magazines to emerge out of the revolutions was instrumental to facilitating the movement of expertise after the revolution. In other words, ambitious state-building measures often had to rely on the work of lawyers, the business class, doctors, statistics enthusiasts, and newspaper editors for realization. At times expertise was sought out that affirmed state agendas, but, in other circumstances, professionals continued to remain political by demanding negotiated measures, pushing the state to more ambitious and more representative ends.

When viewed as a whole, the scale of state expansion undertaken in Prussia in the 1850s was considerable. And it marked nothing less than a moment of profound transition away from the feudal structures that had persisted after the Reform Era, mediating central bureaucratic activity. At least this was what the ministries of the 1850s saw as their contribution to the post-revolutionary period. As Manteuffel wrote to Leopold von Gerlach in 1852:

> Our peasants are as free as the owner of a manor in relation to their person and the arrangement of their property. Likewise, there are no longer any privileged corporations in our cities or in the sphere of trade. In factories, as in workshops, the relationship of employers to employees has become a purely contractual one. This is the situation of our current legislation and at the same time, the actual state of our society.

In other words, he continued, 'one can protest but not deny that feudalism no longer has any place' in Prussia.[21] As he saw it, Prussian state officials had come to

[21] Manteuffel to Gerlach, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, ii. 240–1, at 240.

engage increasingly directly with citizens in the 1850s, ushering in new forms of legal certainty, economic growth, and social reform.

What, then, were the legacies of this period for the formation of Imperial Germany? In each of the chapters of this book, we have explored the open-ended nature of reform in the 1850s and the willingness of Bismarck to seize on this to inform national codifications at a time when the international situation better suited Prussian pre-eminence in German affairs. Bismarck would often be pressed to negotiate or sought to make tactical compromises with states of the Third Germany, many of which had developed important reforms and even more successful state-building measures to extend the cultural reach of the state in the 1850s. But the point was that Prussia, just like Austria, did not dam up domestic change to reintegrate state and society in the 1850s. And, more importantly, Prussia's ability to avoid war in this decade meant that it was better placed than its great power rival to assert its state-building preferences in German affairs in the decades that followed.

It was the divergence of Austria and Prussia in foreign affairs in the 1850s then that was decisive. After 1848, Prince Felix zu Schwarzenberg adopted a pragmatic approach to foreign policy, even if he was unwilling to make concessions to advocates of German unification. But Schwarzenberg's intelligent defence of Austrian interests in the first few years after the revolutions were struck a serious blow by the Foreign Minister Count Carl Ferdinand Buol-Schauenstein in the Crimean War. Partial mobilization in the Crimean War wreaked havoc with Austrian finances, increasing the annual deficit to unsustainable levels. This meant that the Finance Ministry was left with little option but to sell off many of the state assets created in the post-revolutionary period or lease them for menial returns.[22] Crucially, it also created tensions with the Russian Empire, setting the conditions for Austria's isolation in the 1860s.

Prussia, on the other hand, managed to maintain a closer adherence to pragmatism in foreign affairs. For Friedrich Wilhelm IV and his ministers, there was consensus in 1848 that the German question could no longer be ignored, and often, for realists, this meant seriously considering unification if it would secure Prussian pre-eminence. This included, in the first instance, supporting the Union project. Admittedly, Manteuffel pursued peace at Olmütz to protect the gains made at home after the revolutions, but this thinking was not based on a rejection of the importance of the national to political debate. Rather, it was the result of a calculation of what was best for Prussian pre-eminence, especially considering that war with its southern neighbour was likely to bring about large-scale casualties. In the Crimean War, Manteuffel once again adopted a pragmatic way of thinking, leaning towards neutrality as the best way to preserve Prussian power. This decision was lambasted for its apparent timidity from both sides of the *Landtag*, but, as Quehl argued, Prussia's neutrality in the Crimean War and beyond was, in retrospect,

[22] John Deak, *Forging a Multinational State: State Making in Imperial Austria from the Enlightenment to the First World War* (Stanford, CA: Stanford University Press, 2015), 133.

anything but a 'symbol of weakness'.[23] Prussia avoided the economic strain that Austria underwent in the mid-1850s, as well as managing not to offend the Tsar.

Manteuffel was unwilling actively to exploit Austrian weakness to expand Prussian power, but Bismarck would pursue such a calculating line of thought in the late 1850s and 1860s, in an international environment that was no longer based on conservative states aiding one another against national challenges. Bismarck's embrace of nationalism, beginning in the summer of 1859, showed just how far he was willing to stray from ideological agendas to strengthen the Prussian state. As he wrote to the nationalist liberal Victor Unruh:

> There is but one ally for Prussia if she knows how to win and handle them . . . the German people! I am the same Junker of ten years ago . . . but I would have no perception and no understanding if I could not recognize clearly the reality of the situation.[24]

This caused strain and, later, a break with the ultraconservatives, especially the Gerlach brothers.[25] But Bismarck was not deterred. Prussia eventually went to war with Denmark, and again in the summer of 1866 against Austria. Prussian victory led to the termination of the German Confederation and the creation of a new Prussian-dominated North German Confederation, before war with the French paved the way for German unification in 1871.

Neither Schwarzenberg nor Manteuffel could have known the ends to which Bismarck would take the emerging *Realpolitik* of the post-revolutionary period. But the point here is that the legacy of domestic reform in Prussia and Austria in the 1850s was intimately connected to the exercise of pragmatism in foreign affairs, in both the 1850s and the1860s. For Prussia, this meant that much of the work undertaken during the post-revolutionary period to introduce direct state engagement in the countryside, cities, economic affairs, criminal justice, and the public sphere would be able to play a formative role in shaping later political stances, bureaucratic habits, and codifications of national legislation. Indeed, we would be remiss not to suggest, as Manteuffel did, that it was actually he who oversaw the beginnings of a new era in Prussia.[26]

[23] Quehl on 3 February 1859, in Poschinger (ed.), *Unter Friedrich Wilhelm IV*, iii. 350–1, at 350.
[24] Jonathan Steinberg, *Bismarck: A Life* (Oxford: Oxford University Press, 2011), 134.
[25] Ibid. 130–3.
[26] Christopher Clark, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006), 502.

Bibliography

ARCHIVAL SOURCES

Geheimes Staatsarchiv Preußischer Kulturbesitz (GStA PK)
GStA PK, I. HA Rep. 76 Kultusministerium
GStA PK, I. HA Rep. 77 Ministerium des Innern
GStA PK, I. HA Rep. 77 A Literarisches Büro
GStA PK, I. HA Rep. 80 Staatsrat und Staatssekretariat
GStA PK, I. HA Rep. 84a Justizministerium
GStA PK, I. HA Rep. 87 Ministerium für die landwirtschaftlichen Angelegenheiten
GStA PK, I. HA Rep. 89 Geheimes Zivilkabinett
GStA PK, I. HA Rep. 90 Staatsministerium, ältere Registratur
GStA PK, I. HA Rep. 90A Staatsministerium, jüngere Registratur
GStA PK, I. HA Rep. 93B Ministerium der öffentlichen Arbeiten
GStA PK, I. HA Rep. 120 Ministerium für Handel und Gewerbe
GStA PK, I. HA Rep. 121 Ministerium für Handel und Gewerbe, Berg-, Hütten- und Salinenverwaltung
GStA PK, I. HA Rep. 151 Finanzministerium
GstA PK, III. HA Ministerium der auswärtigen Angelegenheiten
GStA PK, XVII. HA Rep. 135 Handschriften

Nachlässe
GStA PK, VI. HA, Nl Otto von Manteuffel
GStA PK, VI. HA, Nl August von der Heydt
GStA PK, VI. HA, Nl Ferdinand von Westphalen
GStA PK, VI. HA, Nl Maria von Radowitz
GStA PK, VI. HA, Nl Marcus von Niebuhr

Brandenburg-Preußisches Hausarchiv (BPH)
GStA PK, BPH, Rep. 50 Nl Friedrich Wilhelm IV
GStA PK, BPH, Rep. 192 Nl Adalbert von Ladenberg
GStA PK, BPH, Rep. 192 Nl Carl von Hinckeldey
GStA PK, BPH, Rep. 192 Nl Marcus von Niebuhr
GStA PK, BPH, Rep. 192 Nl Carl Wilhelm Saegert

Landesarchiv Berlin (LAB)
LAB A Pr.Br.Rep. 030 Polizeipräsidium Berlin
LAB A Pr.Br.Rep. 000-02-01 Stadtverordnetenversammlung der Stadt Berlin
LAB A Pr.Br.Rep. 000–02 Magistrat der Stadt Berlin, Generalbüro
LAB A Pr.Br.Rep. 010-01-02 Magistrat der Stadt Berlin, Tiefbaudeputation

Brandenburgisches Landeshauptarchiv (BLHA)
BLHA 2 Provinz Brandenburg 1806/16–1945

NEWSPAPERS AND MAGAZINES

Allgemeine Bauzeitung; *Allgemeine Deutsche Gerichtszeitung: Zeitschrift für die nothwendigen Umgestaltungen des gesammten deutschen Gerichtswesens, Mündlichkeit, Oeffentlichkeit, Ausbildung des Geschwornengerichts und Mittheilung belehrender und unterhaltender Rechtsfälle aus dem In- und Auslande*; *Archiv für Preußisches Strafrecht*; *Archiv der politischen Oekonomie und Polizeiwissenschaft*; *Augsburger Allgemeine Zeitung*; *Berliner Gerichts-Zeitung*; *Gerichtssaal*; *Goltdammer's Archiv für Strafrecht*; *Die Grenzboten: Zeitschrift für Politik und Literatur*; *Jahrbuch für Volkswirtschaft und Statistik*; *Illustrirte Zeitung*; *Journal des économistes, revue de la science économique et de la statistique*; *Die medicinische Reform*; *Mittheilungen des statistischen Bureau's in Berlin*; *National-Zeitung*; *Preussisches Handelsarchiv: Wochenschrift für Handel, Gewerbe und Verkehrsanstalten*; *The Times*; *Zeitschrift für Bauwesen*; *Zeitschrift des deutsch-österreichischen Telegraphen-Vereins*; *Zeitschrift für die gesammte Staatswissenschaft.*

PRINTED PRIMARY SOURCES

Abegg, J. F. H., *Bemerkungen über den Entwurf eines Strafgesetzbuches für die Preußischen Staaten vom Jahre 1847* (Halle: E. A. Schwetschke und Sohn, 1848).

Allerhöchste Kabinets-Ordre, die Betheiligung von Privatpersonen bei der Bank betreffend (Berlin, 1846).

Annual Report of the City Inspector, of the City of New York, for the Year Ending December 31, 1859 (New York: Edmund Jones, 1860).

Anon., 'Deutsche Staatsmänner. II. Otto Freiherr von Manteuffel', *Die Grenzboten: Zeitschrift für Politik und Literatur*, 9 (1850), 453–9.

Anon., 'Herr von Manteuffel ein verkappter Demokrat', *Die Grenzboten: Zeitschrift für Politik und Literatur*, 9 (1850), 241–8.

Anon., *Erinnerungs-Blätter an das dem Herrn Polizei-Präsidenten Carl Ludwig Friedrich v. Hinckeldey am 29. Januar 1853 von Einwohnern Berlins veranstaltete Ehrenfest* (Berlin: A. W. Hayn, 1853).

Anon., 'Der deutsch-österreichische Telegraphen-Verein, seine Entwickelung und sein gegenwärtiger Umfang', *Zeitschrift des deutsch-österreichischen Telegraphen-Vereins* 1 (1854), 1–40.

Anon., 'Der preußische Landtag während der Jahre 1851 bis 1857', *Preußische Jahrbücher*, 1 (1858), 186–213.

Bau-Polizei-Ordnung für Berlin und dessen Bau-Polizei-Bezirk (Berlin: A. W. Hayn, 1853).

Behrend, Friedrich J., *Die Prostitution in Berlin und die gegen sie und die Syphilis zu nehmenden Massregeln* (Erlangen: J. J. Palm and Ernst Enke, 1850).

Beseler, Georg, *Kommentar über das Strafgesetzbuch für die Preußischen Staaten und das Einführungsgesetz vom 14. April 1851. Nach amtlichen Quellen* (Leipzig: Weidmann'sche Buchhandlung, 1851).

Booms, Hans, and Marian Wojciechowski (eds), *Deutsche und Polen in der Revolution 1848–1849: Dokumente aus deutschen und polnischen Archiven* (Boppard am Rhein: Harald Boldt, 1991).

Compte rendu de la deuxième session du congrès international de statistique réuni à Paris les 10, 12, 13, 14 et 15 septembre 1855 (Paris, 1856).

Dieterici, Karl Friedrich Wilhelm, *Die statistischen Tabellen des Preussischen Staats nach der amtlichen Aufnahme des Jahres 1843* (Berlin: Nicolai, 1845).

Dieterici, Karl Friedrich Wilhelm, *Die Bevölkerung des Preußischen Staats nach der amtlichen Aufnahme des Jahres 1846* (Berlin: Nicolai, 1848).

Dieterici, Karl Friedrich Wilhelm, *Über Preußische Zustände, über Arbeit und Kapital: Ein politisches Selbstgespräch, seinen lieben Mitbürgern gewidmet* (Berlin: Mittler, 1848).

Dieterici, Karl Friedrich Wilhelm, 'Anzeige', *Mittheilungen des statistischen Bureau's in Berlin*, 1 (1849).

Dieterici, Karl Friedrich Wilhelm, 'Ueber den Begriff der Statistik, deren Bedeutung für die Wissenschaft und für die praktische Anwendung auf das Leben, mit besonderer Beziehung auf die für den Preußischen Staat erscheinenden größeren Tabellen und amtlichen Nachrichten und diese Mittheilungen', *Mittheilungen des statistischen Bureau's in Berlin*, 4 (1851), 113–28.

Dronke, Ernst, *Berlin*, 2 vols (Frankfurt am Main: Literarische Anstalt, 1846).

d'Ester, Carl, *Der Kampf der Demokratie und des Absolutismus in der Preußischen constituierenden Versammlung 1848* (Mannheim: Grohe, 1849).

Fallati, Johannes, 'Gedanken über Mittel und Wege zu Hebung der praktischen Statistik, mit besonderer Rücksicht auf Deutschland', *Zeitschrift für die gesammte Staatswissenschaft*, 3 (1847), 496–557.

Gerlach, Leopold von, *Denkwürdigkeiten aus dem Leben Leopold von Gerlachs*, ed. Ulrike Agnes von Gerlach, 2 vols (Berlin: Wilhelm Hertz, 1891–2).

Gerlach, Ernst Ludwig von, *Von der Revolution zum Norddeutschen Bund. Politik u. Ideengut der preußischen Hochkonservativen, 1848–1866. Aus dem Nachlaß von Ernst Ludwig von Gerlach*, ed. Hellmut Diwald, 2 vols (Göttingen: Vandenhoeck u. Ruprecht, 1970).

Goltdammer, Theodor, *Die Materialien zum Straf-Gesetzbuche für die Preußischen Staaten, aus den amtlichen Quellen nach den Paragraphen des Gesetzbuches zusammengestellt und in einem Kommentar erläutert durch Goltdammer, Königlichen Kammergerichts-Rath*, 2 vols (Berlin: Carl Heymann, 1851).

Hassel, Ludwig, *Die letzten Stunden des General-Polizei-Directors von Hinckeldey* (Leipzig: Brockhaus, 1856).

Hebeler, Bernard, 'Statistics of Prussia', *Journal of the Statistical Society of London*, 10 (1847), 154–86.

Helwing, Ernst, 'Uebersicht über die statistische Literatur des Jahres 1850', *Mittheilungen des statistischen Bureau's in Berlin*, 3 (1850), 359–78.

Herres, Jürgen, Georg Mölich, und Stefan Wunsch (eds), *Quellen zur Geschichte der Stadt Köln*, 3 vols (Cologne: J. P. Bachem, 1996–2010), iii. *Das 19. Jahrhundert (1794–1914)* (2010).

Hesekiel, George, *Otto Theodor Freiherr von Manteuffel: Ein Preußisches Lebensbild* (Berlin: A.W. Hayn, 1851).

Holtz, Bärbel (ed.), *Acta Borussica: Die Protokolle des Preußischen Staatsministeriums 1817–1934/38*, iv. *30. März 1848 bis 27 Oktober 1858*, ed. Berlin-Brandenburg Academy of Sciences under the direction of Jürgen Kocka, Wolfgang Neugebauer, and Reinhold Zilch (Hildesheim: Olms-Weidmann, 2000).

Huber, Ernst Rudolf (ed.), *Dokumente zur deutschen Verfassungsgeschichte*, 5 vols, 3rd edn (Stuttgart: Kohlhammer, 1978–97).

Jelowik, Lieselotte (ed.), *Briefe deutscher Strafrechtler an Karl Joseph Anton Mittermaier, 1832–1866* (Frankfurt am Main: Vittorio Klostermann, 2005).

Königlich Preußischer Staatskalander (Berlin: Decker, 1851–9).

Kraus, Hans-Christof (ed.), *Ernst Ludwig von Gerlach: Politisches Denken und Handeln eines preußischen Altkonservativen*, 2 vols (Göttingen: Vandenhoeck & Ruprecht, 1994).

Kries, C. G., *Vorschläge zur Regelung der Grundsteuer in Preußen* (Berlin: Wilhelm Hertz, 1855).

Ladenberg, Adalbert von, *Preußens gerichtliches Verfahren in Civil- und Kriminal-Sachen. Ein Auszug aus den darüber bestehenden Gesetzen, insbesondere aus der allgemeinen Gerichts-Ordnung, der allgemeinen Deposital-Ordnung, der allgemeinen Hypotheken-Ordnung, der Kriminal-Ordnung, dem Stempel Gesetze u.s.w., nebst einer Einleitung, das Studium angehender praktischer Juristen und deren Laufbahn betreffend*, 2nd edn (Cologne: J. P. Bachem, 1833).

Marx, Karl, *Enthüllungen über den Kommunisten-Prozeß zu Köln* (Basle: Buchdruckerei von Chr. Krüfi, 1853), in *Marx-Engels-Gesamtausgabe (MEGA)*, erste Abteilung, 32 vols (Berlin: Dietz Verlag, 1985), xi. 363–424, 974–1022.

Marx, Karl, and Frederick Engels, *The Cologne Communist Trial*, trans. Rodney Livingstone (London: Lawrence and Wishart, 1971).

Marx, Karl, and Friedrich Engels, *Karl Marx, Friedrich Engels: Collected Works*, 50 vols (London: Lawrence & Wishart, 1975–2004).

Mösslang, Markus, Sabine Freitag, and Peter Wende (eds), *British Envoys to Germany, 1816–1866*, 4 vols (Cambridge: Cambridge University Press, 2002).

Müller, C. F. (ed.), *Das Preußische Straf-Gesetzbuch nebst dem Einführungs-Gesetz. Mit den Motiven des Hohen Justiz-Ministerii und der beiden Kammern, und Hinweisungen auf die ältere Gesetzgebung und die früheren Entwürfe. Ein praktisches Handbuch nach den amtlichen Quellen zusammengestellt für Richter, Staats- und Rechts-Anwälte, sowie zum Selbststudium für Referendarien und Auskultatoren*(Berlin: Verlag von Gustav Hempel, 1851).

München, R., *Ueber die Bestrafung der Geistlichen nach dem neuen Entwurfe des Strafgesetzbuches für Preußen: Aus der „Kölnischen Zeitung' abgedruckt"* (Cologne: M. DuMont-Schauberg'schen Buchhandlung, 1848).

Mußgnug, Dorothee (ed.), *Briefe Herrmann Theodor Goltdammers an Karl Josef Anton Mittermaier* (Frankfurt am Main: Vittorio Klostermann, 2007).

Nöller, Friedrich, 'Ueber Centralisation der Gefängnißverwaltung auf Grundlage des jetzigen Standes des Strafrechts', *Gerichtssaal*, 6 (1854), 314–20, 332–47.

Der permanente Ausschuß des Vereins zum Schutz des Eigenthums und zur Förderung des Wohlstandes aller Volksklassen, *Ansprache an das Publikum* (Berlin: Schlesinger, 1849).

Poschinger, Heinrich von (ed.), *Unter Friedrich Wilhelm IV: Denkwürdigkeiten des Ministers Otto Freiherrn von Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1901).

Poschinger, Heinrich von (ed.), *Preußens auswärtige Politik 1850 bis 1858: Unveröffentlichte Dokumente aus dem nachlasse des Ministerpräsidenten Otto frhrn. v. Manteuffel*, 3 vols (Berlin: E. S. Mittler und Sohn, 1902).

Radowitz, Josef von, *Gesammelte Schriften,* 5 vols (Berlin: Georg Reimer, 1853).

Radowitz, Josef von, *Nachgelassene Briefe und Aufzeichnungen zur Geschichte der Jahre 1848–1853*, ed. Walter Möring (Stuttgart: Deutsche Verlags-Anstalt, 1922).

Riemer, Lars Hendrik (ed.), *Das Netzwerk der 'Gefängnisfreunde' (1830–1872): Karl Josef Anton Mittermaiers Briefwechsel mit europäischen Strafvollzugsexperten* (Frankfurt am Main: Vittorio Klostermann, 2005).

Rochow, Caroline von, *Vom Leben am preußischen Hofe, 1815–1852* (Berlin: Ernst Siegfried Mittler und Sohn, 1908).

Siemann, Wolfram (ed.), *Der 'Polizeiverein' deutscher Staaten: Eine Dokumentation zur Überwachung der Öffentlichkeit nach der Revolution von 1848/49* (Tübingen: M. Niemeyer, 1983).

Springer, Robert, *Berlin's Strassen, Kneipen und Clubs im Jahre 1848* (Berlin: Friedrich Gerhard, 1850).

Steinmann, Friedrich, *Geschichte der Revolution in Preußen* (Berlin: Friedrich Gerhard, 1849).
Stieber, Wilhelm, *Die Prostitution in Berlin und ihre Opfer* (Berlin: A. Hofmann, 1846).
Stenographische Berichte der Preußischen Nationalversammlung (Berlin, 1848).
Stenographische Berichte über die Verhandlungen… Erste Kammer… Sessionen 1849–1854/55 (Berlin, 1849–55).
Stenographische Berichte über die Verhandlungen… Zweite Kammer… Sessionen 1849–1854/55 (Berlin, 1849–55).
Stenographische Berichte über die Verhandlungen… Haus der Abgeordneten… Sessionen 1855/56–1859/60 (Berlin, 1856–60).
Stenographische Berichte über die Verhandlungen… Herrenhaus… Sessionen 1855/56–1859/60 (Berlin, 1856–60).
Unruh, Hans Viktor von, *Erinnerungen aus dem Leben von Hans Viktor von Unruh*, ed. Heinrich von Poschinger (Stuttgart: Deutsche Verlags-Anstalt, 1895).
Verhandlungen der constituirenden Versammlung für Preußen. 1848 (Berlin: Carl Schultze, 1848).
Verhandlungen der Ersten und Zweiten Kammer über die Entwürfe des Strafgesetzbuchs für die Preußischen Staaten und des Gesetzes über die Einführung desselben, vom 10. Dezember 1850 (Berlin: Verlag der Deckerschen Geheimen Ober-Hofbuchdruckerei, 1851).
Verhandlungen der Germanisten zu Frankfurt am Main am 24., 25. und 26. September 1846 (Frankfurt am Main: J. D. Sauerländer's Verlag, 1847).
Verhandlungen der Germanisten zu Lübeck am 27., 28. und 30. September 1847 (Lübeck: Carl Boldemann, 1848).
Walter, Ferdinand, *Nachtrag zu meiner Kritik über den Titel des Entwurfes des Preußischen Strafgesetzbuches von den Verbrechen der Geistlichen* (Bonn: Eduard Weber, 1848).
Walter, Ferdinand, *Ueber die Verbrechen der Geistlichen nach dem neuen Entwurfe des Preußischen Strafgesetzbuches: Eine freimüthige Kritik* (Bonn: Adolph Marcus, 1848).
Wichern, Johann Hinrich, *Sämtliche Werke*, ed. Peter Meinhold, 10 vols (Berlin: Lutherisches Verlagshaus, 1973).

SECONDARY LITERATURE

Abercrombie, Patrick. 'Berlin: Its Growth and Present State I. The Nineteenth Century', *Town Planning Review*, 3 (1913), 219–333.
Abercrombie, Patrick, 'Berlin: Its Growth and Present State II. The Nineteenth Century', *Town Planning Review*, 4 (1914), 302–11.
Allen, Mitchell, 'Bourgeois Liberalism and Public Health: A Franco-German Comparison', in Jürgen Kocka and Allan Mitchell (eds), *Bourgeois Society in Nineteenth-Century Europe* (Oxford: Berg, 1993), 346–66.
Anderson, Barbara C., 'State-Building and Bureaucracy in Early-Nineteenth-Century Nassau', *Central European History*, 24 (1991), 222–47.
Arnhardt, Gerhard, *Schulpforte—eine Schule im Zeichen der Humanistischen Bildungstradition* (Berlin: Volk und Wissen, 1988).
Ashton, Bodie A., *The Kingdom of Württemberg and the Making of Germany, 1815–1871* (London: Bloomsbury, 2017).
Ashton, Rosemary, 'Gottfried Kinkel and University College London', in Peter Alter and Rudolf Muhs (eds), *Exilanten und andere Deutsche in Fontanes London* (Stuttgart: Hans-Dieter Heinz, 1996), 23–40.
Bar, Carl Ludwig von, *A History of Continental Criminal Law* (Boston: Little, Brown, and Company, 1916).

Baranowski, Shelly, 'Agrarian Transformation and Right Radicalism: Economics and Politics in Rural Prussia, 1830–1947', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 146–65.

Barclay, David E., 'The Court Camarilla and the Politics of Monarchical Restoration in Prussia, 1848–1858', in Larry Eugene Jones and James Retallack (eds), *Between Reform, Reaction and Resistance: Studies in the History of German Conservatism from 1789 to 1945* (Oxford: Berg, 1993), 123–56.

Barclay, David E., 'Ein deutscher "Tory Democrat"? Joseph Maria von Radowitz (1797–1853)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 37–67.

Barclay, David E., *Frederick William IV and the Prussian Monarchy, 1840–1861* (Oxford: Clarendon Press, 1995).

Barclay, David E., 'Revolution and Counter-Revolution in Prussia, 1840–1850', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 66–85.

Barclay, David E., 'Prussian Conservatives and the Problem of Bonapartism', in Peter Baehr and Melvin Richter (eds), *Dictatorship in History and Theory: Bonapartism, Caesarism, and Totalitarianism* (Cambridge: Cambridge University Press, 2004), 67–82.

Bazillion, Richard J., *Modernizing Germany: Karl Biedermann's Career in the Kingdom of Saxony, 1835–1901* (New York: Peter Lang, 1990).

Beck, Hermann, 'The Changing Concerns of Prussian Conservatism, 1830–1914', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 86–105.

Beck, Hermann, 'Conservatives and the Social Question in Nineteenth-Century Prussia', in Larry Eugene Jones and James Retallack (eds), *Between Reform, Reaction and Resistance: Studies in the History of German Conservatism from 1789 to 1945* (Oxford: Berg, 1993), 61–94.

Beck, Hermann, 'The Social Policies of Prussian Officials: The Bureaucracy in a New Light', *Journal of Modern History*, 64 (1992), 263–98.

Beck, Hermann, 'State and Society in Pre-March Prussia: The Weavers' Uprising, the Bureaucracy, and the Association for the Welfare of Workers', *Central European History*, 25 (1992), 303–31.

Beck, Hermann, *The Origins of the Authoritarian Welfare State in Prussia: Conservatives, Bureaucracy, and the Social Question, 1815–1870* (Ann Arbor: University of Michigan Press, 1995).

Becker, Bernhard, *Die Reaktion in Deutschland gegen die Revolution von 1848, beleuchtet in sozialer, nationaler und staatlicher Beziehung* (Vienna: U. Pichlers Witwe & Sohn, 1869).

Behnen, Michael, *Das Preußische Wochenblatt (1851–1861): Nationalkonservative Publizistik gegen Ständestaat und Polizeistaat* (Göttingen: Musterschmidt, 1971).

Behr, Hans-Joachim, *'Recht muß doch Recht bleiben': Das Leben des Freiherrn Georg von Vincke (1811–1875)* (Paderborn: Bonifatius, 2009).

Berger, Stefan, 'Prussia in History and Historiography from the Nineteenth to the Twentieth Centuries', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 21–40.

Bernet, Claus, 'The "Hobrecht Plan" (1862) and Berlin's Urban Structure', *Urban History*, 31 (2004), 400–19.

Bernstein, Aaron, *Aus dem Jahre 1848: Historische Erinnerungen* (Berlin: Franz Duncker, 1873).

Bernstein, Aaron, *1849: Verfassungskämpfe und Kabinets-Intriguen* (Berlin: Franz Duncker, 1874).

Bernstein, Aaron, *Die Jahre der Reaktion: Historische Skizze* (Berlin: Max Bading, 1881).

Beseler, Georg, *Erlebtes und Erstrebtes, 1809–1859* (Berlin: Wilhelm Hertz, 1884).

Biedermann, Karl, *1840–1870: Dreißig Jahre deutsche Geschichte*, 2 vols (Breslau: Schottlaender, 1886).

Bittel, Karl, *Der Kommunistenprozeß zu Köln 1852 im Spiegel der zeitgenössischen Presse* (Berlin: Rüten & Loeing, 1955).

Blackbourn, David, *The Long Nineteenth Century: A History of Germany, 1780–1918* (New York: Oxford University Press, 1998).

Blackbourn, David, and Geoff Eley. *The Peculiarities of German History:* Bourgeois Society and Politics in Nineteenth-Century Germany (Oxford: Oxford University Press, 1984).

Blackbourn, David, and Richard J. Evans (eds), *The German Bourgeoisie: Essays on the Social History of the German Middle Class from the Late Eighteenth to the Early Twentieth Century* (London: Routledge, 1991).

Blasius, Dirk, 'Der Kampf um die Geschworenengerichte im Vormärz', in Hans-Ulrich Wehler (ed.), *Sozialgeschichte Heute: Festschrift für Hans Rosenberg zum 70. Geburtstag* (Göttingen: Vandenhoeck & Ruprecht, 1974), 148–61.

Blasius, Dirk, *Bürgerliche Gesellschaft und Kriminalität: Zur Sozialgeschichte Preußens im Vormärz* (Göttingen: Vandenhoeck & Ruprecht, 1976).

Blasius, Dirk, *Kriminalität und Alltag: Zur Konfliktgeschichte des Alltagslebens im 19.* Jahrhundert (Göttingen: Vandenhoeck & Ruprecht, 1978).

Blau, Eve, *The Architecture of Red Vienna, 1919–1934* (Cambridge, MA: MIT Press, 1999).

Blos, Wilhelm, *Die deutsche Revolution: Geschichte der deutschen Bewegung von 1848 und 1849* (Stuttgart: Dietz, 1893).

Blum, Jerome, 'Land Tenure in the Austrian Monarchy before 1848', *Agricultural History*, 19 (1945), 87–98.

Boldt, Werner, *Die Anfänge des deutschen Parteiwesens: Fraktionen, politische Vereine und Parteien in der Revolution von 1848, Darstellungen und Dokumentation* (Paderborn: Schöningh, 1971).

Bonjour, E., H. S. Offler, and G. R. Potter, *A Short History of Switzerland* (Oxford: Clarendon Press, 1952).

Bösch, Frank, 'Transfers and Similarities: Journalists, Politicians and Scandals in Imperial Germany and Britain', in Frank Bösch and Dominik Geppert (eds), *Journalists as Political Actors: Transfers and Interactions between Britain and Germany since the Late 19th Century* (Augsburg: Wissner, 2008), 16–34.

Boyer, John W., *Political Radicalism in Late Imperial Vienna: Origins of the Christian Social Movement, 1848–1897* (Chicago: University of Chicago Press, 1981).

Brandt, Harm-Hinrich (ed.), *Der österreichische Neoabsolutismus als Verfassungs- und Verwaltungsproblem: Diskussionen über einen strittigen Epochenbegriff* (Vienna: Böhlau, 2014).

Brophy, James M., 'The Political Calculus of Capital: Banking and the Business Class in Prussia, 1848–1856', *Central European History*, 25 (1992), 149–76.

Brophy, James M., 'Salus publica suprema lex: Prussian Businessmen in the New Era and Constitutional Conflict', *Central European History*, 28 (1995), 122–51.

Brophy, James M., 'Carnival and Citizenship: The Politics of Carnival Culture in the Prussian Rhineland, 1823–1848', *Journal of Social History*, 30 (1997), 873–904.

Brophy, James M., *Capitalism, Politics, and Railroads in Prussia, 1830–1870* (Columbus: Ohio State University Press, 1998).

Brophy, James M., 'The *Juste Milieu*: Businessmen and the Prussian State during the New Era and the Constitutional Conflict', in Bärbel Holtz und Hartwin Spenkuch (eds), *Preußens Weg in die politische Moderne: Verfassung-Verwaltung- politische Kultur zwischen Reform und Reformblockade* (Berlin: Akademie Verlag, 2001), 193–223.

Brophy, James M., *Popular Culture and the Public Sphere in the Rhineland, 1800–1850* (Cambridge: Cambridge University Press, 2007).

Brose, Eric Dorn, *The Politics of Technological Change in Prussia: Out of the Shadow of Antiquity, 1809–1848* (Princeton: Princeton University Press, 1993).

Brunck, Helma, *Bismarck und das Preußische Staatsministerium, 1862–1890* (Berlin: Duncker & Humblot, 2004).

Brussiek, Dagmar, *'Mit Gott für König und Vaterland!' Die Neue Preußische Zeitung (Kreuzzeitung), 1842–1892* (Münster: Lit, 2000).

Buchge, W., *Der Springer Verlag: Katalog seiner Zeitschriften, 1843–1992* (Berlin: Springer-Verlag, 1994).

Bullock, Nicholas, and James Read, *The Movement for Housing Reform in Germany and France, 1840–1914* (Cambridge: Cambridge University Press, 1985).

Chalaby, Jean K., *The Invention of Journalism* (Basingstoke: Macmillan, 1998).

Clark, Christopher, *Iron Kingdom: The Rise and Downfall of Prussia, 1600–1947* (London: Allen Lane, 2006).

Clark, Christopher, 'After 1848: The European Revolution in Government', *Transactions of the Royal Historical Society*, 22 (2012), 171–97.

Collin, Peter, *'Wächter der Gesetze' oder 'Organ der Staatsregierung'? Konzipierung, Einrichtung und Anleitung der Staatsanwaltschaft durch das preußische Justizministerium.* Von den Anfängen bis 1860 (Frankfurt am Main: Vittorio Klostermann, 2000).

Crosby, Margaret Barber, *The Making of a German Constitution: A Slow Revolution* (Oxford: Berg, 2008).

Damm, Steffen, and Klaus Siebenhaar. *Ernst Litfaß und sein Erbe: Eine Kulturgeschichte der Litfaßsäule* (Berlin: Bostelmann & Siebenhaar, 2005).

Dawson, William Harbutt, *Municipal Life and Government in Germany* (London: Longmans, Green and Co., 1914).

Deak, John, *Forging a Multinational State: State Making in Imperial Austria from the Enlightenment to the First World War* (Stanford, CA: Stanford University Press, 2015).

Deflem, Mathieu, 'International Policing in Nineteenth-Century Europe: The Police Union of German States, 1851–1866', *International Criminal Justice Review*, 6 (1996), 36–57.

Deflam, Mathieu, 'Surveillance and Criminal Statistics: Historical Foundations of Governmentality', *Studies in Law, Politics and Society*, 17 (1997), 149–84.

Dipper, Christof, *Die Bauernbefreiung in Deutschland, 1790–1850* (Stuttgart: Kohlhammer, 1980).

Dwyer, Philip G., 'Introduction: Modern Prussia—Continuity and Change', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 1–20.

Eibich, Stephan M., *Polizei, 'Gemeinwohl' und Reaktion:* Über Wohlfahrtspolizei als Sicherheitspolizei unter Karl Ludwig Friedrich von Hinckeldey, Berliner Polizeipräsident von 1848 bis 1856 (Berlin: BWV, 2004).

Emsley, Clive, *Crime, Police, & Penal Policy: European Experiences, 1750–1940* (Oxford: Oxford University Press, 2007).

Enax, Karl, 'Otto von Manteuffel und die Reaktion in Preußen' (Ph.D. dissertation, Universität Leipzig, 1907).

Evans, Peter B., Dietrich Rueschemeyer, and Theda Skocpol (eds), *Bringing the State Back In* (Cambridge: Cambridge University Press, 1985).

Evans, Richard J., 'Prostitution, State and Society in Imperial Germany', *Past & Present*, 70 (1976), 106–29.

Evans, Richard J., *Rituals of Retribution: Capital Punishment in Germany, 1600–1987* (Oxford: Oxford University Press, 1996).

Evans, Richard J., *Tales from the German Underworld: Crime and Punishment in the Nineteenth Century* (New Haven: Yale University Press, 1998).

Evans, Richard J., *The Pursuit of Power: Europe, 1815–1914* (London: Allen Lane, 2016).

Evans, R. J. W., 'From Confederation to Compromise: The Austrian Experiment, 1849–1867', *Proceedings of the British Academy*, 87 (1994), 135–67.

Evans, R. J. W., '1848–1849 in the Habsburg Monarchy', in R. J. W. Evans and Hartmut Pogge von Strandmann (eds), *The Revolutions in Europe 1848–1849: From Reform to Reaction* (Oxford: Oxford University Press, 2000), 181–206.

Fischer, Heinz-Dietrich, *Handbuch der politischen Presse in Deutschland, 1480–1980. Synopse rechtlicher, struktureller und wirtschaftlicher Grundlagen der Tendenzpublizistik im Kommunikationsfeld* (Düsseldorf: Droste, 1981).

Fischer, Hubertus, 'Konservatismus von unten: Wahlen im ländlichen Preußen 1849/52—Organisation, Agitation, Manipulation', in Dirk Stegmann, Bernd-Jürgen Wendt, and Peter-Christian Witt (eds), *Deutscher Konservatismus im 19. und 20. Jahrhundert. Festschrift für Fritz Fischer zum 75. Geburtstag und zum 50. Doktorjubiläum* (Bonn: Verlag Neue Gesellschaft, 1983), 69–127.

Fischer-Frauendienst, Irene, *Bismarcks Pressepolitik* (Münster: C. J. Fahle, 1963).

Flockerzie, Lawrence J., 'State-Building and Nation-Building in the "Third Germany": Saxony after the Congress of Vienna', *Central European History*, 24 (1991), 268–92.

Friedrich, Karin, 'The Development of the Prussian Town, 1720–1815', in Philip G. Dwyer(ed.), *The Rise of Prussia, 1700–1830* (Harlow: Longman, 2000), 129–50.

Friehe, Ernst Gerhard, *Geschichte der 'National-Zeitung' in den Jahren 1848 bis 1878* (Ph.D. dissertation, Universität Leipzig, 1933).

Friendly, Michael, 'A.-M. Guerry's Moral Statistics of France: Challenges for Multivariable Spatial Analysis'. *Statistical Science*, 22 (2007), 368–99.

Frölich, Jürgen, 'Repression und Lenkung versus Pressefreiheit und Meinungsmarkt. Zur preussischen Pressegeschichte in der Reichsgründungszeit 1848–71', in Bernd Sösemann (ed.), *Kommunikation und Medien in Preußen vom 16. bis zum 19. Jahrhundert* (Stuttgart: F. Steiner, 2002), 364–85.

Fukuyama, Francis, *State-Building: Governance and World Order in the Twenty-First Century* (London: Profile Books, 2004).

Funk, Albercht, *Polizei und Rechtsstaat: Die Entwicklung des staatlichen Gewaltmonopols in Preußen 1848–1918* (Frankfurt am Main: Campus, 1986).

Gailus, Manfred von, 'Food Riots in Germany in the Late 1840s', *Past and Present*, 145 (1994), 157–93.

Gatrell, V. A. C., and T. B. Hadden, 'Criminal Statistics and their Interpretation', in E. A. Wrigley (ed.), *Nineteenth-Century Society: Essays in the Use of Quantitative Methods for the Study of Social Data* (Cambridge: Cambridge University Press, 1972), 336–96.

Geißen, Paul, *Die preußische Handwerkerpolitik unter Otto von Manteuffel* (Ph.D. dissertation, Universität Köln, 1936).

Geyer, Martin H., and Johannes Paulmann. 'Introduction', in Martin H. Geyer and Johannes Paulmann (eds), *The Mechanics of Internationalism: Culture, Society, and Politics from the 1840s to the First World War* (Oxford: Oxford University Press, 2001), 1–26.

Gillis, John R., 'Aristocracy and Bureaucracy in Nineteenth-Century Prussia', *Past and Present*, 41 (1968), 105–29.

Gillis, John R., *The Prussian Bureaucracy in Crisis, 1840–1860: Origins of an Administrative Ethos* (Stanford, CA: Stanford University Press, 1971).

Giloi, Eva, *Monarchy, Myth, and Material Culture in Germany, 1750–1950* (Cambridge: Cambridge University Press, 2011).

Goldman, Lawrence, 'Conservative Political Thought from the Revolutions of 1848 until the Fin de Siècle', in Gareth Stedman Jones and Gregory Claeys (eds), *The Cambridge History of Nineteenth-Century Political Thought* (Cambridge: Cambridge University Press, 2011), 691–719.

Golsong, Christoph, *Der Kölner Kommunistenprozeß von 1852 aus rechtshistorischer Sicht* (Ph.D. dissertation, Köln, 1995).

Graff, Helmut, *Die deutsche Kriminalstatistik: Geschichte und Gegenwart* (Stuttgart: Ferdinand Enke Verlag, 1975).

Green, Abigail, *Fatherlands: State-Building and Nationhood in Nineteenth-Century Germany* (Cambridge: Cambridge University Press, 2001).

Green, Abigail, 'Intervening in the Public Sphere: German Governments and the Press, 1815–1870', *Historical Journal*, 44 (2001), 155–75.

Green, Abigail, 'Representing Germany? The Zollverein at the World Exhibitions, 1851–1862', *Journal of Modern History*, 75 (2003), 836–63.

Gray, Marion W., *Prussia in Transition: Society and Politics under the Stein Reform Ministry of 1808* (Philadelphia: American Philosophical Society, 1986).

Grünthal, Günther, 'Das preußische Dreiklassenwahlrecht. Ein Beitrag zur Genesis und Funktion des Wahlrechtsoktrois vom Mai 1849', *Historische Zeitschrift,* 226 (1978), 17–66.

Grünthal, Günther, *Parlamentarismus in Preussen 1848/49–1857/58: Preussischer Konstitutionalismus- Parlament und Regierung in der Reaktionsära* (Düsseldorf: Droste, 1982).

Grünthal, Günther, 'Grundlagen konstitutionellen Regiments in Preußen 1848–1867: Zum Verhältnis von Regierung, Bürokratie und Parlament zwischen Revolution und Reichsgründung', in Gerhard A. Ritter (ed.), *Regierung, Bürokratie und Parlament in Preußen und Deutschland von 1848 bis zur Gegenwart* (Düsseldorf: Droste, 1983), 41–55.

Grünthal, Günther, 'Zwischen König, Kabinett und Kamarilla: Der Verfassungsoktroi in Preußen vom 5.12.1848', *Jahrbuch für die Geschichte Mittel- und Ostdeutschlands*, 32 (1983), 119–74.

Grünthal, Günther, 'Crown and Parliament in Prussia 1848–1866', *Parliaments, Estates and Representation*, 5 (1985), 165–74.

Grünthal, Günther, 'Das Ende der Ära Manteuffel', *JGMOD*, 39 (1990), 179–219.

Grünthal, Günther, 'Im Schatten Bismarcks—Der preußische Ministerpräsident Otto Freiherr von Manteuffel (1805–1882)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 111–33.

Hacker, Magda L., *Der Ministerpräsident Freiherr Otto von Manteuffel und die Affäre von Olmütz* (Rostock: Robert Rambert, 1924).

Hacking, Ian, 'Prussian Numbers, 1860–1882', in Lorenz Krüger, Lorraine J. Daston, and Michael Heidelberger (eds), *The Probabilistic Revolution*, 2 vols (Cambridge, MA: MIT Press, 1987), i. 377–94.

Hacking, Ian, *The Taming of Chance* (Cambridge: Cambridge University Press, 1990).

Hahn, Erich, 'Ministerial Responsibility and Impeachment in Prussia, 1848–63', *Central European History*, 10 (1977), 3–27.

Hall, Thomas, *Planning Europe's Capital Cities: Aspects of Nineteenth-Century Urban Development* (London: E & F N Spon, 1997).

Hamerow, Theodore S., *Restoration, Revolution, Reaction: Economics and Politics in Germany, 1815–1871* (Princeton: Princeton University Press, 1958).

Hankins, Frank H., 'Adolphe Quetelet as Statistician', *Studies in History, Economics and Public Law*, 31 (1908), 9–134.

Hartung, Fritz, *Staatsbildende Kräfte der Neuzeit* (Berlin: Duncker & Humblot, 1961).

Haunfelder, Bernd, *Biographisches Handbuch für das preußische Abgeordnetenhaus, 1849–1867* (Düsseldorf: Droste, 1994).

Heady, Katy, *Literature and Censorship in Restoration Germany: Repression and Rhetoric* (Rochester, NY: Camden House, 2009).

Heffter, Heinrich, *Die deutsche Selbstverwaltung im 19. Jahrhundert* (Stuttgart: Koehler, 1950).

Heindl, Waltraud. *Josephinische Mandarine: Bürokratie und Beamte in Österreich*, ii. *1848–1914* (Vienna: Böhlau, 2013).

Heinemann, Fritz, 'Die Politik des Grafen Brandenburg' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1909).

Heinrich-Jost, Ingrid (ed.), *Kladderadatsch: Die Geschichte eines Berliner Witzblattes von 1848 bis ins Dritte Reich* (Cologne: Leske, 1982).

Henkel, Martin, and Rolf Taubert, *Die deutsche Presse, 1848–1850: Eine Bibliographie* (Munich: K. G. Saur, 1986).

Herres, Jürgen, 'Der Kölner Kommunistenprozess von 1852', *Geschichte in Köln. Zeitschrift für Stadt- und Regionalgeschichte*, 50 (2003), 133–55.

Hewitson, Mark, *Nationalism in Germany, 1848–1866: Revolutionary Nation* (Basingstoke: Palgrave Macmillan, 2010).

Hewitson, Mark, *The People's War: Histories of Violence in the German Lands, 1820–1888* (Oxford: Oxford University Press, 2017).

Hintze, Otto, 'Das preußische Staatsministerium im 19. Jahrhundert', in Gerhard Oestrich (ed.), *Gesammelte Abhandlungen zur Staats-, Rechts- und Sozialgeschichte Preussens*, 3 vols (Göttingen: Vandenhoeck & Ruprecht, 1962–8).

Holtz, Bärbel, 'Der vormärzliche Regierungsstil von Friedrich Wilhelm IV',. *Forschungen zur Brandenburgischen und Preussischen Geschichte*, NS 12 (2002), 75–112.

Holtz, Bärbel, 'Das preussische Staatsministerium auf seinem Weg vom königlichen Ratskollegium zum Parlamentarischen Regierungsorgan', *Forschung zur Brandenburgischen und Preussischen Geschichte*, 16 (2006), 67–102.

Horung, Klaus, 'Preußischer Konservatismus und Soziale Frage—Hermann Wagener (1815–1889)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Ene Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 157–84.

Howell, Philip, *Geographies of Regulation: Policing Prostitution in Nineteenth-Century Britain and the Empire* (New York: Cambridge University Press, 2009).

Huber, Ernst Rudolf, *Deutsche Verfassungsgeschichte seit 1789*, 8 vols (Stuttgart: Kohlhammer, 1957–91).

Hyde, Simon, 'Roman Catholicism and the Prussian State in the Early 1850s', *Central European History*, 24 (1991), 95–121.

Hyde, Simon, 'Hans Hugo von Kleist Retzow and the Administration of the Rhine Province during the "Reaction" in Prussia, 1851–1858' (D.Phil., University of Oxford, 1993).

Jansen, Christian, *Einheit, Macht und Freiheit: Die Paulskirchenlinke und die deutsche Politik in der nachrevolutionären Epoche, 1849–1867*(Düsseldorf: Droste, 2000).

Jansen, Christian, *Nach der Revolution 1848–49: Verfolgung, Realpolitik, Nationsbildung. Politische Briefe deutscher Liberaler und Demokraten, 1849–1861* (Düsseldorf: Droste, 2004).

Jerram, Leif, 'Bureaucratic Passions and the Colonies of Modernity: An Urban Elite, City Frontiers and the Rural Other in Germany, 1890–1920', *Urban History*, 34 (2007), 390–406.

Jessop, Bob, 'Bringing the State Back in (Yet Again)', *International Review of Sociology*, 11 (2001), 149–73.

John, Michael, *Politics and the Law in Late Nineteenth-Century Germany: The Origins of the Civil Code* (Oxford: Clarendon Press, 1989).

John, Michael, 'Associational Life and the Development of Liberalism in Hannover, 1848–1866', in Konrad H. Jarausch and Larry Eugene Jones (eds), *In Search of a Liberal Germany: Studies in the History of German Liberalism from 1789 to the Present* (New York: Berg, 1990), 161–86.

Johnston, Jean-Michel, 'The Time and the Place to Network: Werner Siemens during the Era of Prussian Industrialization, 1835–1846', *Central European History*, 50 (2017), 160–83.

Jones, Larry Eugene, and James Retallack. 'German Conservatism Reconsidered: Old Problems and New Directions', in Larry Eugene Jones and James Retallack (eds), *Between Reform, Reaction and Resistance: Studies in the History of German Conservatism from 1789 to 1945* (Oxford: Berg, 1993), 1–30.

Jordan, Erich, *Die Entstehung der konservativen Partei und die preußischen Agrarverhältnisse von 1848* (Munich: Duncker und Humblot, 1914).

Kahan, Alan, 'Liberalism and *Realpolitik* in Prussia, 1830–52: The Case of David Hansemann', *German History*, 9 (1991), 280–307.

Kahl, Jürgen, 'National-Zeitung, Berlin (1848–1938)', in Heinz-Dietrich Fischer (ed.), *Deutsche Zeitungen des 17. bis 20. Jahrhunderts* (Pullach: Dokumentation, 1972), 177–89.

Kaiser, Wolfram, 'Cultural Transfer of Free Trade at the World Exhibitions, 1851–1862', *Journal of Modern History*, 77 (2005), 563–90.

Kaiser, Wolfram, 'Transnational Mobilization and Cultural Representation: Political Transfer in an Age of Proto-Globalisation, Democratisation and Nationalism, 1848–1914', *European Review of History*, 12 (2005), 403–24.

Kaltheuner, Herbert, 'Der Freiherr Georg von Vincke und die Liberalen in der preußischen zweiten Kammer 1849–1855' (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1928).

Kehr, Eckart, 'Zur Genesis der preussischen Bürokratie und des Rechtsstaates', in Hans-Ulrich Wehler (ed.), *Der Primat der Innenpolitik: Gesammelte Aufsätze zur preussisch-deutschen Sozialgeschichte im 19. und 20. Jahrhundert* (Berlin: Walter de Gruyter & Co., 1965), 31–52.

Kirsch, Martin, and Pierangelo Schiera (eds), *Verfassungswandel um 1848 im europäischen Vergleich* (Berlin: Duncker & Humblot, 2001).

Klein, Ernst, 'Funktion und Bedeutung des preussischen Staatsministeriun', *JGMOD*, 9–10 (1961), 195–260.

Koch, Rainer, 'Die Agrarrevolution in Deutschland 1848: Ursachen, Verlauf, Ereignisse', in Dieter Langewiesche (ed.), *Die Deutsche Revolution von 1848/49* (Darmstadt: Wissenschaftliche Buchgesellschaft, 1983), 362–94.

Koch, Ursula E., *Der Teufel in Berlin: Von der Märzrevolution bis zu Bismarcks Entlassung.* Illustrierte politische Witzblätter einer Metropole, 1848–1890 (Cologne: Informationspresse, 1991).

Koch, Ursula E., and Martin Loiperdinger, 'Political Images and Censorship in Germany before 1914', in Robert Justin Goldstein and Andrew M. Nedd (eds), *Political Censorship of the Visual Arts in Nineteenth-Century Europe* (Basingstoke: Palgrave Macmillan, 2015), 130–90.

Kocka, Jürgen, 'The European Pattern and the German Case', in Jürgen Kocka and Allan Mitchell (eds), *Bourgeois Society in Nineteenth-Century Europe* (Oxford: Berg, 1993), 3–39.

Kohnen, Richard, *Pressepolitik des Deutschen Bundes: Methoden staatlicher Pressepolitik nach der Revolution von 1848* (Tübingen: Max Niemeyer, 1995).

Koselleck, Reinhart, 'Staat und Gesellschaft in Preußen, 1815–1848', in Werner Conze (ed.), *Staat und Gesellschaft im Deutschen Vormärz, 1815–1848 Sieben Beiträge* (Stuttgart: Ernst Klett Verlag, 1962), 79–112.

Koselleck, Reinhart, *Preußen zwischen Reform und Revolution: Allgemeines Landrecht, Verwaltung und soziale Bewegung von 1791 bis 1848* (Stuttgart: Ernst Klett, 1967).

Kraehe, Enno E., 'Practical Politics in the German Confederation: Bismarck and the Commercial Code', *Journal of Modern History*, 25 (1953), 13–24.

Kraus, Hans-Christof, 'Ein altkonservativer Frondeur als Parlamentarier und Publizist—Ernst Ludwig von Gerlach (1795–1877)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 13–36.

Kraus, Hans-Christof (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995).

Kraus, Hans-Christof, 'Konstitutionalismus wider Willen: Versuche einer Abschaffung oder Totalrevision der preußischen Verfassung während der Reaktionsära (1850–1857)', *Forschungen zur Brandenburgischen und Preußischen Geschichte*, NS 5 (1995), 157–240.

Kutzsch, Gerhard, 'Friedrich Wilhelm IV. und Carl Wilhelm Saegert', *Jahrbuch für die Geschichte Mittel- und Ostdeutschlands*, 6 (1957), 133–72.

Ladd, Brian, *Urban Planning and Civic Order in Germany, 1860–1914* (Cambridge, MA: Harvard University Press, 1990).

Landau, Peter, 'Schwurgerichte und Schöffengerichte in Deutschland im 19. Jahrhundert bis 1870', in Antonio Padoa Schioppa (ed.), *The Trial Jury in England, France, Germany, 1700–1900* (Berlin: Duncker & Humblot, 1987), 241–304.

Langewiesche, Dieter, *Liberalismus und Demokratie in Württemberg zwischen Revolution und Reichsgründung* (Düsseldorf: Droste, 1974).

Langewiesche, Dieter, 'Die Anfänge der deutschen Parteien: Partei, Fraktion und Verein in der Revolution von 1848/49', *Geschichte und Gesellschaft*, 4 (1978), 324–61.

Langewiesche, Dieter, 'Liberalism and the Middle Classes in Europe', in Jürgen Kocka and Allan Mitchell (eds), *Bourgeois Society in Nineteenth-Century Europe* (Oxford: Berg, 1993), 40–69.

Langewiesche, Dieter, *Liberalism in Germany*, trans. Christiane Banerji (Basingstoke: Macmillan, 2000).

Ledford, Kenneth F., 'Lawyers, Liberalism, and Procedure: The German Imperial Justice Laws of 1877–79', *Central European History*, 26 (1993), 165–93.

Ledford, Kenneth F., *From General Estate to Special Interest: German Lawyers, 1878–1933* (Cambridge: Cambridge University Press, 1996).

Ledford, Kenneth F., 'Judicial Independence and Political Representation: Prussian Judges as Parliamentary Deputies, 1849–1913', *Law & Social Inquiry*, 25 (2000), 1049–75.

Lees, Andrew, *Revolution and Reflection: Intellectual Challenge in Germany during the 1850s* (The Hague: Martinus Nijhoff, 1974).

Lees, Andrew, *Cities Perceived: Urban Society in European and American Thought, 1820–1940* (Manchester: Manchester University Press, 1985).

Lees, Andrew, *Cities, Sin, and Social Reform in Imperial Germany* (Ann Arbor: University of Michigan Press, 2002).

Lees, Andrew, and Lynn Hollen Lees, *Cities and the Making of Modern Europe, 1750–1914* (Cambridge: Cambridge University Press, 2007).

Leonards, Chris, and Nico Randeraad, 'Transnational Experts in Social Reform, 1840–1880', *International Review of Social History*, 55 (2010), 215–39.

Lindenfeld, David F., *The Practical Imagination: The German Sciences of State in the Nineteenth Century* (Chicago: University of Chicago Press, 1997).

Löser, Wolfgang, 'Die Rolle des preußischen Staates bei der Ausrüstung der Eisenbahnen mit elektrischen Telegraphen in der Mitte des 19. Jahrhunderts', *Jahrbuch für Wirtschaftsgeschichte*, 4 (1963), 193–208.

Lowood, Henry E., 'The Calculating Forester: Quantification, Cameral Science, and the Emergence of Scientific Forestry Management in Germany', in Tore Frängsmyr, J. L. Heilbron, and Robin E. Rider (eds), *The Quantifying Spirit in the Eighteenth Century* (Berkeley and Los Angeles: University of California Press, 1990), 315–42.

Lubowitzski, Jutta, 'Der "Hobrechtplan": Probleme der Berliner Stadtentwicklung um die Mitte des 19. Jahrhunderts', in Wolfgang Ribbe (ed.), *Berlin-Forschungen* (Berlin: Colloquium, 1990), 11–130.

Lüdtke, Alf, *Police and State in Prussia, 1815–1850*, trans. Peter Burgess (Cambridge: Cambridge University Press, 1989).

Manca, Anna Gianna, 'Die Beamten in der französischen und deutschen verfassunggebenden Versammlung von 1848', in Martin Kirsch and Pierangelo Schiera (eds), *Verfassungswandel um 1848 im europäischen Vergleich* (Berlin: Duncker & Humblot, 2000), 102–45.

Meinecke, Friedrich, *Radowitz und die deutsche Revolution* (Berlin: Mittler, 1913).

Mettele, Gisela, 'Verwalten und Regieren oder Selbstverwalten und Selbstregieren?', *Historische Zeitschrift*, 16 (1993), 343–65.

Mintzker, Yair, *The Defortification of the German City, 1689–1866* (Cambridge: Cambridge University Press, 2012).

Morris, Warren B., Jr. *The Road to Olmütz: The Career of Joseph Maria von Radowitz* (New York: Revisionist Press, 1976).

Müller, Frank Lorenz, *Britain and the German Question: Perceptions of Nationalism and Political Reform, 1830–63* (Basingstoke: Palgrave, 2002).

Müller, Johann Baptist, 'Der politische Professor der Konservativen—Friedrich Julius Stahl (1802–1861)', in Hans-Christof Kraus (ed.), *Konservative Politiker in Deutschland: Eine Auswahl biographischer Porträts aus zwei Jahrhunderten* (Berlin: Duncker & Humblot, 1995), 69–88.

Murphey, Janine T., 'Contesting Surveillance: The German Gymnastics Movement and the Prussian State, 1850–1864', *German History*, 36 (2018), 21–37.

Nalbach, Alex, '"Poisoned at the Source"? Telegraphic News Services and Big Business in the Nineteenth Century', *Business History Review*, 77 (2003), 577–610.

Neeman, Andreas, *Landtag und Politik in der Reaktionszeit: Sachsen 1849/50–1866* (Düsseldorf: Droste, 2000).

Neugebauer, Wolfgang, *Wozu preußische Geschichte im 21.* Jahrhundert? (Berlin: Duncker & Humblot, 2012).

Nikolow, Sybilla, 'A. F. W. Crome's Measurements of the "Strength of the State": Statistical Representations in Central Europe around 1800', *History of Political Economy*, 33 (2001), 23–56.

Nipperdey, Thomas, *Germany from Napoleon to Bismarck, 1800–1866*, trans. Daniel Nolan (Dublin: Gill and Macmillan, 1996).

Nöth-Greis, Gertrud, 'Das Literarische Büro als Instrument der Pressepolitik', in Jürgen Wilke (ed.), *Pressepolitik und Propaganda: Historische Studien vom Vormärz bis zum Kalten Krieg* (Cologne: Böhlau, 1997), 1–78.

Nutz, Thomas, *Strafanstalt als Besserungsmaschine. Reformdiskurs und Gefängniswissenschaft, 1775–1848* (Munich: Oldenbourg, 2001).

Ohles, Frederik, *Germany's Rude Awakening: Censorship in the Land of the Brothers Grimm* (Kent, OH: Kent State University Press, 1992).

Olsen, Niklas, *History in the Plural: An Introduction to the Work of Reinhart Koselleck* (New York: Berghahn, 2012).

Orr, William J., Jr, 'East Prussia and the Revolution of 1848', *Central European History*, 13 (1980), 303–31.

Overesch, Manfred, *Presse zwischen Lenkung und Freiheit: Preußen und seine offiziöse Zeitung von der Revolution bis zur Reichsgründung (1848–1871/72)* (Pullach: Dokumentation, 1974).

Palmowski, Jan, *Urban Liberalism in Imperial Germany: Frankfurt Am Main, 1866–1914* (Oxford: Oxford University Press, 1999).

Patriarca, Silvana, *Numbers and Nationhood: Writing Statistics in Nineteenth-Century Italy* (Cambridge: Cambridge University Press, 1996).

Payer, Peter, *Blick auf Wien: Kulturhistorische Streifzüge* (Vienna: Czernin, 2007).

Piereth, Wolfgang, 'Propaganda im 19. Jahrhundert: Die Anfänge aktiver staatlicher Pressepolitik in Deutschland (1800–1871)', in Wolfram Siemann and Ute Daniel (eds), *Propaganda, Meinungskampf, Verführung und politische Sinnstiftung 1789–1989* (Frankfurt am Main: Fischer Taschenbuch Verlag, 1994), 21–43.

Poling, Kristin, 'Shantytowns and Pioneers beyond the City Wall: Berlin's Urban Frontier in the Nineteenth Century', *Central European History*, 47 (2014), 245–74.

Porter, Theodore M., *The Rise of Statistical Thinking, 1820–1900* (Princeton: Princeton University Press, 1986).

Porter, Theodore M., 'Lawless Society: Social Science and the Reinterpretation of Statistics in Germany', in Lorenz Krüger, Lorraine Daston, and Michael Heidelberger (eds), *The Probabilistic Revolution*, 2 vols (Cambridge, MA: MIT Press, 1987), i. 351–75.

Poten, Bernhard von, 'Strotha, Karl Adolf von', *Allgemeine deutsche Biographie*, 36 (1893), 627–9.

Price, Roger, *The French Second Empire: An Anatomy of Political Power* (Cambridge: Cambridge University Press, 2001).

Puschmann, Bernhard, 'Über den Aachener Eisenbahntelegraphen'. *Technikgeschichte*, 34 (1967), 350–60.

Rajan, S. Ravi, *Modernizing Nature: Forestry and Imperial Eco-Development, 1800–1950* (Oxford: Oxford University Press, 2006).

Randeraad, Nico, *States and Statistics in the Nineteenth Century: Europe by Numbers*, trans. Debra Molnar (Manchester: Manchester University Press, 2010).

Randeraad, Nico, 'The International Statistical Congress (1853–1876): Knowledge Transfers and their Limits', *European History Quarterly*, 41 (2011), 50–65.

Reindl, Josef, *Der Deutsch-Österreichische Telegraphenverein und die Entwicklung des deutschen Telegraphenwesens, 1850–1871* (Frankfurt am Main: Peter Lang, 1993).

Rejewski, Harro-Jürgen, *Die Pflicht zur politischen Treue im preußischen Beamtenrecht (1850–1918). Eine rechtshistorische Untersuchung anhand von Ministerialakten aus dem Geheimen Staatsarchiv der Stiftung Preußischer Kulturbesitz* (Berlin: Duncker und Humblot, 1973).

Retallack, James, *Red Saxony: Election Battles and the Spectre of Democracy in Germany, 1860–1918* (Oxford: Oxford University Press, 2017).

Richards, Chase, 'Pages of Progress: German Liberalism and the Popular Press after 1848' (Ph.D. dissertation, University of Pennsylvania, 2013).

Richards, Chase, 'Why Consider the Popular Press in Post-1848 Germany', *Bulletin of the GHI*, 56 (2015), 47–68.

Richtofen, Gunther von, *Die Politik Bismarcks und Manteuffels in den Jahren 1851–1858* (Ph.D. dissertation, Friedrich-Wilhelms-Universität zu Berlin, 1915).

Ritter, Gerhard A. (ed.), *Regierung, Bürokratie und Parlament in Preußen und Deutschland von 1848 bis zur Gegenwart* (Düsseldorf: Droste, 1983).

Rosenberg, Hans, *Bureaucracy, Aristocracy, and Autocracy: The Prussian Experience, 1660–1815* (Cambridge, MA: Harvard University Press, 1966).

Ross, Anna. 'Down with the Walls! The Politics of Place in Spanish and German Urban Extension Planning, 1848–1914', *Journal of Modern History*, 90 (2018), 292–322.

Ross, Anna, 'Post-Revolutionary Politics: The Case of the Prussian Ministry of State', in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018), 276–92.

Rutz, Harry, 'Die Entstehung der Berliner Wasserwerke und der Wasserleitung—Eine kulturhistorische Skizze', *Mitteilungen des Vereins für die Geschichte Berlins*, 17 (1969), 230–4.

Sanger, William W., *The History of Prostitution: Its Extent, Causes and Effects throughout the World* (New York: Medical Publishing Co., 1913).

Schäche, Wolfgang, and Norbert Szymanski, *Das Zellengefängnis Moabit: Zur Geschichte einer Preussischen Anstalt* (Berlin: Transit Buchverlag, 1992).

Schambach, Sigrid, *Johann Hinrich Wichern* (Hamburg: Ellert & Richter, 2008).

Schlegelmilch, Arthur, 'Das Projekt der konservativ-liberalen Modernisierung und die Einführung konstitutioneller Systeme in Preußen und Österreich, 1848/49', in Martin Kisch and Pierangelo Schiera (eds), *Verfassungswandel um 1848 im europäischen Vergleich* (Berlin: Duncker & Humblot, 2001), 155–77.

Schmidt, Daniel, '"Kenntniß ist Macht"—Ernst Engel in Sachsen', *Fachzeitschrift für Statistik des Statistischen Landesamtes des Freistaates Sachsen: 175 Jahre amtliche Statistik in Sachsen*, 12 (2006), 35–41.

Schoeller, Wilfried F., *Ernst Litfaß: Der Reklamekönig* (Frankfurt am Main: Schöffling, 2005).

Schremmer, Eckart, *Steuern und Staatsfinanzen während der Industrialisierung Europas: England, Frankreich, Preußen und das Deutsche Reich 1800 bis 1914* (Berlin: Springer, 1994).

Schroeder, Paul W., *Austria, Great Britain, and the Crimean War: The Destruction of the European Concert* (Ithaca, NY: Cornell University Press, 1972).

Schroeder, Paul W., *The Transformation of European Politics, 1763–1848* (Oxford: Clarendon Press, 1994).

Schubert, Werner, 'Mühler, Heinrich Gottlob v.', *Neue deutsche Biographie*, 18 (1997), 286–7.

Schulze, Berthold, 'Polizeipräsident Carl von Hinckeldey', *Jahrbuch für die Geschichte Mittel- und Ostdeutschlands*, 4 (1955), 81–108.

Schuppe, Franz, *Die verwaltungsrechtlichen Voraussetzungen für eine Bestrafung wegen Sittenpolizei-Kontravention im Gebiete des preussischen Staates* (Ph.D. dissertation, Königlichen Universität Griefswald, 1913).

Schweber, Libby, *Disciplining Statistics: Demography and Vital Statistics in France and England, 1830–1885* (Durham, NC: Duke University Press, 2006).

Schwentker, Wolfgang, *Konservative Vereine und Revolution in Preussen 1848/49: Die Konstituierung des Konservativismus als Partei* (Düsseldorf: Droste, 1988).

Scott, James C., *Seeing like a State: How Certain Schemes to Improve the Human Condition Have Failed* (New Haven: Yale University Press, 1998).

Seiderer, Georg, *Oesterreichs Neugestaltung: Verfassungspolitik und Verwaltungsreform im österreichischen Neoabsolutismus unter Alexander Bach 1849–1859* (Vienna: VÖAW, 2015).

Sheehan, James J., *German Liberalism in the Nineteenth Century* (Chicago: University of Chicago Press, 1978).

Sheehan, James J., *German History, 1770–1866* (Oxford: Clarendon Press, 1989).

Showalter, Dennis, 'Soldiers into Postmasters? The Electric Telegraph as an Instrument of Command in the Prussian Army', *Military Affairs*, 37 (1973), 48–52.

Siclovan, Diana, '1848 and German Socialism', in Douglas Moggach and Gareth Stedman Jones (eds), *The 1848 Revolutions and European Political Thought* (Cambridge: Cambridge University Press, 2018), 254–75.

Siebe, Michaele, *Von der Revolution zum nationalen Feindbild: Frankreich und Deutschland in der politischen Karikatur des 19. Jahrhunderts: 'Kladderadatsch' und 'Charivari'* (Münster: Lit, 1995).

Siemann, Wolfram, *'Deutschlands Ruhe, Sicherheit und Ordnung': Die Angfänge der politischen Polizei, 1806–1866* (Tübingen: Niemeyer, 1985).

Siemann, Wolfram, *Gesellschaft im Aufbruch: Deutschland 1849–1871* (Frankfurt am Main: Suhrkamp, 1990).

Siemann, Wolfram, *The German Revolution, 1848–49*, trans. Christiane Banerji (Basingstoke: Macmillan, 1998).

Spencer, Elaine Glovka, 'Police-Military Relations in Prussia, 1848–1914', *Journal of Social History*, 19 (1985), 305–17.

Spencer, Elaine Glovka, 'State Power and Local Interests in Prussian Cities: Police in the Düsseldorf District, 1848–1914', *Central European History*, 19 (1986), 293–313.

Sperber, Jonathan, 'Competing Counterrevolutions: Prussian State and Catholic Church in Westphalia during the 1850s', *Central European History*, 19 (1986), 45–62.

Sperber, Jonathan, '*Bürger, Bürgertum, Bürgerlichkeit, Bürgerliche Gesellschaft*: Studies of the German (Upper) Middle Class and its Sociocultural World', *Journal of Modern History*, 69 (1997), 271–97.

Sperber, Jonathan, *Revolutionary Europe, 1780–1850* (Harlow: Longman, 2000).

Sperber, Jonathan, *The European Revolutions, 1848–1851,* 2nd edn (Cambridge: Cambridge University Press, 2005).

Stamm-Kuhlmann, Thomas, 'Restoration Prussia', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 43–65.

Steinberg, Jonathan, *Bismarck: A Life* (Oxford: Oxford University Press, 2011).

Strohmeyer, Klaus, *James Hobrecht (1825–1902) und die Modernisierung der Stadt* (Berlin: Verlag für Berlin-Brandenburg, 2000).

Sutcliffe, Anthony, *Towards the Planned City: Germany, Britain, the United States and France, 1780–1914* (Oxford: Blackwell, 1981).

Sybel, Heinrich von, 'Graf Brandenburg in Warschau (1850)', *Historische Zeitschrift*, 58 (1887), 245–78.

Sybel, Heinrich von, 'Carl Ludwig von Hinckeldey 1852 bis 1856', *Historische Zeitschrift*, 189 (1959), 108–23.

Thomason, Frank J., 'The Prussian Police State in Berlin, 1848–1871' (Ph.D. dissertation, Johns Hopkins University, 1978).

Temme, Jodokus D., *Erinnerungen* (Leipzig: Keil, 1883).

Tilly, Charles, 'Reflections on the History of European State-Making', in Charles Tilly and Gabriel Ardant (eds), *The Formation of National States in Western Europe* (Princeton: Princeton University Press, 1975), 3–83.

Tilly, Charles, *Coercion, Capital, and European States,* AD *990–1990* (Cambridge, MA: Blackwell, 1990).

Tilly, Richard, 'The Political Economy of Public Finance and the Industrialization of Prussia, 1815–1866', *Journal of Economic History*, 26 (1966), 484–97.

Tóth, Heléna, *An Exiled Generation: German and Hungarian Refugees of Revolution, 1848–1871* (Cambridge: Cambridge University Press, 2014).

Traugott, Mark, *The Insurgent Barricade* (Berkeley and Los Angeles: University of California Press, 2010).

Tribe, Keith, *Strategies of Economic Order: German Economic Discourse, 1750–1950* (Cambridge: Cambridge University Press, 1995).

Valentin, Veit, *Geschichte der deutschen Revolution von 1848–49*, 2 vols (Berlin: Ullstein, 1930–1).

Volkmann, Heinrich, *Die Arbeiterfrage im Preussischen Abgeordnetenhaus, 1848–1869* (Berlin: Duncker & Humblot, 1968).

Vormbaum, Thomas, *A Modern History of German Criminal Law*, trans. Margaret Hiley (Berlin: Springer, 2014).

Vorpahl, Frank, *Die Berliner politischen Tageszeitungen in Nachmärz und 'Neuer Ära' (1850–1862)* (Frankfurt am Main: Peter Lang, 2011).

Voth, Hans-Joachim, 'The Prussian Zollverein and the Bid for Economic Superiority', in Philip G. Dwyer (ed.), *Modern Prussian History, 1830–1947* (London: Routledge, 2001), 109–25.

Vushko, Iryna, The Politics of Cultural Retreat: Imperial Bureaucracy in Austrian Galicia, 1772–1867 (New Haven: Yale University Press, 2015).

Wagner, Stefan, *Die staatliche Grund- und Gebäudesteuer in der preußischen Rheinprovinz von 1815 bis 1895: Entwicklung von Steuerrecht, -aufkommen und -belastung* (Cologne: Rheinisch-Westfälisches Wirtschaftsarchiv, 1980).

Walker, Mack, '*Preußen zwischen Reform und Revolution: Allgemeines Landrecht, Verwaltung und soziale Bewegung von 1791 bis 1848* by Reinhart Koselleck', *Journal of Social History*, 3 (1969–70), 183–7.

Walker, Mack, *German Home Towns: Community, State and General Estate, 1648–1871* (Ithaca, NY: Cornell University Press, 1971).

Walter, Hans, *Die innere Politik des Ministers von Manteuffel und der Ursprung der Reaktion in Preussen* (Berlin: Ebering, 1910).

Wappler, Kurt, *Regierung und Presse in Preußen: Geschichte der amtlichen preußischen Pressestellen, 1848–1862* (Ph.D. dissertation, Universität Leipzig, 1935).

Wegge, Hans, 'Die Stellung der Öffentlichkeit zur oktroyierten Verfassung und die preußische Parteibildung 1848/49' (Ph.D. dissertation, Berliner Universität, 1932).

Wehler, Hans-Ulrich, *Deutsche Gesellschaftsgeschichte*, 5 vols (Munich: CH Beck, 1987–2008).

Weindling, Paul, 'Bourgeois Values, Doctors and the State: The Professionalization of Medicine in Germany, 1848–1933', in David Blackbourn and Richard J. Evans (eds), *The German Bourgeoisie: Essays on the Social History of the German Middle Class from the Late Eighteenth to the Early Twentieth Century* (London: Routledge, 1991), 198–223.

Wetzell, Richard F., 'Introduction: Crime and Criminal Justice in Modern Germany', in Richard F. Wetzell (ed.), *Crime and Criminal Justice in Modern Germany* (New York: Berghahn, 2014), 1–30.

Wilderotter, Hans, *Das Haus der Abgeordneten: Ein Denkmal preußischer und deutscher Geschichte in der Mitte Berlins* (Berlin: Philo Fine Arts, 2001).

Wippermann, Karl, 'Manteuffel, Otto Theodor von M.', *Allgemeine deutsche Biographie*, 20 (1884), 260–72.

Wu, Albert, '"Unashamed of the Gospel": Johann Hinrich Wichern and the Battle for the Soul of Prussian Prisons', *Church History*, 78 (2009), 283–308.

Würzburger, Eugene, 'The History and Development of Official Statistics in the German Empire', in John Koren (ed.), *The History of Statistics: Their Development and Progress in Many Countries* (New York: Macmillan, 1918), 333–62.

Yeo, Eileen Janes, 'Social Surveys in the Eighteenth and Nineteenth Centuries', in Theodore M. Porter and Dorothy Ross (eds), *The Cambridge History of Science: The Modern Social Sciences* (Cambridge: Cambridge University Press, 2003), 83–99.

Zande, Johan van der, 'Statistik and History in the German Enlightenment', *Journal of the History of Ideas*, 71 (2010), 411–32.

Zeise, Roland, 'Zur Genesis und Funktion der deutschen Handelskammern und des deutschen Handelstages bis zur Reichsgründung, 1871', *Jahrbuch für Wirtschaftsgeschichte*, 4 (1976), 63–82.

Ziblatt, Daniel, *Conservative Parties and the Birth of Democracy in Europe* (Cambridge: Cambridge University Press, 2017).

OTHER

<https://www.landesschule-pforta.de/de/geschichte/schueler.php> (accessed 26 April 2018).

Gehrmann, Rolf, 'German Census-Taking before 1871', *MPDIR Working Paper* (2009), 1–24, <http://www.demogr.mpg.de/papers/working/wp-2009-023.pdf> (accessed 27 May 2018).

Index

Aachen 52–3, 123–4, 138, 179–80
aesthetics, urban 153–7
agrarian system
  reform of 108–14
Altenstein, Baron Karl von Stein zum 27–8, 31–3
artisans 16, 59, 115–18, 140–1
Auerswald, Rudolf von 12–13, 22–3, 40–1, 47–8, 139–40, 197–8
Augsburg 135, 153–6
Austria 3, 7–8, 34, 202–3
  constitutionalism 44
  criminal law 75, 86–7
  economic growth 108
  emancipation 109–10, 112
  joint-stock banks 121–2
  jury courts 84
  local government 135, 140–1
  press management 168–9, 174–5
  and Prussian Union project 45
  statistical office 61–2
  telegraph 124, 126–7

Baden 1–2, 44, 46, 61–2, 66, 84, 86–7, 92–3, 96, 135–6, 161
Bavaria 34–5, 61–2, 75, 84, 86–7, 92–3, 105, 109–10, 126–7, 135, 166, 168–9, 174–5
Bavarian Palatinate 1–2
Beckerath, Hermann von 12–13
Belgium 67, 71, 94–5, 135, 153, 163–4
Berlin 1, 15–17, 20, 40–1, 56–7, 73–4, 123–4, 134–5
  confiscation of newspapers in 178–9
  extension of 157–61
  restructuring of the Berlin police force and Berlin Statistical Office 141–5
  regulation
    of houses 145–9
    of streets 150–2
  as state capital 138, 141
Berlin Statistical Office 143–5, 151–2, 161–5
Beseler, Georg 86
Bethmann-Hollweg, Moritz August 11, 50–1, 140, 195
Bismarck, Otto von 9–12, 17–18, 23, 29, 48–9, 52–3, 74–5, 86–7, 104–6, 116–17, 130–1, 192–3, 197, 202–3
Bodelschwingh, Karl von 53–4, 122, 194
Brandenburg
  city of 20
  Manteuffel Ministry of State 8–14, 20–1
    attempted reform of municipal government 136–8, 140
    formation of 21–35
    and national question 41–2
    and press management 167–9
    and the promulgation of a constitution 35–9, 196
    resignation attempt 42
    reform of criminal justice 83–4, 104
  Province of 56–8, 138–9
Brandenburg, Count Friedrich Wilhelm von 3–5, 17–18, 20, 23, 39–40
  death 47
  early life 23–5
  on emancipation 110
  on Manteuffel's appointment 30
  and the national question 41, 45–6
  on the press 169
  and the promulgation of a constitution 25, 35, 196
  realism in 1848 33–4, 54
Bremen 61–2, 129, 153–6
Breslau 15–16, 23, 36, 59, 112, 144–5, 153–6
Brunswick 61–2, 84, 92–3
building code, *see* Police Construction Ordinance
Bunsen, Christian Karl Josias 11
bureaucracy 4–5, 13, 17–18, 21–2, 34, 43, 51–4, 92–3, 136–7, 196–7, 200–1
bureaucrats, *see* bureaucracy
business class 14–15, 107–8, 114–15, 119, 121–3, 127

Cabinet Order of 8 September 1852 48–9
cameralism 28, 60
Camphausen, Ludolf 12–13, 22–3, 35–6, 40–1, 45, 47–8
capital punishment 78, 80–3, 85–7, 92–3
Catholics 11, 47, 57–8, 77–8, 86
censorship 43–4, 156, 167, 169
Central Offices of the Interior Ministry 14
Central Society for the Welfare of the Working Classes 148, 190–1
City Council 140, 145, 156
city extensions 157–61
Cologne 88–9, 123–4, 138, 161
commandite companies, *see* commercial investment banks
commercial investment banks 121–3
communications (railways, roads, and telegraph lines) 107–8, 123–9
Communist League 88–9
conservatives 10–11, 13–14, 38–9

Constitution of 1850 8–9, 11, 17–18, 20–1, 33–4
articles related to criminal justice 83–4
Brandenburg's view of 25, 196
compared to those in other German states 44
drafting of 35–6
final revisions to, and oath of 6 February 1850 44
implications for an end to serfdom 110
Manteuffel's view of 55, 196–7
and ministerial responsibility 22–3
opposition to the draft constitution of 5 December 1848 37
Parliamentary support for the draft constitution of 5 December 1848 12–13, 39–40
support for the draft constitution of 5 December 1848 36–7
Westphalen and revision of 51
corporal punishment 76–7, 103
Council of State 49–50
counter-revolution 1–4, 20–1, 25, 43, 50–1, 181–2
county 58
court system in Prussia 73–5, 83–4, 87–95, 104
courtroom 74, 84, 93
craftsmen, *see* artisans
Crimean War 3, 11–12, 18, 48, 121–2
Criminal Code 74–8, 80–7, 93–4, 104–5
criminal statistics 97–101

death penalty, *see* capital punishment
Dechen, Ernst Heinrich Karl von 120–1
democrats 5–6, 11–12, 25, 39–40, 44, 87–8, 135–6, 167, 178, 184–5
democratization 13–14, 198
Dieterici, Carl Friedrich Wilhelm 61–6, 69–70, 98, 108, 151–2, 164, 189
disciplinary decrees of 10 and 11 July 1849 43, 51–3
district 58
doctrinaire politics 3–4, 10–12, 31, 33–4, 172
Dresden 144–5, 153–6
dualism 3
Düsseldorf 112, 149, 179

elections 13, 15–16, 38–9, 44, 51–2, 133–7, 140–1, 195, 197–8
emancipation 107–12
Engel, Ernst 65–6, 69–70
England 1–2, 67, 79, 94–5, 120–1
Erfurt 3, 45
d'Ester, Carl 12
Executive Council 140, 144–6, 148–9, 156–7

Fallati, Johannes 60–1
family papers 16, 184–5
feudal 4–6, 8–9, 18, 55, 108, 111, 132–3, 201
Finance Minister 21–2
First Chamber 10–11, 38–9, 86, 113, 138–9
reorganization of 49–51
Foreign Minister 21–2
France 38, 50, 67, 72, 79, 93–5, 97–8, 117, 120–2, 149, 153, 189
Frankfurt am Main 123–4, 144–5, 161, 174–5
Frankfurt an der Oder 27–8, 149
Frankfurt National Assembly 12, 25, 41, 96, 123–4, 135–6
free trade 107–8, 114–18, 138
Friedrich Wilhelm IV, King of Prussia 3–4, 7–9, 22–3, 25, 31–2
advocation for the reinstatement of corporal punishment 103
and the Cabinet Order of 8 September 1852 48–9
and city extensions 157–8
and commercial investment banks 122–3
and Council of State 49–50
and the Crimean War 48
and disciplinary laws 52–3
and the establishment of a press office 169
and extra-ministerial advisors 49
and Hinckeldey 142–3, 159–60
and the introduction of running water in Berlin 148–9
and jury trials 91–3
and the Municipal Ordinance of 1850 136–40
and the national question 41–2, 45, 47–8
and newspapers 177–80
and the 'Poland Trial' 73–4, 87
on a potential ministerial shuffle 42
and prison reform 95–6, 101–2
and the promulgation of a constitution 35–6
and the reassignment of Rhyno Quehl 173
and Redemption Law and Regulation Law 111–12
and reorganization of the First Chamber 49–51
and show trials 87–90
views on the telegraph 123–4

Gefängniskunde 95–6
General Court Ordinance 1793 59, 75–6
General Law Code, 1794 59, 73, 75–7
geological maps 120–1
Gerlach, Leopold von 10–11, 23, 29–30, 37, 42, 111, 136–7, 167, 198
Gerlach, Ernst Ludwig von 10–11, 23, 29, 37, 42, 86, 136–7, 140, 167, 198
German Confederation 1–3, 6, 47, 56, 104–5, 130–1
German question 25, 41–2, 45–8, 77, 81, 130–1, 202–3
German unification 5–6, 11–13, 17–18, 25, 33, 41–2, 45, 47–8, 77, 81, 202–3

Germanisten conferences 80–1
German–Austrian Telegraph Organization 126–7
Goltdammer, Theodor 86, 93–4, 190–1
Goltz, Count Robert von der 11
government 3–9, 11–13, 19, 43, 51–4, 197–8
governmental conservatives 7, 17–19
Gruner, Justus von 11
Guerry, André Michel 97–8

Halle 28, 78
Hamburg 61–2, 153–6
Handelsarchiv 127–9
Hanover, Kingdom of 7–8, 15, 44, 46, 61–2, 84, 92–3, 105–6, 116, 126–7, 168, 174–5
Hansemann, David 35–6, 113, 122, 135–6
Hardenberg, Karl August von 17, 21–2, 77, 112, 168–9
Haussmann, Baron Georges-Eugène 143, 149
Heffter Proposition 50–1
Hegel, Immanuel 173–5
Helwing, Ernst 67–9
Hesekiel, Johann George 27–8, 30
Hesse, Grand Duchy of 61–2, 77 (fn14), 84, 93
Hesse-Darmstadt 44, 84, 92–3
Heydt, August von der 38, 50–1, 53–4
  attitude towards economic reform 107–8
  and commercial investment banks 121–3
  continuation as Trade Minister after 1858 194
  and free trade 115, 117
  and state investment in industry 118–21
  and telegraph 124–7
Hinckeldey, Carl Ludwig Friedrich von 6–7, 49–50, 88–90, 125–6
  appointment as Police President and restructuring of the Berlin police 141–5
  and city extensions 157–61
  and dissemination of urban statistics 161–5
  legacy 166
  and newspapers 177, 182, 186
  policing of prostitution 152–3
  and posters 153–7
  regulation
    of houses in Berlin 145–9
    of streets in Berlin 150–2
  and 'second Cologne trial' 178
Hobrecht Plan 160–1
House of Lords 50–1
Huber, Viktor Aimé 10–11, 172
Hübner, Otto 144, 162–5, 190–1
Humboldt, William von 27–8

Interior Minister 21–2
international congresses 69–70
International Statistical Congress 69–70, 98, 164–5

joint-stock banks, *see* commercial investment banks
Julius, Nikolaus Heinrich 95–6
Jung, Georg 12
jury, also jury court 74–6, 81, 83–4, 90–5
Justice Minister 21–2
justice statistics 78–9, 81–3, 144, 190–1

Kamptz, Karl Albert von 76–7, 80
Kirchmann, Julius von 12
Kleist-Retzow, Hans Hugo von 10, 23, 29, 31, 38–9
Königsberg 58–60, 133–5
Kreuzzeitungspartei 49, 172

Ladenberg, Adalbert von 31–3, 35, 45, 47, 98, 172
Landesschule Pforta 27–8
Landrat 58
Leipzig 112, 153–6, 174–5, 184–5
Leo, Heinrich 10
liberals 11–13, 22–3
  attitudes
    towards the disciplinary decrees 43
    towards pension payments 117
  and the continued politicization of the press after 1848 184–5
  and local government reform 135–9
  and the potential ministerial shuffle 42
  and the Prussian Ministry of State 11–13, 36, 39, 41–2
  tension with Hinckeldey 160
  and the Union project 45
Literary Cabinet 36–7, 169–71
Litfaß, Ernst 153–7
local government reform 133–41
London 151–6
Lübben 26–7
Lübeck 61–2, 144–5, 153–6

Manteuffel, Karl Otto von 107, 121–2, 194
Manteuffel, Baron Otto Theodor von 3–5, 9–14, 18, 20–2
  appointment to Minister-President 47
  breaking with the revolution of 1848 48
  and commercial investment banks 121–3
  and the Council of State 49–50
  dismissal 194–5
  early life 26–31
  and emancipation 109–11
  and the establishment of a press office 169–75
  and free trade 115–18
  legacy 201–3
  and local government 132, 136–41
  and the national question 41, 45–6

Manteuffel, Baron Otto Theodor von (*cont.*)
and newspapers 167, 175–80, 188–9, 191
and the promulgation of a constitution 35–6, 55, 196
realism 10, 33–4, 47–8, 54, 202–3
reform of the bureaucracy 43, 51–3
and reforms to criminal justice 74–5, 90–3
resignation attempt 42
and role of Minister-President 48–9
and state investment in industry 118–20
and statistics 63–4, 98, 161–2, 164
and the telegraph 124
Manteuffel Ministry of State 8–14, 18–19
and breaking with the revolution 48
dismissal of 194–5
and realism 47–8
martial law 2–3, 20, 39–41
Marx, Karl 47, 83, 89
Mathis, Ludwig Emil 11
mayor 140
Merckel, Wilhelm Traugott von 169–71
middle classes
lower 16
upper 14–16, 43–4, 76–8, 86, 94–5, 151, 197
mining 119–21
Minister for Religious, Educational, and Medical Affairs 21–2
Minister-President 3–4, 8–9, 22, 33–4, 48–9
Ministry of State 4, 8–9, 13–15, 21–3, 38, 49–50
Mittermaier, Carl Joseph Anton 66, 80–1, 90, 92–3, 95–8, 190–1
Moabit prison 73–4, 101
modernization 6–7, 32–3, 67, 94–5
Mohl, Robert von 10–11, 60–1
Mühler, Heinrich 78, 80
municipal code, *see* Municipal Ordinance of 1850
Municipal Ordinance of 1850 132–41

Napoleon I, Emperor of the French 17, 76, 168–9
Napoleon III, Emperor of the French 50, 72
Napoleonic Era 9, 109–10, 112
Nassau 44, 84, 93, 109–10
national question, *see* German question
Netherlands, the 126–7
New Era 16, 52–3, 114, 193, 195
New York 163–4
newspapers
confiscation of 178–80
growth of in 1848 169–70
political 173–4
Potsdam dispatch-theft 186–7
reporting
on brothels 187–8
on domestic political institutions 182
on foreign policy 180–2
on police and judicial affairs 185–6
reports of ministerial sightings in 182–4
semi-official 175–8
Niebuhr, Marcus 10, 23, 114, 186–7

October Edict, 1807 109
officials 4, 13–15, 17–18, 20–1, 92–3, 200–1
Oldenburg 61–2, 66–7, 92–3
Olmütz 13, 47–8

Paris 29, 70, 120–1, 151–6
parliament 2–3, 11–13
elections to 38–9
parties (including factions) 13–14, 38–9, 54, 173, 197–8
pauperism 17–18, 74
penal institutions 74–5, 95–103
penitentiaries, *see* penal institutions
pension funds 117
Perthes, Clemens Theodor 11
Police Construction Ordinance
and city extensions 157–8
and the regulation
of houses 145–9
of streets 150–2
policing 6–7, 15
Hinckeldey's restructuring of the Berlin police force 141–5
newspaper reporting on 186
Police Administration Law 136–8, 141, 146
see also Police Construction Ordinance
Pomerania, Province of 57–8, 113, 138–9
Posen, Province of 57–8, 138–9, 173–4
posters in Berlin 153–7
Pourtalés, Count Albert von 11
press management 167–8
confiscation 178–80
daily reports 170–1
dissemination of government statistical materials 189–91
press office 168–75
semi-official newspapers and subventions 175–8
statistical reports 173–5
Press Office 171–5, 193
Prince of Prussia and later Wilhelm I 11, 23, 40, 45, 194–5
prisons, *see* penal institutions
property tax 112–14
prostitution 152–3
provincial governor 58
Prussia, Province of 57–9, 113, 138–9
Prussian Central Statistical Office and Meteorological Institute (also Central Statistical Office) 61–9, 143–5
Prussian National Assembly 1, 20, 22–3, 25, 43, 113, 135–6
public baths 151
public health 145–9, 151–2, 156–7, 166, 169–70

Quehl, Rhyno 171–3, 191
Quetelet, Adolphe 63, 97–8

Radowitz, Joseph Maria von 25, 45–6
railroads 118–19, 130, 199
Raumer, Karl von 11, 47, 194
reaction 1, 3–6, 31, 47–8, 51, 53–4, 90, 184, 195
realism 10, 17–19, 34–5, 54, 140, 172
Rechtsstaat 74, 104, 185–6, 189
Redemption Law and Regulation Law 110–11
Reform Era 18, 21–2, 58–9, 104, 107, 109, 112–13, 132, 196–8, 201
revolution in government 7–8, 19
Rhine Province 1, 13, 15–16, 41–2, 52–3, 56–9, 76–8, 82–5, 92–3, 113, 116–17, 121, 134–5, 139–40, 176–8
Riehl, Wilhelm Heinrich 10–11, 60–1
Rodbertus, Johann Karl 10–11, 60–1

Saegert, Carl Wilhelm 49–50
Savigny, Friedrich Carl von 77–8, 81
Saxony
  Kingdom of 1–2, 7–8, 34–5, 44, 46, 61–2, 65–6, 86–9, 93, 105, 112, 120–1, 126–7, 168–9
  Province of 56–8, 113, 121, 138–9, 173–4
Schede, Hermann 29
Second Chamber 10–12, 39, 41–2, 44, 51–2, 84–6, 119, 130, 137, 197
self-government 135–6, 149, 157, 160, 166
show trials 87–90
Silesia, Province of 1, 41–2, 57–9, 110, 113, 121, 138–40, 175–6
Simons, Ludwig 50–1, 53–4, 74, 84–5, 90–3, 98, 103, 194
Social Question 96, 148, 171–2
solitary confinement 97–8, 101–3
Staatswissenschaft 10–11, 60–1, 66
Stahl, Friedrich Julius 10–11, 38–9, 51
state-building 4–5, 7–9, 13–17, 63–4, 198–200, 202–3
statistics 200–1
  exchanges
    before 1848 79
    between statistical offices 65–9
  and the *Handelsarchiv* 127–9
  produced by the Central Statistical Office 61–5
  statistics in parliamentary debate 81–3
  see also justice statistics; press management; urban statistics
Stein, Baron Karl vom und zum 17, 21–2, 58–9, 77, 109, 132–5, 138
Stein, Lorenz von 10–11, 60
Stieber, Wilhelm 49–50, 88–9, 125
Strotha, Karl Adolph von 33
substantive criminal law 74–8, 80–7

telegraph 123–9, 199
Three-Class Voting Law 43–4, 140–1
Thuringia 44, 61–2, 84
Trade Minister 21–2
Trade Ordinance of 1845 114–15, 117
transportation 99
trial procedure (also court procedure) 73–5, 81, 83–4, 87–95, 104

ultraconservatives 3–4, 10–11, 13–14, 22–3
  attitudes towards the telegraph 124
  on Brandenburg's appointment 24–5, 29
  and criminal law reform 83
  and free trade 116
  on Ladenberg's appointment 33
  on lifting the state of siege 40
  on Manteuffel's appointment 30–1
  opposition
    to the Municipal Ordinance 138–9
    to property tax 113
  party formation 197–8
  and a potential ministerial shuffle 42
  and the press 176, 192
  and the Redemption Law and Regulation Law 111
  for the reinstatement of corporal punishment 103
  and the reorganization of the First Chamber 50–1
  and Rhyno Quehl 172
  shifting position at court 37
  views on prostitution in Berlin 152
Union project 3, 12–13, 45–8
United States 1–2, 120–1
Unruh, Hans Viktor von 12, 39
urban statistics 143–7, 151–3, 161–5
Usedom, Guido von 11

Vienna 149, 153–6, 161, 166
Vincke, Baron Georg von 11–13, 39–41, 45, 47–8, 71, 85–6, 139–40, 167

Wagener, Hermann 10, 29, 31, 116, 172–3
Waldeck, Benedict 12
War Minister 21–2
Westphalen, Ferdinand von 47, 51, 53, 101–3, 122, 125–6, 128–9, 152, 161–2, 194
Westphalia 1, 41–2, 56–8, 113, 134–5, 140
Wichern, Johann Hinrich 95–6, 101–3
Wochenblattpartei 11
wood theft 110
Wrangel, General Friedrich von 1, 20, 39–40
Württemberg 7–8, 34–5, 61–2, 84, 86–7, 93, 126–7, 135, 161

Zollverein 56, 61–4, 66, 116, 127, 130–1